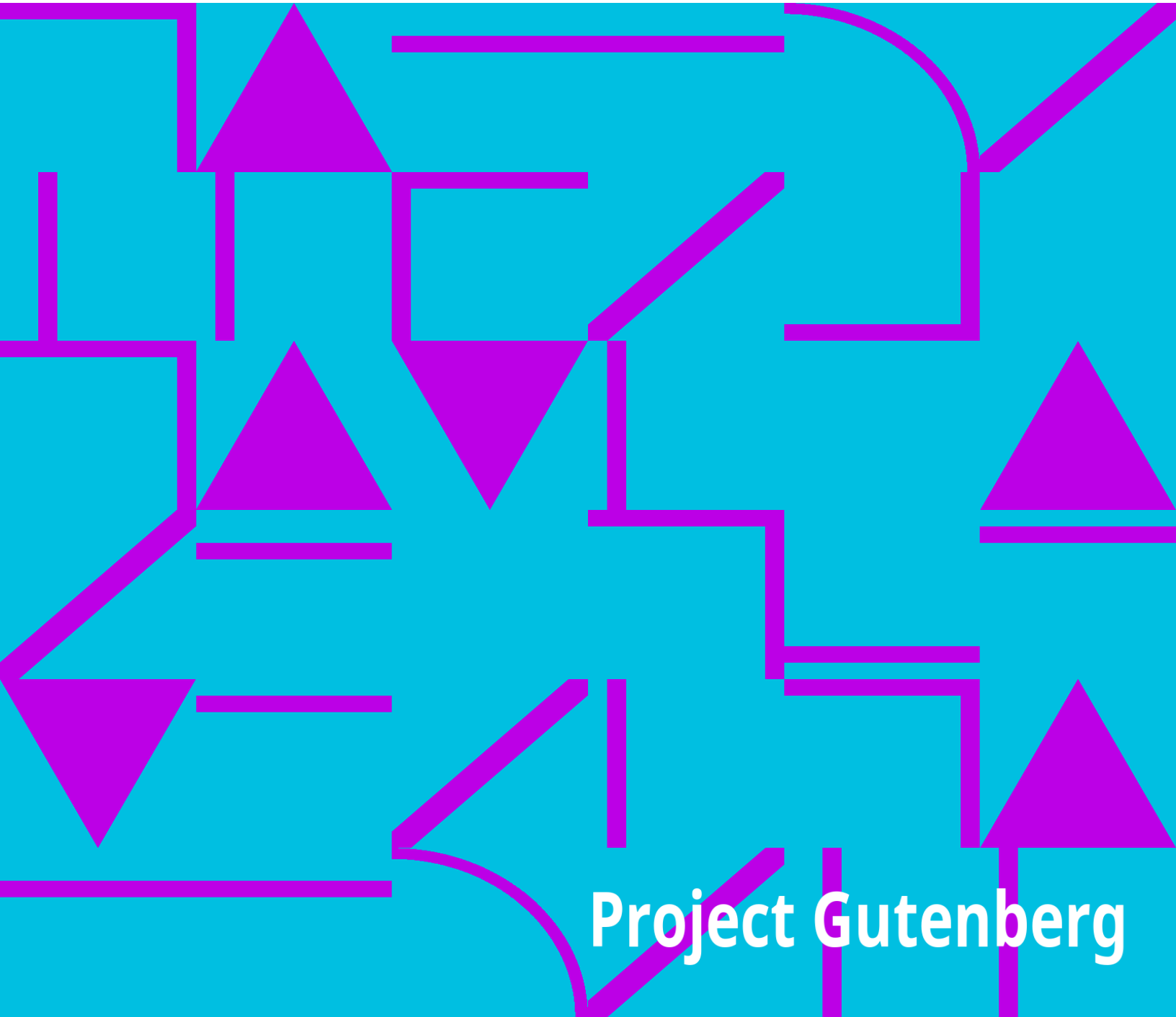


Paddington: Past and Present

William Robins



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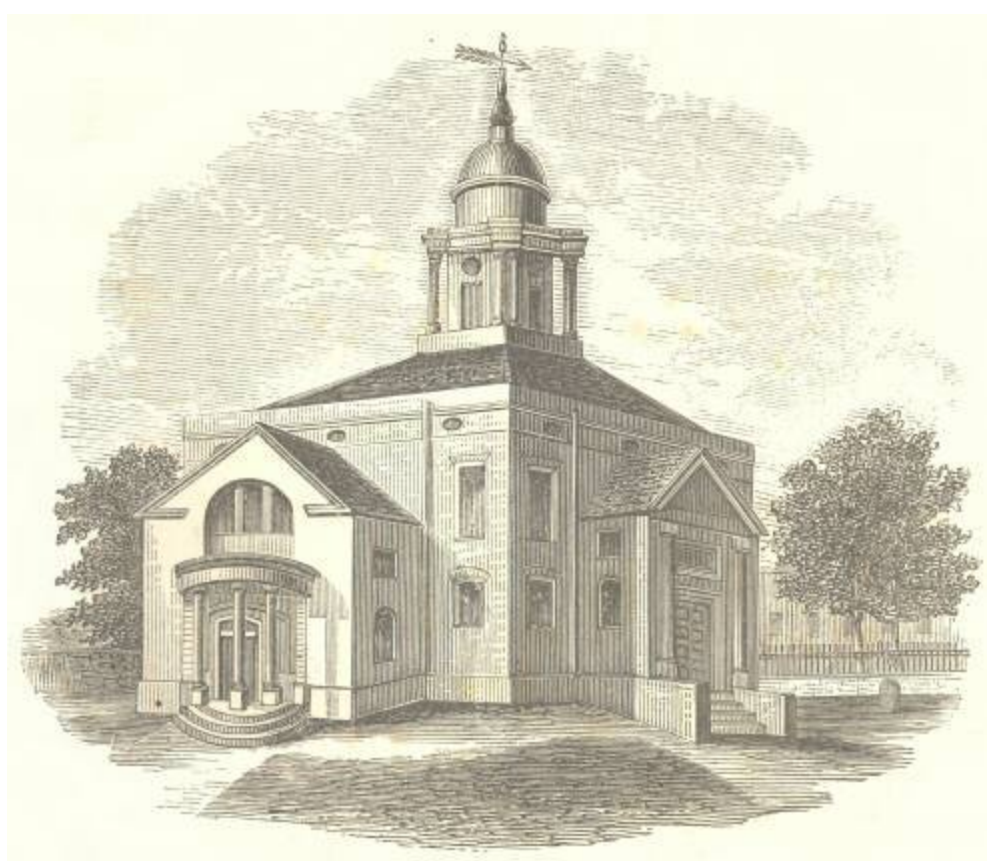
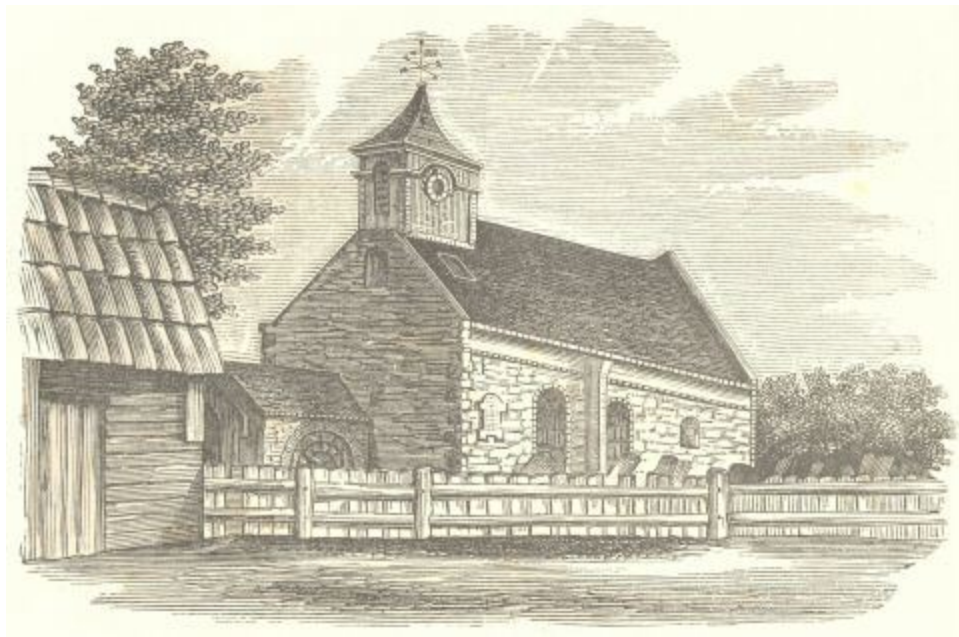
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PADDINGTON:

PAST AND PRESENT.

BY

WILLIAM ROBINS.

“Give me the liberty to know, to utter, and to argue freely according to conscience, above all liberties.”—*Milton*.

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PREFACE AND DEDICATION.

HISTORY is valuable, not merely for the facts which it records, but in a much higher degree for the lessons it teaches; for the Future will be benefited by the Past and the Present, more in proportion to the amount of truth developed and error eradicated by their teaching, than by the number of circumstances preserved.

To judge of the facts of history, it is necessary to have the liberty to know them; but it has often happened that historical facts have been so discreditable to the actors of the history, that the facts have been hidden, and fiction put in their place; and liberty to know has been refused to all, except the few who were to become participators in the actions.

There may be a few who know the history of Paddington well; but by far the greater part of those who now live in this parish have no clear notion of those circumstances which have influenced its past, and which affect its present condition. That Paddington has been transformed into a city of palaces, from a quiet rural village, is known to all; but by what agency that change has been effected—how the profits of that change have been dispensed, and who have the greatest moral, if not legal, right to the chief share of those profits—is not so clearly understood.

In giving utterance to the facts contained in the following pages, I have argued freely, according to my conscience, on the effects produced on my own mind by the facts I have recounted; and I have not failed to shew how the rights of the people have been invaded, at almost every step, in the various changes which have occurred in Paddington. It is true that the facts contained in this Work, have not been collected under the superintendence of the lords of the soil; neither are they now published under their patronage. My sketch might have been more attractive, had the records in the possession of the Bishop of London and the Dean and Chapter of

Westminster, been consulted; but I had no desire either to be refused the favour of inspecting them, or to have my hands tied by accepting it.

The Records in the various Public Record Offices are open to all; and to those Officers of the Rolls' Chapel, the Tower, and Carlton Ride, as well as those at the British Museum, who kindly assisted me by directing my search for facts relative to Paddington, my best thanks are due. I am also indebted to several kind friends for advice and assistance, during the progress of this Work through the Press. Mr. B. H. Smart, the well-known English scholar, kindly suggested to me, some time since, the possibility of the word *Paddington* being derived from *Padre ing tun, the Father's town-meadow*; and Sir Harry Dent Goring, of Bayswater House, was so good as to suggest another derivation, which I think it right to acknowledge in this place. In a note Sir Harry writes to me on this subject, he says, "A Pad is a Sussex word now in common use for Pack-Horse * * * ings we have in that county by hundreds. Now, the carriers to the great City may have lodged, and had meadows for their Pack-Horses here. I humbly suggest, therefore, may not Paddington mean *the Village at the Pack-Horse Meadows*?" It is to Dr. R. G. Latham I am indebted for pointing out to me Mr. Kemble's opinion as the most probable origin of this word. With these additional remarks I must leave the decision of this question, of the origin of the name, to those learned linguists and antiquarians who desire to enter more deeply into the subject.

I regret not having been able to spend more time, than I have done, in researches for this Sketch; but I hope my efforts to discover facts, relative to Paddington, have not been so fruitless as to render this attempt entirely undeserving the attention of the inhabitants of this parish. The only apology I can offer to my readers for the faults in the Work, is, that the facts were sought out, and the ideas jotted down, in moments snatched from the performance of more important and more harassing duties. Should any one wish to know how it ever entered my head to give my friends and myself so much trouble, the reason is readily told:

Having lived in Paddington from 1838 to 1847, in perfect ignorance of its history, I was aroused, like the rest of the rate-payers, who lived in the parish, in the latter year, to a consciousness of the existence of some moving Power in the parish, by a sudden, and to me unaccountable increase

in the demand on my purse. Having seen a considerable diminution in the number of houses for the poor, and a considerable increase in the dwellings of the rich, I was very anxious to ascertain the cause of this call on me for an increase in my contribution to the parochial burdens. I found that a re-assessment of the parish had been made; that my rates, and many others, were increased as much as 6½*d.* in the pound on the former rental; that the assessment was most unequal and unjust; and that it was not at all required for the purpose for which it was said to be made. The excuse given for re-assessing the parish, was, that the county magistrates had raised the assessment; but I found, on looking into that question, that one half-penny in the pound per annum, taken on the old assessment, would have raised the extra sum required by the county. I came to the conclusion, therefore, that the governing body had not chosen to give out to the rate-payers the true motives for their actions; and finding that they had carried out their resolution in a most unjust manner, I thought I should not be doing my duty by discontinuing the enquiry at this point: I proceeded, and the following pages are the result of my subsequent investigations.

To shew how Paddington has increased, both in population and wealth, I have subjoined an abstract of the Census Returns since their first establishment, and some extracts from the Rate-books since 1838. For the amount of Rental for 1847,-48,-49, I am indebted to calculations made by Mr. Aveling, the Vestry-Clerk; but the amounts for those years do not include the assessment for the empty houses; for which £10,000 per annum may be added. The enormous increase in the Rental in the year 1847, arose chiefly from the extra sum laid on by the re-assessment made that year. The sums in the second column of that table represent the amounts *levied* by the two half-yearly rates.

CENSUS RETURNS FOR PADDINGTON.

YEARS.	HOUSES.			POPULATION.		
	Inhabit.	Uninhab.	Building.	Males.	Females	Persons.
1801	324	33	—	870	1011	1881
1811	879	24	32	1994	2615	4609

1821	1139	13	28	2852	3624	6476
1831	1933	104	93	6278	8262	14,540
1841	3479	221	390	10,784	14,425	25,173
1851	6103	416	222	18,784	27,521	46,306

TABLE OF RATES AND RENTAL.

YEARS.	RATES LEVIED.			RENTAL.
	£	s.	d.	£
1838	14,418	12	8	118,540
1839	16,860	10	11½	130,631
1840	16,780	11	11½	141,145
1841	18,244	12	10½	159,412
1842	19,469	11	3½	178,060
1843	22,798	15	11½	196,030
1844	25,272	5	0	214,357
1845	25,928	1	1	238,712
1846	28,261	2	5	260,001
1847	32,319	16	11½	317,739
1848	35,878	9	10	332,557
1849	38,619	11	1½	343,066
1850	41,855	2	6	374,036
1851	37,792	10	5	390,732
1852	34,554	0	34	410,617

These Tables clearly shew that the simile used by Canning—

“Pitt is to Addington,
As London is to Paddington—”

no longer retains the force it did, when uttered by that great statesman. Few, indeed, can now tell where London ends, and Paddington begins, or define the connecting links which now unite these once distant places. Paddington, too, is becoming, year by year, of still greater importance; and at the present time there are not many who would deny to it, any more than to any other portion of that undefined place called *London*, its just share of the privileges of “The City.”

When we reflect on the vast riches which in the process of time must accrue to the Church from the insignificant gift of the Boy-King to Nicholas Ridley; and when we contemplate what sums have been received, and are likely to be received by the present occupant of the See of London from that “little farm in Paddington,” which has been claimed by that See; THE FUTURE of Paddington becomes worthy of a moment’s thought.

I have deemed it to be my duty to speak freely of the management of those lands in Paddington, which were claimed for the performance of certain specific purposes; and the nature and the amount of that income from those lands, received by the present Bishop of London and his lay lessees, have been spoken of with a freedom, which some may not admire. But I need not fear condemnation, for a former occupant of the See of London, thus addressed the over-paid bishops of his day; “Come off, ye Bishops; away with your superfluities; yield up your thousands; be content with hundreds.” Many changes have occurred since Dr. Aylmer penned those words; and much improvement has taken place and is taking place. Why then do we complain? A ready answer is furnished by one of the most accomplished statesmen of our time. Mr. Macaulay truthfully tells us that “there is constant improvement, precisely because there is constant discontent.” Let not my readers think, then, I have complained for the sake of complaining; or that because I speak of actions which are past, this exposure will have no influence on the future. I can most conscientiously say, that should a single good result from what I have written, I shall be amply repaid for any trouble it may have cost me to collect the materials for this historical sketch: and in dedicating the following pages to the Inhabitants of Paddington, I can say with the learned John Strype, “In what

I have writ, I have endeavoured invariably to follow the tract of truth; and have related things as I found them." And like him, too, "I may perhaps be censured for this plain and impartial way of writing; and blamed, that I have not put some veil or varnish upon some things, and been wholly silent of others." But "we are not writing a Panegyric, but a faithful account."

WILLIAM ROBINS.

OXFORD TERRACE,
May 20th, 1853.

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PART I. THE LAND.

CHAPTER I. ABBEY LANDS.

So many fabulous stories are told us relative to the christian church, that we cannot be surprised to find the history of its territorial possessions, in any particular spot, mixed up with legends which have no foundation in fact.

Paddington has its story. We are told even to this day, ^[1a] that King Edgar gave lands here to the Monks of Westminster. And considering what Kings did give to Monks, and also the kind of services rendered by Dunstan and his friends to this usurper of his brother's crown, it would not have been very surprising to have found this tale true. The same account is given by other authorities. The Rev. Daniel Lysons—the historian of “The Environs of London,”—says “King Edgar gave the Manor of Paddington to Westminster Abbey.” ^[1b] And a more recent writer, Mr. Saunders, in his “Results of an Inquiry concerning the situation and extent of Westminster, at various periods,” has supported this assertion in these words —“According to Dart, Paddington occurs, as an appendage to the convent of Westminster, in a Charter of King Edgar.” ^[1c] Unfortunately for the credit of this story, the work these authors have referred to does not sanction it. Dart, indeed, in the very page referred to both by Lysons and Saunders, states something very different from that, which he is reported to have said; for he distinctly informs us it was Dunstan who gave the land at Paddington to the monks of Westminster. ^[2a]

After specifying the gifts of proceeding Kings, and those of Edgar in particular, Dart says, “But to return to Dunstan. Having thus influenced the King, he goes on with his own benefactions. And first by his Charter, takes upon him to confirm some of the gifts of Edgar, then grants many privileges to this church, exempts it from the jurisdiction of the Bishop of London and

curses all his successors in that see, and all others who dare to infringe its rights; and lastly releases it from the payment of the tax called Roomscot, ^[2b] as Offa, Kenulph, and Edgar had done.”

The Bishop by another charter secures the privileges of the convent, and settles certain lands for the maintenance of the monks, viz. “Lands at Hendon and Hanwell to the amount of twenty-eight hides.” And at “Paddington, in the county of Middlesex, which grant was confirmed by his own Charter, and afterwards by King Henry the Eighth, and said to contain two hides of land.” He also granted certain lands at Merton, Perham, Cowell, Ewell, and Shepperton—thirty seven hides in these five places. All these grants, *with the exception of Paddington*, Dart states were confirmed by the Charter of Edward the Confessor.

But this statement of Dart’s relative to the grant of land in Paddington is of no value, excepting that it probably names the utmost extent of land which the church of Westminster *ever* got in Paddington by honest means, since it has been convincingly proved that “the Great Charters” both of Edgar, and Dunstan, are the fabrication of monks who lived long after the death of the King and Bishop.

The learned Dr. Hickes has shewn that the hand in which these charters are written, is of a later period than the time when the grants are supposed to have been made; that the phraseology is partly Norman; that Edgar’s Charter has the mark of a pendent seal having been attached to it; and that, to the so called Dunstan’s Charter the waxen impression was remaining when it was examined by him. He tells us that the practice of attaching pendent seals is Norman; ^[2c] and in this opinion he is supported by Mr. Astle, in a paper printed in the tenth volume of the *Archæologia*. Mr. Kemble, in his introduction to the first volume of the Anglo Saxon charters, p. 101, also says, “The Norman Charters are for the most part granted under seal; those of the Saxons, never.” And although in the introduction to the second volume, Mr. Kemble states that as to the authenticity of several charters he does not agree in the opinion arrived at by Dr. Hickes, yet we perceive on turning to this charter the fatal asterisk before it, which either denotes it to be “an ascertained forgery, or liable to suspicion.”

The Rev. Richard Widmore, for many years librarian to the Dean and Chapter of Westminster, says, “What the privileges were that either he (Dunstan) granted, or obtained from King Edgar, for it (the Abbey) is not at this time to be known the Charters which now remain, both of the one and the other, have been proved beyond all doubt to be forgeries.” ^[3]

This being the case, the mis-quotation of Lysons and Saunders is of very little account, and is corrected here only for the sake of preserving something like truth in this historical narrative.

Dart, who appears to have received Dunstan’s Charter without questioning its authenticity, must have been struck by the omission of any mention of Paddington in the Confessor’s Charter; and he seems to have been persuaded of the necessity of producing some kingly authority for the enjoyment of these lands from the time of Dunstan, as he states, to the dissolution of the convent—a period of nearly six-hundred years; for he adds to the sentence, already quoted, and as though it was an after thought, “King Stephen afterwards confirmed this manor and liberties granted with it, and after him King Henry the second.”

How these Kings “confirmed this manor” we are not told, neither do I know what documents Dart could have seen, to induce him to make this assertion. In the only Charter of Stephen’s to the Abbey, to be found in the Monasticon, there is no confirmation of this manor or any mention of it. Neither is there any Charter of Henry the Second’s to the Abbey to be found in that great work. If Dart simply intended that these Kings confirmed to the Abbey all the charters then existing, he is, in all probability, right; but if he wished it to be understood that there was any special grant of this manor I think we may fairly dismiss this unsupported assertion without any further consideration. And we may do this the more readily, because Widmore, the most trustworthy author who has ever written on the Abbey, tells us, that Dart was much more of a poet than an antiquarian, and that his “pompous work” contains errors in almost every page.

In speaking of the fabricated documents which the Westminster monks left behind them, Widmore has well said,—“Such forgery, tho’ it be an ugly charge against any, whether single persons or bodies of men, yet the thing, in this case, is too manifest to be denied or doubted of; and the monks of

Westminster were not alone in such practices; it was a general Thing, and the Fault of the Times; and it is said, in mitigation of it, that the Norman Conquerors made it as it were necessary, by disregarding the Old Saxon Charters of Lands and Privileges, and reducing the Monks to the hard condition of either losing what belonged to them, or defending it by forged instruments in Latin. But when Persons give themselves Leave to defend even a good Title by undue means, they seldom know where to stop, and the success at first emboldens them to enlarge beyond all Reason. And tho' I do not think that in this Practice the whole was Fiction and Invention, they only added what they imagined would more especially serve their Purpose; yet by this means they have destroyed the certainty of History and left those who come after them no better Help, in separating the Truth from Fables, than conjecture and not altogether improbable supposition."

From what has been said, it is evident that it will not do to rely on the authorities above referred to for an account of the acquisition of the Abbey lands in Paddington.

Fortunately, however, there are documents of a very ancient date on which some reliance can be placed; and thanks to the enlightened liberality of the Commons of England, and the untiring industry of those gentlemen engaged by the Record Commissioners, many of these documents have been made readily available for the uses of the public. ^[4]

One of the Saxon Chroniclers is reported to have said, the survey, taken by order of William the Conqueror, was so accurate "that not a hide or yardland, not an ox, cow, or hog, was omitted in the census." And although we may not be able to believe that the Conqueror's scrutiny was thus minute, yet the Dom Boc, or Domesday Book, has been always looked upon as a document worthy of much confidence. The inquisitors were appointed to enquire "Upon the oath of the sheriffs, the lords of each manor, the presbyters of every church, the reves of every hundred, the bailiffs and six villains of every village, into the name of the place, who held it in the time of King Edward, who was the present possessor, how many hides in the manor, &c., &c." ^[5a]

If these directions were carried out, and faithfully entered, we should expect to find some account in this document of the Abbey possessions in

Paddington, if any such existed at the time this survey was taken. But Mr. Saunders is perfectly correct in stating that no mention is made either of this place, or of Westbourn, or Knightsbridge, in the Domesday Book.

In the hundred of Osulvestane (Ossulston) the King held twelve acres and a half of land, worth five shillings, claimed by no one. He had also in this hundred “thirty cottagers who pay fourteen shillings and ten pence and one half-penny a year;” and two other cottagers belonging to Holburne paying “twenty-pence a year to the King’s Sheriff.” ^[5b]

“In the village where the Church of St. Peter is situated,” there were at the time of this survey, forty-one cottagers who paid forty shillings to the Convent for their gardens. And the land in and around the village of Westminster which belonged to the Abbey amounted in all to thirteen hides and a half; valued at eight pounds per annum. The whole in King Edward’s time twelve pounds. ^[5c]

The manor of Kensington answered for ten hides; and was held by Aubrey de Ver. Lilestone answered for five hides; Tybourn for five hides; Willesden for fifteen, with pannage for five hundred hogs; and Chelsea ^[5d] and Hampstead are duly accounted for. But Paddington in Middlesex is not named. A manor of “Padendene” existed at this time, and is mentioned in the survey, but it was situated in the county of Surrey; and singularly enough was shortly after held by the same family—the De Veres—who held Kensington, and who afterwards, also, held Tybourn.

Were there, then, no dwellings, no cultivated lands in Middlesex known by the name of Paddington, in 1086—the date of the Conqueror’s survey? Was Paddington at this period an uncultivated portion of the great Middlesex Forest; or did a few of the King’s cottagers live here, unnoticed and unknown, before this scrutiny discovered them? Were the broad acres, subsequently claimed by the monks of Westminster, accounted for in the territories of the neighbouring lords; or did they form but a portion of the home domain of the Convent? Was the village, and the land, known by any other name?

Of all these possible suppositions, which is the most probable?

To enter fully into a discussion of these questions would require a greater amount of antiquarian knowledge than I possess; and would occupy more space in this work than I can spare. To obtain an answer to the last question satisfactory to my own mind, it is true I have made some researches, and I will, as concisely as possible, convey to my readers the opinions at which I have arrived; detailing in this place only so many of the topographical facts as may be necessary to shew upon what foundations those opinions have been formed.

We know, from Fitz Stephen, that an immense forest, “beautified with wood and groves,” but “full of the lairs and coverts of beasts and game, stags, bucks, boars, and wild bulls,” ^[6a] existed even in the twelfth century at no great distance from what then constituted London. Small portions only of this forest appear to have been, at any time, the property of the crown. It formed a part of the public land which was entrusted to the charge of the elected governors of the people. In it the citizens had free right of chase, preserved by many royal charters: it was disafforested by Henry the third in 1218. ^[6b] And during the Saxon period it would have been no difficult matter to have obtained a settlement even in the most desirable parts of it. To shew the extent of this forest in Middlesex, and the paucity of fixed inhabitants in it, when for the purposes of government, families arranged themselves into tens, and hundreds, we have only to remember that the Hundred of Ossulston occupied nearly half the county; although it included both London and Westminster.

The Fleete, the Tybourn, and the Brent, were the three notable streams which carried the waters from the hills north of the Thames through this forest to the great recipient of them all. And it is probable that the Saxons early settled on the elevated banks of these streams, finding there a more healthful and safer retreat than could be found on the banks of “the silent highway” which was so frequently traversed by the Danes.

Another powerful inducement existed in this locality to fix the wandering footsteps of the emigrant. Two roads made through the forest by the skill of the previous conquerors of the country, united in this spot; and remained to show the uncultivated Saxon, what genius and perseverance could effect. These having served the purpose of a military way to conduct the Roman Legions from south to north, and from east to west, were now ready to be

used in aid of civilized life. And it is scarcely conceivable that a spot so desirable could have remained long unoccupied by the seekers of a home.

This locality is the present site of Paddington by whatever name it was then called. And it was, in all probability, at a very early period of our history occupied by the Saxon settler.

The question whether those who settled here were conveyed with the soil to some spiritual, or temporal, lord, previous to, or immediately subsequent to, the Norman conquest, cannot be so satisfactorily determined. Traditions are at variance; documents are not trustworthy; and names have been altered; so that two opinions may be entertained about the things described even in the instruments which exist. There is, however, one general rule which will assist us in coming to a correct decision as to the boundaries we find laid down.

When the science of making and interpreting artificial signs had acquired all the potency of a black art; when the acquisition of this art was strictly guarded by all the rules of a craft; and when this art was used to describe a title to lands, and to define the extent of those lands, it still remained necessary, for the safety of those who held this *book-land*, that the natural signs should be used, if any knowledge of these things was to be preserved by the people, who were carefully excluded from any dealings with so subtle an agency as the lawyer's quill. And I think we may safely conclude that the most prominent and permanent objects, natural or artificial, would be invariably chosen to point out the bounds of original settlement, when the time had come to render land marks necessary.

We might expect, therefore, to find that the Westminster monks, in carving out for themselves a comfortable and compact estate, would choose for its boundaries the most prominent and permanent objects in the neighbourhood. And in Edgar's first Charter—*that dated six years before Edgar was King*—we do find, with some additions, the Thames chosen for the southern boundary; the Roman road for the northern; the Fleete for the eastern; and the Tybourn for the western. And if we take the largest stream between the Fleete and the Brent to have been the Tybourn, we can readily explain how the convent claimed a manor in Chelsea; and we can clearly understand, too, how the Norman monks read this Saxon Charter so as to

make it include the manor of Paddington—as that portion of land, bounded by the Roman roads, and the bourn, was at one time called.

Mr. Saunders, in his “Inquiry, &c.” has come to the conclusion that the *ancient* Tybourn was the stream which has been *recently* known by that name. But I think those who will take the trouble to examine this subject thoroughly will come to the conclusion that on this point that inquirer has been deceived.

It is evident the facts which came under Mr. Saunders’s notice, in the course of his inquiry, did not entirely square with the supposition which he has adopted. And after all, he is obliged to admit that Westminster extended, and extends, to the stream farther westward than the one he has accepted as its western boundary. This West-bourn, or brook, I take to be the ancient Tybourn—the western boundary of the district described in the charter, dated 951; and the western boundary of St. Margaret’s parish, as defined by the Ecclesiastical Decree of 1222. Lysons, writing at the end of the last century, described the stream which crossed the Tybourn road, now Oxford-street, as a “small bourn, or rivulet *formerly* called Aye-brook or Eye-brook, and *now* Tybourn-brook.”

In the maps of the sixteenth, seventeenth, and eighteenth centuries we find but *one* stream delineated as descending from the high ground about Hampstead. In Christopher Saxton’s curious map of 1579; in Speede’s beautiful little map of 1610; in John Seller’s, of 1733; in Morden’s; in Seales’s; in Rocque’s accurate surveys; and in others of less note; we see this stream takes the course of that brook which was at one time called Westbourn, and which I believe was anciently called the Tybourn, and discharges itself into the Thames at Chelsea. The Eye brook on the other hand scarcely appeared before it came to the conduits built by the citizens of London; it then crossed Oxford-street in the valley west of Stratford-place, and emptied itself into a reservoir at the north-eastern corner of “The Deer Park,” or as it is now called “The Green Park.” It appears to have been originally very little larger than the Tybourn which ran down the Edgeware-road; the former carrying the waters from the southern side of Primrose-hill, the latter from the south of Maida-hill. The Eyebourn, however, was very much increased in size when the superabundant supply from the conduits, which were fed by the water brought from Tybourn, and

from springs near the village of Eye, were emptied into it. When the reservoir in the Green Park was enclosed with brick and supplied by the Chelsea Water-works Company from the Thames, this brook was covered in, carried beneath the old reservoir, and converted into a sewer, and is now known by the name of the King's Scholars Pond Sewer; while the larger stream to the west, the Tybourn or Westbourn, has degenerated into the Ranelagh Sewer.

There is another fact also worthy of note: Holinshed, when speaking of the execution of the Earl of March, which took place in the reign of Edward the third, says, that in those days the place of execution was called "The Elmes," but was known in his day by the name of "Tiborne." At the present time enough of "Elms-lane" ^[9] remains, at Bayswater, to point out where the fatal Elm grew, and the gentle "Tiborne" ran.

Dr. Stukeley, and other learned antiquarians, are of opinion that the Edgware-road, and the Uxbridge-road, represent, very nearly, the sites of the ancient Roman roads. Now if the Tybourn was, in truth, the same stream as the Westbourn, the monks of Westminster had only to follow its course from the Thames till they came to the *second* "broad military road" which crossed it, instead of stopping at the *first* they met with, (*and the charter says nothing about the first or second*), and in their ascent up this stream, and descent by the road, they would have included not only their Manor of Chelsea, but the Manor of Paddington also. ^[10a]

And if this reading of Edgar's Charter was objected to by the Great Chamberlain of England, or any other powerful neighbouring lord, there was Edward's Charter for Chelsea; ^[10b] and Dunstan's for Paddington in reserve.

But the exact time when the words "Et illud praediolum in Padingtune aecclesiae pradictae addidi," ^[10c] first formed a portion of that "forged instrument in Latin" called Dunstan's Charter; or when those who cultivated the soil in this neighbourhood had to adopt their new lord, and transfer their services from the palace to the convent, does not very plainly appear. Undoubtedly, "a little farm in Padintun" became every year, after the Conqueror's survey, more and more desirable.

These forged charters, as we shall presently see, could not, of themselves, secure the monks of Westminster their Paddington estate; and another expedient had to be resorted to.

I have just now assumed that the inhabitants of Paddington were free settlers, or King's cottagers. And although this was undoubtedly the case at first, yet by the time of the Conqueror's survey they may have been under the *protection* of some mean lord. And I believe the manor of Paddington subsequently created by the monks of Westminster, was at this time a portion of the manor of Tybourn. For besides the evidence already produced, to shew that Tybourn and Westbourn were synonymous terms; we find in a legal document, even so late as 1734, that "two messuages and six acres of land lying in the common field of Westbourn," and three other acres, also in the same common field, are described as being "parcel of the manor of Tyburn, and called Byard's Watering Place." [\[iii\]](#)

If, then, the districts now called Westbourn and Paddington, were included in the manor of Tybourn in the Conqueror's survey, it is very evident that a rearrangement, both of these districts and the neighbouring manors, must have taken place when the Westminster monks established their claim to Paddington. And it is not improbable that the lords of Chelsea, Kensington, and Tybourn, insisted upon maintaining, for themselves and their tenants, commonable rights over the Westbourn district.

How the monks of Westminster, in the course of time, became both spiritual and temporal masters of the Westbourn district, can be readily conceived by those who know anything of the power engendered by the concentration of all knowledge into a few bodies, especially if those bodies have a perpetual existence.

As I have before said, the monks found that their forged charters would not sufficiently serve them legally to inherit Paddington. They were obliged therefore to purchase the interest in the soil from at least one of the families whose ancestors had made it valuable. This appears from a document which I have translated below, and which is to be found in Maddox's *Formulare Anglicanum*, page 217, and which as appears by a note, at the foot of it, this learned and indefatigable antiquary discovered in the archives of the Dean and Chapter of Westminster. The document is as follows:—

“A final Concord of Land between the Abbot of Westminster and Richard and William de Padinton.”

“This is the final agreement made in the Court of the Lord King at Westminster, on the Friday next after the ascension of our Lord, in the thirty-first year of the reign of King Henry the second, before J. Bishop of Norwich, Ralph de Granville the Lord King’s Justiciaries, and Richard the Treasurer, and Godfrey de Lucie, and Hubert Walter, and William Basset, and Nigel son of Alexander, and other faithful lieges of the King being then and there present; between Walter Abbot of Westminster, and Richard and William of Padinton, brothers, touching the entire tenement which they held in Padinton, of the Church of Westminster. Whereupon it was pleaded between them in the Court of the Lord King, namely, that the aforesaid Richard and William have quit-claimed (given up) for ever, for themselves and all their successors and heirs, all and the aforesaid tenement, and whatever right they had therein, without any reserve, to the aforesaid Church of Westminster and the Abbot, and have restored to him the land with all its appurtenances: and for this resignation, the Abbot aforesaid hath given to them forty marks of silver and four allowances or maintenances, “conrediaë,” in the Church of Westminster, two of which are for the service of the aforesaid Richard and William for the twelve following years, and the other two are for the service of the wives of the aforesaid Richard and William, together with gratuities, “caritatibus,” and pittances so long as the same women shall live.”

Maddox adds that this document “has at the top, the letters, Chiographum, very large ones, cut through indent-wise.”

We are not informed by this instrument what was “the extent of the entire tenement,” thus sold to the Abbot of Westminster. But it will be observed, that the land purchased of Richard and William is said to have been held by them “of the Church of Westminster.” From which we might imagine, that the lordship of the soil, had been already legally appropriated to St. Peter, did we not know that it is equally probable, that one of the tricks of the time had been played off, to lessen the risk of the purchased land being forfeited to the Crown.

Blackstone tells us that when a tenant—and all were tenants now, either of the King, or some other lord,—wished to alienate his lands to a religious house, he first conveyed them to the house, and instantly took them back again, “to hold as tenant to the monastery.” This instantaneous seisin, he further informs us, did not occasion forfeiture: and, this fact being accomplished, “by pretext of some other forfeiture, surrender, or escheat, the society entered into those lands in right of such their newly acquired signiory, as immediate lords of the fee.” ^[13]

Other documents, shewing the acquisition by the Convent of other lands in this place and Westbourn, at a later period, will be produced in the next chapter; but this is the only one dated before the end of the twelfth century, having any appearance of authenticity, which I have been able to discover relative to the Abbey lands in Paddington.

The Abbot who purchased the interest of the brothers of Paddington, in the Paddington soil, is called Walter of Winchester, to distinguish him from another Walter, called of Wenlock, who was also an Abbot of Westminster, but a century after this time. Of him also we shall have to speak in the next chapter in connexion with the further extension of the Abbey lands in Paddington.

Walter, the first, directed that the anniversary of the day on which he died should be kept as a feast day at the Convent: and we are told that he gave the manor of Paddington for its proper celebration. And as this story will well serve to illustrate the manner in which much of the property of the church was spent in those days, and, perhaps, serve also to shew how the neighbouring proprietors were quieted for the transfer of the lordship to this Abbot, I shall reproduce it as it was given to the Archæological Society, on the third of May, 1804, by Dr. Vincent, a former Dean of Westminster.

The Dean states that the account he read was taken from an ancient MS. preserved in the archives of the Dean and Chapter. The following is the Dean’s own translation of the manuscript in question:—

“Walter, Abbot of Westminster, died the twenty-seventh of September, in the second year of King Richard the first, and in the year of our Lord, 1191.

The manor of Paddington was assigned for the celebration of his anniversary, in a solemn manner, under this form.

On the fifth of the Kalends of October (that is on the twenty-seventh of September), on the festival of Saint Cosmas and Saint Damian, the anniversary of Walter, the Abbot, is to be celebrated; and for the celebration, the manor of Paddington is put wholly in the hands of the Almoner, for the time being, and entrusted to his discretion; and this he is faithfully to observe, that whatsoever shall be the final overplus is to be expended charitably in distribution to the poor.

On the day of the celebration, the Almoner is to find for the Convent, fine manchets, cakes, crumpets, cracknells, and wafers, and a gallon of wine for each friar, with three good pittances, or doles, with good ale in abundance at every table, and in the presence of the whole brotherhood; in the same manner as upon other occasions the cellarer is bound to find beer at the usual feasts or anniversaries, in the great tankard of twenty-five quarts. [\[14a\]](#)

He shall also provide most honourably, and in all abundance, for the guests that dine in the refectory, bread, wine, beer, and two dishes out of the kitchen, besides the usual allowance. And for the guests of higher rank, who sit at the upper table under the bell, with the president, ample provision shall be made as well as for the Convent; *and cheese shall be served on that day to both.* [\[14b\]](#)

Agreement shall likewise be made with the cook, for vessels, utensils, and other necessities, and not less than two shillings shall be given over above, for his own gratification and indulgence.

The Almoner is likewise to find for all comers in general, from the hour when the memorial of the anniversary is read to the end of the following day, meat, drink, hay, and provender of all sorts, in abundance; and no one either on foot or on horseback during that time shall be denied admittance at the gate.

He shall also make allowance to the Nuns at Kilburne, both bread and wine, as well as provisions from the kitchen, supplied on other days by

the cellarer and the cook: neither shall the Nuns lose their ordinary allowance, on account of the extraordinary.

But the servants of the court, who are at other times accustomed to have wine and flagons, and all those who have billets upon the cellarer for allowances, shall receive wine and bread only from the Almoner on this day, and not from the cellarer; they shall likewise have a pittance from him.

But those who have a pittance from Bemfleete at other times, and three hundred poor besides, shall have a refecton on this day, that is to say, a loaf of the weight of the Convent loaf, made of mixed corn, and each of them that pleases a pottle of ale; and those who have not vessels for this purpose shall take a draught at pleasure, and two dishes from the kitchen suitable to the hospitality of the day.

The Almoner, moreover, besides these doles, pittances, and allowances, *shall find bread at command*, but not wine, and therefore those who have the command never allow wine, though they admit military men with their swords on. [\[15\]](#)

He is likewise bound to find bread of mixed corn, by his office, to each of the servants, but not beer; neither is he bound to find beer for the Convent to drink after vespers, unless he chooses it as a special favour; neither does he usually find the collations.

But without all doubt, the president with his guests in the refectory, have a right to wine and beer in abundance after their refecton, and the Almoner shall likewise allow mead to the Convent for the cup of charity, the loving cup.

The Almoner, also, who is not accustomed to brew in large quantities more than four times a year, shall take especial care to provide five casks of the best beer for this anniversary.

Afterwards, however, a modification was made of this anniversary in this form: namely, that every year (on the festival of the Saints aforesaid), the Prior and the convent shall sing *the placebo* and *dirige* with three lessons, as is usual on other anniversaries, and with the chiming (or a peal) of bells. That two wax candles shall be kept

burning at the tomb of Walter, from the vigil of the anniversary to the end of the requiem mass the following day, which the prior or any head of the order present shall sing; and on that day the Almoner, for the time being, shall distribute two quarters of corn in baked bread to the poor, according to the usage of the Convent; but there shall be no distribution of other things, or dispensation of alms.”

Whether the song of the monks really pleased the people as much as the cakes and ale we are not told, but considering the present use of the word *placebo*, we may doubt it. We are not informed either, when this *modification* was made; but the Dean tells us that the retrenchment was very necessary, for the convent stood in some danger of being ruined by anniversaries; almost every Abbot having one.

Widmore, who mentions this anniversary, tells us Dr. Patrick, the editor of Gunton’s History of Peterborough, got his account from John Flete, the Monkish Historian of Westminster, who died in the Convent in 1464, having completed its history, which he wrote at the request of the monks, down to 1386.

Of John Flete, Widmore says, in his account of the writers of the History of Westminster Abbey, “He sets down his authorities as he found them; but as criticism was not a study in request in his time, he neither doth, nor was, I suppose, able to distinguish what in antiquity was true and genuine from forgeries.” [\[16\]](#)

Of Walter of Winchester, the same learned writer remarks “There is little account left what this man did while Abbot here: he seems to have been too easy in granting out the estates of the church in fee farm: the manor of Denham in Bucks, the tithes of Boleby in Lincolnshire, the Church of St. Alban in Wood-street, what the Abbey had in Staining-lane and Friday-street, and the manor of Paglesham in Essex, were so granted by him. He seems to have been solicitous to perpetuate his memory by an anniversary, having ordered a very pompous one, much beyond those of any of his predecessors, and got the profits of the manor of Paddington assigned for that purpose: but this, sometime after, being thought too great, was very much lowered, and only loaves made of two quarters of wheat were on that day given to the poor, by the Almoner of the Abbey.”

Richard de Croksley, who died in 1258, was still more liberal with the funds he could no longer use, for he assigned the whole produce of the manors of Hamstead and Stoke for the celebration of his death-day. The ringers were paid thirteen shillings and four-pence for ringing the bells on the eve of the anniversary; one thousand poor were to receive a penny each on the first day; and for six subsequent days, five hundred were to receive daily one penny, for which sixteen pounds, thirteen shillings and four-pence was assigned; while for the arduous duties enjoined on the monks—"for the repose of the Abbot's soul, four monks were to celebrate mass at four different altars every day for ever," only twenty-seven pounds was given. But in less than ten years after this Abbot's death "*the burthen of commemorating him in the way he had ordained was found too heavy to be borne;*" and after petitioning the Pope on this subject, and receiving his mandate thereon, this anniversary was modified and ten marks was assigned for keeping it. ^[17]

From the *Taxatio Ecclesiastica*, made under the authority of Pope Nicholas the fourth, and published by the Record Commissioners, we learn that a century after the death of Walter, the whole of the temporalities of Paddington were devoted to the purposes of charity; that they arose from the rent of land, and the young of animals, and were valued at eight pounds, sixteen shillings and four-pence. And the same valuable work informs us of a chapel built and endowed in this place, at the time this survey was taken.

In the preface to this work the following account of this taxation is given—

"In the year 1288, Pope Nicholas the fourth, granted the tenths of all Ecclesiastical benefices to King Edward the first, for six years, towards defraying the expense of an expedition to the Holy Land; and that they might be collected to their full value, a taxation by the King's Precept was begun in that year (1288) and finished as to the Province of Canterbury in 1291, and as to that of York in the following year; the whole being under the direction of John, Bishop of Winton, and Oliver, Bishop of Lincoln.

The taxation of Pope Nicholas is a most important Record, because all the taxes, as well to our Kings as the Popes, were regulated by it until the survey made in the twenty-sixth year of Henry the eighth."

During the twelfth and early part of the thirteenth centuries, disputes of a very unseemly nature frequently took place between the Abbots of Westminster and the Bishops of London, relative to the jurisdiction of the latter over the Abbey, and otherwise as to their respective privileges and districts. Another pretty good proof, as Widmore justly remarks, that the ancient charters, so much spoken of, were mere forgeries. These disputes were at length referred to Stephen Langton, Archbishop of Canterbury, the Bishops of Winchester and Salisbury, and the Priors of Merton and Dunstaple; and in their decree, which is published at length in Wharton's *Historia de Episcopis et Decanis Londinensibus*, after giving the Bishop a considerable slice of the territory which the monks had claimed in the region of the Fleete, and fixing the boundary westward, as in Edgar's Charter, by the Tybourn, the following passage occurs:—"Extra veró suprascriptas metas villæ de Knygtebrigge, Westburne, Padyngtoun cum Capellâ, et cum earum pertinentiis, pertinent ad Parochiam S. Margaretæ memoratum." ^[18a] So that even the Ecclesiastical jurisdiction over Paddington had not been legally given to the Abbey before the thirteenth century; for this document is dated 1222.

If we can rely on the authenticity of the passage just quoted, a chapel must have been built here previous to that date; and now this chapel, as the author of the *Ecclesiastical Topography* correctly remarks became a Chapel of Ease to St. Margaret's, Westminster. This writer makes the value of the church and chapel, in 1291, only thirty marks and a half; ^[18b] but in the *Taxatio Ecclesiastica*, printed by the Record Commission, the following entries are to be found at page 17:—

"Ecclia Sce Margarete cu Capella de Padinton	£20.
Vicaria Ejusdem	8."

No inconsiderable difference in times when the land in Paddington paid only four-pence per acre, per annum, rent.

Whatever doubts may arise in the mind as to the accuracy of John Flete's story, or as to the capability of the land in Paddington to furnish the annual feast we have described as having been appointed in 1191; it appears from

this taxation, that in 1291, a chapel was built and endowed here; and the sum we have already mentioned given in charity.

The temporal entry in the Taxatio Ecclesiastica is as follows:

“Bona Obedienc’ Westm’ in Westmon’ Elemosinar’ be redd’	£1	12	3
Item idem in Padinton de terr’ redd’ cons’ et fet’ animaliu’	8	16	4”

This “rent of land” was derived from those lands which had been purchased by Walter; those which the Walter, who makes this return, had himself obtained; and all those over which the Convent had acquired manorial rights. And I presume any other small tithe was included in this eleemosinary item with “the young of animals.” The great tithe and the rent of the glebe land being accounted for in the spiritual part of the valuation.

CHAPTER II. THE MANORS OF WESTBOURN AND PADDINGTON.

IF we accept the definition of the word manor given by the learned Judge Blackstone, in his Commentaries on the Laws of England, ^[19] or look upon a manor to be “the subinfeudation of a particular district made by A to B,” I think we must come to the conclusion, that neither Westbourn nor Paddington, in ancient times, were manors in either of these senses, unless indeed we consider Westbourn and Tybourn synonymous terms, for we find no account of any lordly residence in either of these places till many centuries after the Conqueror’s survey; neither is there any account, which can be relied on, to establish the fact of any King having granted these districts to the Abbot and Monks of Westminster; or of the Abbot’s subinfeudation of them. And if we do not consider these places a portion of the Tybourn manor, it is pretty certain that the cottagers who cultivated the land in this neighbourhood were not only freemen, but freeholders, even at the time of the Conquest. They could have owned no other lord but the King, and the suit and service they would have rendered him differed but little from that exacted of the most powerful lord in the land. Each paid his

tax according to his circumstances. But many new manors were created after the conquest, and an Act of Parliament, the 18th of Edward I, 1290, was passed to put a stop to this practice.

It was no uncommon thing, for Religious Houses, when they had obtained a few acres of land in any place, to elevate them to the dignity of a manor, and assume on their general licence, manorial rights over the district in which their newly acquired property lay. ^[20a]

Moreover, to secure the assistance of the monks, the early Norman Kings were frequently obliged to connive at practices of which they could not approve, but which they dared not condemn. And when the monks of Westminster, after casting a longing eye on the lands of Paddington, produced the charters which they called Edgar's and Dunstan's, and claimed the lordship over these outlying districts, the King, who then happened to require their services, may have thought it mattered but little, who reaped the benefits derivable from being the lord of the few tenants in Paddington. And he may have sanctioned that which was in fact an usurpation.

If, however, Edgar's and Dunstan's Charters were brought forward for the purpose of shewing some sort of title to the manor of Paddington, when the first claim to the lordship was set up, which I think was most likely the case, it is very evident that the monks themselves had no great faith that these charters would bear any sort of legal examination, even in those days, when the wig was adopted to hide the shaven crown. ^[20b] For when a writ of Quo Warranto was issued in the twenty-second year of Edward the First to the then Abbot of Westminster—Walter of Wenlock—to enquire “by what authority he claimed to hold the Pleas of the Crown, to have free warren, a market, a fair, toll, a gallows, the chattels of persons condemned, and of runaways, the right of imprisonment,” and various other such like privileges, as well as “the appointment of the coroner in Eye, Knythbrugg, Chelchehethe, Braynford, Padynton, Hamstede, and Westburn,” besides in the town of Staines, and its dependencies; he did not claim manorial rights over Paddington and Westbourn on account of Edgar's, or Dunstan's grant of these manors; neither did he mention those charters, as he might have done had they been genuine or had they received the confirmation of Stephen, or Henry the Second, as Dart states they did. On the contrary, the

Abbot appeared to the writ, and said that these places were parts of the town of Westminster—"sunt membra ville Westm'—;" and for Westminster, Staines, and their membræ, he claimed all their ancient privileges. ^[21a] Moreover, "he says, that the lord King Henry, father of the King that now is, hath granted to God and the Church of St. Peter of Westminster and the monks, serving God therein, and their successors, all his tenements, ^[21b] and hath commanded that they hold them with all their liberties and free customs, &c. * * * * And he produces the charter of the King which witnesses the same * * * * And he saith, that the Lord King hath inspected the Charter of the Lord King Henry, his father, which witnesseth that the same Lord King Henry hath granted to God and the blessed Edward, and to Richard, Abbot of Westminster, and to the monks serving God there, that they and their successors, should have for ever all the fines of their own people, from whatever cause they may arise, and before whatever justices of the Lord King they may have been ordained, and that they shall have all the returns of the King's briefs in all their lands in England. ***** " ^[21c]

But we must not receive this statement of Walter de Wenlock with implicit confidence, or at all events without some further explanation; ^[21d] for it was this Abbot who transgressed one of those salutary laws, which had been recently enacted to stay the encroachments of the regular clergy.

It was this Walter of Wenlock, and of Westminster, who appropriated to himself and his house in fee, lay fees in Knightsbridge, Paddington, Eye, and Westbourn, without the license of the King; and for which his successor was fined ten pounds. This appears from the following entry on the Fine Roll, 12th Edw. II, and in the Rotulorum Originalium in curia saccarū abbreviatis,—vol. i. p. 245—

"Abbas Westm' finem fecit cum R. p decem libr 'p pdon' hend' de tnsgr' quam Walts quondam abbas loci illius pdecessor suus fecit adquir' sibi et domui sue in feodo laicum feodum in Knyhtebrugge, Padyngton, Eye, et Westburn et illud ingred' sine licene'."

In the reign of the second Edward, we find that three inquisitions were held, to enquire what injury that King would sustain if certain tenements and lands in these places were granted to the Convent; and it was upon one of these inquisitions that the discovery above referred to was made. ^[22]

As these inquisitions refer to the only bona fide grants of land in Paddington or Westbourn, down to the fourteenth century, which I have been able to discover, with the exception of the purchase by Walter of Winchester before referred to; and as they will serve to shew not only the sort of suit and service rendered to the lord, but will also further illustrate the mode in which the land in these places was actually acquired by the Abbey, I shall give a translation of each.

These documents are kept in the Tower, and form a portion of the “Inquisitiones ad quod damnum,” so called, and are thus described in the calendar published by the Record Commission. “These inquisitions commence with the first year of the reign of Edward the second, 1307, and end with the thirty-eighth year of Henry the sixth: Thomas Astle, esquire, thus speaks of them.—They were taken by virtue of writs directed to the Escheator of each county; when any grant of a market, fair, or other privilege, or licence of alienation of lands, was solicited, to enquire by a jury whether such grant or alienation was prejudicial to the King or to others, in case the same should be made.”

“Inquisition a. q. d. 9. Edw. II. No. 105.

MIDDLESEX.

Inquisition made before the Escheator of the Lord the King at the church of St. Mary Atte Stronde, on Thursday next after the Feast of the assumption of the Blessed Mary, in the ninth year of the reign of King Edward, by the oath of Robert de Aldenham, Alexander de Rogate, Nicholas de Curtlyng, John de la Hyde, Walter Fraunceis, William de Padinton, Hugh de Arderne, William Est, Arnold le Frutier, Simon le Brewere, Roger de Malthous, and Roger le Marshall, junior: who say, upon their oath, that Walter de Wenlock, lately Abbot of Westminster, had acquired to himself and his House one messuage with appurtenances in Knyghtebregge, of William le Smyth of Knyghtebregge, and four acres of land there of William Brisel and Asseline his wife, and nine acres of land there of William Hond, and twelve acres of land in Padinton of William de Padinton, and three acres and a half in Eye of Hugh le Bakere of Eye, and thirteen acres of land in Westbourn of John le Taillour, and eleven acres of land there of Matilda Arnold, and two acres of land there of Juliana Baysebolle after

the publication of the statute edited concerning the nonplacing of lands in Mortmain and not before. And they say that it is not to the damage nor prejudice of the Lord the King, nor of others, if the King grant to the Prior and Convent of Westminster, that the Abbots of that place, for the time being, may recover and hold the aforesaid messuages and land to them and their successors for ever. And they say that the aforesaid messuage is held of the said Abbot and Convent, by service of a yearly rent of six-pence, and of performing suit at the court of the said Abbot and Convent, and of finding one man for two half days to mow the Lord's meadow, price threepence: and it is worth over and above that service in all issues twelve-pence a year. And the aforesaid fifty-four acres and a half of land, at the time of the aforesaid acquisition, were in like manner held of the said Abbot and Convent by service of a yearly rent of eighteen shillings and two-pence: and of finding one man for ten half days to mow the Lord's meadow, price fifteen-pence: and one man for ten half days to hoe the Lord's corn, price ten pence: and of doing seven ploughings, price three shillings and six-pence: and of finding one man for ten half days to reap the Lord's corn, price fifteen-pence: and of making seven carriages to carry the Lord's hay, price three shillings and six-pence: and of performing suit at the court of the said Abbot from three weeks to three weeks. And they say that the aforesaid fifty-four acres and a half of land are worth by the year in all issues over and above the aforesaid services nineteen shillings and six-pence. In witness of which thing the aforesaid jurors have set their seals to this inquisition.

Endorsed 20s. 6d."

This sum of twenty shillings and sixpence was, as I conceive, due to and paid to the King. So that although the Convent had managed to obtain a lordship over this land, the King still retained *some right* over it, and the fee of this land could never have been given to the Abbot. But the result of this inquisition does not appear to have been satisfactory to all parties; for another was held in the twelfth year of the same reign. It will be observed that the same land is the subject of enquiry, but the significant words "with appurtenances," are added this time to each little plot.

“Inquisition a. q. d. 12 Edw. II. No. 37.

MIDDLESEX.

Inquisition made before the Escheator of the Lord the King at Westminster, on Tuesday the morrow of St. George the Martyr, in the twelfth year of the reign of King Edward, by Henry le Ken, Robert de Aldenham, Thomas de Stragenho, Roger Marshall, junior, William de Padyngton, Walter Franceys, ^[24] Ralph Fitz John, Richard Atte Doune, John de Oxenford, Jocetus le Taillour, Henry le Glovere, and Walter Peure, who say, upon their oath, that it is not to the damage nor prejudice of the Lord the King, nor of any others, if the King grant to the Abbot and Convent of Westminster that they may recover and hold to them the said Abbot and Convent and their successors for ever one messuage with appurtenances in Knyghtebrigge, which Walter formerly Abbot, predecessor of the said Abbot, had acquired in fee to himself and his House of William le Smythe of Knyghtebrigge; and four acres of land with appurtenances in the same vill of William Brisel and Asceline his wife; and nine acres of land with appurtenances in the same vill of William Hond; and twelve acres of land with appurtenances in Padinton of William de Padinton; and three acres and a half of land with appurtenances in Eye, of Hugh le Bakere of Eye; and thirteen acres of land with appurtenances in Westbourn of John le Taillor; and eleven acres of land with appurtenances in the same vill of Matilda Arnold; and two acres of land with appurtenances in the same vill of Juliana Baiseboll, after the publication of the statute edited, concerning the non-placing of lands and tenements in Mortmain; and the license neither of the Lord Edward, formerly King of England and father of the present King, nor of the present King himself, having been in this matter obtained. And they say that the aforesaid messuages and land are held of the same Abbot and Convent by service of a yearly rent to the same Abbot and Convent of four-pence for each acre of land and of performing suit at the court of the said Abbot and Convent from three weeks to three weeks for all service. And they are worth by the year in all issues according to their true value, and over and above the above mentioned services, five shillings. In witness of which thing the aforesaid jurors have placed their seals to this Inquisition.

Endorsed, let it be done by fine of £10.”

This fine of ten pounds seems to have been made an excuse for obtaining the fee of more land in Paddington and other places; or, at least, so I understand the expression in the following inquisition, “in part satisfaction of ten librates of land, &c.”

“Inquisition a. q. d. 20th Edward II. No. 14.

MIDDLESEX.

Inquisition made before the Escheator of the Lord the King, in the county of Middlesex, on Saturday the fourth day of October, in the twentieth year of the reign of King Edward, son of King Edward, on the oath of Roger de Presthorpe, Richard Atte Watere, John de Winton, Richard Goldsmith, John de Oxford, Richard Cook, Thomas Treuge, Richard Atte Doune, John Colyn of Padynton, John de Bemflete, of the county of Middlesex, Nicholas Atte Doune, and Robert Herebard, of the county of Surrey, who say, upon their oath, that it is not to the damage nor prejudice of the Lord the King, nor of others, if the Lord the King grant to Richard de Sudburi, that he may give and assign one toft, six shops, and one acre of land, with appurtenances in the vill of Westminster; ^[25] to Henry de Bathe, that he may give and assign one acre and a half of land with appurtenances in the same vill; to John de Beburi, that he may give and assign one toft and seven acres of land with appurtenances in Padyngton; and to Richard Prat, that he may give and assign one toft with appurtenances in Wendlesworth; to the Abbot and Convent of Westminster, to have and to hold to them and their successors for ever in part satisfaction of the ten librates of lands, tenements, and rents, which he lately granted for the acquisition of the same Abbot and Convent by his letters patent. And they say that the aforesaid messuages, toft, shops, and land, of Richard de Sudburi are held of the aforesaid Abbot and Convent by service of eight shillings a year, for all service, and are worth by the year in all issues, over and above the said service, two shillings, according to their true value. They also say that the aforesaid acre and a half of land of Henry de Bathe is held of the aforesaid Abbot and Convent by service of three shillings and four-pence a year, and suit at the court of the said Abbot from three weeks to three weeks. And they say that the aforesaid land

is worth nothing over and above the services aforesaid. They say also that the aforesaid toft and seven acres of land of John de Beburi are held of the aforesaid Abbot and Convent by service of twenty-pence a year, and three hens, price nine-pence, and suit at the court of the said Abbot, from three weeks to three weeks. And they say that the aforesaid toft and land are worth nothing over and above the services aforesaid. They also say that the aforesaid toft of Richard Prat is held of the said Abbot and Convent by service of fourteen-pence a year, and one cock and one hen, price three-pence half-penny, and suit of court from three weeks to three weeks; and by rendering thence to Joan de Todham nine shillings a year for all service; which toft indeed does not suffice for the payment of such rent. They also say that there is no mean lord between the Lord the King and the aforesaid Richard, Henry, John, and Richard, of the messuages, shops, tofts and land aforesaid, but the aforesaid Abbot and Convent. They also say that there are no lands or tenements remaining to the aforesaid Richard, Henry, John, and Richard over and above the gift and assignment aforesaid. In witness of which thing the aforesaid jurors have set their seals, or marks, to this inquisition.”

From such small beginnings as these the present so-called manors of Westbourn and Paddington arose.

Maitland, in his History of London, tells us that foreign merchants were not able to land their goods at the port of London previous to 1236, and that in that year they agreed to pay for this privilege and “to give the sum of one hundred pounds towards the bringing of the water to the city from Tyburn; which the citizens were empowered to do by virtue of a grant from Gilbert de Sandford.”

And he further informs us, ^[27] that in 1439, “the Abbot of Westminster granted to Robert Large, the mayor, and citizens of London, and their successors, one head of water, containing twenty-six perches in length and one in breadth, together with all its springs in the manor of Paddington; in consideration of which grant the city is for ever to pay to the said Abbot and his successors at the feast of St. Peter, two pepper corns. But if the intended work should happen to draw the water from the ancient wells in the manor of Hida then the aforesaid grant to cease and become entirely void.”

It is further added, “This grant Henry the sixth not only confirmed but likewise by a writ of Privy seal granted them further advantages toward the performing thereof.”

The following is from Tanner’s Notitia—“Pat, in Vaga Rageman temp Ric 2. Buckingham Rot 12. quod Abbas debet mundare aquam vocat Bayard’s Watering Place in paroch de Padyngton.”

Now if we except these grants, which, we shall presently see, were not so unimportant as may at first sight appear, I think we may give the Abbots and monks the credit of keeping, as long as they were allowed to keep, all they ever acquired or ever possessed in Paddington.

But although the Abbots at length, and by slow degrees, acquired to themselves and their House, either with or without the sanction of the crown, both spiritual and temporal dominion over these places, we must not imagine that all the tenements in Westbourn and Paddington had been by this time transferred by the devout and the timid to their safe keeping; for besides the few small holders, who obstinately preferred their hereditary rights, to the prospect of a speedy post-mortem release from purgatory, there is good reason to believe that the ancient family of De Veres held a considerable tract of land in this parish down to 1461.

CHAPTER III.

THE POSSESSIONS OF THE CHURCH, THE CROWN, & THE PEOPLE.

THE history of the lands which have been claimed by the Bishop of London, and the Dean and Chapter of Westminster, as their portion of the spoils of the Convent can be completely written by those only who have free access to all the records in the archives of St. Paul’s and St. Peter’s. And as it would appear that the time is not yet come for placing at the disposal of the public, for public uses, many of the important documents held in charge by Deans and Chapters, we must be content with that account which can be furnished by those which they have permitted us to see, and those which more confiding holders have thrown open to our inspection.

Most of the facts, which I have been able to discover, relative to the acquisition of the Abbey lands in Paddington, have been already related. One or two, however, having an important relation to the lands of the existing church, and the possessions of the people, remain to be told.

Aubrey de Vere, “who came in with the Conqueror,” was grandfather to Aubrey, first Earl of Oxford, and held, as we have already seen, a tract of land called in Domesday, Chenesitun. ^[28] His eldest son, Geoffry having been cured of a sickness by the Abbot of Abingdon, while grateful for the skill and kindness shewn him, persuaded his father to bestow the church of Kensington on that Monastery. The grant was made, and confirmed by the next heir, Geoffry having died during his father’s lifetime. This footing having been obtained, a subsequent Abbot claimed the privileges of a manor for the lands given to that church. This claim, which appears to have been set up previous to the issue of a quo-warranto, seemed to the Earl then in possession, rather more than his ancestors, in their liberality had given. He appears to have opposed the claim: and it was ordered that the matter should be investigated. From some cause or other, however, the suit did not proceed, and the *Abbot’s* Kensington became a manor like its progenitor, the *Earl’s* Kensington; and so the Reformation found a goodly quantity of land firmly grasped in the dead hands of the Abingdon monks. This good thing, however, had not been kept wholly to themselves. They had allowed their brothers at Westminster to have a finger in the pie. And that portion of this manor which was set aside for charitable purposes, was intrusted to the charitable care, of St. Peter. This portion of the Abbot’s manor was valued, in the year 1371, at five marks; while the other portion, “the church and vicarage,” was valued at thirty-six marks. ^[29]

In the patent roll which contains the grant of Henry the eighth to the Dean and Chapter of Westminster—Pat. 34. Henry 8. P. 5. M. 32. (6)—“of the site of the late monastery of Westminster, with all its ancient privileges, free customs, &c., &c.,” we find, at the foot of the same membrane, this continuation of the grant “all those messuages, lands, tenements, meadows, pastures, feedings, rents, reversions, services, and other our hereditaments whatsoever known by the name or names of Seynt Mary Landes, lying and being in Westbourne, in the parish of Paddington, in our said county of Middlesex, and now or late in the tenure or occupation of John Genie, or his assigns, to the said late monastery of St. Peter, Westminster, lately

belonging and appertaining, and being parcel of the possessions of the said late monastery.”

I have not been able to discover the exact extent of these lands at the time of the reformation; or the amount of their growth during the last three centuries; but I have many reasons for believing that these “Seynt Mary lands lying and being in Westbourne in the parish of Paddington,” were the self-same lands given by St. Mary of Abingdon to St. Peter of Westminster for charitable purposes. That, in fact, this land was the poor allotment of the manor of Abbot’s Kensington.

Out of this and another small grant the parvenu manor of “Knightsbridge and Westbourne” was manufactured.

Besides these manors of Abbot’s Kensington, and Knightsbridge and Westbourn, another manor, called West-town, was created out of lands called “the Groves,” granted to “his dear and faithful chaplin, Simon Downham,” by Robert the fifth, Earl of Oxford, in 1214.

By an inquisition, taken in 1481, we are informed that the Groves, formerly only three fields, had extended themselves out of Kensington into “Brompton, Chelsea, Tybourn, and Westbourne.”

“The Groves,” now a manor, passed from Richard Sturgion and William Hall to William Essex. The Marquis of Winchester, Lord High Treasurer of England, purchased it of Thomas Essex, for one thousand pounds, in May, 1570; and the next marquis sold it to William Dodington for seven hundred pounds, who sold it to Christopher Baker for two thousand pounds, and it was afterwards purchased by Walter Cope for one thousand three hundred pounds, who attached the Groves to Abbots Kensington, which he had purchased. ^[30a]

But besides the manors, which the Abbots of Abingdon, and Simon the priest, and the Abbots and Monks of Westminster, had so nicely created for themselves, another, called “the manor of Notingbarons, alias Kensington,” then “Nutting Barns,” afterwards “Knotting-barns,” in Stockdale’s new map of the country round London, 1790, “Knolton Barn,” now Notting-barns, was carved out of the original manor of “Chenesitun.” ^[30b] And from an inquisition holden in the fifteenth year of Edward the fourth, we find that

this manor remained in the hands of the De Vere's with Earls Kensington, when John the twelfth Earl of Oxford, and his eldest son, Aubrey, were beheaded.

This inquisition states, that "John, late Earl of Oxon. was seized to his own use, the fourteenth day of April, anno regni 12 Edw. IV., of the manors of Kensington, and Knotting Barns, in the county of Middlesex, and that afterwards, by a certain Act, made in the Parliament, which began at Westminster, the sixth of October, in the twelfth year of the reign of King Edward the fourth, and by several prorogations continued to the twenty-third of January in the fourteenth year of the King, it was decreed that the Earl should forfeit to the Lord the King all the manors, lands, and tenements which he, or any one to his use had, and that the manors of Kensington were accordingly forfeited. The jurors say the said manor of Kensington is worth, in all issues, beyond outgoings, twenty-five marks per annum; and that from the fourteenth day of April, anno twelve, the issues and profits have been and are taken and received by Richard, Duke of Gloucester, but by what right or title they know not." [\[31\]](#)

By this inquisition we perceive that these manors were no longer held by the De Vere's in virtue of their office of Lord Great Chamberlain; but that this Earl died, possessing the manors "*seized to his own use.*" And by an Act of the eleventh year of Henry the seventh, we find out what the jurors did not know, viz.—That the widow of the beheaded Earl, "by compulsion, coercion, and imprisonment," while her son was suffering for his support of the Lancastrian cause, was obliged to release to Richard "late in dede, and not of right, King England, while he was Duke of Gloucetir," divers manors, lands, &c. &c. This being in all probability one of them.

When the said Richard had been dispatched in Bosworth field, and Henry the seventh had ascended the throne, these acts of the usurpers "inordinate covetyse, and ungodly disposition" were quietly put aside by regular Acts of Parliament. And by the first and eleventh of Henry the seventh, not only this Earl of Oxford, but all his family, were reinstated in their estates, honors and dignities. And by the latter act the compulsory release which Richard had obtained from Elizabeth, Countess of Oxenford, was rendered null and void. But during all these troubles the Earl appears to have got into debt, to discharge which he appears to have sold "a messuage, four

hundred acres of land, five acres of meadow, and one hundred and forty acres of wood in Kensington.”

In giving us this information, Mr. Faulkner also tells us that the estate was recovered by “The Great Marshall of England,” and sold to Sir Reginald Bray for four hundred marks. He also corrects a mistake into which Lysons has fallen; and shews that it could not have been the original portion of the manor, or the manor of Earl’s Court, that was sold, and suggests that it may have been “one of the smaller manors of West-town or Knotting Barns.” But Lysons and Faulkner throw no further light on this subject.

The truth being that it was this manor of Notting Barns which was purchased by Sir Reginald, or Sir Reynolde as it is frequently written; and it was this manor which the generous Lady, in whose service he was engaged for so many years, purchased of him to complete the establishment of her munificent foundations.

Widmore tells us that this lady, Margaret Countess of Richmond, mother of King Henry the seventh, obtained a licence of Mortmain for one hundred and fifty pounds per annum, and that she proceeded so far as to convey ninety pounds of it to the Convent of Westminster, for the purpose of an anniversary for herself, for three monks to celebrate mass in the Abbey Church, and for the payment of the salaries of the professors founded by her in the two universities, and her Cambridge preacher. And we learn by her will, and by the Valor Ecclesiasticus, that besides the establishment of these professorships, ten pounds per annum was to be given to the poor out of the estates she left for these purposes. We also learn by her will, and by an entry in that Ecclesiastical valuation, which was taken by order of her grandson, in the twenty-sixth year of his reign, that a considerable portion of the land given by the Lady Margaret, for the purposes named, then lay in Paddington.

In her will, we find, after the notice of the “licence given unto us by the King our Soverain Lord and most dere son,” and the mention of lands at Drayton, Woxbrig (Uxbridge), and other places, the following words, “and also diverse londs and tenements in Willesden, Padington, Westbourn and Kensyngton, in the county of Midd’x, which the said Abbot, Prior, and Convent, at their owne desire, and by their entire assents and consents, have

accepted and taken of us” at such a “yerely valow,” and for such purposes, as therein specified.

We also find in the Valor Ecclesiasticus of Henry the 8th, under the heading

“Fundacio Domine Margaret, Comitisse Richmond.
MIDD’.”

and after the mention of property at Drayton, Uxbridge, and Willesden, to the amount of fifteen pounds, six shillings and eight-pence, these words—

“Et tenet’ in Padington . . £10.” [\[32\]](#)

And in the fifth folio of 441 Lansdowne Manuscripts, the indentures entered into by the Abbot of Westminster and the Lady Margaret Countess of Richmond respecting the disposal of her property, we find the same fact thus stated:—“and also dyvers landes and tenements in Willesden, Padyngton, Westburn, and Kensington in the countie of Midd. which maners, landes and tenements the said Princes late purchased of Sr Reynolde Bray, Knight.”

I think this evidence is sufficiently conclusive to prove that this manor of Notting Barns, sold to Sir Reginald Bray, was purchased by the Lady Margaret for the purposes of her bequests.

It is true that this notable Knight and most noble mason, [\[33a\]](#) sold another estate “for 400 marc steryling,” which is described as “lying and being in Tybourne, Lilliston, Westbourn, Charying, and Eye.” But this was sold “to Thomas Hobson, gent.,” and called “the maner of Maribone,” which is said to have consisted of “all the meses, lands, tenements, &c. which were of Robert Styllington, late Bishop of Bath and Welles and of Thomas Styllington cosyn and Heyre of the same Robert.” [\[33b\]](#)

It may also be true that Sir William, afterwards Lord Sands, or Sandys, succeeded by the aid of William, Archbishop of Canterbury, Lord Chancellor of England, the Lord Chief Justice of the Common Pleas, “and divers other friends of both parties,” in dividing the great property left by Sir Reginald Bray, between himself and the nephews to whom Sir Reginald

had left it in his will. And it is perfectly true that Sir William, who “had married the daughter and heir of Sir Reginald’s elder brother John,” came into the possession of property in Paddington by this Star Chamber decision. But this was through his having had the manor of Chelsea as a portion of his share of Sir Reginald’s lands assigned to him.

Neither this “honest country lord,” this “merry gamester,” whom Shakspeare has immortalized, nor the “Gent.” whose choice is still a proverb, held land in Paddington long. Both Lord Sands, and Thomas Hobson, exchanged their lands and manors of Chelsea, and Marylebone, with Henry the eighth, for other manors and lands; and the manor of Chelsea with those lands in Paddington which had belonged to Lord Sands were settled on Katherine, the widowed queen of the many-wived murderous monarch.

The beautiful, and perfectly preserved, illuminated indenture, in the Lansdowne collection, B.M., to which I have just now referred, more fully than the Countess’s will, which was printed in 1780, with other royal wills of an anterior date, details the donor’s desires with respect to the property she had disposed of. How far those desires and wishes have been carried out, others can tell much better than I can. No expense or pains appears to have been spared by the munificent donor to make her bequest in accordance with the law, and so far as her knowledge went, useful to posterity. Her Cambridge and Oxford professors are still known. But where is her grant to the poor? Are her professors still paid the stipends she fixed for them; or do the readers and the preachers divide between them the large estates she left? Where is that large estate in Paddington, which was valued in her grandson’s reign at the exact amount she left to the poor?

Besides the charitable bequests made by the Countess of Richmond, she left “divers other parcels of the same maners, londes, &c.” valued at six pounds, thirteen shillings and four-pence per annum to her faithful servant Elizabeth Massey; and we find an account of “part of the descent of Massye, of Paddington,” down to 1626, in the Harlein collection of MSS. No. 2012, p. 45.

The first authentic document I find relating to the Notting Barns manor after it was disposed of by the Countess of Richmond is an inquisition,

taken at Westminster on the ninth of October, in the seventeenth year of the reign of Henry the eighth, after the death of Robert Roper, or Fenroper, citizen and alderman of London. ^[34]

From this inquisition we learn that “The manor called Notingbarons, alias Kensington, *in the parish of Paddington*, was held of the Abbot of Westminster as of his manor of Paddington by fealty and twenty-two shillings rent;” that the manor at this time “consisted of forty acres of land, one hundred and forty acres of meadow, two hundred acres of wood, twenty acres of moor, twenty acres of furze and heath, and forty shillings rent; and that it was valued by the jurors at *ten pounds per annum*.” This manor, a lease of which had been, in all probability, purchased of the Abbot by the aforesaid Robert, was left by the Alderman to his wife for life, “Remainder to Henry White, gent., and Etheldreda his wife, one of his three daughters and co-heirs.” ^[35a]

What “arrangement” was made at the time of the Reformation with respect to this manor I cannot precisely tell; but its further history, so far as I have been able to trace it, is not without interest.

Lysons tells us in his account of Paddington, that “a capital messuage called Westbourne-place, with certain lands thereto belonging was granted by Henry the eighth, in 1540, to Robert White;” and he refers to the Augmentation Office, but to no special record there, for his authority. This grant I have not been able to find. But in his account of Kensington, Lysons says Henry White, the son-in-law of the alderman, “in the year 1543 conveyed the manor of Knotting Barns to the King.”

By a deed of exchange recited in Pat 34. Henry 8th. P. 8., M. 13 (15), I find that the King purchased *Robert White's* interest in this manor, and that “the said Robert White, esquire, having bargained and sold the manor of Nutting Barnes, with the appurtenances, in the county of Middlesex, and the farm of Nutting Barnes, in the parish of Kensyngton, and the capital messuage with the appurtenances called Westbourne in the parish of Paddington, in the same county, and also the wood and lands called Nutting Wood, Dorkyns-Hernes, and Bulfre Grove, in the parish of Kensington, as also two messuages and tenements in Chelsaye, with all other the possessions of the said Robert White, in the same places and parishes; and in consideration of

one hundred and six pounds, five shillings and ten pence” had other lands conveyed to him, by the King, in other places, as fully set forth in the patent above referred to. ^[35b] It will be observed, that in this document, which is of a later date than the dissolution of the monastery, a portion of this manor is now said to be in the parish of Kensington. It appears that the manor was made up of two farms (over and above the small tenements), one called Notting Barns, and the other Westbourn; and we find from a manuscript document, dated thirty-eighth Henry the eighth, ^[36a] that the “message called Westbourne, with the lands purchased of Robert White,” were demised to one Thomas Dolte, at a rent of one hundred shillings per annum; the same sum on which this Thomas Dolte was charged in the subsidy levied in the sixteenth year of this reign. ^[36b] This farm appears to have been but half the manor purchased by the Countess of Richmond, and this half remained in the parish of Paddington, while the Notting Barns farm seems to have been considered a part of Kensington, after the Reformation.

From this M.S. in the land revenue office we also learn that Henry the eighth purchased the then existing interest in other lands in this parish, and in the parishes of St. Margaret, Westminster, and Kensington, of one John Dunnington. The gross rental of which I find was put down at nine pounds thirteen shillings and fourpence; “from which there was an allowance, for lands inclosed within the king’s park of Hyde, of twenty-eight shillings per annum; leaving the clear yearly value of eight pounds five shillings and fourpence.” The same document shews, too, that a separate rent of forty-one pounds six shillings and eightpence was received for the manor and rectory of Paddington.

Faulkner states that “in 1549 king Edward the sixth, granted this manor or farm of Notting Barns to Sir William Pawlet, earl of Wiltshire,” at a rent of sixty shillings per annum. In 1562, and 1587, it appears to have been in the hands of the lord treasurers of England, the marquis of Winchester and lord Burghley. From lord Burghley it passed to Sir Thomas Cecil who sold it to Sir Walter Cope of Kensington; and in 1601 the queen “granted a pardon to the said Walter Cope, for the sum of six pounds, in consideration that the above alienation had been made without her majesty’s licence.” ^[36c]

Thus the Notting Barns manor was claimed by the crown and by private individuals; and so this portion of the Lady Margaret’s gift was disposed of.

But with “the messuage called Westbourne, and the lands purchased of Robert White,” we have something more to do.

Thomas Hues, esquire, doctor of medicine, one of queen Mary’s “principal physicians,” purchased of that queen and others, a considerable quantity of land, in this and the adjoining parishes, fully described in Escact, 2. Eliz. part 2. No. 23, which he gave to his wife for her life, “And in remainder to the Wardens and Fellows of Martyn (Merton) college in Oxford, for the purpose of founding within the said college for evermore two apt and meet persons to be Fellows of the Fellowship of the said College. Or else three scholars, or four, as the land will extend unto, at such times as the same shall come to the hands and possession of the said Warden and Fellows of the said college or to their successors for the time being; to have continuance and succession within the said college as fellows or scholars thereof for evermore. There to be found, governed, and used with the revenues of the said lands, and to be brought up and educated in virtue and good learning according to the rules, good order, and diet of the said College, whereby other the Fellows or Scholars of the said House have in time past been well governed, ordered, ruled and brought up.”

By Pat. 2. Mary, P. 1, we learn other particulars respecting the messuages, tenements, &c., which were purchased by Dr. Hues. We find the cost of the whole to have been three hundred and forty-six pounds, one shilling and eight-pence halfpenny; that they were purchased of various owners; and that “a message and tenement called Westbourne” was included in the purchase, and that “four closes of land called by the names of Darking Bussches, Holmefield, Balserfield, and Baudeland, and six acres of arable land lying apart in the common fields; and six acres of arable land lying apart in the fields called Dowries, all in the parish of Paddington” were purchased of the crown.

As a description of these four closes of land is still preserved in the Harleian M.SS. No. 606, f. 46 b., I have thought it right to translate and print it in this place, it is as follows:—

“A parcel of the possessions of the late lord Sands.
County of Middlesex.”

“An account of four pasture closes in and near Paddington in the county aforesaid, containing, by estimation, fifty acres, lately in the tenure of John Kellet by indenture for a term of years.

“One.—A close called Darking Bussches ^[38] lying between the close called Sunhawes on the southern side, and between the field called Wrenfelde on the northern side, and extending in length over the green called Kellsell Greene on the eastern side, and over the land belonging to Notting-barns called Dorkinghernes on the western side.

“Another. A close called Homefelde and extending above the road leading from Paddington to Harlestone on the eastern side, and above the close called Reding-meade on the western side, and abutting upon the close called Church-close on the southern and western sides, and upon the angle of Reding-meade aforesaid on the northern side.

“Another close called Balserfeld, extending in length upon a piece of land called Lytle Balserfeld on the northern side, and upon a close called Horsecreste and Ponde-close on the southern side, and on one head of the land abutting upon the west-lane on the western side, and upon Reding-meade aforesaid on the eastern side.

“Another close called Bandelonds lying between the close called Swanne lease and Three acres on the northern side, and a close called Downes on the southern side, and one head abutting upon a close called Abbot’s-lease, and upon the Green-lane or Kingefelde-green on the eastern side, and upon the close of Notting-barnes on the western side.

They are worth £4.”

The following memorandum is added to this description:—

“Mem.—*That the rent of the premises is paid to the bayliffe of Chelsey albeit it lyith nother within Town nor parisshe of Chelsey but within the parisshe of Paddington, ij myle from Chelsey. What mynes, leade, or other commodytes ar apou the premisses I know not. The same are no parcel of th’ auncyent demeans of the Crown, or of the Duches of*

Lanc. or Cornewall, the Quene hath no more lond in Paddyngton but only these iiij closes.

Ex. per me Alexandrum Hewes superius.”

“xiii mo. of Maie 1557 Rated for Mr. Hues one of the Quenes mties phicisions.

“The clere yerely value of the premesises iiii li whiche rated at xxvi yeres purchace ammountethe to ciiij li.

“The money to be paid in hand viz before the xxvi of Maie 1557. The King and Quenes ma.. do dischargd the purchacer of all thinges and incumbraunces made or don by their majesties except leases. The purchacer to have the ’ssues from the fest of Th’ annuncyation of our Lady last past. The purchaser to discharge the King and Quenes majesties of all fees and reprises goying out of the premisses. The tenure in socage. The purchacer to be bound for the woodes. The leade and belles to be excepted.

Ex. Willm Petre. Fraunceis Inglefield. Jo Bakere.”

These were the closes in Paddington then, which belonged to Lord Sands; and it will be seen by this memorandum, and by the patent, that although this land was considered a part of Chelsea manor, it was no part of Chelsea parish at that time. ^[39]

In 1536, Lord Sands alienated the advowson of Chelsea and his manor of Chelsea to the King, in exchange for other lands. By the words of this transfer, which is printed from the original document in Faulkner’s Chelsea, ^[40] we find, that the hereditaments conveyed to the King lay “in the parish of Chelcheth aforesaid and Paddington.” And in “A peticular booke of Chelsey manor 1554,” relative to the possessions of Queen Katherine, we find these four closes “in Paddington,” mentioned as having been then let at four pounds per annum, to Henry White.

Faulkner speaks of the transfer of the manor of Chelsea to Edward the sixth by the Duke of Northumberland, and of other surrenders backwards and forwards; but neither in his works nor in Lysons can I find anything about Dr. Thomas Hues’ purchase; or one word about his gift to Merton. Neither

can I find any notice of this liberal bequest in any of the Histories of the University of Oxford which I have examined.

What “arrangement,” then has been come to respecting this property? Are any learned fellows or poor scholars benefitted by this physician’s bequest? Or, is this estate like the other portion of the Lady Margaret’s gift, safely lodged in private hands?

I must confess that I am not able to answer these questions.

But it would appear that the large and valuable estates bequeathed by the Countess of Richmond and Dr. Hues do not include the whole of the “College Land” in Paddington.

Lysons in his *Environs*, and Chalmers in his *History of the University of Oxford*, tell us that the Manor of Malurees, “consisting of some houses and about one hundred and twenty acres of land,” situated in the parishes of Willesden, Paddington, Chelsea, and Fulham, was surrendered by Thomas Chichele to King Henry the sixth, who granted it to the Warden and Fellows of All Souls College in Oxford; and this grant has not been wholly lost to this College, for I believe that down to the present day a rent is paid to All Souls for some portion of this land.

One of the most important preliminaries to the great Reformation was the institution of a new valuation of church property.

The King and people, saw how inefficiently Pope Nicholas’s taxation represented the value of church property in the sixteenth century, for if it had not progressed in value in the same proportion as other property, still the difference between the values in Edward and Henry’s time, was very considerable; and it required no conjuror to tell that the clergy had ceased to pay their fair quota towards the national expenditure.

Yet the difference between the Pope’s valuation and the reforming King’s, is far less than the actual value of church property in Queen Victoria’s reign and that which is entered on “the King’s books.” It is true that the clergy are now taxed differently from what they were before the Reformation; and that “the first fruits and tenths” no longer go into the national exchequer. But “the Queen’s bounty” would find the benefit of a valuation taken in our Queen’s reign; and if this payment of first fruits and tenths was anything

like what it pretended to be, the whole of the first year's income, and the tenth of all future years, those who dispense that bounty would not have to be so parsimonious in their assistance to the poorer clergy.

To the Record Commission we owe the publication of that valuation which was taken by King Henry the eighth, as well as that taken by Pope Nicholas the fourth.

In addition to the quotation I have already given from the former valuation, the following entries are to be found in it relative to Paddington:—

Officium Sacristi Westm' MIDD'.			
	£	s.	d.
Rector' de Padington	„	46	8
Officium Elemosinar' Westm' MIDD'.			
Valet in bosc' apud Padington coibus annis	„	20	„
Officium Custod' Capelle Beate Marie MIDD'.			
Vendic' bosc' apud Padington coibs annis	„	20	„
Novum Opus Westm'			
Maneriu de Padington	„	19	„

The year after this survey was taken, all monasteries, priories, and other religious houses, whose possessions did not amount to two hundred pounds per annum, were given by the twenty-seventh of Henry the eighth, chap. 28, with all their manors, lands, &c. to the King and his heirs for ever.

By this Act, the lands belonging to Kilbourn Priory became the property of the crown; and in the following year these lands were exchanged to Sir William Weston, the prior of the Hospital of St. John of Jerusalem, for the manor of Paris Garden in Southwark. The twenty-eighth of Henry the eighth, chap. 21, which recites the indenture relative to this exchange, states

that the demesne lands of the said priory were “in Kylbourne aforesaid, Hamstedd, Padyngton and Westbourn.” And besides these demesne lands, other lands and wood, with “one woode conteynnyng by estimation twenty-nine acres,” are also said to be “set and beynge in Kylborne and Padyngton aforsayde.” So that it would appear the nuns of Kilbourn as well as the monks of Westminster had possessions in this parish.

By the thirty-first of Henry the eighth, chap. 13, the larger monasteries shared the same fate as the smaller ones had done, and the Abbey lands of this place, and those formerly belonging to the priory, reverted again to the crown.

In the account which was rendered to the King by the ministers appointed to receive the revenues which came to the crown on the dissolution of Religious Houses, we find the value of the other church property in this parish, set down thus:—

		£	s.	d.
Knyghtsbrydge et Westborne	Firm' Terr'	2	6	8
Knyghtebrydge, Kensyngton et Westbourne	Firm'	5	14	11
	Pquis Cur	0	6	4½

I have extracted this account from the *Monasticon Anglicanum*, vol. i, page 326, where these sums are repeated thus:—

	£	s.	d.
Maniu de Knyghtebridge et Westbourne Firm' Terr'	2	6	8
Westborne, Knightsbridge et Kensington Man Redd et Firm	5	14	11
Pquis Cur		6	8½

But the Crown had other possessions in Paddington besides those which fell to it by the suppression of Religious Houses.

We have already seen that Henry the eighth obtained land here by exchange and purchase, from Lord Sands, Thomas Hobson, John Dunnington, and Robert White.

We have also seen that those lands which were purchased of Lord Sands and Robert White by the crown were sold to Dr. Hues, and given by him with other lands to Martyn College, Oxford.

Some part of those lands purchased of John Dunnington went to increase the park made by Henry the eighth, viz. Hyde Park; but what became of the remainder I have not been able to discover.

What Henry the eighth did with the manor and rectory of Paddington will be seen by the following translation of a portion of a legal instrument still preserved in the Record Office, Carlton Ride. ^[43]

“Inrolments of Leases 35. 36. Henry VIII. P. 65.

“On the seventh of January, in the thirty-second year of his reign, the King, by an indenture and release, bearing that date, did, by the advice and counsel of the court, for augmenting the revenues of his crown, demise, grant and farm let, to Edward Baynton, knight, *and Isabella his wife*, all the site and capital messuage of the manor of Padyngton, in the county of Middlesex, and all houses, edifices, barns, stables, dovecotes, orchards, gardens and curtilages adjacent to the said site and capital messuage. And also all lands, meadows, pastures, commons, and hereditaments, commonly called the demesne lands of the manor aforesaid; and another messuage and tenement with appurtenances in the tenure of Edward North, esquire, situate and being in Padyngton, in the county aforesaid. And all lands, manors, feedings, pastures, commons, and hereditaments whatsoever in Padyngton in the county aforesaid to the said messuage and tenement belonging and appertaining, or with the messuage and tenement occupied and being. Also all the rectory of Padyngton in the said county of Middlesex; and all and every tenth, oblation, profit, commodity, and emolument whatsoever to the said rectory in any sort belonging or appertaining; which said manor, rectory, messuage, lands, tenements, etcetera, were part of the possessions of the late dissolved monastery of St. Peter, Westminster, and which were formerly let to the aforesaid Edward North, for a term of years; but excepting always and reserving for our Lord the King, his heirs and successors, all large trees and wood of and upon the premises growing and being, to have

and to hold all and singular the premises above specified with their appurtenances, except as before expressed, to Edward and Isabella, and their assigns, from the feast of the Annunciation of the Blessed Virgin Mary, next following, until the end of the term, and for a term of twenty one years next following and fully completed; rendering thence annually to our Lord the King, his heirs and successors, forty-one pounds, six-shillings and eight pence, legal English money, at the feasts of St. Michael the Archangel, and the Annunciation of the Blessed Virgin Mary, or within one month after the said feasts, in equal portions, to the court aforesaid, during the time aforesaid, &c., &c.”

This indenture and release, which, so far as I know, has not been noticed before, and which certainly is not spoken of in any of the private Acts of Parliament relating to the manor and rectory of Paddington, is recited at length in another indenture and release, which is generally referred to, which was made and dated the twenty-first day of December, in the thirty-fifth year of Henry’s reign. The manor and rectory of Paddington, and that other “messuage and tenement with appurtenances in the tenure of Edward North, esquire,” being by it demised to Richard Rede, of London, Salter, for a new term of twenty-one years. The large trees and wood, as was usual in such cases, being again reserved for the uses of the crown.

We have already seen by the entries in the Valor Ecclesiasticus, taken by order of this King, that in the twenty-sixth year of Henry’s reign, twenty shillings per annum, half the rental of the wood spoken of in this indenture, which was then thirty acres in extent, was set apart for charitable purposes; that the other half was appropriated to the Blessed Mary’s Chapel; that the manor, bringing in nineteen pounds per annum, was dedicated to “the New Work,” probably Henry the seventh’s chapel; that the rectory was valued to the Abbey at two pounds, six shillings and eight-pence; that the tenement formerly belonging to the Countess of Richmond was valued at ten pounds; and that the lands at Knightsbridge and Westbourne were valued at eight pounds, one shilling and seven-pence.

We see, also, the possessions in Paddington formerly belonging to the church produced the same rent within one shilling and seven-pence, as these lands were valued at six years before. ^[44]

But the crown was not in receipt of these reserved rents more than three or four years after Henry's death; for his son, then about thirteen years of age, by his letters patent, granted the manor of Paddington, with several other manors and rectories, together, "of the clear annual value of five hundred and twenty-six pounds, nineteen shillings, and nine-pence farthing," to Nicholas Ridley, then Bishop of London, and to his successors in that see.

The following are the words in this patent which refer expressly to Paddington—"Necnon totum illud Moneriu nrm de Paddington in dco com nro Midd cum suis juribs membris et ptien univeis nup Monasteio Sci Petri Westm modo dissolut dudam spectan et ptinen ac parell possessionu et revencionu ejusdem nup Monastei dudam existen."

Newcourt, in his Repertorium, page 703, says "The manor and rectory of Paddington (which of old did belong to the Monastery of Westminster) were by Edward the sixth, in the fourth year of his reign, upon his dissolving the Bishoprick of Westminster then lately erected by King Henry the eighth, given to Dr. Nicholas Ridley, then Bishop of London, and his successors for ever." From this one might imagine that Paddington had formed part of the possessions of that short-lived see; which, indeed, Lysons, in his Environs, and Mr. Brewer, in his "London and Middlesex," distinctly state, but of this I find no evidence whatever; and the words of the patent itself, convey a different impression. There are in this patent other places mentioned as having formed part of that see, but as it will be observed, Paddington is stated to have formerly belonged to the Monastery. It will be observed too, that the rectory is not mentioned in the extract from the grant which I have given, neither do I find it anywhere else alluded to, specially, as is the case with certain other rectories given by this patent. But the spiritualities in all the places named, appear to have been given in general terms to the Bishop.

When, with Newcourt, we use the word "given," we must not do the advisers of the young King the injustice to suppose that no reservation of the rights of the crown was provided for in this open letter; that indeed would be an injustice, for besides the payment of certain specified sums, to certain specified persons and officers an annual rent equal to one-fifth of the sum remaining to the Bishop was to be paid by him to the King, at his Court of First Fruits and Tenths every Christmas day. Which annual rent was in lieu of the first fruits and tenths paid by all bishops and incumbents. ^[45]

In estimating the first fruits of the manors and rectories granted by the crown to Ridley, at one-tenth of the income they brought in, no hard bargain was struck with the bishop; indeed the calculation was evidently favourable to the future occupants of the see. For not only did this mode of receiving the first fruits do away with the inconvenience arising from having to pay a whole year's income at once, a system which formerly, when these first fruits bore something like a resemblance to the actual annual income, compelled many a poor man to mortgage his living, and involve himself and family in endless difficulty, but it was actually a bonus to the bishops; for those who made the calculation must have known that the seven bishops who preceded Ridley held the See of London but fifty-four years. [\[46a\]](#)

Intending, without doubt, to be liberal to the bishops, and at the same time just to the crown, the calculation of the proper sum to be paid in lieu of first fruits was made without any reference to the possible, or probable, augmentation of the income from the lands then granted. The advisers of the young King knew that with the assistance of parliament fresh arrangements could be made with future occupants of the see; and they fixed the sum to be paid to the crown at one hundred pounds per annum, *as the then fair proportion for all the lands given by this patent.*

This sum has been paid for these possessions ever since that time, as I am informed, though the revenue they produce has increased upwards of four thousand per cent.

Whatever was the intention of the advisers of the young king, however, in this regard, one thing is pretty clear, viz. that Ridley, and several of his successors, received from the manor and rectory of Paddington, not forty-one pounds, six shillings and eightpence, the sum at which the manor was then let, but that sum, minus one-fifth, deducted by the crown. [\[46b\]](#)

Strype tells us [\[46c\]](#) that in exchange for the grants contained in this patent the bishop gave up to the crown other lands to the annual value of four hundred and eighty pounds, three shillings and ninepence, and Ridley has been blamed for making this exchange; Strype, however, has well defended him, and shewn that the see was in reality the gainer even at the time the exchange was made; and if the present values of the exchanged lands were

compared I think it would be found that the successors of Ridley had not lost by his bargain.

There is still preserved in the Record Office, Carlton Ride, ^[47a] a manuscript record which shews that Henry Rede held the manor of Paddington in the ninth year of Elizabeth's reign. The reserved rent being as before, forty-one pounds, six shillings and eightpence. But the wood was not included even in this second lease to Rede, supposing he had one; for we are informed by this document that the rent was increased twenty shillings, "for the farm of one wood called Paddington Wood, thus demised this year." ^[47b] And this omission does not appear to have been accidental, for I found in another manuscript in the same office ^[47c] a memorandum dated November 26th, 1561, to this effect: "To speak to Mr. Barton touching a certain wood at Paddington." So that the mode of disposing of this wood had evidently been under consideration.

The following is the account of the descent of the manor of Paddington given by Lysons:—

"The manor of Paddington was leased in the reign of Henry the eighth to Richard Reade for a long term, which being expired, Bishop Abbot demised it in the year 1626, (together with the capital mansion and rectory) to Sir Rowland St. John, fifth son of Oliver Lord St. John, of Bletsoe), for the lives of himself, his wife Sibyl, and their son Oliver. Sir Rowland, died in 1645. The next year a survey of the manor was taken by order of Parliament; which states the demesne lands to have been six hundred and twenty-four acres, the reserved rent forty-one pounds, six shillings and eight-pence. The great house in which Sir Rowland St. John had lived was then in the occupation of Alderman Bide. The manor was afterwards sold by the Parliamentary Commissioners to Thomas Browne, esquire. After the restoration (in the month of January, 1661), Oliver St. John, the only survivor in the lease (then a baronet), died without having renewed; upon which the estate fell in to Bishop Sheldon, who granted it to his nephews Sir Joseph Sheldon, knight, and Daniel Sheldon, esquire. The lease continued for several years in that family, being renewed from time to time. In the year 1741, it was purchased by Sir John Frederick, baronet, and is now vested in Sir John Morshead, baronet, and Robert

Thistlethwayte, esquire, in right of their wives, Elizabeth and Selina, daughters and co-heirs of Sir Thomas Frederick, baronet, deceased, and grand-daughters of Sir John Frederick.”

We have already seen that Alderman Rede’s lease was not the original one granted by King Henry; and there are other additions, and corrections required to make the statement above quoted strictly correct.

Both the manor, and rectory, of Paddington were held by the citizen’s family “for a long term,” although their first lease was but for twenty-one years; for I find no mention of any other lessees till the reign of Charles the first. I think it probable, however, that Sir Rowland St. John, to whom it was leased in that reign, held it in the reign of James the first; for in the eighteenth year of this reign I find him charged on the subsidy roll twenty pounds for Land in Paddington.

An ancestor of Sir Rowland St. John was related to the Countess of Richmond, was appointed her chamberlain, and one of the executors of her will.

The mother of Sir Rowland, lady Dorothy, was the only daughter and heir of Sir John Rede of Oddington, in Gloucestershire; and it was through her, as I suppose, that the Paddington lease came into this family of St. John.

It was Bishop Mountayne who leased the manor of Paddington to Sir Rowland St. John, in 1626, and not Bishop Abbot, as stated by Lysons; for George Abbot was bishop of London only a few months, and was translated to Canterbury in 1611. I learn from the survey to which Lysons has referred, but which I think he could not have examined for himself, that the lease granted by Bishop Mountayne was dated the twenty-fourth of November, 1626, the second year of Charles the first, the reserved rent for the manor only, being forty-one pounds, six shillings and eight pence; the wood of thirty acres before referred to, being now separately leased for forty shillings per annum; and besides the payment of this increased rent, the lessee was bound by this lease to find the surveyor and steward of the said Lord Bishop, “with provision for man and horse during the holding of his court upon the premises.” At the time this parliamentary survey was taken, the rectory, “excepting the parsonage house or houses,” with the

great tithe, was held by John Lisle, one of the Commissioners of the Great Seal; and it was separately valued at twenty-eight pounds per annum.

The ordinance which was issued on the sixteenth of November, 1646, for the sale of Bishops' lands and estates for the service of the Commonwealth, was followed by a valuation of these estates in England and Wales; and from that valuation we learn the following particulars relative to Paddington:—^[49a]

TEMPORALITIES.	£	s.	d.
Present rents and profits, per annum	44	1	8
Improvements above, per annum	1119	11	8
Timber, wood, &c., valuation in gross	362	6	8
RECTORY AND PARSONAGE.			
Present value	<i>nil.</i>		
Future, per annum	35	0	0

On the fourteenth of December, 1649, “The manner of Paddington wth ye appurten’ces” was sold to Thomas Browne for the sum of three thousand nine hundred and fifty-eight pounds, seventeen shillings and four pence. ^[49b]

How long Mr. Browne enjoyed the revenues of this manor, or what arrangement was come to with respect to this particular purchase on the re-establishment of the episcopacy, I do not know. Lysons informs us that “by the parish accounts, it appears Thomas Browne, esquire, was lord of the manor in 1657,” and it is very probable he continued so after the prelacy was restored; but unfortunately these parish accounts are not now to be found; otherwise more information on this subject, as well as many others, might be obtained.

When Dr. Gilbert Sheldon was appointed to the bishoprick of London, after the restoration, he claimed the manor, *and rectory* of Paddington. If he made his claim good, which he appears to have done, it is quite evident that Sir Oliver St. John stood in his former position with regard to this estate; and although he might not have had the opportunity to renew his lease

between the restoration and his death, which took place in 1662, (and not in 1661, as is asserted both by Lysons and Collins vide *Peerage*, vol. vi.), it is very evident from the directions given in his will, which is dated twenty-eighth December, 1661, that he was desirous of doing so.

I found Sir Oliver's will at Doctor's Commons; it was proved on the twenty-eighth of June, 1662. He therein directs the sale of certain estates for the purpose of paying his debts, and for enabling his trustees to take another lease of the manor, "which he held of the Bishop of London in Paddington" at that time, and the lease was to be taken either for three lives, or for twenty-one years. But the new bishop had nephews, to whom, it appears he was more willing to grant a lease of this manor than to those whose ancestors had purchased it, and in whose family it had remained for upwards of a century.

It would appear that Bishop Sheldon's relatives received the profits of the manor and rectory of Paddington for nearly eighty years; but Lysons has made a mistake in stating the manor was purchased by Sir John Frederick in 1741; for in the preamble of the first Act of Parliament ^[50a] which I can find relative to these lands it is stated that a lease bearing date the fifth of August, 1740, was granted by Edmund (Gibson), then bishop of London, to Sir John Frederick, during the lives of Judith Jodrell, widow; John Afflick; and John Crosier. ^[50b] This in all probability was the date of Sir John Frederick's first lease; and as this may be considered the starting point in the modern history of the manor and rectory of Paddington, now, *par excellence*, "The Paddington Estate," I shall reserve what more I have to say on this subject for a future chapter.

On the ninth of November, in the thirty-eighth of Henry the eighth, an inquisition was held on the property of Henry Horne, who was found to have died, seized of "one capital messuage, three other messuages or tenements, and one close of land containing by estimation six acres, with appurtenances, in Paddington, which were holden of the lord king, as of his manor of Paddington by fealty, and twelpence rent for all services, and not in chief; and they are worth by the year three pounds ten shillings." Escaet 38th Henry VIII.

In the second year of the sixth Edward, William Francis was found to have died seised of “one messuage in Paddington, situated between the highway called Watlyng-street, and beyond the eastern side of the pont called Paddington pond; of two messuages called the Bridge-house, and of one orchard to the said two messuages adjacent; of four tenements upon Paddington-green; of one messuage called Blasers in Paddington aforesaid, with a garden; of two acres of land; of one croft in Paddington aforesaid; of half an acre lying between the tenements of Henry Prowdfoot, late of London, mason, and the ponds there called Paddington ponds on the south side, and the land late of John Colyns on the north side, and abuts on the king’s highway called Watlyng-street on the east; and the jurors find that the aforesaid messuages and other premises in Paddington aforesaid are holden of Richard Rede of London, as of his manor of Padyngton, in the county of Middlesex, by fealty, and three shillings rent for all issues and demands.” Escaet 2; Edw. 6. part 2. No. 23.

Armigell Waad had licence to alien to Wm. Cecil, Knight, “A messuage and one hundred and twenty acres of land in Kentish Town, Padintun, Hamstead, and St. Pancras.” Pat. 5. Eliz. p. 7.

For these references I am indebted to Edlyne Tomlins, esq., and with the exception of those already given, they are all I have been able to procure relative to the estates of private holders of lands in olden times; and of the more modern estates in Paddington I have not much to say.

The names still retained by several plots of land point to their previous owners. Desborough House; ^[51] Little Shaftsbury House, and Dudley House, speak for themselves of their former occupants.

Denis Chirac, jeweller to Queen Anne, built a large house on Paddington-green, which was called Paddington house. And by an entry in the vestry minutes for May, 1821, I find he was admitted a tenant of the manor on the twenty-fourth of April, 1753, and was permitted to inclose the portion of the green in front of his house. This house was situated at the east-side of the green, very near to the Harrow-Road, and the piece of land enclosed was a narrow strip along the southern-side of the old green.

Lysons tells us “Lord Craven has an estate in this parish called Craven-hill, on which is a small hamlet very pleasantly situated;” and that this nobleman

“whose humane exertions during the dreadful calamities, the great fire and plague of London, are so well known, observing the difficulties which attended the burying of infected corpses in 1665,” gave a piece of ground in the parish of St. Martin’s-in-the-fields, east of Regent street, as a burial-place during any future sickness. ^[52a] Carnaby market and other buildings, were erected on this Craven estate, and Lysons adds, “when this ground was covered with building, it was exchanged for a field upon the Paddington estate, which, if London should ever be again visited by the plague, is still subject to the said use.”

This land was not used, however, during the plague of 1848–49; and at the present time a grand London-square, called Craven Gardens, alone indicates the site of the Paddington pest-house field. This property consisting of two messuages and nine acres of land was purchased by the trustees of this charity-estate of one Jane Upton, widow, and her son, with consent of the minor’s trustees, for fifteen hundred and seventy pounds. ^[52b]

The poor inhabitants of the parishes of St. Clement’s Danes, St. Martin’s-in-the-fields, St. James’s, Westminster, and St. Paul’s, Covent Garden, were to be specially benefitted by these houses and this land. But I must refer those who wish to know more of this charity to the private acts concerning it.

Mr Orme, formerly a print-seller in Bond-street, purchased property west of Craven-hill. Mr. Neild is the lessee of all the land claimed by the Dean and Chapter of Westminster in this parish; and is said to have purchased land in and near Paddington, of the descendants of Dr. Busby. A Mr. White now owns land at Westbourn; the Grand Junction Canal Company; the Grand Junction Water Works Company; and the Great Western Railway Company, are large proprietors. Many pieces of land have been given, and purchased for charitable uses; and in 1852 no less than fifty persons claimed to be registered as county voters for freehold land held by them in Paddington.

It is not, however, the object of this work to exhibit the title deeds of private owners of land in this parish; or to record all the names of the owners of the soil; neither would I have it thought that I wish to constitute myself a judge of the value of those claims which have been set up by corporations, aggregate, or sole. But the rights of a whole people cannot be set aside by the single fact of possession; neither can individuals be permitted much

longer to enrich themselves, and their immediate relatives, by applying to their own uses the proceeds of lands consecrated to the people.

COMMONS AND WASTE.

Commons originally were those lands which had not been brought into cultivation by the spade and the plough, over which, all who used the spade and the plough had certain rights in common. When the rights of the people over the soil were more limited by the law, there was attached to every portion of arable land a certain portion of waste, over which these common rights extended; and these lands were as much, in proportion, the property of the poorest occupier as of the richest holder. Commons have also been defined to be “wastes and pastures which have never been exclusively appropriated by any individual, but used in common by the inhabitants of a parish or district.”

In Paddington, the commons were in more senses than one, “commons without stint,” for they were not only used by the inhabitants all the year round, but the quantity assigned was, for centuries, amply sufficient for all their wants; and these commons in Paddington were not confined to that “*universal right*” called “commons appendant,” for the people here had the right of taking the material from the neighbouring wood, for their fire as well as for the repair of their houses, carts, and hedges.

To those who had obtained the lordship of the soil, the preservation of these commonable rights was of much less importance than to the people, for that which was gained by the labourers’ toil from the waste, and the wood, went to increase the domains of the lord, or to enrich some private owner. To the lords, the Roman law which “considered the individual member of the state,” was much more inviting than the ancient law of England, which “based itself upon the family bond.”

The better to secure individual rights, so acquired, the cultivated land was enclosed. But this enclosure of lands proceeded so rapidly that the rights of all the poor in England, those who could not find means to enclose, were in danger of being annihilated. The state was at length compelled to interfere, and the law provided that enough commonable land should be left in each manor to provide for the fulfilment of the usual commonable rights; and at

the time of an enclosure it was, as it still is, the custom when the poor had the right of gathering their fuel from the waste and wood, and of turning their live stock on the common, to set apart a portion of the land for their uses, as a compensation for the loss of those rights.

Where the allotment for the poor of Paddington was situated; when it was set apart; or what was its extent, I have not been able to discover from any positive evidence now existing; but my impression is that the little piece of *charity land* remaining in Westbourn indicates the site of a much more extensive portion of the common field which was set apart for the uses of the poor.

It is a popular notion that the lord of the manor is entitled to the waste, but this is by no means the case in every manor. In the neighbouring manor of Abbot's Kensington, we find that "the commons" were "presented" with "Notting-hill, the waste by the highways, and the Gravel Pits," as lately as 1672; ^[54a] and in the ancient manors of Tybourn and Lilestone, there was pasture for the cattle of the villagers, and the fruits of the wood for their hogs. ^[54b]

The usual proportion given to the lord for his right in the soil is one-sixteenth. ^[54c] Whether the lords of the Paddington soil were content with this proportion we need not enquire. We know that their demesne lands have extended far beyond their original dimensions; and there is very little doubt that the land of the poor diminished as the lord's land increased. Other individual holders, too, have carved out for themselves portions of that which was set aside for purely public purposes, but the great delinquents have been the lords of the manors—"those relics of feudal slavery and mediaeval barbarism;" and these before long will be known only in history.

It is true that waste land, and a common field existed in Paddington down to a recent date; and it is equally true, that some kind of right over this land was acknowledged to be vested in the inhabitants of this parish; for as we shall presently see, when this right was found to interfere with the designs of the lords and their lessees, a portion of it was bargained for and sold.

The common field appears to have existed on each side of the Westbourn, extending, with the poor allotment, from that which is now called the

Uxbridge-road to a considerable distance north and east; the portion on the western side the stream being called the Westbourn, or Bayswater, field; the portion on the eastern side, the Town field, corrupted into “Downes?”

On the Paddington side, all that remained of the common waste was the Village-green; and for this the villagers must have had the greatest affection. It was *their* Home-field; on it their forefathers had made merry, and here they had trodden by hereditary right. Yes by hereditary right! And seeing that the title of the noble has descended by law to his feeble son, and the estates of the frugal man to his spendthrift heir; how highly must the people of Paddington appreciate that justice which has preserved to them so magnificent a portion of their ancestors possessions! [\[55a\]](#)

Unfortunately for the reputation of the past there are but few places to be found where the rights of the weak have not been most shamefully encroached upon by the strong; and the little village of Paddington affords not the least remarkable example of these glaring defects in the working of “our glorious constitution.”

Here, as elsewhere, might has usurped the place of right; cunning has lent a helping hand, and documents which would the most plainly bear witness to this fact have been destroyed. However, the one great fact that “land has been lost” remains to speak for itself; and the “eternal remedy” will assuredly come sooner or later, although the wronged be now cast down, and the wrong doer walk so seemingly secure.

“The blessings which civilization and philosophy” have brought with them have been undoubtedly a great benefit to the poor as well as to the rich; and one of the most powerful writers of the present day has thought it necessary to point out how those benefits offer a compensation for the loss of many ancient rights and privileges. [\[55b\]](#) But civilization and philosophy are not content with their past or present doings, for there are many civilized people, and philosophers too, who believe the present arrangements give the lion’s share of those benefits to the rich; and there are those who believe that present enactments are so unwise as to facilitate the accumulation of riches by the least deserving members of the state. Further “*compensation*,” therefore, they believe to be necessary, if the blessings which civilization

and philosophy are destined to work out in the beneficent decrees of universal lore and justice are to be of present use to the people.

The tales told of the robberies of public property in Paddington are more fitted for the pages of a romance or a novel, than a sober history. And as to these robberies in Paddington, the dramatist, the novelist, and the writers of romance, have done much more than the historian to expose and correct the vices of the past.

One of Mr. Charles Ollier's novels ^[56a] contains so many allusions to this place, that the reader is obliged to believe the elucidation of its history formed one of the chief objects of the writer.

And if the incidents connected with Paddington Green and its neighbourhood had not been more melo-dramatic than farcical, one might have imagined that the little farce ^[56b] in which Mr. Buckstone lately delighted the Haymarket audiences had some reference to this place.

Let those who believe the villagers' green to be the least altered place in Paddington, turn to Chatelain's beautiful little delineation of it, as it appeared to him in 1750, or to a larger print published in 1783. ^[56c] "Linney" would as soon find out his "eight acres," if he could now pay us a visit, as would the present inhabitants of this place discover any likeness of that which was, to that which now is, Paddington Green.

In 1783, the enclosed green included all that land which extends from its present eastern extremity to Dudley-house on the west; that is to say, all the present Green, and all the land south of the pathway, from the Green to St. Mary's Terrace; and from the Harrow-road across this green there was a public foot path to the church, the old church-yard and some houses.

From Chatelain's print we see that the Green, though not enclosed so far westward in 1750, extended northward to the old Church-yard, including the land on which the houses on the north side of Paddington-Green have been built. A large pond existed on the Green at that date, which was drained into another, south of the Harrow-road, and as many of the present inhabitants know, it has not been filled up many years. ^[57a] And between these ponds, to command the road from Harrow, the people erected, during the Commonwealth, one of those detached ramparts which they built up by

the side of every entrance into the capital, as a sign of their determination to protect the liberties of England from the advance of that tyranny which they had driven out, and which they determined never again to endure. [\[57b\]](#)

Although the Green has wasted to its present dimensions, and although the “commons and waste,” in Paddington have vanished, the following notices, which I have found on the minutes of the Vestry, will shew that the parish has received *some* compensation for the inclosure of certain pieces of waste, besides those purchased by the bishop and his lessees:—

Extracts from the Vestry Minutes.—1794, September twenty-second: at a meeting of the inhabitants, held this day, Mrs. L. le Brown, of Black-lion lane, was permitted to fill up a ditch and enclose the space of ____ feet by ____ feet, upon condition of paying ten shillings per annum to the parish.

At the same meeting, Mr. Crompton presented the parish with two plans, one of the entire parish, the other of the waste and charity lands; both appear to have been taken in 1772, by Mr. Waddington, land surveyor. [\[57c\]](#)

1795, March 11th: Resolved that the parish do accept the offer of the lessees of fifteen pounds per annum, as a compensation for the waste belonging to the parish included in the bill now pending in Parliament, provided the public and private roads are left of the usual breadth prescribed by law.

1801. July 15th: Mr. Cockerell applied to enclose part of the waste of Westbourne green, north and east of the Harrow-road, and agreed to place in the hands of the trustees enough money to produce a dividend of three pounds per annum.

On the eleventh of November, in the same year, Mr. White proposed to transfer one hundred pounds to the names of trustees, for the use of the poor, for permission to enclose a piece of land near the Harrow-road and by the side of the canal. The permission was granted.

Mr. Kelly also made an application for another piece, but it was resolved that, “as it would have a tendency to establish a precedent for the indiscriminate alienation of the waste, this application cannot consistently with the interests of the parish be complied with.”

1802, October 20th: Mr. Harper is allowed to enclose a piece of waste, the quantity not stated; but the rent to be three pounds per annum, per acre. ^[58]

In this year four hundred pounds were paid by Mr. Cockerell, and one hundred pounds by Mr. White, for the land they had enclosed.

1803, April 12th: the Parish apply to the Dean and Chapter of Westminster for a piece of waste near Westbourn-green, on the south side of the Harrow-road. The application refused. The minutes of the same month, twentieth—notice that the Bishop of London and his lessees had refused to allow the parish to enclose that portion of the Bayswater field belonging to the parish.

1812, September 1st: Mr. Hicks is allowed to enclose a piece of waste, 440 feet long, by 25 feet in breadth, extending from the Uxbridge-road along the south and west side of Black Lion lane; and this he is permitted to do without payment, in consequence of the services he has rendered to the parish for forty years.

In September, 1818, there is a letter from George Gutch, on behalf the Grand Junction Canal Company, to ask leave to fill up part of the pond to make a street from the north Wharf-road, which the Vestry agreed to, provided a slip of land, 116 feet long, by 13 feet 6 inches north and 12 feet south, adjoining the Alms' houses, be given to the Parish by the Company.

In 1825, forty-eight pounds, six shillings and six-pence was paid by Mr. Jenkins, for permission to enclose a piece of waste land near his grounds.

When Mr. Jenkins's land was sold, the parish attempted to establish their claim to this waste, but the claim set up by the bishop of London and his lessees, as lords of the manor superseded it.

There is a notice on the minutes this year for the first time respecting the interference of the lords of the manor in the disposal of the waste lands. But although these lords at this time claimed for themselves "its entire control," the vestry, nevertheless, gave their permission to Mr. Orme to enclose a piece opposite his land, near the second milestone on the Harrow road. No mention is made of money paid on this occasion.

As late as 1830 an application from Mr. Nield was laid before the vestry, for pieces of waste adjoining property leased to and purchased by him; and on

the seventh of June in the following year, the Rev. chairman reported “that Joseph Neild, Esq., M.P. had paid to the treasurer the following sums for waste lands:”

No. 1.	Braithwaites’ Executors	152	10	0 Consols.
„ 2.	Open Waste, adjoining Chelsea Reach	30	12	6
„ 3.	Open Waste in front of Williams’ Field	10	17	6
		£203	0	0

What took place with respect to the waste lands previous to 1794, there is, unfortunately, now no means of telling, for no vestry minutes are to be found previous to 1793.

CHAPTER IV. CHARITY LANDS.

THE question “What has become of the Charity Lands?” which has been so often asked in other parishes, has been occasionally put to those in authority in this; but so far as I can discover, no satisfactory answer has been returned—unless indeed we may deem it satisfactory to hear “that charity has been so little needed here, that much of that land which was given for this purpose, has been lost.”

In the “Abstract of the returns of charitable donations for the benefit of poor persons, made to the House of Commons, by the ministers and churchwardens of the several parishes and townships in England and Wales, 1786 to 1788,” we find the following answers returned by the minister and churchwardens of Paddington:

Name of the person who gave the charity?

1—Unknown.

2—Margaret Robinson, and Thomas Johnson.

3—Dr. Henry Compton.

When given?

1—Unknown.

2—Unknown.

3—Uncertain.

Whether by will or deed?

1—Uncertain.

2—Unknown.

2—Deed.

Description of the charity, and for what purpose given?

1—For bread, cheese and beer to the inhabitants.

2—For apprenticing poor children.

3—To the poor.

Whether land or money?

1—Land.

2—Ditto.

3—Ditto.

In whom now vested?

All in the churchwardens.

The clear annual produce of that given in land, after deducting the rents issuing thereout?

	£	s.	d.
1	21	„	„
2	410	„	„
3	70	„	„

Almost all is “unknown” and “uncertain,” in this Return, and this is the more to be lamented, as it was about the time at which this report was made that the value of land in Paddington began to be known by those who intended to secure the sanction of the legislature to a measure which would enhance its value.

Since that time, the “Report of the Commissioners for enquiring concerning Charities,” (1826), has been published, and some little light has been thrown on this subject.

This report contains, in fact, almost all that I have been able to discover relative to the Charity Lands; and I cannot do better than reprint it in this place; adding what little information I have been able to obtain.

“The parish officers of Paddington were unable to produce any deeds or other original documents relative to the charitable funds of this parish; but they laid before us the minutes of vestry, in which under date the twelfth of April, 1803, is an entry stating that the vestry clerk produced an account of the estates, &c. belonging to the parish, written on vellum; and also several extracts from wills and other documents relative to the titles of the said estates, which were compared and examined with the said account by the vestry; and it appearing that such account was correct, it was resolved that the same be hung up in the vestry-room, and that a copy thereof be entered upon and taken as part of the minutes of the vestry; and which was so entered accordingly.”

The account referred to, was made out by the late vestry clerks, Messrs. Robertson and Parton, both of whom are since dead.

From the account so entered on the vestry minutes the following statement of the charities is chiefly taken:

Bread and Cheese Lands.

The lands thus denominated are said to have been given by two maiden gentlewomen, for the purpose of supplying the poor with a donation of bread and cheese, on the Sunday before Christmas. Neither the names of

the donors, nor the date of the gift is known, but it is a very ancient one. The land consists of three parcels, viz.

1.—A piece of arable land lying in the common field, called Bayswater field, in this parish, containing two and a half acres, in the occupation (at the time of taking the account) of John Harper, Esq., at the rent of five guineas per annum. This piece was formerly called Five Pieces, and afterwards Three Pieces; it is now divided into two holdings; one, being one and a half acres, is let to Samuel Cheese, as tenant from year to year, at a rent of thirteen pounds; the remainder to Thomas Hopgood, as tenant from year to year, at the rent of four pounds ten shillings.

This land lies intermixed with lands respectively belonging to the Dean and Chapter of Westminster, and the Bishop of London; and there is a dispute existing among these parties as to the boundaries of their respective properties. The parish claim an acre as belonging to Hopgood's holding, but they take from the tenant rent for half an acre only, till the dispute be settled. ^[62]

2.—Another piece of land (formerly two), containing one acre, two roods, and twenty-four perches, lying on the southwest side of the Harrow road at Westbourne Green, and forming part of the lawn and grounds belonging to Westbourne-place, the property of Samuel Pepys Cockerell, Esq. This land, at the time of taking the account, was held by Mr. Cockerell at the annual rent of seven pounds. It has since been demised to him by the churchwardens and overseers, in pursuance of an order of vestry, together with a small piece of waste land lying between the above and the road, containing one acre and seven perches, which he has enclosed and added to his lawn; making together one acre, three roods, and thirteen perches, for a term of sixty-three years from Christmas, 1805, at the annual rent of fifteen pounds.

This lease is granted in consideration of the surrender of a former lease, and of the charge which the lessee had been at in inclosing and cultivating the said piece of waste land, and of the sum of money paid by him to the parish on account of such inclosure; and it is provided that the lessee shall keep up the nine stones, or land-marks, marked P. P. in the places where they now stand, to ascertain the boundaries of the land; and that if the land, or any

part of it, or any part of the lawn or grounds adjoining to it on the west and south, and within thirty yards of the same, should, at any time during the term, be let for and used as building ground, it shall be lawful for the churchwardens and overseers for the time being, with the consent of the vestry, to determine the lease at the expiration of any one year of the said term, upon giving six months' notice in writing.

3.—Another piece of meadow or pasture land, lying near Black Lion lane, in this parish, containing one acre or thereabouts, in the occupation of William Kinnard Jenkins, Esq., under a lease to Jacob Simmonds, for sixty-three years, from Christmas, 1802, at the rent of eight pounds, eight shillings per annum.

This lease appears from the vestry minutes to have been granted to Mr. Simmonds, in consideration of his covenanting to lay out the sum of three hundred pounds at least in building on the land, and to contain a reservation of all timber, with power for the grantors, (who are the churchwardens and overseers of the parish) and their successors, to fell and carry away the same, and to restrain the lessees from digging brick-earth, sand, or gravel for sale, or from carrying such earth, sand, gravel or bricks off the land.

Simmonds built a good house upon the premises, which have been materially improved by the present tenant. Much more than the stipulated sum has been expended there.

It appears to us that all the foregoing rents are adequate to the present value of the respective premises.

With the rents of this land it was formerly the custom to purchase bread and cheese, which, on the Sunday before Christmas, were thrown down from the church among the poor assembled in the church-yard. Latterly, a less objectionable mode of distribution has been adopted: bread and coals are now given by the minister and parish officers to poor families inhabiting the parish, of whom a list is made out annually for the churchwardens, stating their residence and occupation, and the number of children under ten years of age: and we are assured that much care is taken in selecting those to receive this gift who are most deserving. One or two four-pound loaves, and one or two bushels of coals are given to each family, according to the

number it consists of. No distinction is made between parishioners, and unsettled resident poor, nor between such as do not receive parochial relief.

Johnson's Charity.

The account above referred to mentions a rent-charge of one pound a-year, given by Thomas Johnson, merchant-tailor, of London, issuing out of three houses on the east side of Paddington Green, and payable on St. Thomas's-day in every year, in the following proportions:—

Out of a house in the occupation of the Rev. Basil Wood	„	10	„
Ditto in the occupation of Benjamin Edward Hall, esq.	„	5	„
Ditto in the occupation of Miss Morel	„	5	„

It is not stated when this benefaction was given, nor to what purposes it was appropriated.

In the returns of 1786, it is said that this, and Mrs. Robertson's benefaction after mentioned were given for apprenticing poor children; but they are not now so applied. It appears indeed that Johnson's rent-charge goes into the churchwarden's general account, and it is not the subject of any particular application. This seems to have arisen from inadvertence, as it is understood to have been a charitable gift; and we are assured that it shall in future be corrected.

Dr. Compton's Charity.

There is a copyhold estate in the Harrow-road, held of the manor of Paddington, and which is stated in the account to have been the gift of Dr. Compton, bishop of London, lord of the said manor, by the description of "one cottage and a piece of land."

The estate now consists of six houses: one of these is at present occupied as a poor house, the rest are let and occupied in the following manner:—

	£	s.	d.
--	---	----	----

1.—A public house, called the “Running-horse,” held by Robert Cuthbertson, under a lease granted to Robert Hullah, for twenty-one years, from lady-day, 1806, at the rent of	28	„	„
In 1802, the rent was £14. It is a very old house, but to be let as a public-house its value would be considerably beyond the present rent, if it were out of lease. The value of public-houses is rather of a fluctuating nature; but even for any other mode of occupation, it seems probable that a few pounds more a year might be obtained.			
2.—A house in the possession of Thomas Seabrook, as tenant from year to year, at the rent of	16	„	„
The rent of this house also, in 1802, was £14. It is a very old house, and the present rent seems a fair one.			
3 and 4.—Two houses in the respective occupation, in 1802, of Joseph Mansell, and John Dyke, one at the rent of £11, and the other of £14; now on lease to Mr. William Smith, for twenty-one years, from Lady-day, 1806, at the rent of	32	„	„
The lease is stated to have been granted in consideration of the costs and expenses which the said William Smith had been put to in enlarging and repairing the messuages.			
5.—A house in the occupation of Mr. John Bucquet, as tenant from year to year, at the rent of	30	„	„
The occupier has laid out money in repairing these premises. The house is stated in the account to have been intended to be leased as a school-house for the charity-children, and in fact a schoolroom was built in the garden belonging to it; but the charity-school has now been established in another part of the parish, and this room has been annexed to the sixth messuage now used as a workhouse.			
	£106	„	„

It does not appear from “the account” what specific application was directed to be made of this property by Dr. Compton. The rents are now applied, under a recent resolution of the vestry, towards the maintenance of

the charity-school in this parish. Before this resolution, the rents were carried to the overseers' general account, and an annual sum of fifty-pounds was paid by the parish towards the maintenance of the charity-school. The school is large containing two hundred or three hundred children. The expense of it far exceeds the amount of all the rents now applied to its support.

Successive admissions are found on the court-rolls of the manor of Paddington, of certain parishioners as tenants of this and the other copyhold property mentioned below, to the use of them, their heirs and assigns, in trust for the use and benefit of the poor of the parish of Paddington. The last of these entries bears date the ____ 1822, when the late Francis Maseres, esq., John Symmons, esq., the Rev. Charles Crane, D.D., Samuel Pepys Cockerell, esq., Joseph Neild, the younger, esq., John White, esq., and Benjamin Hall, esq., were admitted tenants in trust in the form above stated.

Margaret Robertson's Charity.

It appears from "the account" that Mrs. Margaret Robertson, by will, dated sixteenth September, 1720, gave for the use of the poor of this parish, a copyhold estate, on the west side of the Edgeware-road, consisting of a messuage and garden.

This property now comprises five houses lately erected under an agreement, dated first March, 1823, whereby in consideration of the surrender of a former lease for sixty-two years, from Lady-day, 1763, at the rent of three pounds ten shillings, the trustees agreed with Stephen Haynes, that they would, as soon as the five messuages, therein agreed to be built, should be covered in, grant to him a lease of the said premises, for the term of twenty-one years, from Lady-day, 1824, at the rent of fifteen pounds, clear of all taxes, with the usual covenants for repairs; and the said Stephen Haynes covenanted to pull down the old buildings, and erect thereon five substantial messuages, according to the specification therein contained. These premises lie at the junction of the Harrow and Edgeware roads, and adjoin two small houses newly erected, which come up to the point of junction, belonging to another proprietor.

This rent is applied, under the orders of the vestry, to the support of the charity-school.

Alms' Houses and School-house.

There is in the parish a set of alms' houses, copyhold of the manor of Paddington, consisting of seventeen dwellings, containing one apartment each. Thirteen of these, as appears by an inscription in front of the building, were erected in 1714, at the expense of the inhabitants, for the poor past their labour. The four additional dwellings were built by Samuel Pepys Cockerell, esq.: two of them to be occupied as alms' houses, and two for the master and mistress of the charity-school.

The alms' houses are inhabited by paupers placed there by the parish. The charity-school has been built near these alms' houses, upon copyhold land, granted for the purpose by the present bishop. The expense of this erection was defrayed from subscription in the parish, and by the application of certain monies received by the parish as a consideration for the enclosure of some waste land.

Chirac's Gift.

Denis Chirac, esq., by his will, dated ninth August, 1775, gave to Francis Maseres and Peter Paget, esqrs., one hundred pounds to be laid out or applied as they should think proper for the use and benefit of the charity children of Paddington.

This legacy was applied by Mr. Baron Maseres, together with one hundred and twenty pounds, a year's rent of his own estate in the parish, towards the building of the school-room.

Abourne's Charity.

George Abourne, esq., by will, dated fifth August, 1767, gave, after the death of certain persons therein named, the dividends of three hundred pounds in the four per cent. consolidated bank annuities, in meat and bread to as many poor families as might have eight pounds of good beef and a half-peck loaf a-piece, to be given twice a-year, every Michaelmas and

every Lady-day, for ever; and all the butchers and all the bakers of the place where he should be buried, to take their turns in serving the meat and bread.

This legacy is now three hundred pounds three per cent. reduced annuities, standing in the name of the testator, George Abourne. The dividends, nine pounds a year, are received by Benjamin Edward Hall, esq., as executor of James Crompton, the surviving executor of Benjamin Crompton, who was surviving executor of the testator, George Abourne. Mr. Hall distributes the amount annually, on the twenty-fourth of January, among poor persons of the parish of Paddington, where Mr. Abourne was buried, by tickets, each entitling the bearer to four pounds of meat and a loaf of the same weight. The number of persons receiving them varies according to circumstances; they are selected either upon Mr. Hall's personal knowledge, or the recommendation of respectable inhabitants; preference being generally given to the most aged and infirm, or such as are encumbered with the largest families. ^[68]

Mr. Hall furnished us with a statement of the receipts and expenditure from the time that the charity came into action in 1792, from which it appears that, one year with another, more has been given than the amount of the dividends.

The poor of this parish owe much to Messrs. Robertson and Parton for the trouble they took to preserve the memory of those rights which remained at the time they accepted the office of vestry-clerks. Had it not been for their exertions, I very much question, judging from what had taken place and from the state of affairs when they were appointed, whether anything respecting these lands would have been known now; and there can be no doubt but their “account” was a very imperfect one. All those who were benefited by past speculation, would studiously avoid giving these gentlemen the benefit of their knowledge; and even now it is exceedingly difficult to obtain any traditional information on this subject. One of the oldest tenants of the charity-lands plainly said to me, with a blunt honesty I could not but admire, “You’ll excuse me, Sir, but if I could tell you any thing, I wouldn’t.”

I have already mentioned my notions respecting the origin of the term “Bread and Cheese Lands.” The tale which is told, and which has hitherto been generally received, is to be found in the London Magazine, for December, 1737:—“Sunday, 18th, this day, according to annual custom, bread and cheese were thrown from Paddington Steeple to the populace, agreeably to the will of two women who were relieved there with bread and cheese when they were almost starved, and Providence afterwards favouring them, they left an estate in that parish to continue the custom for ever on that day.”

This custom was continued down to about 1838; a single slice of cheese and a penny loaf, being, at last, all that was thrown; the old method of dispensing alms having been found to be anything but charitable alms’-giving. The Sunday before Christmas was, in fact, in the last century and beginning of this, a sort of fair-day, for the sturdy vagabonds of London, who came to Paddington to scramble over dead men’s bones for bread and cheese.

The dispute about *the half-acre* is settled, as I am informed, by the bishop having established his right to it; and the whole of the second portion of the bread and cheese lands, mentioned in this Report, was sold to the Great Western Railway Company for £1,200. There remains, therefore, of this

charity-estate only a portion of the first, and the third parcels, reported on by the Committee of the House of Commons.

On the twenty-seventh of July, 1838, the first and second Victoria, Chap. 32, “An Act for enabling the trustees of certain lands situate in the Parish of Paddington, in the county of Middlesex, to grant building leases of the said lands and for other purposes,” confirmed an order of the Court of Chancery relative to the appointment of trustees, and the disposal of the proceeds of this freehold estate. By this Act six trustees are appointed, and future appointments are to be made by the vestry, whenever the number is reduced to three; and to these, and their successors, power is given to grant building leases. And after the payment of all costs and charges relative to their trust, they are directed to “pay and apply the rents and profits arising from the said Charity Estates, in manner following, that is to say, the same to be divided into five equal parts, three-fifths thereof to be applied towards the support of the Paddington Parochial National and Infant Schools, for the instruction of boys and girls, children of poor persons residing in the said parish of Paddington; one other fifth-part towards apprenticing or instructing in business, for their future support, boys and girls, the children of parishioners of and not having received parochial relief from the said parish; and the remaining one-fifth part in the distribution of bread and cheese, coals, blankets, and other necessary articles, at the discretion of the said trustees, for the benefit of and amongst poor parishioners of the said parish not receiving parochial relief.”

By the ninth section of this Act, the money paid into the Court of Exchequer for that portion of the estate sold to the Great Western Railway Company, was assigned to the application for and expenses incurred in obtaining this Act.

The schedule which is annexed to this Act describes the bread and cheese lands, then claimed by the trustees, as follows:—

“All that piece of Garden Ground formerly lying in the common field, called Bayswater field, containing three roods, six perches, and three quarters, being in the occupation of Thomas Hopgood, as a yearly tenant; and also all that piece or parcel of Garden Ground, contiguous to the above-mentioned piece of Garden Ground, containing one acre,

two roods, and fifteen perches, now in the occupation of Samuel Cheese as yearly tenant; and also all that piece or parcel of meadow-land, with a dwelling-house thereon, lying near Black Lion Lane, containing one acre or thereabouts, now in the occupation, of Robert Nevins, for a term of sixty-three years, from Christmas, one thousand, eight hundred and two.”

Messrs. Hopgood and Cheese are still the tenants of the land north of the Uxbridge-road. The house and grounds, situated “near Black-lion lane,” are now in the occupation of Mr. G. P. Shapcott.

With respect to what Bishop Compton gave to the poor of this parish, little appears to be known. The deed of gift cannot be found; but from many circumstances, I am inclined to believe it was the land on which the Alms’-houses now stand, and not that estate which is situated at the entrance of the Harrow-road, for which the poor are indebted to this bishop.

The houses, described in the report under “Dr. Compton’s charity,” were pulled down ten or eleven years ago, and the ground was let on building leases; six large and handsome houses, including the public-house, were built on the ground on which the old poor-house, &c. stood; and, as I have been informed, these houses pay to the trustees of the charity-estate a ground rent averaging forty pounds per house. By the cash accounts, it will be seen that the “Enfranchised Copyholds” have for many years past produced an annual income of upwards of five hundred pounds. The “Freehold rents” appear from the same accounts, to be seventy-one pounds and a few shillings per annum. ^[70]

Of the trustees mentioned in the report as having been admitted tenants in trust for the copyhold estates, in 1822, only one, I believe, is now living.

Mrs. Margaret Robertson’s will is still existing, and to be seen at Doctors’ Commons: it is dated sixteenth of December, and not September. The messuage and garden which she gave, appear to have joined the Red Lion, which was also in her possession, and which she left to Mr. Gee. The will does not express the donor’s desire respecting the disposal of her charity, excepting that it was “for the use of the poor.”

New leases have been granted for “Margaret Robertson’s charity,” and also “Dr. Compton’s charity,” by trustees appointed under an order of the Court of Chancery. These charities are now called “The Enfranchised Copyhold Estate.” I am informed by the Rev. Mr. Campbell that the proceeds are applied in the same manner as the rents of “The Freehold Estate,” but that a separate trust exists.

I was very desirous to have ascertained the exact dimensions of these separate estates, now held for the benefit of the poor of this parish; but, unfortunately, on my application to the trustees I found they had held their half-yearly meeting. Lysons, writing in 1794 or 5, says, “A benefaction of five pounds per annum, given by Mrs. Margaret Robinson, for the purpose of apprenticing poor children has been lost.” This charity must not be mistaken for a donation of five pounds, which is recorded on the panels in front of the gallery of St. Mary’s Church.

On the vestry minutes, I find two entries relative to the copyhold charity-estates; one in October, 1800, the other in May, 1821. From the first entry, I learn that each of the said premises therein described was held at a quit-rent of six-pence per annum. The piece of ground belonging to the alms’ houses is described as “a piece of ground, formerly waste, lying upon Paddington-green;” having 80-feet of frontage, and 90-feet of depth, which was increased by two other pieces; one “in front of the alms’ houses,” 13-feet 10-inches in breadth, by 70-feet long. The other on the east of the alms’ houses, 24-feet broad, by 113-feet 9-inches from north to south. If to this latter piece we add that which was to be given up by the Grand Junction Canal Company, (13-feet by 116 feet) we shall get at all that has been known of the alms’-house land during this century.

But these minutes shew there were other pieces of copyhold formerly held in trust for the poor, which have “escheated” into the lord’s domain, or “merged” into other private hands.

CHAPTER V. THE PADDINGTON ESTATE.

THE policy which has raised the manor and rectory of Paddington to its present value ^[72]—three-quarters of a million sterling; which has effectually

transferred, (so far as private Acts of Parliament can transfer,) two-thirds of the interest of this “small estate” into private hands; and which at the same time has kindly permitted the rate-payers of Paddington to saddle themselves with almost the entire “costs and charges” of those duties for which the whole of this estate was originally designed, may be said to have had some show of a *legalised* beginning exactly a century ago.

In 1753, Thomas (Sherlock), then bishop of London, and Sir John Frederick, then lessee of the manor, were parties to an agreement with the parishioners of Paddington; and procured for them, or assisted in procuring, “An Act for enlarging the church-yard of the parish of Paddington, in the county of Middlesex;” which ratified that agreement. It had been agreed, and was now enacted, that “a certain piece or parcel of ground, adjoining to the east side of the said church-yard, containing from east to west, on the north side thereof, ninety-six feet of assize; and from north to south, on the east side thereof, one hundred and eighty four-feet of assize; and from east to west, on the south side thereof, one hundred and twenty-one feet of assize; and from north to south, on the west side thereof, one hundred and thirty-two feet of assize” should “be annexed to the present cemetery or church-yard of the said parish of Paddington,” for ever: The churchwardens, or one of them, paying, after the twenty-fourth of June, 1753, during the continuance of Sir John Frederick’s lease, “unto the said Thomas, Lord Bishop of London, and his successors, or to his or their proper officer or agent for the time being, the annual rent or yearly sum of forty shillings of lawful money of Great Britain, at or on the feast-day of St. John the Baptist, in every year, during the continuance of the said lease; and also to the said Sir John Frederick, his heirs or assigns, the annual rent or yearly sum of ten pounds of lawful money of Great Britain, at or on the feast-day of Saint John the Baptist, in every year during the continuance of the same lease; and from and after the expiration of the said lease, to the said Thomas, Lord Bishop of London, and his successors, and his and their grantees, the annual rent or yearly sum of twelve pounds of lawful money of Great Britain, at or on the feast-day of Saint John the Baptist in every year for ever:” the rent and all arrears being made recoverable by action at law with full costs of suit. [\[73\]](#)

For defraying the expenses of this Act and enclosing the said ground, the inhabitants were permitted to borrow a sum not exceeding two hundred and

fifty pounds at four per cent. interest.

Sir John Frederick died in 1755, having made a will, dated twenty-seventh of February, 1734, in which he leaves his estate to his sons “in tail male, remainder to the heirs male of the testator’s own body, remainder to his own right heirs;” and added a codicil, dated April tenth, 1742, in which he notices that, since the making his said will, he had purchased the site and capital messuage of the manor of Paddington, held by lease for three lives from the Bishop of London, and “he thereby gave and demised the same to the trustees, in his said will, their heirs and assigns, during the lives of Judith Jodrell, John Affleck, and John Crozier the younger, in the said lease named, and for the life of the longest liver of them, upon trust, out of the rents and profits, to pay the rent reserved by the said lease, and perform the lessees’ covenants therein, and to renew the said lease as occasion should require, and raise the fines and charges for such renewals, and subject thereto, should stand seized of the said leasehold premises, in trust for such and the same person and persons as should, from time to time, be entitled to his freehold land of inheritance, by virtue of his said will or codicils so far as the nature of the said leasehold premises would admit, and by the rules of law and equity they might.”

His eldest son, Sir John Frederick, held and enjoyed the same during his life; and, as he died intestate and without issue, in the month of March, 1757, it came to his second son, Sir Thomas Frederick, who had two daughters.

In 1763, the third year of George the third, Richard, (Osbaldeston), then Bishop of London, and Sir Thomas Frederick, then lessee of the manor, agreed to “An Act for vesting certain parcels of land in Paddington, in the county of Middlesex, in the Rector and Churchwardens of the parish of Saint George, Hanover-square, in the said county, and appropriating the same for a burial-ground for the said parish;” by which “five acres or thereabouts, lying at the west-end of the field called Tyburn Field,” and a piece of waste, lying between the highway leading from London to Uxbridge, and the said field, were settled upon and vested in the rectors and churchwardens of the said parish, for ever. These lands being “discharged from the uses in Sir John Frederick’s will, and annexed to the parish of St. George, Hanover-square;” and the life estate or interest in the said five acres

of ground having been purchased of Sir Thomas Frederick, the churchwardens agreed, and were bound, to pay, after the decease of Sir Thomas, fifteen pounds per annum to the person or persons who shall be entitled to the site of the manor of Paddington, and the rest of the said leasehold premises under and by virtue of the will and codicils of the said Sir John Frederick, “during the present or any subsequent lease to be granted thereof;” and to “the Bishop of London, and his successors, during the time that the said site of the said manor, and the rest of the said leasehold premises, shall remain in the proper hands and possession of the said bishop, or his successors, and not in lease, to or for the benefit of any person or persons, claiming or to claim under or by virtue of the will and codicils of the said Sir John Frederick, the clear yearly sum of twenty-five pounds;” and to “the churchwardens for the time being of the said Parish of Paddington, for ever, the clear yearly sum of forty-shillings, in lieu of all parochial rates, taxes, and assessments which may, or otherwise might, be due and payable to the said parish of Paddington for or in respect of the said intended burial-ground, or the lands therein to be contained.” Actions are given to the several parties for non-payment of these sums; the churchwardens are to be allowed such payments; and the rector to have the burial-fees.

In 1795, a private Act of Parliament, the 35th Geo. III, cap. 83, entitled “An Act for enabling the Lord Bishop of London to grant a lease with powers of renewal of lands in the parish of Paddington, in the county of Middlesex; for the purpose of building upon,” received the sanction of the legislature.

We are informed by the preamble of this Act, which occupies thirty-two Act of Parliament pages, and recites wholly or in part fifteen indentures; ^[75a] that on the fourth of May, 1768, the manor and rectory were leased to Gascoigne Frederick, his heirs and assigns, for three lives, and that in consideration of the surrender of this lease, “as also for divers other good causes and valuable considerations him thereunto specially moving,” the “Right honourable and Reverend Father-in-God, Richard, ^[75b] by Divine permission, then Lord Bishop of London,” granted unto the aforesaid Gascoigne Frederick, of the Inner Temple, a new lease, for three lives, bearing date the fourteenth of August, 1776.

We are further informed, that this Gascoigne Frederick died intestate, leaving Mary Frederick, Elizabeth Snell, and Susannah Frederick, all of Bampton, in the county of Oxford, his only surviving sisters and co-heirs at law. We are also informed, that in this lease of the fourteenth of August, 1776, Gascoigne Frederick's "name was made use of therein only for the use and benefit of Elizabeth Frederick and Selina Frederick," and that they, with their husbands, applied to the ladies of Bampton to sell all the hereditaments and premises demised to the said Gascoigne Frederick, in 1776; and which these ladies kindly did for *ten shillings a-piece*, as is witnessed by indentures, dated fifth and sixth of February, 1781, which re-convey the said lease and leasehold premises to trustees for the purposes mentioned in the will and codicil of Sir John Frederick, and in the marriage-settlements of the granddaughters of the aforesaid baronet.

By a "fine sur concessit," levied in Trinity Term, in the twenty-second year of George the third, "in order to dock, bar, and extinguish all estates, tail," &c, this estate was conveyed to Thomas Lloyd and his heirs for the uses of the trustees, in trust to be applied, one half according to the marriage settlement of Elizabeth wife of John Morshead, afterwards Sir John Morshead; the other half subject to the uses of the marriage settlement of her sister Selina, wife of Robert Thistlethwayte.

These indentures are dated respectively the fifth of July, 1782, and fourth of March, 1783. They are set forth, in part, in the Act now under review; and as they were executed during the minority of these ladies, there are also, as we may suppose, references to sundry opinions, reports, orders, &c. of that very ancient Court of Equity, whose interesting proceedings are so excellently depicted in "Bleak House," by the great teacher of our time.

By conveying these lay interests in this estate with other interests in private property to trustees,—by charging the whole with large sums of money,—by carrying the "remainder" over a thousand years in one case, and in the other one thousand five hundred;—by changing "the said leasehold premises from a freehold to a chattle interest;"—and then by making "the tenure thereof as nearly equal to freehold as possible;"—and by certain acts which we are about to examine, Gascoigne Frederick's lease for three lives has been converted into as snug and nice a little property, as any lady or gentleman in the land need desire; provided always, it could be secured

from the anxious care of the ancient court before mentioned, and that more modern tribunal, which will one day be instituted to examine into the claims the public may have on such estates as this.

As the chief instruments in the formation of the Paddington estate are those peculiar Acts of Parliament which have been denominated “facts,” to distinguish them from “laws,” it is from these chiefly that I shall gather the *facts* contained in this chapter: and as this Act of 1795 is somewhat scarce, and as the preamble affords some interesting information, I shall quote several passages from it entire:—

Purchase of Waste Lands.—“And whereas there are certain Pieces or Parcels or small narrow strips of Land, containing in the whole about five acres, which lie as Waste or Commonable Lands in the Lanes and Road-Ways dispersed in, about, and within the said Parish of Paddington, and are contiguous to and in front of some of the said Lanes, Hereditaments, and Premises comprised in the said lease, between the Hedge Rows of the same Lands and the different Road and Carriage Ways leading to, from and through the said parish, as the public highways thereof, and which have been used by the tenants of the said lessees for the purpose chiefly of laying Dung Heaps thereon, and the same are become a great nuisance, not only to the said Parishioners, but to the Public at large, and which nuisance would not only considerably increase if the same Lands were to remain open and unenclosed in their present state, to the great annoyance of the said Public and Parish at large, but would greatly impede the good purposes of this Act; and therefore it is proposed by the said Lord Bishop and his said Lessees, that the said Waste Lands should be annexed to and become a Part of the said Hereditaments and Premises so to be demised under the powers of this Act, and that such Compensation shall be made to the said Parish at large for any Interest they may claim therein for the benefit of the said Parish, by way of a Rent Charge, to be paid to the Churchwardens of the said Parish for the Time being for ever, for enclosing the same as is hereinafter provided for, and annexing the same to the said Hereditaments and Premises, discharged of and from any Common Right or Claim, if any such did exist.”

Contemplated Destruction of Parsonage and other Souses.—“And whereas some few Farm Houses and Messuages have many years since been

erected, and are now standing on Part of the said demised Premises, but the same with the Out Buildings are now become very ancient and much out of repair, and in some respects so very ruinous as to be incapable of being repaired; and a variety of other small and temporary Buildings of Lath and Plaster, and of a very inferior quality, have also been lately erected and built, and now are erecting and building thereon, and which by means of the Persons who inhabit therein may become a great Burthen to the said Parish in the increase of their Poor Rates, but the principal Part of the said Ground demised by the said Indenture of Lease of the fourteenth day of August, 1776, still lies open and unbuilt upon, and on account of its vicinity to London, the whole is capable of very great and capital improvement, and if such Improvements were made would render a very large Increase of Rent, as well to the said Lessees and their Heirs and Assigns, as to the said Lord Bishop and his Successors for the Time being, but by reason of the nature of the present Tenure such Improvements cannot be effected, and therefore in order to induce Builders and other Persons to take the same and build capital Houses and Squares thereon, it is thought necessary that the Tenure thereof should be made in value as nearly equal to Freehold as possible.”

The Nature of the Lease to be Changed.—“And whereas it would be greatly for the Benefit and Advantage of the said Lord Bishop of London and of his Successors, and of the said Sir John Morshead and Dame Elizabeth, his wife, and their Issue, (instead of granting Leases for Lives as has been usual and customary on Fines paid for the same) if a power was given to the said Lord Bishop and his Successors to grant a new Lease of the said Premises comprised in the said Lease of the fourteenth day of August, 1776, together with the said Strips of Waste Land within the said Parish of Paddington, for such Terms of Years, and with such Powers of Renewal as are hereafter mentioned, and particularly with a power for the Lessees therein to grant Under Leases thereof, at such Rents, and under such restrictions, and in such manner as is hereinafter expressed with respect to such Original and Under Leases respectively.”

Division of Profits.—“And whereas the value of the Interests of the said Lord Bishop of London and his successors and of the said Lessees in the said Premises, having been taken into consideration, it is conceived that the Rents, Issues and Profits which at present are reserved or payable, or which shall or may arise from and out of the Messuages, Lands, Hereditaments,

and Premises comprised in the said Lease, or which shall hereafter be reserved or payable, or arise from and out of the said Premises, and every part thereof, upon any reserved Lease or Leases to be made under the authority of this Act, or any Under Leases in pursuance thereof or otherwise, should be appropriated between the said Bishop of London and his said Lessees in the shares hereinafter mentioned, (that is to say), One Third thereof to the Bishop and his Successors for the Time being, and Two Thirds thereof to his said Lessees, their Executors, Administrators, or Assigns, subject to the said present Annual Rents and Pension, and such other Deductions as are hereinafter mentioned.”

Increase of Forty Pounds a year in the Stipend of a Single Curate.—“And whereas the said clear yearly pension or stipend of Eighty Pounds, so payable to the Curate of the said Parish of Paddington for the time being, who is appointed to serve the said Cure by the said Lord Bishop and his Successors, and which now stands charged upon the whole of the said Hereditaments and Premises so comprised in the said Lease of the fourteenth day of August, 1776, and which it is proposed should be by the said intended Lease or Leases so to be granted under the powers of this Act, increased to £120 a-year, and be secured upon and made payable, not only out of the Tythes arising and to arise and become payable to the said Lessees, as hereinafter is mentioned, but also upon a Farm and Lands called Kilburn Bridge Farm hereinafter mentioned, and now of the annual value of £230, and now in the occupation of — Newport, as Tenant thereof at such Rent, and not be charged or become chargeable upon any other part of the said Lands, Hereditaments, and Premises to be leased by any such Under Lease or Under Leases for the purposes intended by this Act, in which case it would defeat the good purposes of this Act.

Sole benefit of contemplated change, with the exceptions above mentioned, to be for the Bishop and his Lessees.—And whereas, notwithstanding it would be for the mutual benefit of the said Lord Bishop of London and his successors, and the said Sir John Morshead and Dame Elizabeth his Wife and their infant issue, and the said Robert Thistlethwayte and Selina his Wife and their Infant issue as aforesaid, that the said herein-before mentioned Proposals should be carried into complete Execution, yet the same cannot be effected without the aid of Parliament.”

Wherefore His Majesty's most dutiful and loyal subjects, Beilby (Porteus) Lord Bishop of London, on behalf of himself and his successors, Thomas Wood, (the surviving Trustee of the marriage settlements of the under-mentioned ladies,) Sir John Morshead and Dame Elizabeth his Wife, on behalf of themselves and their six children, Robert Thistlethwayte and Selina his Wife, on behalf of themselves and their six children, and Sir John Frederick and Arthur Stanhope (new trustees appointed under the provisions of the aforesaid marriage settlements) joined in beseeching his Majesty that it might be enacted, and it was enacted, in the usual form: "That it shall and may be lawful to and for the said Beilby, Lord Bishop of London, and his successors for the time being, and he and they are hereby required and directed by Indenture under the Episcopal Seal of the said Lord Bishop, and his successors, to demise, lease, and to farm let" to the said trustees "their Executors, Administrators, or Assigns, or the Trustees or Trustee for the time being, to be hereafter named or appointed under the Powers" of Indentures of settlement of the 5th of July, 1782, and 4th of March, 1783, partly recited in this Act, all the "Hereditaments whatsoever of the said Reverend Father, and belonging to the bishoprick of London, heretofore demised by the late King Henry the eighth," by an Indenture dated 21st of December, in the thirty-fifth year of his reign, to Richard Rede; "and also all that Annual Rent or yearly sum of Ten Pounds, charged upon the Parish of Paddington;" "and also all that Wood and Wood Ground commonly called Paddington Wood, containing by estimation Thirty Acres, be it more or less, and which was many years since converted into and is now Pasture Land, together with all manner of Trees, Hawts and Hedgerows of the said Reverend Father, and belonging to the said Bishoprick of London, growing or being, or which hereafter shall grow or be within the Parish of Paddington aforesaid, and also all the Herbage and Pannage of the said Woods, &c. &c.," "and all other the Hereditaments and Premises" leased and comprised in an Indenture, dated the fourteenth of August, 1776, also partly recited in this Act, "except Easter Offerings, Mortuaries, and all surplice fees to be paid to and received by the Curate of Paddington for the time being;" and also all and singular the strips or pieces or parcels of waste ground herein-before described "containing about five acres, be the same more or less;" "To hold for a term of ninety-nine years, and to commence from the day next before the day of the date of such lease," and also to renew the said lease at the end of the first fifty years of the said term of

ninety-nine years, on payment or tender of a fine of twenty shillings, for a further term of ninety-nine years, to commence and be computed from the end of the said first fifty years, and so to continue to renew the lease for the time being so to be granted.” ^[80]

The Act provides “That before the Execution of the said first Indenture of Lease, or of any Indenture of Renewal, and at the end of every year afterwards there shall be delivered by the Lessees therein to be named to the said Bishop and his successors, or his or their Agent or Steward, a true and particular account, in writing, of the Rent or Rents, at which the Premises thereby to be leased, are then let or demised, and to whom, and for what term or number of years respectively.”

The Act also provides “that there be reserved in such Lease and renewed Leases a chief rent chargeable on the said Lands, Tenements, &c.,” “for the benefit of the said Lord Bishop of London and his successors for the time being, of forty-three pounds, six shillings and eightpence, and also one-third part of the rents, issues, ground-rents, and other profits reserved or to be reserved, due and payable, or arising out of or from, or which the same Messuages or Tenements, Lands, Tythes, Hereditaments, and Premises, and every part thereof shall be let for, immediately before the passing of this Act, and which the same shall from time to time be let for, under the leases to be granted as hereinafter is mentioned, or otherwise, after deducting in the first place the above-mentioned reserved rent of forty-three pounds, six shillings and eight-pence,” a pension to the curate of £120 a-year, the fifteen pounds a year rent paid to the Churchwardens for the waste lands, the land tax, “and such other taxes as shall or may be hereafter imposed on the Lessor or Landlord in respect of the said Premises by authority of Parliament.” Such reserved rents to be paid quarterly “and the first payment thereon to commence, to the said Lord Bishop and his successors, from the fifth day of April last past.”

It was also provided that the aforesaid pension or annual stipend of £120, payable to the curate, should be secured on and made payable from the tithes of the Parish of Paddington, also on “a farm, called Kilburn Bridge Farm, containing about forty acres or thereabouts, and of the yearly value of £230.” It was also provided, that the lease now to be granted or any renewed lease should contain such or the like covenants as are mentioned

and contained in the Indenture of the fourteenth of August, 1776, “touching the accommodation of the Surveyor or Steward of the said Lord Bishop and his successors, their servants and horses, on any court or courts, survey or surveys to be held of or for the said Premises.”

“Provided always, that there be a covenant inserted in such Lease and Leases so to be granted as aforesaid, that the said Thomas Wood, Sir John Frederick, and Arthur Stanhope, their Executors, Administrators, and Assigns, or any succeeding Trustee or Trustees to be appointed as aforesaid, their or his Executors, Administrators, or Assigns shall not lease or demise any part of the said Hereditaments and Premises to be comprised in the Leases so to be granted to them as aforesaid, except in the manner hereinafter mentioned.”

A power was given to the said Trustees or their Assigns to demise any part of the said premises comprised in the lease and leases to be granted by the bishop and his successors, “not exceeding two hundred acres thereof,” without application to Parliament for farther powers, “to any person or persons who shall be willing to build upon, rebuild, or substantially repair the same, in the manner by the Lease or respective Leases to be granted thereof to be specified,” for any term not exceeding ninety-eight years (“provided that the said Lord Bishop for the time being be a party to all such Under Leases,”) “so as there be reserved in and by such Leases, &c. the best and most improved yearly rent that can be reasonably had or gotten for the same, to be made payable quarterly, free from all deductions whatsoever, without any Fine, Premium, or Foregift, or any Thing in the nature of a Fine being taken for the making thereof.”

The leases were to contain covenants to build and keep in repair the messuages, &c. agreed to be built, and to keep these buildings “insured from damage by fire to the amount of four-fifths of the value thereof;” and “to surrender and leave in repair the messuages, &c. to be erected and built, or rebuilt and repaired” at the end of the term or terms in such leases granted. And all “other usual and proper covenants, provisos, and conditions” were to be inserted “usually contained in building leases near the City of London.” These under-lettings were to take place from time to time by public auction to the best bidder, (if approved of by the bishop and his lessees), notice of the time and place of such auction having been given

to the bishop or his agent by the said lessees. Separate lots were to be made for every house, “whose breadth in front shall be twenty-eight feet and upwards;” and for houses of smaller dimensions no more than one hundred feet frontage was to be let in one lot. The under-lessees were to be bound to build on this land, so taken, within a specified time, “and agreeably to such a plan as shall be approved by the Lord Bishop of London and his successors, and the said lessees for the time being.” Three counterparts of these under-leases were to be provided, one to be delivered to the bishop or his agent, for the registration of which a fee of six shillings and eight pence was to be paid; the other two being for the trustees of the two families interested in the Bishop’s lease. Any number of these sub-leases might be taken by any one person, so that the quantity altogether did not amount “to more than fifteen acres of the said land.” It was also provided, that “Farm Leases at Rack-rent for twenty-one years may be granted with the consent of the Bishop of London,” but to be determinable on six months’ notice being given.

The patronage of the Church of Paddington was reserved to the Bishop. The trustees were to stand possessed of the new lease on leases to be granted by the Bishop, in trust, one half for the person and persons, &c. to whom the same ought to go or belong by virtue of the Indenture of Release of the fifth of July, 1782; the other half in trust for the person and persons, &c. entitled by virtue of the Indenture, dated fourth of March, 1783; certain new provisions having been necessary in consequence of the change of interests.

The trustees were not to make any leases under the authority of this Act, without the consent in writing of Sir John and Lady Morshead, and Mr. and Mrs. Thistlethwayte.

And this Act was not to prevent the Bishop and his Lessees from treating with the Grand Junction Canal Proprietors “for such part or parts of the said premises, over and above the number of acres hereinbefore limited for building on;” neither did it do so; for by “An Act for making a Navigable Cut from the Grand Junction Canal, in the precinct of Norwood, in the county of Middlesex, to Paddington, in the said county,” passed in the same year as the preceding, the 35th Geo. III, cap. 43, we find that although the cut was not to be made through the Paddington Estate without the consent

of owners yet that consent had already been given as to certain lands at Westbourn-green; and in 1798, by an Act for confirming and carrying into execution certain articles of Agreement made and entered into between Beilby, Lord Bishop of London, the Lessees of the Paddington Estate, and the Company of Proprietors of the Grand Junction Canal, “and for other purposes therein mentioned”—the 38th Geo. III, cap. 33.—we find that the said Company had then entered into a covenant with the said Lord Bishop, and his lessees, for certain other Pieces or Parcels of Land lying in the Parish of Paddington, amounting in the whole to “Forty Acres, Two Roods and Thirty-seven Perches,” at a yearly rent of £814 12s. 6d. being at the rate of twenty pounds per annum per acre; also certain other Pieces or Parcels, all in the aforesaid Act particularly set forth, ^[83] amounting in the whole to “Seven Acres and Two Roods,” at a yearly rent of thirty-nine pounds, seven shillings and six-pence, being after the rate of five pounds per acre per annum: in addition to which the Company agreed to pay a further rent of thirty pounds per annum, in respect of Buildings standing on the ground agreed to be demised: and this annual sum of £884 was agreed to be paid “by the said Company of Proprietors, their successors and assigns, free and clear of all manner of taxes, and from all other deductions and outgoings whatsoever:” one-third part to be paid to the said Lord Bishop and his successors, and the remaining two-thirds to the trustees, as lessees of the said estate. What good and valuable consideration, over and above the rent specified, was given to the Bishop and his lessees to induce them to consent to lease this land for ninety-nine years, bating one day; and to agree, for themselves and their successors, to renew the lease every fifty years for the same term, on the tender of a fine of twenty shillings, I cannot tell. These holders of the land, in all probability, had a less exalted notion of its value than their successors have had, but still it is very probable *some* compensation was given to induce them to part with it at such a rent.

Nine years after the passing of the Bishop’s first Building Act, it was found that it required “altering and amending,” and the 44th Geo. III. cap. 63, was passed for that purpose; “and for granting further powers, the better to carry into execution the purposes of the said Act.”

By this Act, two new trustees, Frederick Treise Morshead, eldest son of Sir John and Lady Morshead, and Henry Frederick Thistlethwayte, son of Sir Robert and Selina Thistlethwayte, were appointed in the place of Thomas

Wood, deceased. And we are informed that those parts of the first Act which limited the letting to public auction only, and required, in the leases for twenty-one years, the insertion of a notice that the occupancy might be terminated after any six months thereof, were “found to be very prejudicial to the interests of the parties interested in the said estate, and a great check to the future improvement thereof,” and it was thought that it would “tend greatly to the advantage of the See of London, and the other parties interested in the said estate,” if further powers were given. These clauses of the aforesaid Act were, therefore, repealed, and in lieu thereof, the lessees or lessee of the Bishop, with his previous consent first had and obtained in writing, were allowed to treat, by private contract, or otherwise, with any person or persons, willing to build on this land, for the whole or any part of the two hundred acres in the previous Act mentioned to be let for building upon, for any term not exceeding ninety-nine years.

The previous Act limited the use of the brick-clay, gravel, &c. which were dug out of this estate, to the improvement of the premises whereon these were found, but to no other purpose; but it was now declared, that “for as much as it will tend greatly to the Improvement of the said Estate, to raise a Fund for the purpose of making main drains, forming and paving streets, forming and gravelling roads, making bridges, and erecting bridge ways for the improvement of the said estate,” it should now be enacted, that these materials might be sold to form a fund for carrying out these objects, “and for the general improvement of the said estate.” [\[85a\]](#)

Provision was made by this Act for the redemption of the land tax, which was charged at £132 per annum, the consideration for which is stated to have been £4,840 capital stock in the three per cents. This was bought for £3,075 0s. 10d., by the sale of 4A. 1R. 36½P. which brought in £3,653 4s. 5d., the expenses thereon being £64 11s. 10d. [\[85b\]](#)

In 1805, another Act of Parliament relative to the Paddington estate, the 45th Geo. III. cap. 113, became the law of the land, and “all judges, justices, and others” were directed to admit, as evidence, printed copies thereof; but as this Act can be obtained in the usual way, my notice of it will be very brief. It recites in part the two preceding Acts; states that “considerable progress has been made for carrying into execution the said Acts;” and attempts to remove “doubts which have arisen whether the

trustees of the original lease for the time being, though with the consent of the said Lord Bishop, (Beilby, still bishop of London), or his successors, have a power under the said Acts, or either of them, to enter into contracts for granting building leases at a rent to be specified in the contract, payable for the whole ground agreed to be demised; and afterwards, as the houses or buildings shall be completed or covered in, to grant separate leases of such houses or buildings, at separate rents, amounting in the whole to the rent originally contracted for.” Which mode of contracting, we are told, “is by experience found to be a necessary preliminary to the granting of any such Lease.”

The Act therefore declares that the lessees or lessee of the Bishop for the time being, with his consent, may contract and agree, to demise, lease, or grant any part of the premises to be let, (but not exceeding the two hundred acres agreed to be let by the first Act,) and afterwards grant separate leases under certain conditions; one of which is that if the ground-rent of any one house exceed “an equal proportion of the original rent agreed to be reserved for the whole of the land or ground comprised in the contract,” it shall “not exceed one-seventh part of the clear yearly rack-rent or value of the land and buildings to be by such lease demised, [\[86a\]](#) so that the yearly rent to be reserved by any Lease to be granted in pursuance of this Act, be not in any case less than Forty Shillings:” “the Bishop of London for the time being to be a party to all such Leases.”

The second clause of this Act provides that a memorial of every lease, and also of every contract, shall be registered at the public Office for registering Deeds and Conveyances, as prescribed by the seventh of Anne; and that every such memorial shall contain a full description of the land, the term of years for which it was let, and the yearly rent or rents reserved thereon. [\[86b\]](#)

Sir John Morshead being at this time absent from the kingdom, “and restrained from returning to the same by His Majesty’s enemies,” certain clauses are enacted respecting his consent being obtained, before leases are granted.

In 1808, another Act “for altering and enlarging the powers” of the 35th. 44th. and 45th. of George III. appears to have become necessary; for in that year we have the 48th Geo. III. cap. 142, passed for this purpose.

The preamble of this Act notices an Indenture of Assignment, bearing date on or about the twenty-fourth of July, 1807, made between Eliza Mary Thistlethwayte, widow of Alexander Thistlethwayte, on the one part, and Thomas Thistlethwayte, her brother-in-law, the third, but eldest surviving son of Robert Thistlethwayte, on the other, wherein it is witnessed that, “for the consideration therein expressed,” the said lady assigned her interest in the Paddington Estate to the said Thomas Thistlethwayte, his executors, &c. “for his and their own use and benefit absolutely;” subject to the life interest of his mother, then Selina Thistlethwayte. [\[87a\]](#)

By this Act certain parts of previous Acts are repealed; power is given to the lessees to pull down all buildings standing upon the premises comprised in any under-lease; the Bishop’s chief rent of forty-three pounds, six shillings and eightpence, is no longer to be charged on the whole of the hereditaments and premises; all lands comprised in the under-leases, to be exonerated and indemnified from the payment of the same; and the signatures of Sir John Morshead, Robert Thistlethwayte, and their wives, to the under-leases are to be no longer necessary. The sale of brick-earth, sand, gravel, &c., having been found totally inadequate for payment of costs of Acts, making drains, streets, &c. [\[87b\]](#) Beilby Lord Bishop of London [\[87c\]](#) and the trustees of the estate agree to execute a mortgage of “a competent part of the said premises,” charging it with any sum not exceeding ten thousand pounds, with lawful interest, for these purposes; or the money may be raised by annuities for lives instead of mortgage.

The eighth section of this Act relates to the “conduit upon the said estate belonging to the corporation of London, situate near Bayswater, and the pipes or drain therefrom, and the tanks or wells connected therewith.” And it is stated that as these pipes “run through the same estate diagonally so as to intercept the carrying on of the building improvements upon any eligible plan,” the Bishop and his lessees were empowered to treat with the mayor and commonalty and citizens of the said city of London, for the removal or varying the line of the said pipes, &c., and to make satisfaction for all damages which may be sustained by the city in consequence thereof: the estate to be charged with any sum not exceeding two thousand pounds for effecting this object.

Provision is made in the tenth section—“That nothing herein contained shall extend, or be constructed to extend, to authorize the making or forming any new drain or drains, tunnel or tunnels, except for the conveying and receiving the water from the conduit as aforesaid, which shall or may run into the Park, called Hyde Park, or Kensington Gardens, or into any drain, &c., running into or communicating with the same places, or either of them.” But the rights, powers and authorities, vested in the Commissioners of Sewers, were not to be affected by this Act.

In a schedule to this Act annexed, signed S. P. Cockerell, we find the “estimate of the expence of building a main drain or sewer for carrying off the water from the estate being at least, five thousand three hundred feet in length, four feet clear breadth,” was ten thousand and sixty-four pounds. And the “estimate of the expence of moving the pipes and drains from the conduit at Bayswater, and the tanks and wells connected therewith,” was two thousand pounds. Yet this arrangement, with respect to the Bayswater conduit and the pipes, &c., proceeding therefrom, was not sufficient to satisfy the owners of the Paddington estate; for, in four years after it was made, another Act was passed “to enable the mayor and commonalty and citizens of the city of London to sell, and the Right Reverend the Lord Bishop of London and his lessees of the estate at Paddington belonging to the See of London to purchase, certain waters and springs and the conduits and other appurtenances thereto within the several parishes of Mary-le-bone and Paddington, in the county of Middlesex.” 52nd Geo. III. cap. 193. And articles of agreement dated the first of July, 1812, relative to the purchase of the said conduit, springs, &c., for the sum of two thousand five hundred pounds, are confirmed by this Act. It also empowers John (Randolph) Lord Bishop of London, and his successors for the time being, with consent of the lessees, to raise money “for the completion of the said purchase and payment of the incidental expenses;” either by sale of all or any portion of thirty-two acres of land particularly described in a schedule to this Act annexed; or by a mortgage on any portion of the estate; or by annuities; but the sum of money “which may be raised under or by virtue of all, any, or either of the provisions contained in this Act, shall not together and in the whole exceed the sum of four thousand five hundred pounds.”

We are informed by a schedule attached to the 6th Geo. IV. cap 45. that under the powers of this Act, eight acres, one rood, and nineteen perches of

land, were sold to purchase these waters; the amount received for which, including “interest and auction duty,” was two thousand, nine hundred and nineteen pounds, sixteen shillings and sixpence.

The lands, described in the schedule annexed to this Act, are said to be “the most convenient for sale,” being “detached parts” of the estate. How there came to be any “detached parts” in so snug an estate, the Act does not inform us. But it does tell us that in these detached parts there are two closes of land called “The Lower Readings,” and “The Upper Readings,” names very significant in themselves, and which must, I think, at some time, have had some connection with Readers.

Another Act—the Regent’s Canal Bill—was the same day added to the list of those Acts which, together, have made the Paddington Estate a subject of such notoriety. But there was an Act also for each of the intervening years.

In 1810 “An Act for further enlarging the Church-yard of the parish of Paddington, in the County of Middlesex,” the 50th Geo. III. cap. 44, enabled the trustees appointed under previous Acts, relative to the church and church-yard, to charge the burial-fees, pew-rents, and church-rates, with a sum not exceeding two thousand five hundred pounds, in order to complete a purchase of two acres, one rood and twenty-nine perches of land belonging to the said John, Bishop of London, and his lessees. For this piece of ground, with the trees standing thereon, and the old manor-house, the parish paid two thousand, two hundred and sixty-three pounds, seven shillings and sixpence. This sum I presume was divided in the usual proportion between the Bishop and his lessees: for this does not appear to have been any part of the land authorised to be sold for the purposes mentioned in one of the preceding Acts.

In 1811, the fifty-first of Geo. III. cap. 169, established the Grand Junction Water Works Company; the thirty-third section of which Act confirms and ratifies a previous arrangement, made by the previous Bishop, Beilby Porteus, with the Grand Junction Canal Company, for the supply of the tenants on the Paddington estate, with water at ten pounds per cent. less than they could be supplied by others. The clause is as follows:—

“Provided also, and be it farther enacted, that the said Company of Proprietors shall, and they are hereby required from Time to Time, and

at all times hereafter, to supply the several Lessees or Tenants of the Estate belonging to the See of the Bishop of London at Paddington aforesaid with Water, at the Rate of Ten Pounds per Centum at the least below the average Rate which shall be demanded and taken by the said Company, or any other Company or Companies, for supplying with an equal quantity of Water the Inhabitants of Souses of the like Magnitude and Description of any other of the Districts or Streets within the Cities of London and Westminster.”

Whether or not the tenants of the Paddington estate have, up to this time, received the full benefits of this important clause, I leave them to decide for themselves. I, for one, can say that I have not; and after a full investigation of this subject, I cannot undertake, (as I have been requested to do, by a gentleman very much interested in the Company,) to point out the injustice of this clause. I make no doubt this clause was well considered, before it was allowed to form a portion of this Act; and was taken by the bishop and his lessees as a part of the *quid pro quo* in their arrangements with the Company.

Whether it was done as an act of kindness to the tenants, as a compensation for the loss of the public watering places which existed on several parts of this estate, or to increase the value of the estate matters little to our purpose: but we cannot suppose that a public Company would have consented to this clause without some adequate consideration; and even if the value of this consideration is no longer felt, which I believe is not the case, ^[90] that is no reason why their obligation should not remain. To have had a tall chimney, with all its consequences, as well as some acres of reservoirs filled with water, standing for years in the centre of the parish, could have been no improvement to the surrounding property, though the convenience to the company must have been very great; and if any injustice is to be discovered in this clause, I think it must be found in confirming the benefit to a portion of the parish only. But if the Company at that time had seen any injustice in this arrangement, it could and most probably would soon have been altered, for “the aid and authority of Parliament,” was required in 1812, the very year after the passing of this Water Company’s Act, to make “valid, binding, and conclusive,” certain articles of agreement, dated the twenty-fourth of March, which were entered into between John, then Bishop of London, and his lessees, and the company of proprietors of the Grand Junction Canal;

which agreement, amongst other things, was entered into, to enable the latter to lease to the Grand Junction Water Works Company, the requisite quantity of land for the completion of their works. ^[91]

After fifteen years, in the seventh of Geo. IV, cap. 140, the same clause is again to be found; and in the seventh and eighth of Victoria, cap. 30, this agreement for supplying cheap water to the tenants of the Paddington estate is again ratified and confirmed; so that the subject has been well considered and ought to be fully enforced by a co-operation of the tenants.

By the fifty-second Geo. III, cap. 192, the Act just referred to, anno 1812, the said articles of agreement are “absolutely ratified, confirmed, and established,” by which thirty-six acres, three and a-half perches of land are demised to the end of the term for which the land previously leased to this Company was let, renewable for a further term of ninety-nine years, every fifty years, on the tender of a fine of twenty shillings, at a rent commencing at £427 3s. in 1812, and advancing year by year to 1818, when the annual rent was fixed at £570 3s.; one-third part of which was to be paid to the Bishop of London for the time being, the other two-thirds to his lessees.

Besides this lease of fresh portions of the estate, certain small pieces were exchanged, and the Company reconveyed to the bishop and his lessees rather more than two acres of that which had been previously leased to them, so that, altogether, rather more than eighty-two acres of the Paddington Estate is leased to the Grand Junction Canal Company, at a rent of £1,454 3s. per annum.

In the same year, 1812, the fifty-second of Geo. III. cap. 195, incorporated the Regent’s Canal Company, and gave full power and authority to that Company, “to make and maintain a Navigable Canal from the Grand Junction Canal, in the parish of Paddington to the River Thames in the parish of Limehouse;” to supply the same, as well as steam engines, Reservoirs, &c. with water from the River, and to effect other objects therein set down. The land required of the Paddington Estate for making this Canal amounted to two acres, three roods, twenty-eight perches; the purchase money for which was £2,000.

This canal was opened from Paddington to the Regent’s Park Basin two years after this Act passed, but was not finished till August, 1820. The

other Canal and Water Company Acts which affect the Paddington Estate, are the fifty-sixth of Geo. III. cap. 4 and 85; the fifty-ninth Geo. III. cap. 3; and the seventh Geo. IV. cap. 140. But it appears that one Act of Parliament was not sufficient to ratify and confirm the articles of agreement of the twenty-fourth of March, 1812; for the fifth of Geo. IV. cap. 35, passed in 1824, was called into operation “to carry into complete effect” these articles of agreement; and the twenty-six pages of which this Act is made up, shew pretty clearly that “some doubt” must have been entertained whether the things therein agreed to be done, could be “legally and effectually” done.

After setting forth the title of those claiming the Paddington Estate at this time, (1824,) the Act renders it lawful for William (Howley) Bishop of London, and his successors, and their lessees, and further requires and directs him and them to ratify and confirm to the said Company all the parcels of land mentioned in the said articles of agreement.

This Act informs us, too, of a field called “Lower Field,” containing ten acres thirty-eight perches, which was purchased or agreed to be purchased, by the Grand Junction Canal Company, of James Crompton, esq., in 1801, but which was forfeited to his Majesty in consequence of not having been used for the purposes of the said Canal; which forfeiture, however, his Majesty was graciously pleased to remit: and by the third section of this Act, the said field is “discharged of all forfeiture to his said Majesty, his heirs and successors, under any Statutes of Mortmain.” These Statutes are also dispensed with by the tenth clause for other lands conveyed; and the Company indemnify the bishop and his lessees from the rent-charge of £349 15s., payable to the aforesaid James Crompton, his heirs and assigns. The twentieth section confirms the leases already granted to this Company; and the twenty-first, enacts that all future leases shall be conformable to the one already granted. A plan, but on a smaller scale, similar to the one attached to the preceding Act, is also appended to this.

But the great Act relative to the Paddington estate—that which was intended to give an epitome of preceding Acts, to bind and cement the whole, and put the key-stone into this expansive legislative arch—is the forty-fifth chapter in the sixth year of the reign of George the fourth, anno 1825, entitled—

“An Act to enlarge the powers of several Acts passed in thirty-fifth, forty-fourth, forty-fifth, and forty-eighth years of the reign of his Majesty King George the third, for enabling the Lord Bishop of London to grant a lease, with powers of renewal, of lands in the parish of Paddington, in the county of Middlesex, for the purpose of building upon, and to appoint new trustees, and for other purposes relating thereto.”

In 1824, the rate-payers of Paddington were seduced, in a manner hereafter to be mentioned, to resign into the hands of the wealthy proprietors, and a certain number of vestry-men, elected under the detestable principles of Sturges Bourne’s Act, those inherent rights which their predecessors had protected, with more or less determination, for centuries; and the next year saw the official representatives of this select body, and the curate of the parish, joining the Bishop of London and his lessees, in beseeching his Majesty that the several objects contained in the aforesaid Act, might be accomplished. One object was, to increase the quantity of land to four hundred acres, for which building leases might be granted; and another, to exclude the “Curates of Paddington, the said Churchwardens and their successors” from “all estates, right, title, interest, benefit, claim, or demand whatsoever of, into, out of and upon the lands and hereditaments comprised in or which are or may be subjected to” “the lease granted by Bishop Porteus, in 1795; excepting in so far as is expressed in this Act.” And in consideration of this wholesale surrender of all the interest, benefit, &c. which the inhabitants of Paddington ought at this time to receive out of the Rectory and other lands, William (Howley) Bishop of London, and his lessees were graciously pleased to consent, that it may be enacted, “that the Curate’s former stipend of £120 a-year shall be increased to £200 per annum;” that ground may be granted for the site of the said Curate’s residence, “not exceeding one acre;” and “that any quantity of the said estate not exceeding four acres may be conveyed by deed to trustees or commissioners, appointed under Church Building Acts.”

Having already analysed preceding Acts, it only remains for me to notice here, that this ponderous piece of private legislation, which occupies no less than seventy-three pages of the statute book, is chiefly a resume of that which had been before enacted. It provides, however, as we have seen, for double the number of houses, and therefore for a vast increase in the

revenues of this estate; it provides for the increase of a curate's stipend, by eighty pounds per annum; and it grants sites for churches—"if at any time hereafter it should on account of the increase of the population, or on any other account, be found necessary or convenient to erect and build the same." It also provides for the appointment of new trustees both at the present, and any future period; for altering the conditions in the covenants in under-leases; and for raising an additional twenty thousand pounds by mortgage.

It further informs us that the previous mortgage of ten thousand pounds was settled on Dame Morshead; and it enacts that the former sum, as well as this, shall be paid off by fines on the renewal of the present building leases; the Bishop of London for the time being, to be answerable for one-third of the interest on these sums, and the trustees for the other two-thirds. The sum permitted to be borrowed by this Act is to be used in improving the estate, as well as all monies received for the sale of gravel, &c., and any sum that may arise from selling or letting the waters, springs, &c, purchased of the corporation of London; which by this Act the Bishop and his lessees are empowered to let or sell for that purpose.

There are two schedules annexed to this Act, both bearing the signature, J. H. Budd. The first is a description of the several pieces and parcels of land composing "the Paddington Estate," amounting in the whole, it is here stated, to six hundred and eleven acres and a half. The second contains an account of sums received and paid on account of the same property. By this account we learn that twelve acres, three roods, and fifteen perches and a half of land belonging to this estate had been sold under the Land-tax Redemption Act, and the 52nd George III; for which, it is stated, £6573 0s. 11d. was received. £2000 was also received for two acres, three roods, and twenty-eight perches, "used by the Regent's Canal Company." £10,256 12s. 3d. "by sale of brick earth, gravel and sand." And £1140 18s. 2d. by sale of old materials, water pipes, &c. Making with the £10,000 borrowed, a sum of £29,970 11s. 4d. The payments being £27,857 6s. 2d. including the small item of £4,530 17s. 11d. for law expences.

In these Acts and Deeds will be found the true history of "the Paddington Estate;" the few finishing touches which have been given to it, during the possession of the See of London by the present Bishop, being

comparatively unimportant. But Dr. Blomfield has derived more personal benefit from the policy of his predecessors than those who assisted in establishing it could have contemplated would ever fall to the lot of any one bishop. What have been the actual receipts from this estate for the last twenty years, few men can tell; but if we were to calculate the average for that period at £5,000 per annum, I think we should not over-rate the bishop's receipts from this "little farm;" and one hundred thousand pounds in twenty years from one estate is not so bad.

With the exception of the Great Western Railway Bills there has been, so far as I know, only one Act of Parliament passed since the great Act of 1825, having especial reference to the Paddington estate. This was "an Act for confirming and carrying into execution certain articles of agreement made and entered into between Charles James, Lord Bishop of London, the Trustees of the Paddington estate, the Grand Junction Canal, and the Grand Junction Water Works Companies, and for other purposes therein mentioned."

By this Act we learn that the Grand Junction Water Works Company, having erected other works and reservoirs near Kew Bridge and at Camden Hill, were desirous of using their land in Paddington for building-ground, as it had become much more valuable for that purpose than for the purposes for which it was originally leased. To enable them to do this the Company had to apply to the Bishop of London, and the trustees for their consent; and this consent was granted, upon condition "that the said sites, as well the freehold as the leasehold parts thereof, shall be laid out and built on by such class and description of buildings as approved by the surveyor of the Paddington estate." "And also upon condition that the said Company shall give up and relinquish, for the site of an intended hospital," a plot of ground two hundred feet from north to south, and one hundred and eighty feet from east to west; and also give up and relinquish another plot, seventy feet by one hundred feet, "for the site of an intended new church."

By this Act the Grand Junction Canal Company are for ever released and discharged from all covenants, agreements, and undertakings, relating to the powers and privileges of supplying with water the inhabitants of this parish; and the Grand Junction Water Works Company take upon themselves their liabilities in this respect: the bishop, and trustees, agreeing to lease the land,

already occupied by this Company, with the exception of the plots mentioned, “at the yearly rent of a peppercorn.” The expences of this Act were to be wholly borne by the Company, and the Company are bound by it to provide the inhabitants of Paddington, and parishes and streets adjacent, with water as heretofore. The tenants of the Paddington estate, “including the inhabitants of the houses proposed to be built on the sites of the said present reservoirs and other works of the said Company,” to be supplied with water at the reduced rate of ten pounds per cent., as provided for by previous Acts.

We have already seen how preceding Acts direct that “no fine, premium, or foregift, or any thing in the nature of a fine” should be taken on letting any portion of the land which Parliament permitted to be let for building; excepting at the end of the terms for which the first leases were granted; but this arrangement extended only to four hundred acres, and as the situation of these acres was nowhere defined in these Acts, the Great Western Railway Company, when they wanted thirty-nine acres of land belonging to this estate for the completion of their line and terminus, obtained the same at a rent of sixty pounds, thirteen shillings, and seven-pence three-farthings per annum, per acre, ^[96] upon paying the present bishop and the lessees of the estate £30,000.

Since this bargain was struck the bishop and his lessees have sold other parcels, though at a less famous figure.

On the nineteenth of February, 1841, a special meeting of the Vestry of Paddington was called to receive and take into consideration a communication from the Lord Bishop of London, respecting a piece of ground west of the church-yard. It was feared this breathing spot was about to be purchased by the insatiable builders. So, besides the “cordial thanks of the vestry for his kind and timely communication,” an offer of £3500 was made to the bishop and his lessees for this little lot. Four thousand pounds, however, was the lowest sum they would take for this portion of the old green; and the vestry were obliged to be content with the southern portion; for which the parish paid £2000. The northern portion was sold to one of the much-dreaded builders; and is now covered with houses; while on that portion purchased by the parish the new Vestry-hall is being built; to lay, if possible, the ghosts which are said to have haunted it.

On the first of April, 1845, the Vestry received a letter from Messrs. Budd and Hayes, stating that the portion of “The Upper Readings,” found by the recent admeasurement of Mr. Gutch to be 5a. 2r. 27p., may be secured by the Vestry for the purposes of building a workhouse thereon; “provided that the powers of the local Act are sufficient to enable his lordship and the trustees to effect such sale;” and that £5,700 be given for the same.

Another portion of “The Upper Readings” was sold to the trustees of the Lock Hospital. Subsequently to these purchases, some mutual exchanges took place, which have reduced the workhouse plot to 5¼ acres, and the cost of the land to £5,168 15s.

Other facts relative to this estate, will be found in the next part of this Work, and after perusing them, in conjunction with those I have collected in this, I think my readers will conclude, with me, that the inhabitants of Paddington—who have to pay the owners of the Paddington Estate most exorbitant prices for the privilege of living on their land—owe but little gratitude to these lords of the soil for the small favours they have given, in return for the enormous wealth the industry of others is placing in their hands.

PART II.

THE PARISH AND THE PEOPLE.

CHAPTER I.

DEFINITION—SITUATION—BOUNDARIES AND EXTENT—GENERAL AND MEDICAL
TOPOGRAPHY—ETYMOLOGY OF NAMES—ORIGIN.

BLACKSTONE defines a parish to be “that circuit of ground which is committed to the charge of one parson, or vicar, or other minister having cure of souls therein.” In ordinary language a parish is “that place, or district, which manages its local affairs, and maintains its own poor.”

Newcourt says, “This parish of Paddington (which is a very small one) is within the liberties of Finsbury and Wenlakesbarn, and lies about three or four miles north-westward from London.”

Lysons tells us, that “The Village of Paddington is situated in the hundred of Ossulston, scarcely a mile north of Tyburn turnpike, upon the Harrow-road.”

All the other descriptions of the situation of the “pretty little rural village of Paddington,” which I have seen, resemble these given by Newcourt and Lysons; but these are now so inapplicable to its present state, that it would be useless to quote from other authorities.

The hundred of Ossulston originally comprised, as I have already observed, nearly, if not quite, half the county of Middlesex; but after a time “the liberties of Westminster,” and “the liberties of London,” were taken out of this hundred: that is to say, these places became of so much importance as to claim and obtain separate jurisdictions. The hundred of Ossulston was then reduced to a small portion of the county north and east of London, while by far the greater part of the old hundred, still waste and wood, was

included under a separate jurisdiction, called in the old maps “Fynnesberry and Wen Lax Barne.” Another re-arrangement however has taken place; the ancient liberties of Finsbury and Wenlakesbarn are now included in the hundred of Ossulston; the hundred itself is separated into four divisions, and Paddington is included, with certain other districts, in “the Holbourn division” of this re-arranged hundred.

It has been shown, too, in the previous part of this Work, that the district, first known by the name of Paddington, was, very probably, confined within the comparatively small space bounded by the two Roman roads and the bourn; and that, antecedently to the establishment of this separate district, it formed a portion of the Tybourn manor. It is also very probable that Paddington was included in the Parish of Tybourn, before the monks of Westminster established their claim to it, and annexed it to St. Margaret’s. At a later period, when Paddington became a separate parish, the whole of that district which is now known as Westbourn; the manor of Notting Barns; and all that Chelsea now claims north of the Great Western Road; as well as the manor of Paddington, and a considerable portion of that which now belongs to Marylebone, were included in it.

The post-office authorities, even to this day, include a considerable portion of Marylebone in their map of Paddington; and if we take the “Via Originaria” of the Romans, “The Watling Street” of former days, to have been the eastern boundary of this parish at all periods, still even that would give to Paddington a long strip of the south-west corner of the present parish of Marylebone; for I think those who will examine this subject, will come to the conclusion, that the old Roman road was that road which is seen in Rocque’s maps, continuing in a straight line from Tybourn-lane along the high ground to the top of Maida-hill.

In “Baker’s Chronicle of the Kings of England,” p. 313, we find a record of many works of public utility, performed, in the reign of Edward the sixth, by the Rowland Hill of that day. And in the third year of that king’s reign, when Sir Rowland was Lord Mayor of London, we find it chronicled “that he likewise made the highway to Kilburne near to London;” previously to which time, I presume, the old military way was the only road in use.

In Rocque's maps we see three roads branching off in a northerly direction from the Tybourn-road (now Oxford-street); one, opposite North Audley-street, another, opposite Tybourn-lane (now Park-lane), and the third, the present Edgeware-road. I believe it was the road nearest the city which was made by Sir Rowland Hill; the central one, as above indicated, being the ancient Roman road; and the present road being the most modern; but both "Watling-street" and "Watery-lane" are now obliterated from the map; and the land occupied by these roads, with the triangular or gore-shaped piece which lay to the west, between the ancient road and the present Edgeware-road, now forms a portion of the adjoining parish.

It was on this piece of land, the highest point of ground on this part of the Tybourn-road, that the gallows was erected when it was removed from "The Elmes."

Whether the Great Western-road took a more southerly course previously to "the Hyde Farm" having been converted into Hyde, or "High," Park, by Henry the eighth, I do not know; but from the facts already advanced, it appears certain that this triangular-shaped parish was at one time a much larger triangle than it now is; the base of which, in all probability, extended from Shepherd's Rush to Kilbourn Bridge.

At the present time the eastern boundary of Paddington parish is formed by the Edgeware-road from where Tybourn-gate stood in 1829, ^[103a] to where Kilbourn-gate now stands; the southern boundary being marked out by the Uxbridge-road from its junction with the Edgeware-road to the head of the Serpentine, with the exception of that piece of Tybourn-field which was sold for a burying-ground to St. George's, and which now, with St. George's-terrace, forms a portion of that parish. Paddington claims a considerable strip of Kensington-gardens, and is bounded west and north-west by an imaginary and irregular line, known only to the authorities and a few parish boys, which runs over and through houses, greenhouses, &c., from the centre of the road opposite Palace-gardens, to Kilbourn-gate. Or, to use the official words of the district surveyor, "Paddington is bounded on the north by the parish of Willesden; on the south by the parish of St. Margaret, Westminster, and St. George, Hanover-square; on the east by the parish of St. Mary-le-bone; and on the west by the parishes of St. Mary Abbots, Kensington, and a detached part of St. Luke, Chelsea." ^[103b]

In the population-returns for 1831, this area was said to contain 1,220 acres of land. Whether this return was made for the sake of giving round numbers, or whether the parish has extended during this century, I cannot say; but Lysons says that “Paddington contains, according to an actual survey in the possession of William Strong, esq. (a former bishop’s agent), 1197a. 3r. 30p.” In the “Registrar-General’s Report on Cholera in England, 1848–49,” I find the “area in acres” of Paddington put down at 1277. This estimate was given to the Registrar-General by Captain Dawson, R.E. of the Tithe Commission. [\[104a\]](#)

Lysons tells us, “the soil in the neighbourhood of the village is principally factitious, having been much enriched by great quantities of manure. On the east of a little brook which runs by Kilbourn and Bayswater, the soil is a thin clay upon a dry bed of gravel; on the west side of this brook a deep clay, the springs lying very far beneath the surface.” In proof of which he states that a well sunk by Mr. Coulson, of Westbourn house, had to be dug 300 feet deep before water was found; the earth of the first 100 feet, he tells us, was a bluish clay, “then, a thin stratum of stone, then, another bed of clay.” In another well, dug in the same neighbourhood, water was found at the depth of 250 feet.

These statements respecting the water must be taken to refer to the valley through which the Westbourn ran; for on the eastern side of the brook, south of Maida-hill, and on the eastern side of Craven-hill which lies to the west of the stream, many wells existed which were not more than ten or fifteen feet deep. [\[104b\]](#) Indeed, Lysons tells us, that “the springs at Bayswater lie near the surface, and that the water is very fine.” In fact, the people of Paddington seem to have had no lack of water, nor any reason to complain either of the quality or cost of this essential element of life.

Previously to the present century, the most desirable spots in the district had been selected for the dwellings of the inhabitants; and when the bishop’s first building Act was granted only 200 acres were allowed to be built on, because the other portions of the estate were not considered “fit for building purposes.” But the modern builder’s art despises any delicate notions about fitness or unfitness for the situation of a house. A plot of ground shall be covered; a street shall be built, says the money-making builder; and, when the street is finished, who will know whether this or that particular house is

built on gravel, or clay, or mud? Who will take the trouble to ascertain whether the elevated road to his entrance-hall, or the spot on which his house is placed, was made by nature's laws, or by the scavenger's cart? As to the drainage of the house, and the supply of water, these are hidden mysteries, with which no dweller in a house, except a master-builder, is expected to trouble himself. Respecting any of these matters, the owner of the soil will be rarely found to interfere, excepting it is to take part with the builder; for the value of his land has been enormously increased by that industrious speculator.

Fortunately, however, those who live in houses, are beginning to find out that not only the healthfulness of their own dwelling, but that of their neighbours also, very much concerns them. Fortunately, too, especially for the dwellers in large towns, men who have made hygeic science a study cannot be sneered down, or "put down" by "practical builders." But until *the people* thoroughly understand the nature of those requirements which constitute healthful dwellings; and until they are determined to press upon the legislature the enactment of those laws which are necessary to constitute them such, and to restrain, by more stringent laws, the lust after mammon of "the speculative builder," both their health and life will remain in very unsafe keeping.

The builder may say that the legislature of a country has no right to interfere in an affair of so private a nature as the building of a house; that every man is able to judge for himself in what house he will live; and that it is his own fault if he take a bad one. So long as houses were built to last *more* than ninety-nine years, and were nearly a mile apart, all this may have been true, but experience has taught us that this does not hold good when applied to towns; it has taught us that cities would be in a much worse state than they now are but for those inefficient laws which exist at the present time; and it has taught us that to choose an abode in ignorance of almost all the necessary requirements which constitute a healthful dwelling is a species of ignorance by no means of the blissful family. To distinguish good from evil in every object which surrounds us is one of the necessities of our nature; to have "a foe under foot," ^[105] a foe overhead, and a foe on every side, without a determination to subdue this legion, does not say much for the wisdom either of the governors, or the governed; and to care nothing about the expenditure of millions collected annually for local

purposes, is no proof of confidence in the governors, is no proof of the happiness or wisdom of the governed; it may however prove, that the people are “silly sheep” ^[106] who may be shorn by any tool, at the bidding of any despot.

Experience has proved that no more healthful situation for a town can be chosen, than elevated ground above the banks of a pure stream; and those who fixed on the south portion of the Westbourn district, and on the site of the old village of Paddington, as spots for their dwellings, could not have been ignorant either of the material advantages such situations afforded, or of the effects produced both on the mind and body by the beauty and salubrity of these localities.

If we spoke of the beauties of Paddington to those whose acquaintance with this place is of recent date, they would naturally think we were about to describe the gorgeous mansions of the fashionable “Tyburnia.” But the old village of Tybourn, or Westbourn, and the new town of Pædings, were surrounded by a greater combination of natural beauty than those who have not studied the ancient topography of this district can well conceive.

Out of thirty-seven districts, into which, for certain special purposes, the Registrar-General has arranged London and its vicinity, in a series of excellent tables contained in his very valuable Report on Cholera, we find that there are only four parishes of greater average elevation than Paddington; the estimated elevation of this parish above Trinity high watermark being seventy-six feet; Pancras eighty; Islington eighty-eight; Marylebone one hundred; and Hampstead three hundred and fifty.

On referring to those accurate and beautiful surveys published by the Ordnance Map-Office, I find that the highest point in Paddington, the peak of Maida-hill, rises to 120 feet 9 inches, while the lowest, Elms-lane, sinks to 57 feet. In fact, Paddington consists chiefly of two hills, Maida-hill and Craven-hill; the north-eastern slope of Notting-hill; and a valley, through which the Tybourn ran. In the south part of the parish this valley is very narrow, but to the north it spreads out into Maida Vale.

Woodfield road, and the neighbourhood, is another elevated spot in Paddington, but in the whole of that part of the parish, as well as in Maida Yale, the clay is immediately below the surface. In some places the surface

has been raised by the earth dug out of the Canal, and in others, by deposits brought from other parts of London; indeed the alterations which have taken place, in consequence of the removal of the natural soil, and the addition of “made ground,” make it difficult to tell what is the natural elevation of any particular spot in the parish.

The tables from which I have just now quoted, and other authenticated statistical accounts, tend to prove that the number of feet we live above high water-mark is an appreciable quantity in the account of health and disease, life and death. But elevation is only one item, though an important one, in this important account. The *nature* as well as the *height* of the soil on which we live, influences the health and life of every living being.

A considerable portion of the ground, composing the south and south-eastern parts of Paddington, consists of sand and gravel; the northern and north-western parts being clay. Vast quantities of the former have been removed; and although the Paddington soil was sufficiently “factitious” at the time Lysons wrote, it has become much more so since that time. Those only who have carefully watched the modes which have been adopted to raise the ground for making new roads, and for elevating the basement of houses in certain parts of this parish, can form any idea of the immense quantity of “rubbish” which has been “shot here.” As to the nature of a great deal of that rubbish, I will not offend my readers by attempting any description. Suffice it to say, that thousands of loads of sand and gravel have been taken away since the Act passed which permitted the sale of this natural soil, and vegetable and animal matters of all kinds, and in all stages of putrefaction, have been emptied into hollow places. Besides the effect produced by the poisonous gases which must arise from such factitious soil, other bad effects frequently follow the removal of the natural earth and the substitution of made ground. All the house-drains which are laid on the latter, sink, and in a short time become either partially, or wholly, useless for the purpose for which they were made; and new drains, constructed at great expence and inconvenience, are necessary. When from this or any other cause, the drain does not empty itself into the common sewer, it is emphatically termed by the men who work in the sewers, “a dead’un.”

Having for several years lived in a house which owned one of these dead drains, and having been very nearly “a dead’un” myself in consequence, I

was led to enquire into this subject somewhat minutely; and although the drainage of an immense city is too important a subject to be treated of by the topographer in a sketch of a single parish, yet I cannot refrain from saying a word or two in this place on a point of such vital consequence.

The Thames having been most mischievously used as the great common sewer for London and its neighbourhood; and Paddington which is so much above its level, having been drained into it, one would have imagined that the system of drainage here would have completely removed all debris from so elevated a spot. Such, however, has not been the case, as I have learned from the Reports of the Sewer Commissioners, and from a personal inspection of some of the sewers.

Nothing worthy the name of a system of drainage, can be secured, till the great river, which was intended by its Creator to bring health and life to the people, instead of being made by man the instrument of his own disease and death, is freed from the sewerage of a whole metropolis: yet much good may be done in the mean time, and at a comparatively small outlay.

Thousands of drains, now existing, have been made of such porous bricks, and these have been placed side by side with such an unadhesive layer of dirt, that instead of acting as an impervious tube through which the soil could pass to its destination, the common sewer, the bottom of the drain acts as a mere filter for its contents. Glazed earthenware pipe-drains have been introduced to obviate this and other great evils; and the dwellers in towns have seldom had a greater blessing befall them, than this discovery. These tubular drains are cemented together, so as to form a hollow tube, and are laid at so much per foot under the regulation of the Sewers Office, by workmen who understand what a *house-drain* should be; and it must be understood that a *house-drain* and a *field-drain* are two distinct things; though very many builders have thought what would do for one, would do for the other.

Why there is not a good system of main drainage for London; why the Thames is still made the generator of disease and death, I do not know, except it be to shew the inefficiency of our governors; but if the New Sewers Commission had done no other good, it deserves praise for the facilities it has given for the use of this more perfect system of house-

drainage; and after all it is of more consequence that the drain to the sewer should be perfect, than that the sewer itself should be so, although the latter is undoubtedly essential.

All those who wish to live in a healthful house, will adopt this tubular system of house-drainage; but those who cannot or will not have a perfect drain, may adopt a small part of the modern tubular system with great advantage and at a trifling cost. At present, the great majority of drains open directly into the common sewer, and act as chimnies for the conveyance of poisonous gases into the interior of the houses, the water-traps only partially preventing this evil. Others enter the sewer so low, that when they are not performing this office, they frequently form a portion of the common sewer itself, and are invariably filled with its contents, when “flushing” is performed.

A simple lid of glazed earth, hanging from the upper part of the mouth of the drain, provides against these evils to a very great extent; and this precaution should always be used, till a more effectual substitute is found.

Some portions of Paddington which have been built on, are amongst the most desirable spots, as places of residence, to be found in the immediate vicinity of London; and these would be rendered unexceptionable by a perfect system of water supply and drainage. But, as yet that good time has not come even for the most healthful and most fashionable houses in Tyburnia.

So much has been said and written on the subject of burying the dead in the midst of the living, that it would appear useless to add another word on this subject; and at length some of the effects produced on living bodies by the poisonous gases which arise from church-yards are well known.

We have already seen that Paddington is blessed with two burying grounds, one of which was established for the benefit of the rector of St. George’s, Hanover-square, and his rich parishioners; and although this burial-ground was at one time extra-mural, the inhabitants of Albion-street, Upper Berkeley-street, Connaught-square, and St. George’s-row, have found out that it is no longer so. For some of the particular evils attendant on having this large burial-ground surrounded by houses, I must refer my readers to *“An account of the measures adopted by the Medical Practitioners residing*

in the Western District of Paddington, to obtain the CLOSURE of the BURIAL-GROUND situated in the UXBRIDGE ROAD,” and to a Return on the Metropolitan Burials, Act, just printed by order of the House of Commons. For an exposition of the general evils of intra-mural interment, and an account of some of the disgraceful practices connected with it, I cannot do better than refer to “GATHERINGS from GRAVE YARDS,” and Mr. Walker’s other works on these subjects.

To secure a healthful dwelling, then, it is necessary to know something of the elevation and the nature of the soil; the quality of the water; the efficiency of the drainage; the size of the house relative to the number of its intended inhabitants; and indeed, all those considerations which influence the quality of the air we breathe, should be taken into account. But it is not my intention to enter into an examination of all the items which compose a healthful dwelling; much less to count up those points which give an ideal value to a house on a “Bishop’s Estate,” though, judging from the puffing advertisements, which for years crowded the advertising columns of the *Times*, there must have been great and healing virtues in these magic words. In those advertisements, however, we saw no account of the contracted area; the deep narrow back yard; the thin and crumbling walls; the gaping doors and windows; the damp and ill ventilated basement; the absence of drainage; the want of bath-rooms, &c. &c.;—all such things had to be found out by the in-coming tenant, and remedied at his cost. But for the want of these essentials, the “pretty paper,” or the “handsome cornice,” made but poor compensation, even in houses advertised for sale at a few thousand pounds, “with a trifling ground-rent of seventy-five pounds per annum.”

Many suggestions have been offered relative to the derivation of the word *Paddington*; but that suggested by Mr. Kemble—one of the greatest living authorities on antiquarian topography—seems to me to be the most deserving consideration. Mr. Kemble observes, in his preface to the third volume of the *Codex Diplomaticus*, that the Anglo-Saxon, like most German names of places, are nearly always composite words; that is, they consist of two or more parts; the second generally of wide and common signification; the first a kind of definition limiting this general name to one particular application.

The former portion of these compound names, he says, may be classed under various heads, as the names of animals, birds, trees, fishes, &c.; others refer to mythological or divine personages; and others contain the names of individuals and families. To this latter division he refers Paddington in the first volume of his “Saxons in England;” where he has inferred a mark—“Pædingas”—for the name of this place—Tun, the enclosure or town, Pædingas of the Pædings. It is true, this is one of three names, of which Mr. Kemble appears to entertain some doubt; but all other explanations I have met with appear to me open to more serious objections. Dr. R. G. Latham, the father of the modern school of English philology, tells us that “in the Greek language the notion of lineal descent, in other words, the relation of the son to the father, is expressed by a particular termination;” and that this Greek mode of expression is very different from the English termination, *son*, and the Gaelic prefix, *mac*; which in fact make the words to which they are joined only compound words. But he asks is there anything in English corresponding to the Greek patronymics, and answers, “In Anglo-Saxon the termination *ing* is as truly patronymic as *IDES* is in Greek. * * * In the Bible-translation the son of Elisha is called Elising. In the Anglo-Saxon Chronicle occur such genealogies as the following:—Ida was Eopping, Eoppa Esing, &c.—Ida was the son of Eoppa, Eoppa of Esing, &c.” The learned Doctor further informs us that “In the plural number these forms denote the *race of*—as Scyldingas—to the Scyldings, or the race of Scyld,” [uuu](#) or Pædingas—to the Pædings, or the race of Pæd.

With other names in Paddington there is not much difficulty.

The burne, bourn, or brook, which ran through Paddington gave its name to a district. Tybourn I believe to have been the original name; but the houses erected on the west side of this stream, with the district surrounding them, were eventually called by the name of Westbourn; the name which was given to the stream. Respecting the origin of the word Bayswater—a name given to a portion of the Westbourn district—many suggestions have been offered; but the first of the three given by Mr. Osborne in his letter to Mr. Urban, in the Gentleman’s Magazine, dated March 25th, 1798, appears to me to be the correct one. He says “Perhaps the name of Bays is derived from the original owner of the land;” and from the Inquisitions taken in the early part of the fourteenth century, to be found in the first part of this Work, it will be perceived that there was then a Juliana Baysbolle holding

land in Westbourn. At the end of the fourteenth century, we find from Tanner's note, before quoted, that the head of water given by the Abbot was called Bayard's Watering Place; and although this may have been the name used in legal documents for the district surrounding it, yet Bays Watering has been the name used by the people. There may, indeed, have been two watering places for the weary traveller; and mine host Bays, and mine host Bayard, may have been rivals for public favour; the one living on one side of the King's highway, and the other on the opposite.

Knotting, or Notting, seems to have been but a corruption of Nutting; the wood on and around the hill of that name, having for centuries being appropriately so called.

Kensell, or Kensale, comes, as I take it, from King's-field. In the Harleian MS. (printed at page 38,) the green of this name is called Kellsell, and Kingefelde. In Mary's reign, we perceive by this document, also, that "the Green-lane" and "Kingsefelde-green" were the same place. And as "the Green-lanes" now exist—in name—we may ascertain with something like accuracy the situation of this field, or green, which formerly belonged to the King.

The names of Squares, Terraces, Streets, &c., have been for the most part furnished by the names of the owners of property, past or present, their native counties, or country residences.

Spring-street, Brook-street, Conduit-street, Market-street, &c., point out the situations of objects formerly on, or near, those sites.

"Tichborne-street," although not built in the time of Henry the eighth, reminds us of one "Nicholas Tychborne, gent., husband of the second daughter and co-heir of Alderman Fenroper;" of Alderman Tichbourn, one of Cromwell's peers and King Charles's judges; and of a dirty ditch which ran down the side of the Edgeware-road from Maida-hill; and Maida-hill, itself, reminds us of the famous battle of Maida. Praed-street preserves the memory of the banker of that name; one of the first Directors of the Grand Junction Canal Company; and of the lands they secured, as well for the purposes for which they professedly obtained them, as for the purposes to which they have been applied.

The name of Frederick, once well known here, became so distasteful to the people of Paddington, that it is preserved only in a mews; while the memory of the capacious generosity of the Lady Margaret, Countess of Richmond, to the universities of Oxford and Cambridge, will be long preserved in Paddington by the Squares and Terraces of those names. There is now a Shelden-street, to remind us of a bishop's gift to his nephews; and a Porteus Road and Terrace, that we may not forget the good and generous Beilby who gave away, or sold, two-thirds of the proceeds of the Paddington estate. Pickering-place and Terrace preserve the memory of a former curate, and of a friendly Chancery suit relating to the property here; and while all sorts of changes are rung on the names of the living, it has been thought expedient to place Blomfield and Cromwell Terraces in a continuous line in the highway to a Public School.

The civil division of the land, recognised by the Anglo-Saxons, were the Mark, or March; the Gâ, or Shire; and the Hid, or Hide. To understand these divisions, as Mr. Kemble has described them, is to comprehend the natural origin of every inhabited place in this country; and the origin of all our constitutional law.

The Mark he describes to be the smallest and simplest division of the land which was held by many men in common, or by several households under settled conditions, the next in order to the private estates, the hids or alods of the markmen. "As its name denotes, it is something marked out or defined, having settled boundaries; something serving as a sign to others, and distinguished by signs. It is the plot of land on which a greater or lesser number of free men have settled for the purposes of cultivation, and for the sake of mutual profit and protection; and it comprises a portion both of arable and pasture land, in proportion to the numbers that enjoy its produce." ^[113] Other meanings were attached, to this word, Mark, which are thoroughly examined by this learned historian, and to his works I must refer those of my readers who wish to obtain a complete insight into the ancient divisions of the land, and the manners and customs of our Saxon ancestors.

The Gâ or Shire was but a number of these marks united under one general government.

The Hid or Hide was “the estate of one household, the amount of land sufficient for the support of one family.” By a series of learned calculations and investigations Mr. Kemble has proved that the hide was a stated quantity of *arable* land, not much over thirty Saxon acres, equal to forty Norman acres; he shews that the Saxons had a large and a small acre, and explains, by this fact, how the hide came to have been considered one hundred and twenty acres. He shews that the forest, meadow, and pasture-land was common property; and that it was attached to the hyde as of common-right. But, for a complete exposition of this subject, I must also refer my readers to the fourth chapter of the first book of Mr. Kemble’s history.

The fact of Paddington in Surrey, or “Padendene” as it was called, being mentioned in the Conqueror’s survey, ^[114a] while Paddington in Middlesex was not noticed, inclines me to believe the *dene*, or *den*, in Surrey, was the original mark of the Pædings; and that the smaller enclosure in Middlesex was at first peopled and cultivated by a migration of a portion of that family from the *den* when it had become inconveniently full.

I do not mean to say the Surrey valley was too crowded when this migration took place; but the lord, or his man, one or both might have pressed a little too hard on some of the young cubs in the Surrey den; and as they had no Press through which to make their wrongs known, they may have thought it best to move off before any other wrongs were inflicted.

At what period this migration happened, it is impossible to say; but there is very little doubt that the first settlement was made near the bourn, or brook, which ran through the forest. And this brook, though now a deep underground sewer ^[114b] which has been made, by the aid of the mason, to give a few more ground-rents to the bishop and his lessees, while it carries its hidden pollution to the capacious bosom of “Father Thames,”—once gave life to a most beautiful valley, and was itself, at times, no insignificant stream. At the beginning of this century it was a favourite resort for the young fishermen; and, as depicted in Norden’s Map of Middlesex, ^[115a] we see what it was in the time of Elizabeth, when the waters, taking their natural courses from the hills of Hampstead and Highgate, found their way into it.

What amount of disease and death has been caused by the impurities it has been made to hold since that time is a mystery; but one into which those have had a peep, who have taken the trouble to read the disclosures which have been made respecting the Serpentine, [\[115b\]](#) into which it was for years made to pour its many abominations.

By the side of a pure and then beautiful stream, at a later period named the Westbourn, the first “clearing” was made; and in all probability on the eminence above this brook, perhaps on the very spot where the first Christian temple was raised, the inhabitants of this Mark first offered up their adoration to that God which their intelligence had taught them to worship; and let not those who occupy their places in well cushioned pews near this spot, decry or despise that worship; for it was the sincere and spontaneous act of the unenlightened mind, unmixed with the sins of a cold formality, or the hypocrisy of a political sham. However misguided our ancestors were, they were sincere, and they wanted not the support of the State to bolster up their peculiar dogmas, but freely consecrated a portion of the Mark to the services of religion. And the present christian Bishop of London, and his lay lessees, may now have the honour of receiving the proceeds of land once dedicated to Pagan worship. [\[115c\]](#)

The Mark included a considerable extent of the forest around the portion cleared; and this portion of the Mark, the forest or waste-land, was, as we have seen, the common property of the inhabitants. To protect their rights in this common property against powerful and ambitious individuals, was for centuries the constant care of the people, as it was the special object of many of our ancient laws. How these laws were evaded; how by force or fraud “the lords of the soil” managed to transfer those lands to their own keeping; and how cunning and designing men have over-reached them in return; so that, at last, scarcely a scrap of all their former rights remain to the public, for public uses, I have made some attempt to tell, so far as the Paddington Mark is concerned. But a complete history of these transactions remains to be written.

The formation of the Mark, and the reception of its occupants into the family of the state, were not the work of a day: and these long preceded the parochial arrangement; which latter, indeed, was an ecclesiastical division of the land, said to have been introduced into England in the seventh

century by Honorius, Archbishop of Canterbury: but this is evidently one of those errors so common in history, where one man is often credited or debited with deeds which belong to, and should be fairly divided among many individuals. It is this error, as Mr. Kemble has most strikingly pointed out, which has frequently made a saint, or a devil, when no heroic quality belonged to the person so set on high for admiration or detestation.

Modern research has made it pretty certain that the ancient parishes, “*parochiæ*,” of England were the districts adopted by the several teachers of Christianity who first promulgated the truths of the gospel in this country. These divisions, made for securing the spread of the “Good News” through the whole of the country, must necessarily, at first, have been very rudely defined—but then there was not, at that time, any fear that these overseers, or bishops, would set people by the ears about territorial titles. They were much better occupied, by the promulgation of God’s tidings, than to trouble themselves about those things which have lately become of so much more concern to christian bishops than the conversion of the heathen; and when those earnest and good men were assisted by others whom they had imbued with their religious spirit they lived in one house, in common, on the free-will offerings of a grateful people.—The overseer of the district being their overseer, and his parish, their parish.

As the religious wants of the people increased, these centres were found to be inconveniently remote from the circumference. The teachers, too, considerably increased in numbers; they demanded as a right that which had been conceded as a favour; and ambition creeping into their community, as their riches increased, separate spheres of action became additionally desirable. So at length, and by degrees, our present parochial system arose; the sub-divisions bearing the same name, diocese, or parish, as the original divisions had done.

CHAPTER II.

THE PARSON—ORIGIN AND USE OF TITHE—PARSONAGE, RECTORY, OR VICARAGE—APPROPRIATION, AND IMPROPRIATION—A LIVING—A SINECURE—A CURACY WITHOUT THE MEANS OF CURE.

“A PARSON, *persona ecclesiae*,” says Blackstone, “is one that hath full possession of all the rights of a parochial church. He is called parson, *persona*, because by his person the church, which is an invisible body, is represented; and he is in himself a body corporate, in order to protect and defend the rights of the church, (which he personates,) by a perpetual succession. He is sometimes called the rector, or governor, of the church: but the appellation of *parson* (however it may be depreciated by familiar, clownish, and indiscriminate use) is the most legal, most beneficial, and most honourable title that a parish priest can enjoy; because such-a-one (Sir Edward Coke observes) and he only, is said *vicem seu personam ecclesiae genere*. A parson has, during his life, the freehold in himself of the parsonage-house, the glebe, the tithes, and other dues. But these are sometimes *appropriated*; that is to say, the benefice is perpetually annexed to some spiritual corporation, either sole or aggregate, being the patron of the living; which the law esteems equally capable of providing for the service of the church, as any single private clergyman. This contrivance seems to have sprung from the policy of the monastic orders, who have never been deficient in subtile inventions for the increase of their own power and emoluments. At the first establishment of the parochial clergy, the tithes of the parish were distributed in a four-fold division; one for the use of the bishop, another for maintaining the fabrick of the church, a third for the poor, and the fourth to provide for the incumbent. When the sees of the bishops became otherwise amply endowed, they were prohibited from demanding their usual share of these tithes, and the division was into three parts only. And hence it was inferred by the monasteries, that a small part was sufficient for the officiating priest; and that the remainder might well be applied to the use of their own fraternities, (the endowment of which was construed to be a work of the most exalted piety,) subject to the burthen of repairing the church and providing for its constant supply. And therefore they begged and bought, for masses and obits, and sometimes even for money, all the advowsons within their reach, and then appropriated the benefices to the use of their own corporation. But, in order to complete such appropriation effectually, the king’s licence, and consent of the bishop, must first be obtained: because both the king and the bishop may sometime or other have an interest, by lapse, in the presentation to the benefice; which can never happen if it be appropriated to the use of a corporation, which never dies: and also because the law reposes a confidence in them, that they

will not consent to any thing that shall be to the prejudice of the church. The consent of the patron also is necessarily implied, because (as was before observed) the appropriation can be originally made to none, but to such spiritual corporation, as is also the patron of the church; the whole being indeed nothing else, but an allowance for the patrons to retain the tithes and glebe in their own hands, without presenting any clerk, they themselves undertaking to provide for the service of the church.” [\[118\]](#)

The great modern historian of our ancestors—Mr. Kemble—also informs us that the tithe—that property which cunning and selfish individuals in the course of time, and little by little, appropriated to their own uses—was originally divided into three portions: one for the reparation of the church; a second to the servants of God; “and a third to God’s poor and needy men in thralldom.” And Mr. Kemble further states that when the accidental oblations were replaced by settled payments, whether land or not, they were directed to be applied in definite proportions to these objects.

So that the maintenance of the place of religious worship was as much provided for as the clergy who were to do duty therein; the poor, too, were equally taken care of, at the same time and by the same means; for to use the emphatic words of this great historian, “the state had a poor-law and the clergy were the relieving officers.” Mr. Barnes, the registrar of the diocese of Exeter, in his examination before the select committee of the House of Commons, on the fourth of July, 1851, [\[119a\]](#) says, that he believes Blackstone was mistaken in attributing the charge of the repair of the church to the tithe; but I think Mr. Kemble has fully established the truth of the position taken up by that learned Judge.

And this was not all, the bishops, and clergy, were to feed the poor out of their own incomes. A parson who possessed a superfluity and did not distribute it to the poor was to be excommunicated. And the clergy were to practice handicrafts, “not only to keep them out of mischief, but to help to feed their poor brethren.” Many of them were masons; and Mr. Kemble is of opinion that more churches existed in the tenth century than at the present time.

Before that time there appears to have been “a tendency to speculate in church-building;” for the sake of obtaining “the oblations of the faithful;”

the builders claiming for themselves that portion of the church—the *altare*—on which the offerings were laid.

To ensure the support of the churches so built on speculation, the bishops found it necessary “to insist that every church should be endowed with a sufficient glebe or estate in land: the amount fixed was one hide, equivalent to the estate of a single family. Which, properly managed, would support the presbyter and his attendant clerks.” And this glebe-land the bishop could not afterwards interfere with, or alienate from the church to which it was given.

Mr. Kemble also tells us that by the time of Eàdgàr it had become quite a settled thing to pay tithe; “the English prelates having laid a good foundation for the custom long before they succeeded in obtaining any legal right from the state.”

He also states that “cyricsceat,” (as the church-tax was called,) was “originally a recognitory service due to the lord from the tenants of church-lands. But that in process of time a new character was assumed for it, and it was claimed of all men alike as a due to the clergy.” And then those who refused to pay were visited by the king’s reeve, by the bishop’s, and by the mass-priest of the minster, ^[119b] and they took “by force a tenth part for the minster whereunto it was due.” A ninth part only was left for the refractory subject. While the other eight parts were divided into two. And of this, says the ordinance, “let the landlord seize half, the bishop half, be it a king’s man or a thane’s.” ^[120]

I think it not at all unlikely that those who cultivated the soil in Paddington received no friendly visits from the tithing man till the time of Edgar. Dunstan, at this time Abbot of the Monastery he had restored at Westminster, looked, without doubt, pretty keenly after the loaves and fishes which were to feed his little flock; and as the enclosure of the Pædings was not too far north to escape his acute glance, he might have been the first who took tithe here. When Bishop of London, which he was at the time of his pretended gift of the little farm, he might, too, have obtained property here, as elsewhere, by the means above indicated. For, if any of the accounts we have of him be true, he was evidently not the man to fail in carrying out any scheme of aggrandisement which he had once

planned, even when the law was not, as it was in this case, in his favour. And even so late as the tenth century of the Christian era, some inhabitant of this place might have been found, whose refractory and pagan spirit prevented his seeing all the justice and good policy there might be in giving up quietly the tenth portion of his produce to the monks of Westminster. Those monks, in Dunstan's time only ten in number, though able to visit Paddington occasionally, were too much engaged at Westminster to pay that attention to this little settlement which was required to teach the inhabitants all their christian duties.

If this saint, who so honoured the old gentleman's nose, did in truth first tithe Paddington, he may, in one sense, be said to have bestowed on his monks a small estate here; for this impost remained from his time to the Conquest as a fixed charge on the land. And those who first received tithe here (being, in all probability, sufficiently impressed with the necessity of appropriating it according to law) may have built a chapel in Paddington, with that portion which was legally assigned for the support of a material structure in which the services of the church might be *performed*.

There is yet another "probable supposition," viz. that a speculating builder existed among the Pædings, even in those days, who, for the sake of what he could get for himself, built a chapel here; and the clever Dunstan, or some other bishop, having caught him in thus defrauding God, and God's poor, made him give a hide of his land to endow the place he had built for his own profit: and who knows, if this were so, but that this churl (ceorl) was aping his betters in some other mark, by aspiring to be greater than he really was; for by a law of Athelstan's a freeman "who had the possession and property of full five hides of land, and had a church, a kitchen, a bell-house, and a hall, was henceforth entitled to the rank of a Thane." [\[121\]](#)

We have already seen that a chapel was built and endowed in Paddington before the ecclesiastical decree of 1222 assigned this district, with those of Westbourn and Knightsbridge, to St. Margaret's, Westminster. And one may well suppose, if no Tybourn rector interfered, that a parson was appointed to the cure, and a district assigned to him, whenever this building was erected; and to say that one of the monks who lived in the Convent at Westminster, under the laws and regulations of St. Benedict, was the person first appointed to this cure, does not, surely, invalidate that supposition.

Paddington, therefore, may have existed as a rectory and a separate parish, before the beginning of the thirteenth century—before the decree of Stephen Langton, and his brother-priests, converted it into an appendage to a vicarage. But this benefice having been thus appropriated to the use of their own corporation by the company of Benedictin monks, the rectory, if there had been one, became a sinecure; and the poor souls in Paddington were transferred to the tender care of the vicar of St. Margaret's.

How long Paddington remained in this unenviable condition I cannot say; but we are told by Blackstone, that the appropriating corporations served the churches “in so scandalous a manner, and the parishes suffered so much by the neglect of appropriators, that the legislature was forced to interpose: and accordingly it is enacted by statute 15th Richard II, cap. 6, that in all appropriations of churches, the diocesan bishop, shall ordain (in proportion to the value of the church) a competent sum to be distributed among the poor parishioners, annually; and that the vicarage shall be *sufficiently* endowed.” And this great Judge adds, “It seems the parish were frequently sufferers, not only by the want of divine service, but also by withholding those alms, for which, among other purposes, the payment of tithes was originally imposed: and therefore in this Act a pension is directed to be distributed among the poor parochians, as well as a sufficient stipend to the vicar.” And he goes on to say, “but he being liable to be removed at the pleasure of the appropriator, was not likely to insist too rigidly on the legal sufficiency of the stipend: and therefore by statute 4, Henry IV, cap. 12, it is ordained, that the vicar shall be a secular person, not a member of any religious house; that he shall be vicar perpetual, not removable at the caprice of the monastery; and that he shall be canonically instituted and inducted, and be sufficiently endowed, at the discretion of the ordinary, for these three express purposes, to do divine service, to inform the people, and to keep hospitality. The endowments in consequence of these statutes have usually been a portion of the glebe, or land, belonging to the parsonage, and a particular share of the tithes, which the appropriates found it most troublesome to collect, and which are therefore generally called privy or small tithes; the greater, or predial, tithes being still reserved to their own use.” [\[122a\]](#) And thus, the appropriates of those days were compelled by statute to provide, in some sort, both for the souls and bodies of those, from whom proceeded the revenues of the church.

But before these statutes could be obtained, the voice of Wickliffe had been heard not only at Lutterworth, but in London and Westminster; and the degenerate Church, which this worthy rector denounced, could no longer resist some of those reforms, which the State had long seen to be necessary.

[\[122b\]](#)

We have seen by Tanner's note that Paddington was spoken of as a parish in the time of Richard the second, and by the Valor Ecclesiasticus of Henry the eighth that the rectory, no longer an appendage to St. Margaret's, yielded, like the manor, a separate revenue to the Abbey.

Since, then, the ancient laws were totally disregarded, and tithe, and other church property, was perverted to individual uses for so long a period with perfect impunity, we cannot be surprised to find these more recent appointments were gradually evaded, or abused; so that, step by step, the doings of that church, which still boasts of its rule and guide over millions of minds, was so utterly detested in this country that even the genius of a Wolsey could not save it from perdition.

And what secures and sustains the present structure? How has the church in Paddington been supported since the Reformation?

We have already seen that the rectory was disposed of, with the manor, by Henry the eighth, to Sir Edward and Dame Baynton. It thus became *improper*. [\[123\]](#)

But it was again appropriated; this time by a corporation sole. For, when the bishops of London claimed the rectory of Paddington as a "member and appurtenance" of the manor, did they not become the real rectors of the parish? Certainly, from time to time, since Bishop Sheldon's day, if not before, they have leased the rectory with the manor, and exercised the right of appointing the curate here. Are they not, then, accountable for the proper application of the rectory revenues? And how have these revenues been applied?

We are informed that the fourth protestant bishop of London thought Paddington would make a comfortable retiring pension for his porter; and the enemies of Bishop Aylmer brought this misdeed as one of their many

accusations against him. His faithful biographer, Strype, admitting the fact, thus defends the bishop:—

“As for the charge, that the bishop made his porter a minister; all things considered he thought it to be justifiable and lawfully done, and not to lack example of many such that had been after that sort admitted, both since the Queen’s coming to the crown, by many good bishops, and by sound histories ecclesiastical. That where churches, by reason of persecution, or multitudes of Hamlets and free chapels, had commonly very small stipends for their ministers, honest godly men, upon the discretion of the governors of the church, had been, and might be, brought in to serve, in the want of learned men, in prayer, administration of the sacraments, good example of life, and in some sort of exhortation. And this man therefore when the bishop found him by good and long experience to be one that pleased God, to be conversant in the scriptures, and of very honest life and conversation, he allowed of him to serve in a small congregation at Paddington, where commonly for the meanness of the stipend no preacher could be had; as in many places it came to pass, where the parsonage was improprie, and the provision for the vicar or curate very small. And how that good man behaved himself there, time and trial proved him; for he continued in that place with the good liking of the people eight or more years till he grew dull of sight for age, and thereby unable to serve any longer.” [\[124a\]](#)

What Fletcher, Bancroft, Vaughan, Ravis, Abbot, and King did for Paddington, I cannot tell. But the truth is, that the protestant bishops, no more than the popish abbots, have applied the revenues of the church to their original purposes. It is true that much of the revenue of the church vanished at the Reformation. The great Reformers of the Church did not possess the princely fortunes of their predecessors; or of the present bishops. [\[124b\]](#) But the reformed bishops did not relinquish the old practice of receiving fines, for granting life-leases, when the improprie leases dropped in. Rectory lands, and tithes, were still badly managed; and the fines raised by leasing them were appropriated, as heretofore, to individual uses. To such an extent was this “waste of church lands” carried that the

people saw little good had been done, in this respect, by that revolution which had been sanctioned by Henry the eighth.

During the next reformation another survey of ecclesiastical property was made. Commissioners were appointed in 1649, by the parliament, to enquire into the nature of ecclesiastical benefices; and from their report we learn the condition of the “living of Paddington” at that time.

The following survey is printed from the original still existing with the Records in the Rolls’ Chapel. The portion in italics being so much defaced in the original document as to be illegible, I have been enabled to supply from the twelfth volume of the Lambeth Manuscripts, by the kind permission of the Archbishop’s secretary.

Survey of Church livings.

MIDDX.

“PADDINGTON.—Item there is *a rectory and a mannor and Tythes and other oblations and gleabe Lands with certeyne houses thereto belonging of which a house for two tennants called the vicarage house all which is at the rate of fortie-three pounds per annu or thereabouts And Wee are informed that the Tythes houses and lands before* mencõned was let by George Mountaigne late Bishopp of London to Sir Rowland St John, and Sybyll his Wife and to Oliver *St John* their sonne for their lives and that the said Bishop bound them to noe certayne *stipends or took any nor for the cure of souls butt left it* unto his Tenants and that the said S^r. Rowland S^t. John had heretofore *a reading minister or* Reading ministers who served *for ten* pounds per annu in Paddington and Marybone at the like sallary of Mr. Forsett and that of late years S^r. Rowland S^t. John paid *for* a preaching minister twentie eight pounds per annu which is the Rent of the Tythes of that *land in the parish that doeth* not belonge to the Bisshopp And that there is a minister that preacheth twice every Lord’s Day one Mr. *Anthony Dodd* and *that we humbly think* that the Parish of Marybone and Paddington is very fitt to be united in one and that both the Churches may be pulled down and *both made* one and sett on Lisson Greene And that we verylie believe that the whole Tythes of Paddynton is worth one hundred pounds per annu if it were lett at the

true value And we humbly desire that a godly able preaching minister may bee *placed* to serve for the Parish of Paddington and Maribone and settled with mointeynance not lesse than one hundred pounds per annu as you in your great wisdomes shall thinke fitt And that we are informed that there is a right of Presentation to the Rectory *or vicearidge* in one Mr. Browne that hath purchased *the manner* by vertue of a grant to him *from the trustees appointed* by Parliament for the sale of the Bishopps Lands.

Signed

<i>William Roberts</i>	<i>John Browne</i>
<i>Richard Dowton</i>	<i>James Pascall</i>
<i>Edward Martin</i>	<i>John Thorowgood</i>

This authentic record is something more than a mere curiosity. It establishes several important facts; and enables the reader to form a just estimate of the care taken of the cure of souls in Paddington, by bishop Mountain.

I think it not at all improbable that the “Vicarage House” had been made into “a house for *two* tenants,” by Sir Rowland St. John; for, so far as I can discover, he was the first lessee who resided on the Paddington estate. The lords of the manor had preferred to live in the monastery, and the episcopal palace; and their lessees were only middle-men, whose object was—as the object of this class very frequently has been—to get as much out of the land-workers as possible, and give as little as possible in return.

It is my opinion, however, that Sir Rowland St. John added very considerably to the parsonage-house; and adopted it as his own residence, (no uncommon thing at this period), by which it arrived at the dignity of a manor-house; and, as the bishop had “left it unto his tenants” to do what they pleased for the cure of souls, Sir Rowland, also in compliance with the fashion of the time, kindly gave house-room to some poor half-starved curate, who had never taken upon himself the ministry as a money-getting profession, or having done so had found his expectations most woefully deceived. The pay of his “reading minister” may astonish those who do not remember the account given by Mr. Macaulay, or some equally trust-worthy

author, of the condition of the great majority of the clergy in the seventeenth century.

The learned historian just referred to, states, what one may readily believe, seeing what the lords of Paddington and Marylebone paid the minister of those places, that “for one who made the figure of a gentleman, ten were menial servants;” and he adds, “a large proportion of those divines who had no benefices, or whose benefices were too small to afford a comfortable revenue, lived in the houses of laymen.”

“The Ordinary,” in his “discretion,” or in his hurry to secure a more lucrative preferment for himself—the see of London in Dr. Mountain’s time was not the richest in England, and therefore not worth sticking to—had forgotten to make any provision for that cure of souls in Paddington, which devolved on him, and for which he was paid. “The reading minister;” and afterwards Mr. Anthony Dodd, “the preaching minister,” were glad therefore to become tenants in the great man’s house; having no rectory-house to themselves, and not being provided with a sufficiency of the rectory profits “to do divine service, to inform the people, and keep hospitality.”

At this time, indeed, “a young Levite, such was the phrase in use, might be had for his board, a small garret, and ten pounds a year, and might not only perform his own professional functions, might not only be the most patient of butts and of listeners, might not only be always ready in fine weather for the bowls, and in rainy weather for the shovel-board, but might also save the expense of a gardener or a groom. Sometimes the reverend man nailed up the apricots, and sometimes he curried the coach horses; he cast up the farrier’s bills; he walked ten miles with a message or parcel; he was permitted to dine with the family, but he was expected to content himself with the plainest fare, he might fill himself with the corned beef and the carrots, but as soon as the tarts and cheese-cakes make their appearance he quitted his seat, and stood aloof till he was summoned to return thanks for the repast, from a great part of which he had been excluded.” [\[127a\]](#)

This certainly was not a very cheerful state of things for the working clergy and the people; and, although the *high dignitaries of the church* had few kind words to bestow on Cromwell, or the Commonwealth, it will be

observed that the clergy and the people of Paddington had no reason to regret the establishment of the Parliamentary Commission. The commissioners wished to see the tithes let at something like their real value: a new church built out of the rectory funds; and “a godly able preaching minister” appointed, whose pay was to be something more than the paltry stipend allowed by the lessee, previous to the Revolution; or than poor Mr. Anthony Dodd’s liberal salary of twenty-eight pounds per annum, for his two full services and two sermons “every Lord’s day.”

But, if the suggestions of the commissioners were not completely carried out, the report of 1649 was not entirely unheeded, even after the restoration of the episcopacy; for the trustworthy public notary, Newcourt, tells us that Bishop Sheldon bound his nephews “to pay the curate here eighty pounds per year, at the four most usual feasts, viz. twenty pounds per quarter;” and he also informs us that “The church was but small and being very old and ruinous was about the year 1678 pulled down and new built from the ground, at the cost and charges of Joseph Sheldon, knight, sometime Lord Mayor of the City of London, and his brother, Mr. Daniel Sheldon, then lessees of the manor of Paddington.” And one would have thought that the memory of these events would have been preserved in less crazy heads than Mr. Dick’s; that the good example set to his successors by Bishop Sheldon would have been followed; and as the population of this place increased, and the value of the rectory-lands was thereby increased, the religious wants of the people would have been provided for out of these increased funds.

Two hundred pounds per annum, and the quantity of waste land for which Bishop Porteus and his lessees agreed to give the parish fifteen pounds a-year, is, as we have already seen, all that the liberal bishops of London, for the last century, have provided for the cure of fifty thousand souls, ^[127b] out of an estate which now yearly brings in thirty thousand pounds; and which, like the population, must increase for many years to come. Such paltry provisions for the cure of souls in Paddington will be a lasting monument of disgrace to all parties concerned in these transactions.

To smooth down the unmitigated selfishness developed in the several private Acts of Parliament, which we have examined in a previous part of this Work, it has been said “the system was in fault.” But when it was

enacted, that two hundred acres of land which had been claimed by the church might be occupied by human beings, instead of cows and cabbage; “the system” could as easily have provided suitably for the religious education of the contemplated dwellers on this soil, as it did for the increase in the stipend of a single curate; or as it did for the transfer of two-thirds of the estate into the hands of lay lessees; and, when permission was given by another Act, to extend the power of granting building leases to four hundred acres of this estate, we find the rector of the parish, the lord of the manor, the bishop of London—three important personages in one—content with providing out of that estate an increased salary of eighty pounds a-year for a single curate; and with obtaining permission to give, “in case of need or convenience,” land which cost the owners of this estate fifteen pounds a year, I think the most charitable must say, that the inhabitants of this parish are not indebted to “the system” alone, for all the paternal care which their governors have bestowed on them and the cure of their souls.

Newcourt tells us Paddington “is exempt from the Archdeacon, and wholly subject to the Bishop of London and his Commissary;” and that the church is a donative of curacy in the gift of the bishops of that see, and is “supplied by a curate by virtue of the bishop’s license, wherein is committed to him the *cura animarum*.”

Whether Paddington has lost much by not having been overlooked by the archdeacon—“the bishop’s eye”—I cannot pretend to say; but we see that the rectory of Paddington, like that of many other places, overlooked by archdeacons, has been allowed to become a sinecure; and the curacy to exist without the means of cure; that the parson is a triune body; and that *the rights* of the parochial church belong much more to the bishop, and his lay lessees, than to the excellent minister, to whom the “cure of souls,” with a stipend few gentlemen could live on, and none perform the necessary duties with, is so considerably bestowed. And, with such scandals as this daily staring us in the face, is it very surprising that the law, which heretofore reposed confidence in bishops, and assumed, “that they will not consent to anything that shall be to the prejudice of the church,” should have at length begun to discover, that its confidence has been somewhat misplaced, and that all bishops cannot be trusted?

It certainly has been discovered that Parliamentary enquiries are necessary in our day; and it has been found out, even by ecclesiastics, that the appointment of ecclesiastical commissioners could no longer be delayed if the church was to be saved. But ecclesiastical commissioners are but men; the people, therefore, in every parish in England should themselves look into their own ecclesiastical affairs; and demand with one united voice the fulfilment of those religious duties to God and God's poor, which devolve on those who claim the lands of the church. Sooner or later a demand so just must be fully recognised; and governors will assuredly arise, who will have both the power and the will to execute justice.

Such malversations as those which have been recently exposed by the Rev. Mr. Whiston, and others, cannot last for ever; and the sooner the whole system is altered, if it be the system that is in fault, the better for all parties.

By returns moved for by our honourable member, Sir B. Hall, (to whom the whole country is deeply indebted for the information on ecclesiastical affairs which he has brought to light,) we find that the portion of the "REVENUES of the SEE of LONDON, for the seven years ending thirty-first December, 1850," arising from the "SHARE OF PADDINGTON RENTS, &c." amounted to £56,939 1s. 6d., while the "share of the various payments in respect of share of Paddington estate," for the same period, amounted to £1742 10s. 3d. The correctness of that return is certified to, and signed "C. J. London." [\[129\]](#)

The lay lessees received double this sum, as per agreement, so that for seven years £170,817 4s. 6d. has been paid, *chiefly in the shape of increased house-rent be it observed*, by that portion of the people of Paddington, who have had the felicity of living on "The Bishop's Estate."

A law, which already exists, will affect the income of the next occupant of the See of London, and therefore his relations to the rectory of Paddington; and it has been hinted that something may be done, in that event, for this parish. But the people of Paddington do not desire such patchwork arrangements. They want that which the whole country is asking for, and which cannot be much longer delayed—a law to regulate the whole of the estates of the church; and there is one pleasing anticipation for the people of Paddington in the contemplation of such a measure; viz. that, whatever may

be the effect of that law, it cannot make *their* position worse than it is at the present time.

CHAPTER III.

ANCIENT CHURCHES—ACT OF PARLIAMENT CHURCHES AND CHAPELS—
CHURCH-YARDS—CHURCH-RATES—PARSONAGE-HOUSES—ECCLESIASTICAL
DIVISIONS—PLACES OF WORSHIP BUILT AND SUPPORTED BY VOLUNTARY
CONTRIBUTIONS, UPHOLDING THE STATE RELIGION; AND THOSE DISSENTING
THEREFROM.

It is not worth while to enter into an elaborate enquiry, to shew that the parish of Paddington was at one time included in the parish of Tybourn, and that the ancient Tybourn church was the mother-church of the whole of those districts, now included in the parishes of St. Mary Abbot's Kensington, Paddington, and Marylebone; but the facts and arguments which have been already adduced to prove that Westbourn and Tybourn were but synonymous terms; and that the modern manor of Paddington was but a portion of the ancient Tybourn manor, may serve to sanction such a supposition.

Maitland, Lysons, and other authors, tell us that the ancient church of Tybourn was situated near the present Marylebone Court-house—i.e. beside *the modern* Tybourn; but the only evidence these authorities condescend to give in support of their opinion, is, that in 1729, "a great quantity of bones were dug up at this place." They offer no proof, however, that these bones belonged to the inhabitants of the ancient village of Tybourn; neither do they attempt to shew that they were not the remains of some of those who had died in London of the plague, which raged there in the previous century. A writer in the Gentleman's Magazine, part 1, p. 315, 1809, seems to me, to be quietly quizzing those antiquarians who accepted this story of the bones, when he tells the public that "in all ancient documents, Mary la bonne (Mary the Good) is called Sancta Maria de Ossibus, (Saint Mary of Bones)." Lysons, however, does not see the joke, for he gravely replied in his second edition, "I have never seen any in which it is so described."

It may be worthy of remark, that the ancient Tybourn church, wherever it was situated, was taken down in the year 1400, by order of the Lord

Chancellor, Bishop Braybrook, when the honors and estates of the noble family who built and endowed this church, were in the keeping of a youth barely seventeen years of age; ^[132] and that the Westminster monks never, either by hook or by crook, obtained possession of this ancient advowson. A rival establishment, however, was built either for them, or by them, on their newly acquired property at Paddington, and, as we have already seen, the spiritual direction of the Paddington district was assigned to them as early as 1222; previous to which time a place of worship had been built here; and for upwards of six hundred years this small house, erected both for public worship and public instruction, was deemed sufficient for rich and poor, saint and sinner, and to it an unbought spot of consecrated ground was annexed, the quiet resting-place of all those who had lived in Paddington.

So pretty was the church, and so tranquil seemed this country burial-place, not a century since, that many of those who witnessed the abominations committed in the consecrated grounds of London and Westminster, longed to secure for their corruptible bodies a nook in this village church-yard; and so manifest was this desire, during the whole of the last century that, though the population of Paddington was increasing, the burials here far exceeded the baptisms.

In Lysons' "Environs," this fact stands exemplified thus—

Years.	Years.	Average Annual Baptisms.	Average Annual Burials.
1702 to	1711	10.6	38.1
1740 „	1749	16.6	193.3
1780 „	1789	16.5	192.3
1790 „	1794	36.6	244.6

And this addition of motionless mortality to the soil, like the development of its resources by the increase of active life, formed but an additional inducement to its insatiable lords to increase their demands upon the people; for I find *from records still preserved*, ^[133] that after they had obtained the Act which bound the inhabitants of Paddington to pay a rent-

charge for their “pretty church-yard;” and after the infamous Act of 1795, the lord and his lessees were urgent in their demands for a share of those fees, which were obliged to be levied on the relatives of the dead, to secure the performance of those duties which these rectors were already well paid to perform.

Of the earliest Christian temple erected in Paddington, I have nothing more to say than what I have already said, excepting this, that in all probability it was built and endowed by the first possessors of “the Paddington Estate,” whoever they were; and, whatever were their sins respecting that estate, *they* must be exonerated from that amount of refined selfishness which has enabled others to take the property dedicated to God, and God’s poor, and leave the people to their own resources for providing themselves with places of worship, and “the cup of charity” for the aged and infirm.

St. Katherine’s, and St. James’s.

The “old and ruinous” church, pulled down about 1678, was, in the opinion of that accurate observer, Newcourt, dedicated to St. Katherine; for, says he, “I observed the picture of St. Katherine to be set up in painted glass, at the top of the middle panel of the east window in the chancel, where oftentimes the Saint, to which any church is dedicated, is placed.”

Newcourt does not tell us to whom the church, “new-built from the ground,” was dedicated; but he saw none of the causes at work which ensured its destruction in rather more than a century; and it could not have been imagined by him that a policy would be inaugurated, and completed, within a century and a half of the time at which he wrote, which would be sorely puzzled to account for the existence of a church built by those who were in receipt of the rectorial revenues. Such a puzzle was not allowed to exist. Doubtlessly, Newcourt thought *the name* would have existed more than one hundred and ten years—the time the church was allowed to stand—and indeed it does now exist in the *new* parish church; but Newcourt omits to give it.

We find, however, by Willis’s Thesaurus of 1763, and by Lysons, that the Sheldon church was dedicated to St. James.

This country church served Hogarth and Jane Thornhill for a Gretna-Green; for here they were married, much against Sir James's will, it is said, ^[134] on the twenty-third of March, 1729.

Chaterlain's series of views, dated 1750, contains *two* of this church; a near north-west view, not mentioned in the King's Catalogue, British Museum; and a distant view from the green, a copy of which is to be found in the King's collection.

St. Mary's.

On the twenty-sixth day of February, in the twenty-eighth year of his reign, George the third, granted by his letters patent to the Rev. Thomas Hayter, the curate of the parish; the Rev. John Shepherd, the assistant curate; and certain others; the power to beg "from house to house throughout England, our town of Berwick-upon-Tweed, &c." to enable them to rebuild the parish church, which this Brief, and the preamble of the twenty-eighth Geo. III, cap. 74—"An Act for rebuilding the parish church of *Paddington*, in the county of *Middlesex*, and for enlarging the church-yard of the said parish,"—tell us "is a very ancient structure, and in such a decayed state, that it cannot be effectually repaired, but must be taken down and rebuilt; besides which, the same is so small, that one-fourth of the present inhabitants within the said parish cannot assemble therein for Divine worship."

Down to this time, the lords of the Paddington soil, or their lessees, had furnished the tenants, who lived on this church-land, with some sort of church accommodation; but another church was now required and was to be built, although this *very ancient and decayed structure* was but one hundred and ten years old; and the question naturally arose, who was to build it? The then lessees; as the lessees had done in 1678? The "Lord of the manor of Paddington;" as the then bishop is called? Or these together? Neither the one, nor the other, nor the two combined. It is no longer those who hold "the rectorial and other lands," and whose income from those lands has been increasing ever since the time of Bishop Sheldon, who are to build churches in Paddington. The lord and his lessees know their duty better than that. Begging boxes are to be sent "from house to house throughout England;" and as that does not succeed, those to whom a portion of the

increased accommodation is to be offered, are to be induced or compelled to furnish the necessary funds. Moreover, at the expense of the people, (for the Act expressly declares the pews shall be “rent-free,”) comfortable accommodation, “in or near the chancel,” is to be provided for the lord of the manor of Paddington, “or his or their lessee or lessees.” And although there is now no Dunstan’s bailiff to dread, let those who doubt that the law had power in Paddington at the end of the last century, as it has now, “to take by force” this extra and new church-tax, look to the fourteenth, thirty-fourth, and other sections of this *public* Act; the *first* of the Paddington church building Acts.

Up to one shilling in the pound, on “the yearly rent of lands, houses, shops, warehouses, vaults, mills, and other tenements,” forty-five trustees—six of whom were clergymen—“or any *five* or more of them,” they, and their successors, had power to *assess*, and for the sum assessed had power to *distress*, “in order to accomplish the good and pious purposes of this Act.” Provided always, that the sum raised by this and other means set forth in this Act, “shall not exceed in the whole the sum of four thousand five hundred pounds, including the charges in the enclosing the said waste ground and other incidental charges, and of the procuring, obtaining, and passing this Act.”

“The said waste ground,” here spoken of, being *a portion of the enclosed green* ^[135] nicely measured and carved out—vide Act—which “The Right Reverend Father-in-God, Beilby, Lord Bishop of London, is willing and desirous” to give; and which he does give at a rent of six shillings a year. First, having in this Act, and for the first time anywhere, so far as I can discover, put in his claim to be “entitled to the waste ground within the said parish (subject to commonage thereon).”

But the sum to which this Act limited the taxing, was found to be insufficient; and another Act was required, “for enlarging the powers of, and rendering more effectual, an Act, made in the twenty-eighth year of the reign of his present Majesty, entitled, An Act for re-building the Parish Church of Paddington, &c., &c.” This, the thirty-third Geo. III, cap. 43, dated thirtieth April, 1793, contains all the whining for further powers, which so commonly saluted the ears of his Majesty’s faithful Lords and Commons when church-building Acts had to be separately passed. ^[136]

And the prayer of those who asked, was answered; and a further sum was to be raised by the means provided in the previous Act; but with this additional screw—“That in every case where a justice or justices of the peace shall grant a warrant or warrants of distress, for recovering of any rate or assessment made under the said former or this Act, and a sufficient distress cannot be found, it shall be lawful for such justice or justices of the peace to commit the person or persons, against whom or whose goods and chattels such warrant or warrants of distress may have been issued, to the common gaol or house of correction for the said county, there to remain without bail or mainprize, for any time not exceeding one month, *or until payment of such rate or assessment, and the costs and charges attending the recovery thereof*”—Section 2.

Further, desecration of the church-yard was permitted; and in spite of all the thought which had been bestowed on the monuments and tombstones in the previous Act, any decayed vault, tombstone, or grave, which offended the sight of the officials, was now to be taken down, or removed, after six months’ notice to repair had been given to “the owner or owners of such vaults.” And the churchwarden or churchwardens, for the time being, were empowered “to sell and dispose of such vaults for the best price that can be got, and to apply the money arising therefrom towards rebuilding or repairing the said parish church.”

And why were these extraordinary powers granted? Because the inhabitants of Paddington were not “capable of raising without the further aid of Parliament,” or were not willing to raise, “a further sum of one thousand five hundred pounds,” to defray the expences required to *finish* the church-yard; and to pay “a considerable sum of money due on account;” and because those who took the profits of “the rectorial and other lands,” did not think it their duty to pay it for them.

How much more than these sums Saint Mary’s has cost, I cannot say; but I presume they very nearly covered all the original expenses, as Lysons was informed by a most excellent authority—a gentleman, who, in imitation of the manifold offices held by the lord of the manor, was assistant curate, parish-clerk, sexton, and vestry-clerk at the same time ^[137]—that the total sum expended, amounted to £6000.

So much admired was this church at the time it was built; and so picturesque an object it is said to have been, “particularly from the Oxford, Edgware, and Harrow roads;” that almost all the periodicals of the day take some notice of it.

The Universal Magazine for January, 1793, gives an engraving of it, and the village-stocks, by Eastgate, from a drawing by Earl; and in the same Number there is an account of the building, in which the first stone is said to have been laid “on the twelfth of August, 1788,” and the consecration to have been “in Easter week, 1790.” Lysons, however, tells us, Saint Mary’s was consecrated on the twenty-seventh of April, 1791; the first stone having been laid, according to him, on the twentieth day of October, 1788. As to the date of consecration, Lysons is certainly right, as most likely he is in the other statement, having had so good an authority as the curate, parish-clerk, &c., &c. to furnish him with these and other facts which occurred in Paddington about the time at which he wrote. On the day this church was consecrated, a sermon was preached in it, and a collection made for the benefit of the Sunday School.

The following description of this church, given by the writer in the Universal Magazine, was, in all probability, nearly correct, when written: “It is seated on an eminence, finely embosomed in venerable elms. Its figure is composed of a square of about fifty feet. The centres, on each side of the square, are projecting parallelograms, which give recesses for an altar, a vestry, and two stair-cases. The roof terminates with a cupola and vane: on each of the sides is a door. That facing the south is decorated with a portico composed of the Tuscan and Doric orders, having niches on the sides. The west has an arched window, under which is a circular portico of four columns, agreeable to the former composition.”

Mr. John Plaw, of King Street, Westminster, is said to have been the architect in this account; but Lysons, and Tennant, say Mr. Wapshot, designed this mixed specimen of Tuscan, Doric, and non-descript architecture.

The European Magazine, not to be behind its contemporaries in delineations of the picturesque and beautiful, has an etching of the “New Church at Paddington” by Malcolm; in which he has also shewn what one of the

Paddington ponds, already spoken of as existing in the time of Edward VI, was “in the good King George’s reign.”

The old church and the new church are both engraved in the Gentleman’s Magazine, supplement, 1795. The notice of the church there given, seems to have been taken from Lysons, perhaps it was supplied by him; but there is this additional statement, viz.—that the monuments which existed in the former church were placed in a light vault underneath the present structure.

And this church which has been built but sixty-one years and a few months, has been for the last three or four years in jeopardy—not of falling, but of sharing the fate of its predecessor; the same causes having been at work to effect its dissolution, which led to the removal of the Sheldon church:—viz., a population ill provided with church-accommodation—a new parish church built—architects and builders, anxious to shew their skill, still further—influential inhabitants interested in the furtherance of their schemes, ready and willing to vote the requisite supplies out of their neighbours’ pockets—a tempting piece of ground in the immediate vicinity, “doing nothing”—a notion, in some minds, that sundry reminiscences, connected therewith, might thus be obliterated—and the prospect of an increase in burial-fees and pew-rents.

Fortunately, however, better counsels have prevailed; and this amount of consecrated property is not yet doomed to be destroyed. St Mary’s, though no longer the parish church, is to remain, a standing monument to the erudition of those who once governed Paddington. These guardians of the church and poor, not only knew which way the wind blew without the assistance of a lettered vane; but understood Greek; as the unlettered vane, and the inscription on the façade, testify. But as all *the multitude* who have attended St. Mary’s since it was built, have not been able to sing, in the original, that song of the heavenly host which contains the essence of Christianity; and as the English church does not profess to teach people unknown tongues, or object to their worshipping God in their own, it would have been as well to have given them some key to those golden characters, which are so conspicuously placed on the façade of this Pseudo-Greek temple. Those who desire, or require a translation to that divine announcement, which has been so long hidden in the original, will find it in

the English edition of Luke's epistle to Theophilus, second chapter, and fourteenth verse.

The church-yard was enlarged, as already noticed, by virtue of the powers of the fiftieth Geo. III., cap. 44. This Act, which was obtained on the eighteenth of April, 1810, states, that whereas the population of the parish of Paddington, hath lately much increased *and is likely still further to increase*, it is expedient that THE CHURCH-YARD of the said parish should be further enlarged." But not a word about the enlargement of the church, or increased church-accommodation, notwithstanding the then present, and future state of the parish, is so clearly seen; and although St. Mary's could now no more hold one-fourth of the inhabitants, than St. James' had done. Seven hundred and forty pounds had been for three years the average annual income from this grave-yard; the half of which was received by the curate, to make up for the mean stipend allowed by the rectors; the remaining half being paid to the rectors themselves, for their land; so that to endanger this source of income, was a thing not to be dreamed of. This appropriation of the burial fees, continued till the whole of the church-yard was paid for; since which time the half of the fees has been applied to the ordinary expenses of the church; the other half going, as before, to the incumbent; and this may account for the following entry in the Churchwardens' account, for 1840.

"Paid to parish solicitor, his bill in respect of various cemetery-bills in Parliament, £144 9s. 0d."

This yard, no longer the villagers' unbought resting-place, in which the almost sacred yew-tree ^[139] grew, had now become necessary for the support of the church; it must be increased therefore, and every inch of ground must be made the best of. Besides securing this income, another object was attempted to be gained by this Act. The trustees were empowered to contract for the purchase of any quantity of land, "not exceeding three acres in the whole, *with or without buildings thereon*;" and "corporations, &c., were empowered to sell and convey." The "house for two tenants called the vicarage house;" had long since been converted into the manor-house; and occupants, more profitable to the Paddington Estate, than the curate, had been found for it; and the house which I believe was afterwards built for a "Parsonage-house,"—a house still standing close to the spot where the old

church stood, and which is depicted in John Carey's map of 1797, as the "Parsonage,"—had been, before this time, converted into the "manor farm-house." ^[140a] In fact, the curate had no residence provided for him in the parish. But at the time of passing this Act, the old manor-house had been unoccupied for some time, and was rapidly falling to decay for want of a tenant, whose interest it was to keep it in repair; ^[140b] and the bishop and his lessees having no further use for it, were anxious to sell; and so the manor house, with a portion of its grounds, was purchased by the church trustees.

The inhabitants, now, much to the chagrin of the schemers, began to find out which way the wind blew; and seeing, (when it was too late,) how their birthright had been sold, resolved to take this little bargain into their special consideration—determining, if possible, to make the best of it, as it had been bought, and to have some control over the receipts and the mode of levying the income which was to be derived from the purchase.

This resolution had the effect of producing many parish squabbles, into some of which even the venerable diocesan himself was dragged. In attempting to regulate the fees to be paid for burials in "the new ground," certain resolutions were passed by the inhabitants in vestry assembled, by which the bishop "feels himself affronted;" and he declares, he "will not consecrate the new ground, till the offensive resolution is rescinded." The resolution is not, at once, rescinded. It is resolved that it shall not be. But the bishop is to be informed no offence was intended. All, indeed, that was intended by the people of Paddington, at that time, seems to have been expressed by a resolution of May, 1813; to the effect that "it would be a dereliction of their duty not to leave to posterity the same *privileges* they have enjoyed."

But to speak of privileges now, was thought to be a joke by those who had to deal with people, who, either in their innocence, or ignorance, had permitted themselves to be cajoled out of far greater privileges than this. Most assuredly, one could scarcely expect that such people, though repentant, would be listened to; and the matter was ended by a peremptory message from the bishop, in which he declares, "he knows of no privilege belonging to the parish of Paddington, or any other parish respecting the settlement of their own fees;" and that such fees will not be legal, unless confirmed by his Court.

So, although the act for purchasing this ground passed on the eighteenth of April, 1810, no portion of the new burial ground was consecrated till the 9th of November, 1813; and the notion of inducing the parishioners to give up the manor-house for a parsonage-house—which appears to have been the scheme of the sellers, and some of the purchasers,—was not entirely abandoned till 1825; but it was never consented to by the vestry.

The predecessor of the present minister was obliged to be non-resident, for a considerable time, because he could find no house in the parish to live in. He was anxious to be amongst those whose souls had been given to his charge; and in September, 1820, we find he offers to give £200 out of his own pocket, towards purchasing the manor-house, and promises to endeavour to obtain a loan from Queen Anne's Bounty Fund for the rest of the sum, if the parish will but sell the house. Even a large subscription-list was got up to purchase it. The inhabitants, however, will not now give their consent even to a sale of the property. Having witnessed what the bishop and his lessees got by purchasing the waste, "in the Lanes and Road Ways dispersed in, about, and within the said Parish of Paddington;" perhaps the inhabitants fancied that, by having purchased the very kernel of this estate, they might have also become possessed of some of those tegumentary portions of which their predecessors had been so considerably relieved. But nothing daunted by their refusal, either to give, or sell, and thoroughly knowing their own powers, the managers of the parish bring this question again before a meeting of vestry, held the following month, and the Chairman then declares it to be carried; but on a poll being demanded, and taken, the motion was found to have been lost.

This degree of independence did not at all satisfy the now losing party. That the parishioners should begin to be awake to their own power, was a thing not to be endured, and a local Act was devised for them, into which trap they fell. In this Act, four rambling clauses are inserted as to what may, and what may not, be done with the manor-house. And it may, if a special meeting of the vestry shall think fit, "be thenceforth for ever held and used as and for the parsonage-house and glebe-lands of the said parish, or as a residence for the perpetual curate of the said parish and his successors." So impressed, however, were those vestrymen who had been so recently elected under the detestable principles of Sturges Bourne's Act, with their duty to their fellow-parishioners; and with the necessity there was

not to outrage the general feeling thus publicly expressed, that no sanction to part with their purchase could be obtained even from them. But the old manor-house, which had been let by the parish to a lady, who for some time kept a boarding-school there, was doomed to destruction. Occupation did not lay the spectres who had claimed this dwelling for their own. It was pulled down; the materials were sold, and the ground on which it stood, with that portion of its pleasure-ground which remained, was consecrated on the tenth of August, 1825, for the purpose of further increasing the size of the church-yard.

As all, rich and poor, young and old, were now crying shame on the spiritual governors of the parish, for not finding their deputy with a suitable residence, the bishops' building Act of 1825,—acknowledging the scandal, in these words, “and as the present curate of Paddington has not any house attached to his curacy”—finds out “that it would be proper that the said Lord Bishop of London, &c., should be at liberty to set apart, appropriate, and to settle in free alms, part of the demised property, as the site for a residence, &c.,” and by the seventeenth clause of the sixth George IV., cap. 45, it is enacted, that the said William, Bishop of London, &c., within five years from the passing of this Act, by indenture, “enrolled in the High Court of Chancery,” should grant to Charles Theomartyr Crane, or his successors, any quantity of the Paddington estate, “not exceeding one acre,” to hold for himself and his successors for ever in free alms, and that he, the said curate, shall be “a body corporate for the purpose,” and that he may “receive, take and hold such ground with any messuages and buildings thereon, notwithstanding any of the laws against Mortmain, &c.”

Soon after this an acre of ground, *a small portion of* “THE PARSONS FIELD,”
[\[142\]](#) was granted and settled on the curate for the purpose named.

By a return granted by order of the House of Commons, twenty-first of March, 1848, of all monies borrowed from the trustees of Queen Anne's Bounty, and not re-paid, I find that on the eleventh of October, 1830, St. Mary's Paddington curacy, borrowed £1,820. That £1,243 13s. 4d., had been repaid, as principal, and £693 3s. 0d., as interest. This sum, and upwards, I presume, was spent on this acre of freehold ground. A comfortable looking residence, not six stories high, was built; and for many years used as “the parsonage-house.” It is no longer, however, the

parsonage; having been sold with the land belonging to it, soon after St. Mary's ceased to be the parish church. This bargain was secured, as I am informed, by the district surveyor for £3,525; I have also heard there was some difficulty about effecting this sale; and that it was at last managed through the agency of the church-commissioners, who out of the purchase-money paid upwards of £80 towards the expenses of the sale. The greater portion of the balance being applied, according to the benevolent wish of the present minister of the parish, in the purchase of two parsonage-houses; one for the new parish church, No. 13, Sussex-gardens, on the north side of St. James's; the other for the old church—No. 1, St. Mary's-terrace, the first of a row of eleven houses, built on a strip of the former parsonage pleasure-grounds.

Bayswater Chapel.

Down to 1818, Saint Mary's was the only place of worship, in connection with the State-Religion, for the whole of the parish of Paddington.

So destitute of religious instruction and places of worship were the suburbs of London, and many other populous places at this time, that the State itself could no longer remain blind to the need. "A gracious recommendation" came from the throne to the Parliament, and the people; and the fifty-eighth Geo. III., cap. 45—"An Act for building and promoting the building of additional churches in populous parishes"—became a law on the thirtieth May, 1818. We are told by Mr. Faulkner, in his History of Kensington, that Mr. Edward Orme, of Bayswater, was the first private individual who built a chapel, after His Majesty had pointed out this want of church accommodation; Bayswater chapel, in St. Petersburg place, being built at his expense.

This chapel is, as Mr. Faulkner observes, a plain building; but "possesses some advantages over many modern built places of worship."

The stained glass window of which Mr. Faulkner speaks, has been removed from this church; and the present pulpit would not, I imagine, be considered of the fourteenth century, to which period Mr. Faulkner attributed the one existing, when the History of Kensington was written.

This chapel, which is “capable of holding twelve hundred persons, was opened on the fifteenth of November, 1818, by the Rev. Dr. Busfield,” the first appointed minister. And from that day to the present, it has not cost the parish of Paddington one shilling for its support: a fact so impressive, that no comment or commendation is required. Badly enough must those who wished to see a state-religion preserved, have thought this chapel needed; for, from the returns made in compliance with directions given to the commissioners appointed by the above-named Act, we find that, at this time, in the parishes of Kensington and Paddington, “there are no less than twelve thousand persons more, than could be accommodated in the several places of worship.”

Connaught Chapel—now St. John’s.

For a single proprietor of the soil to have built one chapel which would hold a tenth part of this unaccommodated population, was something; but this could not satisfy the conscience of the good curate of Paddington, who saw the population of his parish every day increasing.

From 1811, to 1821, the average rate of increase was two hundred souls, per annum; from 1821, to 1831, eight hundred; and although, early in March, 1826, Dr. Crane applied to the Church Commissioners for assistance, it was not till July, 1839, that the plan for Connaught Chapel was finally approved by them. There was no bishop, no lessees, who could see their curate’s distress, and who would come forward with the remedy. The want of the necessary funds to carry out the design; and the death of Mr. Cockerill, the bishop’s surveyor, and the architect originally employed; seem to have been the other chief causes of the delay. For immediately after the first application to the commissioners, we find that they “think a chapel capable of holding fifteen hundred persons, *with seven hundred free sittings* should be built;” and they offer, from the funds entrusted to them by Parliament, £5,500 to accomplish this object. Communication and correspondence take place respecting this offer; and, within a week, the proposed grant is increased to £6,000, *with the assurance that one third of the number the chapel will hold will suffice for the number of free sittings.*

This was in March, 1826. By July, 1829, the voluntary subscriptions, amounted to £2,400; ^[145] which sum, with £59 18s. 6d., was placed in the

banker's hands, in order that the building might be begun. Mr. Cockerill's first plan would have cost £11,020; this he was obliged to modify from the circumstance of sufficient funds not being forthcoming. £8,000 was the amount of his next estimate, but this plan he did not live to carry out; and with its execution his son, the present Royal Academician, was not entrusted. To Mr. Fowler, we owe the design for the present building; his final estimate for which was £8,592 5s. 0d.

Several ineffectual attempts have been made at different times, since this church was finished, to induce the vestry to grant funds for its enlargement. But in July, 1848, when the church-rate was in full play, the demand could no longer be resisted; and on the fourth of that month, it was resolved by the vestry, unanimously, that the west gallery of St. John's be enlarged, but at a cost not to exceed £700. The enlargement was effected, and, so far as my knowledge goes, this is the only resolution of the vestry, respecting the expenditure of money for church-purposes, that has ever been observed.

This church, however, even in its brief existence, has been some expense to others, besides those who have been accommodated by it. Down to 1839, the minister received the stipend appointed him by the Church Commissioners; the surplus pew-rents being paid to the churchwardens towards the expenses of the church. Since that date no pew-rents have been paid to the churchwardens of the parish, but they have had to pay out of the parish funds upwards of £4,800, including the sum above-mentioned.

St. John's is not a copy of any particular period of middle-age art, being built in the style designated pseudo-gothic. But it is not necessary to give any particular description of this building; for I saw by a model of it, which was honoured with an excellent place amidst the multitudinous and never to be forgotten beauties of the Great Exhibition, that Mr. Fowler's original design was not completely carried out. Its exterior, as finished, presents to us nothing offensive; and the interior is well proportioned, well arranged, and, with the exception of the painted window at the eastern end, contains nothing incompatible with a religious feeling.

Although every one who wishes to receive instruction from the visible remnants of the past, must admire the works of art as preserved to us in the brilliant colours, and quaint symbolic designs, which modify "God's light"

as it attempts to enter into the ancient temples dedicated to his service; and although every one who can so feel, must detest the barbarity of a Barebones—who is said to have thanked God every time his zealous and mischievous weapon was raised from the demolition of the Canterbury windows—yet I think it would be difficult to find any satisfactory reason for the re-introduction of stained glass pictures, and tinted glass, into the church windows of our day. Every reason I have ever heard in favour of “the dim religious light,” or “the scriptural story,” is equally powerful in favour of all other modes of teaching by “stealing the senses.” If painted glass, why not painted canvass? If one picture, why not a hundred? If candles on the altar, why not lighted? If Puseyism, why not full-blown Romanism? But this is only one of the many “first step to Rome.” And as in the case of St. John’s window, which was the origin of this remark, these first steps are not completed at once. How long it took to fill up the whole east window of St. John’s I do not remember; but there were only a few Apostles there at one time; and the “naughty boy”—who went to this church, more I fear to look at this window than to say his prayers, or hear the very excellent and learned ministers who preach there—asked his Ma, one day, “why they did not write down the names of *those men*, so that he could find out who they were?” When he was told they were the Twelve Apostles—he said “Oh no, that can’t be, there are but ten, for I count them every Sunday.”

The New Parish Church—St. James’s.

Twenty years ago, the bishop’s building Acts were beginning to tell in real earnest; and from 1831 to 1841, the increase in the population of the parish of Paddington, averaged *above one thousand per annum*. Yet the errors of the past were unnoticed by those who never wish to see errors in high places; for it was not till the fifth of December, 1837, that the local governors of Paddington saw the necessity, created by this annual addition of a thousand souls to the parish, for increased means of religious instruction, and public worship; and then their attention to this necessity was aroused by their Reverend Chairman, who, on that day, stated he was desired by the Bishop of London to call the attention of the vestry to the great want of additional church room there was in the parish—or more correctly speaking *on his estate*. The bishop sent word “that he and the

trustees had resolved upon a site for a new church; and that he would submit the case, (of the destitution of this parish), to the Metropolitan Church Committee; and would himself subscribe £300!" [\[147\]](#)

The vestry, in obedience to this message, resolved "that an additional church would be highly beneficial to the parish at large;" and a committee, with full powers to carry out this resolution was at once appointed. Expressions of praise escaped some lips; and the vestry did not break up, as their minutes shew, without thanking the bishop for the plot of ground on which the new church was to be built, and the liberal subscription offered by him. Whether any one in the vestry remembered the words of the polished nobleman, who said, "Praise, when it is not deserved, is the severest satire and abuse," I do not know; I am inclined to believe that the majority of those who tendered their thanks to the bishop, were sincere. But how oddly do those praises and thanks come upon the reader, who has studied the history of the Paddington Estate!

This new Paddington church was to be built by subscription on a site fixed by the owners of the Estate, at the western extremity of the Grand Junction-road. And on the eighth of June, 1840, the committee report "that a design adapted to the wants and means of the parish has been selected by the vestry," subject to the appropriation of the two great subscribers; "the Metropolitan Churches Committee," and "Her Majesty's Commissioners for building new churches."

Plans were advertised for, and thirty-eight designs were received. "Five of the most eligible" were selected; and the one with the motto, "Let merit bear the Palm," was especially recommended by the Committee to the vestry. On this, as on many another occasion, however, *merit* was jostled out of the field by mediocrity, or something worse, and Mr. Lindsey's design was rejected on account of his having been induced to increase the detailed cost of the building far beyond his original estimate.

The structure, as it now stands, is said to be the result of the combined genius of Messrs. Gutch and Goldicutt; and we are further told that this precious specimen of "Brummagem Gothic," was originally designed for a Grecian building, but was altered to suit the "taste of the times." Mr. Vulliamy, one of the gentlemen who had responded to the advertisement,

felt his talent to be so scandalized by the acceptance of this clumsy design, that he printed a letter, which he addressed to the vestry; in which he points out that the successful candidate is very improperly, as he thinks, an influential member of that board. This gentleman, was the bishop's surveyor, and the district-surveyor—two offices totally incompatible. But who could be supposed to know better the tastes and wants of the people of Paddington? So little did he know, however, that his second, or amended design, was found to be so obtrusively ugly that those who had adopted it could not see it carried out; and, although the original estimate for this design was fixed at £8,600, another thousand was readily added, in order that the deformity, which had been so unanimously fixed on, might be again amended!

This church in all its present taste, the vestry agreed should become the parish church; but it was not till March, 1845, that the Reverend Chairman reported to the vestry that the Church Commissioners had executed the deed to transfer the rights, &c., from St. Mary's to St. James's.

A distinct understanding was come to at this time that the old church should be enlarged. And "by these means," says the report of 1840, "accommodation will be provided for four thousand persons, or including Bayswater chapel, which may hereafter be made a parochial chapel, for more than five thousand persons, in a parish supposed to contain twenty thousand souls." The report goes on to state that each of the four districts, into which the parish will be divided, "will be placed under the immediate care of its respective minister or ministers; and these important results will have been obtained *without any compulsory levy on the parishioners.*"

Besides a miscalculation of at least four thousand in the then actual population of Paddington, these reporters must have been very ignorant of the previous history of the parish, or they must have had very bad memories. We have seen how St. Mary's was built, and how it was paid for; and a church-rate enforced by warrants of distress, and these again backed up by the certainty of imprisonment, till the rate and all expenses were paid, I think one may call a compulsory levy. Even those who lived in the parish the year before this report was written, had felt the twitch of this clerical scourge,—not the last they were to feel by a great number; for on the twenty-fourth of April, 1839, a church-rate was made, and the Cash

Accounts for the year ending, April, 1838–39, shew that £850 5s. 9¾d. had been collected by “compulsory levy,” in these years, “to pay off Mrs. Jenks’s last Church Bond Debt.” But how these reporters could have forgotten the day ever memorable in the annals of the present vestry of Paddington, I cannot imagine; nor how that on this fifth day of May, 1829, when the church-rate was in danger, the Bishop of London, the Viscount Bernard, the Honourable Mr. Mac’Donald, the Rev. John Joseph Pike, and nine others,—having taken the oath of office, to execute faithfully, impartially, and honestly, according to the best of their skill and knowledge, the several powers and authorities reposed in them—proceeded at once, with other vestrymen, to make a church-rate of threepence in the pound; for so far as I can discover, this is the only time the vestry of Paddington was ever honoured, at its sittings, by a visit from the spiritual and temporal lord of the parish.

This congratulation of the Committee, respecting all the good that had been done without any compulsory levy, was only the warming up, under more favourable circumstances for the instant, of one that had been tendered to the parish, when the first subscriptions for St. John’s were announced. But for that half year, 1826, sixpence in the pound was the amount of the church-rate levied, the full sum allowed by the law. And, although there was no compulsory levy at the time this report was written—none from 1839 to 1842,—yet there was one made in the latter year, which continued to be made twice-a-year, down to 1851, continues to be made annually now, and must be continued for years to come.

On the eighth of February, 1843, “the Committee for building the new church in this parish, have the satisfaction of informing the parishioners, that the church is nearly completed, and will be opened for Divine service, on or before the first of May next, *provided sufficient funds for that purpose are previously collected.*” So, “the immediate aid of those persons who have not subscribed to this important undertaking” is solicited, “to defray the whole expense, for which a considerable sum is still required.”

But even St. James’s was not finished without a “compulsory levy;” for on the thirtieth of June, 1843, the committee report that after paying £10,000, other expenses had been incurred, and were about to be incurred, which they hoped to raise by subscription. No further subscriptions were

forthcoming, however; and in August, 1844, the committee state to the vestry that £950 is still due; that the clock and organ were not subscribed for, as anticipated; and that there are other additional works estimated at £300 more; all of which they beg to transfer to the especial care of the ratepayers. These, as well as other sums, were paid out of the church-rate by order of the vestry.

“The churchwardens’ account for the year 1843–44” shews the “total expenditure for Saint James’s church, for the year ending April, 1844, to have, been £2,190 12s. 5d., the whole of which, with the exception of £200, “the first annual payment from the pew-rents,” was paid by the Churchwardens out of the parish funds. This, however, was not all the Churchwardens paid towards St. James’s; for in “the church-rate account” for the ensuing year, the following item occurs, “January thirtieth, 1845, Paid Mr. Bishop, for organ at St. James’s Church, £497 12s. 6d.” There are other items, too,—balance of architect’s commission, church plate, and printing—which bring the sum paid this year up to £753 8s. 4d., over and above the ordinary disbursements, which are this year £100 more than the pew-rents paid to the churchwardens. Neither was this church, which *was to have been built without “compulsory levy,”* paid for yet; for in the next year’s account, we find a “Cross Wall” in the vaults paid for; roofing over the vestry room, at St. James’s church; building new porches to the lobby entrances; and the “Turret clock.” These four items amounted to £662 19s. 3d., the ordinary expenses being increased by £246 14s. 11d., above the receipts, for other church fittings. And on the twenty-fourth of December, 1847, there is another £100 paid for re-glazing the windows with ground-glass; so that before St. James’s was fairly done with, it had cost the ratepayers over and above all subscriptions, £3,850 at the least—to say nothing of interest of money borrowed, at a very high rate, to pay these sums. [\[151a\]](#)

Trinity.

“The Holy Double Trinity,” as I once heard it called by the showman, who pointed with his wand to the young lady with two triangles on her breast, who is perched with that ornament, or symbol, in full view of all who enter by the south door; her duplicate being in the same position over the northern entrance. But for this notification, this church might be taken to belong to saints of the masculine gender; the western door being decorated

by a gentleman on either side; one with the cross-keys, the other with the cross-swords. But these Guardian Saints are not the only images set up for our love or hatred; confidence or fear; instruction or bamboozlement; on the walls of this church, or they would not be noticed here. Trinity, “the pet church of Paddington,” the church on which church-goers pride themselves as something that is worthy of this great and important parish, is in fact, garnished all over with images, or symbols, and may be considered a creditable mimick of antiquated masonry on a small scale. On this building, both architect and mason appear to have exhausted all the skill of their craft, to produce an edifice, which shall transport the sense of sight, if not the mind it influences, to those glorious middle ages, for the revival of which some few enthusiastic ladies and gentlemen of the nineteenth century are working so desperately. To be obliged to work with the materials of the nineteenth, must be a sad drawback on their enthusiasm. These *artists* devise all kind of means to give the charm of antiquity to their works, it is true; but there is an air of newness about Trinity, and such like buildings, which is any thing but pleasing, and which ill assorts with any notion of veneration. Some centuries hence, if Trinity does not share the fate of the Sheldon church, children may look on it with something like awe; and grown-up persons with pity for that generation, whose genius—able to make the lightning-force subservient to its will [\[151b\]](#)—able to contrive machines to carry the material form to which that genius is linked, sixty miles an hour with certainty and safety—able to raise structures which surpass in size and beauty, anything the genius of man ever before created, was yet unable to erect a house in which to worship its God, except in mimickry of forms suitable to the intelligence of past and darker ages. [\[152a\]](#)

At a distance, in Trinity, we see fair proportions and elegance of form, pleasing to the eye of all who admire the architectural art; on closer inspection, nuns and monks, and bishops, and kings, and monsters with faces which disgrace humanity; and beasts so detestably ugly, or so ridiculously grotesque, that young and old are arrested in their progress, and compelled to ask the meaning of it all. I have asked many persons, but none of them, being either masons or priests, could tell. This, however, every sensible man is beginning to tell to his neighbour, and pretty plainly too, that no priest or mason shall drag him back to the decorations and deformities of the fourteenth century, of which Trinity is a sufficient

example. “The Holy Blessed Trinity” is not understood when it is surrounded by an unintelligible mass of deformity; and that which has no meaning for the people, must be as repulsive in a material structure, as it is in a Divine Thought.

“Freemasons of the Church” do tell us, what those who are not freemasons, can easily imagine, viz., that many of the grotesque and disgusting gothic carvings, which still exist in and around the ancient churches, were placed there by monks, or monkish masons, as caricatures of their secular brethren, and others, who had offended them. Now, if the monsters with heads as large as life, who grin and gape with horrible contortions from the six pinnacles on each side of this church, are intended to be the monumental effigies of twelve of the preceding owners of the Paddington Estate, (those who have most grossly mismanaged and abused it,) let us be told so; and then I have no doubt some of the people of Paddington would enjoy the joke, as much as any Grand Master of the masonic craft; but it is really too bad to stick up unintelligible symbols, on and about that which is called a religious temple, and leave all the uninitiated to guess at their meaning. The days for such unenlightened and selfish craft are numbered; and the splitting of the foundation walls of Trinity, may be looked upon as an emblem of their fulfilment. ^[152b] *The people must be taught*; and that, too, without any previous oath-taking. Colleges, and crafts, if they are worth preserving, will endure without the pledges given to secrecy; if they are not, no preliminary swearing will enable them to maintain their ancient ascendancy. Priests and masons may fancy they still rule the world; and it may be that they do; but however much they may wish it, their reign will not be long, even if it is not now virtually ended. A third element has been admitted to power. People are teaching themselves the essentials of all government, and they must ultimately rule. Observers have long since discovered, that unfettered genius has done more for the world, than the most renowned systems; and they are no longer willing to assist in upholding those educational establishments, whose very foundations are laid in secrecy, cliquedom, and dogmata. To know what kingcraft can do for us, we may consult the history of our own James’s and Charles’s; to know what priestcraft has done for the world, we have only to read William Hewitt’s Popular History of it; and to prove what the masonic craft has not attempted to do, we have only to take a walk into “Milton’s Golden Lane,”

^[153] or any other of the many wretched lanes and alleys of this or any other large city. There is, however, an Immaterial Essence in this world of ours which no craft or cunning *can* “put down;” and, fortunately for the world, it is not *entirely* in the keeping of any craft.

The prelate who consecrated Trinity, is known to have been indulgent towards practices in the church, which had long since ceased to be observed. Reformation of some kind was found to be necessary, and practices distasteful to reformers, were introduced. None of those objectionable practices, however, were ever witnessed *within* any of the churches in Paddington; and this I look upon as an additional reason for inducing the people to ask the bishop, their appointed governor, to condescend to give them some satisfactory reason for the erection of these “ornaments,” which he has consecrated, and for which they have to pay. There is another course open to the bishop, which scarcely any one, with the exception of the architect, would be grieved by his adopting.

But to erect this structure, fitted, to all external appearance, only for the performance of the gorgeous histrionical ceremonies of the most depraved period of the Roman or Anglican churches, the people of Paddington have been, and still are, obliged to subscribe by “compulsory levy;” and having been thus made instrumental, willing or unwilling, in assisting to resuscitate the dry bones of a monster belonging to a former period, they were then asked, (like other people similarly situated) by their local governors, to assist them in laying the spectre that such follies as these had again presented to the mind of the English public.

And how; and at what cost was Trinity built?

In 1843, on the fourth of July, the Rev. Chairman of the vestry, informed that body, he had received a communication from the Rev. Mr. Miles, expressing his readiness to contribute £4000 towards the erection of an additional church in Paddington, upon a site already granted by the bishop and his lessees.

This, the third site, provided out of the four acres to be granted, according to the bishop’s last building Act, was a *deep hole*, which had been left at the point of junction of the Bishop’s-road with the Westbourn-terrace road; these roads having been raised by the Great Western Railway Company,

according to agreement with the owners of the estate, when the railway bridges were built. So deep was this hole, and so unfitted was it for the site of a church, that the parishioners would have been money in pocket, if the vestry had politely thanked the bishop and his lessees for their kindness in granting it, and bought the land somewhere else. But then that would not have done for the bishop and his lessees. They knew, and the builders who took their land knew, the increased value a church would give to the neighbouring ground; and, as it had been planned that the church would be better here than elsewhere, here it must be, or no where; although the foundations did cost the parishioners above £2,000; and although another thousand “would not have been lavishly thrown away, *had the proper authorities been sufficiently liberal in granting it!*”

On the tenth of July, at an adjourned meeting of the vestry, a committee was appointed to take Mr. Miles’s letter into consideration, to confer with the bishop, and to report to the vestry thereon. The only other important business done at this meeting, was, to agree to borrow £2,000, on the security of the church-rates, instead of £1,700, as had been previously proposed. This was to be raised to pay the debts of St. James’s, and the other churches. On the twelfth of June, the Vestry had pledged themselves to raise £2,000 towards increased church-accommodation, if the church commissioners would but pay the £2,000 they had promised. On the eleventh of December, in the same year, after receiving the report of their committee, the vestry agree to increase this sum to £6,000; “which they presume will be sufficient for the erection of a suitable church, with Mr. Miles’s donation, and such other sums as may be raised by subscription, and obtained from the church commissioners.” And on the second of January, 1844, a committee was appointed, with full powers, to build the new church.

On the sixth of February, 1844, a letter was read from the church commissioners, consenting to make a grant of £1,000 towards the proposed new church; upon certain conditions therein mentioned.

On the fourth of March, the new church committee report “that they find from the specification of the architect, that the expenses of constructing the foundation, on the site allotted to the church, will be so great as to prevent the possibility of erecting a suitable edifice thereon for the sum at the

disposal of the committee; and they therefore recommend that £2,500 *more* be borrowed.” On the ninth of March, it was resolved, that this further sum should be raised; and on the fifteenth of January, 1846, it was resolved, unanimously, by the Vestry, “That a sum of £13,000 should be raised under the provisions of the church building Acts, *on the credit of the church-rate, for the erection of Trinity Church!*”

To make assurance doubly sure, this sum was again voted towards the cost of building Trinity, on the twenty-sixth of March, 1846; and by the final report and statement of the committee appointed to build this church, dated twenty-ninth of March, 1847, we find the total cost of this building to have been £18,458 11s. 3d.; and says that report—

“The church accommodates 1,582 persons; 982 in pews; 600 in free sittings.

The Lord Bishop of London presented the font.

The Rev. John Miles, the incumbent, presented the large stained glass window, and the encaustic tiles in the chancel.

Henry Morris Kemshead, Esq. presented one of the stained glass windows in the chancel; the other three were by subscriptions from various persons.

George Gutch, Esq. presented the dial, fixed in the gallery under the organ.

Thomas Cundy, Esq., the architect, presented the carved stone altar piece.” [\[155\]](#)

A substantial parsonage-house, built at the north-west corner of the piece of ground surrounding this church, is occupied by the minister, the Rev. Mr. Miles, who is said to have given, in addition to his other donations, £500 towards its erection.

The extreme liberality in the contributions of the present incumbent of this church must be properly appreciated, even by those who do not admire being charged with church-rates to make up a sufficient sum to build a place of worship, into which they are never likely to enter; and the greater

part of the income from which has been previously secured on the minister, as a good investment for the capital he may have advanced—a plan of “getting up a church” now very much in fashion.

All Saints.

From 1841 to 1851, the population of Paddington increased on the average, *above two thousand one hundred per annum*; and the bishop’s rents increased in due proportion; but as the newcomers were almost all strangers to the parish, they had never, perhaps, heard one word of the History of the Paddington Estate. On this ignorance the owners of that estate must have relied, when they determined to saddle the rate-payers of Paddington with the expense of building and furnishing their churches, and with every other charge incidental to that Estate. But to enable the owners to carry out their project, the consent of the vestry of the parish must be first had and obtained; and to give this consent the vestry were not unwilling; for on the very day they voted away £13,000 for Trinity, they also bound themselves to raise, by rates and subscription, *or by rates alone*, £6,000 more for another church. ^[156]

The site for this church—a portion of the old reservoir,—had already been given up by the Grand Junction Waterworks Company, to the bishop and his lessees, as agreed upon, and enacted, by the 7th and 8th Vic. cap. 30.

On the fifteenth of January, 1846, the vestry resolved, “that it is expedient to build a church in Cambridge-place; and that a committee be appointed to consider the subject in all its bearings, and report thereon to the vestry.” This committee recommended that £4,000 should be raised by a loan on the church-rates towards the cost of this new building, the furniture, and fittings; that it hold 1,500 persons; and that the cost of the building should be limited to £6,000; £2,000 of which, they recommend, should be raised by subscription; but they recommend the works to be begun, when the subscriptions amount to £1,500; but not before. Their report was adopted by the vestry; it was at once resolved that the £4000 should be raised; that their old friends, the church commissioners, should be applied to for assistance; and that the vestry-clerk should write to the bishop of London, apprizing him of the day’s proceedings; requesting, at the same time, that

directions may be given to have the site of the church conveyed in the usual manner.

All this was to be carried into effect by the Trinity Church Committee.

On the third of March, a letter was read from the Church Commissioners, expressing regret that the state of their funds and urgent claims from various other quarters, would not permit them to make any grant of money, this time, towards the proposed new church; but as no more of these public funds could be obtained, the bishop sends word he will give £500.

On the twenty-sixth of March, a special meeting of the vestry is held, to pass unanimously, three resolutions, to enable the vestrymen to charge the rates with £19,000, for building Trinity and this church; they appeal again to the Church Commissioners for *a nominal grant “to establish the validity of their proceedings;”* and, considering the good and pious object, for which the application is made, the commissioners relent, and grant *one hundred pounds*. After much difficulty £19,000, is at length borrowed. But one Assurance Office, of high respectability, refused to have anything to do with this loan, even after the lawyers had put the parish to the expense of £32 17s. 10d. on account of it; £103 3s. being the amount of two other bills “for negotiating” this loan. [\[157\]](#)

But this sum was not enough to carry on the church account; another £1000 had to be borrowed of the banker, on the fourteenth of December, 1847; and above £100 interest was paid on that sum before the loan was returned. Some time after this, the committee report that the subscriptions for All Saint’s Church amount to £1,635 2s. 10d.; and that the cost of the building has been £7,434 18s. 2d.

This church is built in the early pointed style, and its internal fittings and decorations are exceedingly plain. It is capable of holding 1,500 persons; 600 free seats, and 900 appropriated, or pew sittings.

The amount of church-rate, *collected* for nine years, ending April, 1852, was £20,574 3s. 8d. Of this there was “balance in hand of £1,607 15s. 2d.,” but a debt of £14,500 was owing for churches which had been built. This debt is bearing interest at the rate of four-and-a-half per cent; and £900 is paid off annually. So that these four churches will have cost the rate-payers

of Paddington upwards of £40,000, over and above all the sums given by the Church Commissioners, Metropolitan Committee, bishop and lessees, all Parliamentary provision of the sites, and all private subscriptions; and this sum of money, with upwards of £10,000 paid for St Mary's, and the church-yard, will have been raised by "*compulsory levy*," from rate-payers of all denominations; while the receipts of "the rectorial and other lands" are quietly pocketed by the rector and his lessees!

But I have heard rate-payers told, as a great consolation, "that the churches of Paddington cost nothing in comparison to the churches of Marylebone." This however, may not be very consoling to those who know the cost of the following:—

Wesleyan Metropolitan Chapels, which have been recently built.

"Poplar chapel is of the decorative style, 105 feet long, by 60 feet wide; is built of Kentish Rag Stone, with Caen Stone dressings; will seat 1,500 persons; and cost about £4,000.

The New North-road Chapel, Hoxton, is Anglo-Norman, in style; is 35 feet long, including the vestries, by 52 feet wide; built of Brick and Bath Stone; will accommodate 1,200 persons; and cost £3,700.

The Chapel of St. John's-square, Clerkenwell, is built of Brick and Bath Stone; 70 feet long by 60 feet wide; will accommodate 1,300 persons; has a school-room, &c., and cost £4,000.

Jewin-street Chapel, is built in the Early English style; is 68 feet by 52 feet; seats 1,100 persons; is built of White Brick and Bath Stone; and cost £2,700.

The Islington Chapel, in the Liverpool road, measures 90 feet long by 54 feet wide; and will accommodate 1,500 persons. It is built of Kentish Rag and Bath Stone; is in the decorated style and cost about £6,000." [\[159\]](#)

But the actual cost of the churches of Paddington, is not the whole of the evil, though, considering all the circumstances, this is sufficiently oppressive. These churches, after all, are not free: pew-rents are obliged to

be taken for the support of the ministers; the poor parishioners have less than one-third of the room allotted to them, and a considerable portion of this space is reserved for the best singers, and most showy scholars of the church schools.

And after all this; after all the money raised “by compulsory levy” to build, furnish, ornament and decorate; and after all the pew-rents are paid; these churches do not pay their own ordinary expenses. No; not after there is added to this income the portion of the burial-fees received by the churchwardens; but this source of income, which has averaged for many years more than £350 per annum, must soon cease. So that dissenters and others, who reside even on a bishop’s estate, have a fair prospect of being called on to pay a church-rate, after all the churches which the rate-payers have built, shall have been paid for.

Towards defraying these ordinary expenses of the churches, the ministers of Trinity, and All Saints, contribute fifteen per cent. of the pew-rents received by them; the minister of St. James’s £200 per annum, the stipend set aside for the whole cure; the minister of St. John’s, *nil*. While for the last three or four years the pew-rents of St. Mary’s have more than met the ordinary expenses of that church; although there have been two Services performed in it daily during that period. And “increased church accommodation is loudly called for in Paddington!” How will the bishop of London, and his lessees, *now* answer to that call? Will the rate-payers of Paddington be left to answer it? Or, will the vestry of this parish, elected under the provisions of Sturges Bourne’s Act, be allowed, of their own mere motion, (without any reference to the rate-payer, or without any efficient representation of the case “in all its bearings,” to the bishop and his lessees), to take upon themselves to spend more of the rate-payers’ property? We shall see.

What *can* be done by those who care one pin about preserving a state-church; by those who have ground-rents to preserve, and lands and houses to be benefitted by offering to in-coming tenants church accommodation, we have already seen. But another example of voluntary church-building and self-support exists in this parish.

Mr. B. Macaulay tell us, when speaking of the revenues of the State, “experience has fully proved that the voluntary liberality of individuals,

even in times of the greatest excitement, is a poor financial resource when compared with severe and methodical taxation, which, presses on the willing and unwilling alike.” Those who govern the state-church, have had experience on this head; and without stopping “voluntary liberality” they deem it necessary, so long as a state-religion is upheld, to use “severe and methodical taxation;” and they employ all the powers the law allows them, to compel the unwilling, as well as the willing, to pay their appointed share of the particular tax raised for its requirements. But it is questioned by some most sincere and learned churchmen, whether this is good policy; whether the people love the church any better for being obliged to pay church-rates, when they see how the property claimed by the church is apportioned; and where they see, as in this parish, church property, much more than sufficient to supply their religious requirements, used, not for their benefit, as it was originally intended, but for individual advantage.

But to shew how thoroughly the religious forms of the state-church *can* be upheld by the voluntary system alone, even in a parish from which that church has derived vast sums of money, and to which it has returned so little, it is only necessary to mention that

The Chapel of the Lock Hospital,

is not only self-supporting, but a portion of the income derived from the pew-rents annually goes towards the support of the hospital and asylum.

The pew-rents of the Lock Chapel, for the year ending the thirty-first of December, 1851, amounted to £948 3s. 2d., ^[160] and this department of a charitable Institution, “after bearing all the expenses incident to its services, yielded to the Institution, the sum of £348 19s. 2d.” during the same period.

Another such an example as this, a third, might have proved too much; and it was not allowed to exist, although the foundations of the building were laid, and the means were in hand to raise the superstructure. The correspondence between the proprietor of the intended chapel, and the Bishop of London, on the subject of this new church, proposed to be built at Westbourn Green, must be fresh in the memory of most readers of the daily journals; and it is only necessary to refer those, who wish to know the history of an attempt to erect another church in this parish upon the voluntary principle, to that correspondence.

At the present time, the parish of Paddington is divided into five ecclesiastical districts; and the episcopal form of church-government and the present forms of the state-religion, are supported by accomplished clergymen, attached to the various places of public worship.

The people of Paddington see in their own parish an exemplification of that state of church economy, which is more or less prominently exhibited all over the country; they know the extent of the church-lands here; they know how they were acquired; they know for the performance of what duties these lands were granted; they see how the income from these lands has been disposed of; they know that the duties of providing for religion, and for the poor, have been transferred from the holders of this church-land, to those who occupy the houses which have been built on it; and they know

that a second Reformation is inevitable. So that, if the church ministers of this parish could report to their bishop, that no dissenter lived in this very profitable part of his diocese, it would convey to him no more accurate notion of the feeling of the people respecting the management of the state-church than the bishops conveyed to Laud “on the very eve of troubles, fatal to himself, and to his order,” when they reported to him “that not a single dissenter was to be found within their jurisdiction.” [\[161\]](#)

That those dignitaries of the church, who have taken upon themselves the disposal of the church-lands in Paddington, should have made such sorry provisions for the promulgation and protection of their own creed in this place, is much more surprising, than that they should have looked with no favourable eye on the diffusion of doctrines which differed, in any respect, from their own. To prevent, so far as in them lay, the erection of any places of worship, save those in which were taught the particular dogmas they revered, is but what experience teaches us, might have been expected, as it is well known to be the common practice of every dominant sect to permit no rival near its throne; or, if a rival is to be tolerated without a systematic opposition, it must be one that is not seriously antagonistic to its principles.

The Bishop of London, in his last Charge to his clergy, while guarding them against a too great leaning to Popish practices, told them there was less danger to fear from Rome, than from Germany. And, so far as danger to the peculiar dogmas, and the histrionic ceremonies we have seen spring up within the last few years, is concerned, all who know anything of the “Reformation of the nineteenth century,” as it is being developed in Germany, will readily admit. To get a good insight into the “Humane Reformation” now in progress not only in Germany, but in England and America, I must refer my readers to the little Work which has been published for the English reader by the great apostle of this Reformation, Johannes Ronge, and to which I have before alluded.

The present Bishop of London and his predecessors, I am credibly informed, have considered it to be their duty to prevent, so far as in them lay, the erection of any Dissenting place of worship in Paddington. But some part of the Paddington Estate was leased without any restrictive

provisions of this nature, therefore the whole of the land in Paddington is not now in the hands of a dominant church.

In 1816, a chapel, capable of holding six hundred persons, with school-rooms on the basement story, was built in Praed-street, on ground leased by the Grand Junction Canal Company.

This chapel, “The Tabernacle,” is now in the hands of a congregation of Baptists, who, to purchase and repair it, incurred a debt of £2,000. This they have paid off within the last ten years, over and above their contributions for the support of their minister. They also educate upwards of two hundred scholars; and twenty-three teachers give their leisure on the day of rest for this purpose.

There is a freehold chapel in the Harrow Road, at the entrance to Paddington Green; the Wesleyans have a chapel in the Queen’s Road, Bayswater; and the Roman Catholics are now building a large church at the western extremity of this parish, on a portion of that land, which was bequeathed by the Lady Margaret, to the poor. Another chapel, called “the Boatman’s chapel,” also exists in Paddington, on the ground leased to the Grand Junction Canal Company. This place of worship, which is capable of holding two hundred persons, was constructed out of a stable and coach-house, at the expense of a few pious individuals, who saw how much the poor boatmen wanted the advantages which accrue from religious instruction, and how little likely they were to get it in a parish-church which could not hold one-fourth part of the settled inhabitants. This little place of worship is in connection with “Paddington Chapel”—a place of worship belonging to the Independents. To attend the latter, the people of Paddington have to cross the Queen’s highway; as they have, to go to the chapels in John Street, and New Church Street.

These very commodious places of worship in St. Marylebone, are served by learned men, who believe that the religion of the poor carpenter’s son needs neither rich bishops nor rich endowments, to preserve its existence in this world; and they are supported in this belief by a very considerable number of tenants on the Bishop of London’s Estate.

CHAPTER IV.

SCHOOLS—CHARITABLE INSTITUTIONS—PUBLIC ESTABLISHMENTS AND
ESTABLISHMENTS OF PUBLIC UTILITY.

A SUNDAY SCHOOL, in connection with the Church, was established in Paddington, during the last century; but it was not till the beginning of this, that any public means of instruction existed for the children of the poor on week days. Lysons, in his second Edition, tells us that “A charity school for thirty boys and thirty girls was established in this parish in 1802;” and that it was “supported by voluntary contributions, and the collections at an annual charity sermon.” This public day-school for poor children was one of the first established in the outskirts of London; and the school room was built on that land which is said to have been given by Bishop Compton. But this building was but small; for it held only one hundred children; and in 1816, it was discovered that there were 1508 children under twelve years of age, living on the south side of the canal only; and it was supposed that four hundred of these were between seven and twelve years old.

The curate of the parish and other influential inhabitants, seeing this great field open for profitable cultivation, got up a Committee, to devise ways and means to effect so desirable an object. This Committee reported to the vestry, in March, 1818, that “the Bishop of London, as the most extensive proprietor as well as the patron of the church, &c.” had been consulted on the propriety of establishing a school for three hundred children; which they calculated might be supported for £175 per annum, while the expense of building the school room, was estimated at £650; and they further reported to the vestry, that the bishop expressed “his hearty good wishes for its success.” But as “hearty good wishes” did not build or endow the school, it was not built till some years after this time; and then, not by the bishop, or his lay lessees.

As we have already seen, the proceeds of the sale of waste lands were devoted to this purpose; Denis Chirac’s legacy, which, with interest, now amounted to £170 3s. 10*d.*, and a donation of £130 from Baron Maseres, one of his executors, being added; and in 1828, the vestry resolved to devote two-thirds of the proceeds of the copyhold estate to the support of this school.

When the Act of 1838, relative to the freehold estates, was obtained, a re-arrangement of these funds was made; and three-fifths of the whole estates, freehold as well as leasehold, were appropriated “towards the support of the *Paddington* Parochial National and Infant Schools.” The new school rooms were built in 1822 on Paddington Green, or rather on a part of the site of the “town pool;” and in 1831, other school rooms, in connection with that system which is called National, were built at Bayswater.

In 1840 the parochial school-rooms of St. John’s district were erected in Tichbourn Row; and the new schools, built at the back of Stanley Street, and St. Mary’s Hospital, in the district of All Saints, were opened in February, 1852.

The Rev. F. C. Cook’s “Report on Schools in the Eastern district,” published in “Minutes of the Committee of Council on Education 1845,” contains a full account of those schools then in operation; and the following extracts are taken from it.

In 1845, the number of scholars was as follows, viz., in the schools on Paddington Green, April fifth and sixth, “200 boys present, total 210; 115 girls present, total 131; 180 infants present, total 190.”

“Titchbourn Street, second of April, Boys present, 167; total, 190. Girls present, 91; total, 109. Infants present, 151; total 200.”

“Bayswater, twenty-fifth April. Boys, 106; girls, 49; infants, 60.”

The masters and mistresses of these schools, and of the new school, have kindly furnished me with the numbers now in attendance; they are as follows:—

	Boys.	Girls.	Infants.
Paddington Green	174	98	150
Bayswater	168	100	160
Tichbourn Street	184	113	217
All Saints	140	138	174
Total	666	449	701

Mr. Cook reported, that at the schools on Paddington Green, “the boys and girls are instructed in two rooms, well-built, warmed and ventilated. The building handsome, and well arranged.

“Boys: instructed by master, with pupil teacher, seventeen years old, who was educated in the school. Arranged in six classes on the circulating system. The rewards for medals are books, which cost about £5 per annum. The attendance averages more than nine-tenths of the total number. Age of boys between seven and twelve, excepting ten boys near thirteen years. Many boys have been in school from infancy. There is an increase of fifty since the last inspection. The fluctuation in the numbers not considerable. Boys are very healthy and cleanly in appearance. The discipline is nearly perfect.

“The general proportion of instruction in the several classes is somewhat advanced since last year. In the first class of fifty boys, averaging eleven years old, and three years in school, twenty-five work a sum in practice, 9860874, at £35 10s. 6½*d.*, with ease; the others compound rules and proportion. Write exceedingly well from dictation, and some good abstracts. Geography, grammar, and etymology well taught. Read History of England fluently, and are acquainted with the facts. Learn linear drawing, and music on Hullah’s method. The lower classes are advancing in due proportion to age and time in school. The religious instruction throughout is good.

“Generally speaking, methods of teaching are those of the National Society.”

“Girls: instructed in two rooms, and four classes, by mistress, assistant and monitors. From seven to thirteen years old; fifteen, between twelve and thirteen.

“The manners of the girls are very pleasing, and the school is in good order.

“All can read from easy narrative, to the third book and History of England. Eighty read with ease in the third book. Good secular reading books in all classes. Writing on paper, ninety in books, and from memory, neat and accurate. Ciphering to compound rules, with practical questioning. The first class learn geography and grammar very well; the

religious instruction in all classes is remarkably good. Needlework is very well taught; thirty can fix a shirt.”

“Infants, one hundred and eighty. Conducted by a mistress; assistant employed in managing, not in instructing the children. A handsome, well-arranged school, with abundant apparatus. All infants between two and six years. The infants are cheerful, orderly, clean, and fond of their mistress. It is peculiar to the school that the mistress teaches all the children to read, &c., without monitors. The result is that they are more advanced than in good infant schools conducted on the usual system; seventy read in books; twenty very well; and twenty write sentences on slates, twenty, words; and thirty, letters; all elementary subjects are well-taught. Children are well acquainted with scriptural history, and give more intelligent answers on meaning of words and sentences than is usual in good schools. The mistress is an able teacher, and devoted to her duties.”

Mr. Cook adds, “I have recommended many clergymen to visit these schools, as among the best and most complete in London.”

And he concludes this part of his report by saying, that “in addition to these nine schools, it is intended to erect others in the neighbourhood of the new church, which will make altogether provision for the instruction of 2000 children, in a population of 25,000. The present schools cost nearly £1,300 per annum.” The expenditure of these schools varies, as a matter of course; and this sum must not be taken as the present expenditure. The new schools will cost £400 per annum, in addition to this sum; and I find that in 1847–48, the total expenditure of St. John’s schools for the year, amounted to £591; the income being made up of £336, subscriptions, donations, and collections; £140 paid by scholars in the form of “school pence;” and £115 from other sources. By another report I find that the sum paid by the children at Paddington Green, amounted in the year to £130.

All these schools have received, and continue to receive, grants from the Parliamentary Fund. For the year ending thirty-first of October, 1850, I find the schools on Paddington Green, had an award of £135 10s.; Bayswater, of £67 10s.; and St. John’s, of £65 10s., “to apprentices and teachers, for their instruction;” with an additional grant of £9 7s. 2¾d., to St. John’s for “books and maps.” The Government grant for the All Saints

schools was £180; the cost of the site, £640, and the building of these schools amounted, altogether, to £2,173 7s. 0d.; which sum was raised by donations and subscription from the inhabitants of the parish, with the exception of the grant just mentioned, and one hundred pounds given by the Bishop of London. But before these new schools were erected, the population of Paddington numbered upwards of 46,000; and 1816, is the actual number of scholars on the books of the twelve schools at the present time, (January, 1853).

From the “Blue Book,” which contains the answers to Questions on education, printed by order of the House of Commons, twentieth March, 1835, we learn, that the first infant school in this parish was commenced in 1833; that it then contained fifty children of both sexes, and was supported principally at the cost of the individual who established it, but partly by the payment of two-pence per week from the parent with each child. We are also informed by this inquiry, that a school for fifty females was established at Bayswater, and supported by Mrs. Sutcliffe, of Orme-square. From this “Blue Book” we also learn, that to each of the four “day and Sunday National Schools,” and to two of the Dissenters’ Sunday schools a lending library is attached, a most excellent provision which has been extended since that period to the other schools; but the books are obtainable only upon the scholars conforming to certain regulations.

Although the reports of the Tichbourn-street, and Bayswater schools, were not quite so favourable, in 1845, as the Paddington-green school; and although from subsequent reports, we find the Paddington-green schools suffered from change of teachers, while the others were more favourably reported on, yet the published annual reports of the Inspector, to which I must refer for further information, shew that, on the whole, the schools of Paddington may be looked on as amongst the best of those which follow the peculiar methods of teaching laid down by the “National Society.”

The masters, and mistresses, and those who have the management of these schools, evidently do their duty; and the instruction given is highly valuable. But whether it was right to apply the proceeds of the sales of waste lands, and three-fifths of all the charity estates of this parish, exclusively to those schools which adopt the methods of teaching instituted by the “National Society,” may, I think, be justly questioned; seeing that the

greater portion, if not the whole of that property, was given to the poor *generally*, and not to those *only*, who were willing to have their children taught a particular Catechism, and a particular Belief.

Out of Paddington there are systems of teaching, which do not base themselves on peculiar and sectarian tenets; and in which, learning controversial portions of scripture, in “proof” of the truth of a catechism, does not form an essential element. Many learned men, whose religious principles cannot be called in question, do not approve of this catechism, or of this teaching; and they believe the first Society established, the British and Foreign School Society, advocate a system more *national* than that of the self styled National Society. “Rational Schools,” too, are not unknown—even within “a stone’s throw of the High Court of Chancery” ^[169]—but Dr. Birkbeck’s plan is *too rational* for the Parochial schools of Paddington.

The foundation stone of the “Westbourne Schools,” conducted on the “Glasgow Training System,” was laid on the thirty-first July, 1850. This excellent establishment, which is in connection with the Lock Chapel, is built by the side of “the green lanes,” (the old road which led from the Great Western-road to the Harrow-road,) and is now in full operation.

The different congregations of Dissenters, too, have schools attached to their respective chapels; and the Roman Catholics have built a large school room in connection with their new chapel.

There are, also, many excellent private schools in Paddington; but of schools strictly private, I have nothing to say.

In July 1848, the “Paddington Wharfs Ragged Schools,” for infants, girls, and boys, were opened in Kent’s place; but in December of the same year, larger premises in Church-place were taken. These have been found too small, and the Committee have incurred a considerable expense in making them more convenient. The average attendance is set down in the third annual report at one hundred and ten infants, thirty girls, and forty boys. In the adult schools there were twenty pupils; and the scholars in the evening and Sunday schools vary from forty-five to ninety. The current expenses for 1851, amounted to £206 7s. 5d.

There are two small establishments at Bayswater for female orphans. The one called the "Orphan Asylum," was instituted in 1833, by Mrs. Sutcliffe and other ladies connected with the private charity school, which was supported for many years by that lady's generosity. The other, called the "Bayswater Episcopal Female Orphan School," was established in 1839. The former of these establishments contained fourteen female orphans in 1851, the current expenses for the year, being £251 4s. 2¾d. In the latter, in the same year, there were sixteen orphans, and the expenditure amounted to £335 17s. 6d. Both institutions are supported by voluntary contributions.

Queen Charlotte's Lying-in-Hospital, now situated in the New-road, was originally established in Paddington; Lysons tells us the Naval Asylum was removed to Greenwich from this place; and the "School of Industry for Female Orphans," which was "instituted in Church street, Paddington Green, in 1786, for the maintenance and education of twenty-four children" is about to be removed to their new premises in St. John's Wood-road.

"The Paddington Visiting Society," was established in the year 1838; its objects being "to promote the religious and moral improvement of the poor, in co-operation with the parochial clergy, to relieve distress and sickness, to encourage industry, frugality, and provident habits, and generally, to cultivate a friendly intercourse between the poor and the wealthier and more educated classes of society." It was proposed to effect these objects by means of district visiting, in connection with provident institutions, and visiting societies or church associations. The Provident Dispensary in Star-street; Provident Funds, and lending libraries connected with the schools; and the Paddington Savings' Bank, have arisen out of this parent Institution. And, although some of the district visitors may have been over ardent in pressing on the poor, the necessity of observing certain forms, as one of the conditions of their assistance, yet undoubtedly these associations have done much good. I must refer to the annual reports of these charitable Institutions for the detailed account of their operations; but I may mention here, that the church association in connection with St. John's District, collected during the year 1851, £1,105 10s. 2d. besides £128 1s. 0d., contributed to a fund, called the "additional curate's fund," "designed for the increased visitation of the sick and poor at their own houses, and the maintenance of a daily service in the church."

The block of small alms-houses at present existing in the Harrow-road, said to have been built in 1714, on a portion of what had been Paddington Green, is the oldest charitable building in Paddington; but the endowment, if there ever was one, has merged into other estates; for no endowment now exists. Sixteen poor old women belonging to the parish, are still supported there out of the poor rates; but the inmates think themselves not so far degraded as they would be, if obliged to become tenants of the great parish poor-house; although in the latter they might have a less confined crib, and perhaps, a more generous diet; but *there* they would not be free. Now they can ramble about at pleasure; and when at home, for each little room is a home, they can dwell upon the remembrance of those pretty little flower gardens, which formerly existed in front of these almshouses, and which may have attracted them in their younger days, when perhaps, they little thought of becoming the recipients of alms. With the alteration of the Harrow-road, which added “thirty feet in depth” to the church-yard, and I presume the same quantity to that strip of the Green, which was so kindly offered to the parish for four thousand pounds, and a portion of which was purchased for £2,000, these little attractions vanished; and a considerable portion of the “thirteen feet ten inches” of flower garden, which existed on the north side of this charitable institution, now forms a part of the altered road; while on the garden to the south, the vestry-room, the police-station, the infant-school, and other buildings, have been erected.

The great charitable Institution of modern Paddington, is St. Mary’s Hospital, situated in Cambridge-place. “Its establishment was commenced in 1843, and His Royal Highness Prince Albert was pleased to lay the first stone on the twenty-eighth of June, 1845.” Thomas Hopper, Esq. made the design gratuitously; and Mr. Winsland’s tender of £33,787 was accepted for the building; which, when complete, was intended to hold 380 beds.

A portion of this building, “with all the requisite appurtenances, capable of containing 150 beds,” was opened for the reception of fifty patients on the thirteenth of June, 1851; 332 patients were admitted into the wards of the Hospital, during the first six months; the average duration of their stay being twenty two days.

Mr. Winsland’s original tender was for the whole building, included “in five separate divisions;” and a certain portion was to have been completed

within a specified period, but the sudden death of the contractor is said to have thrown some obstacles in the way of its progress. There must have been some alteration, too, in the original design, or some sad miscalculation in the contract; for instead of a building capable of containing 380 beds having been erected for £33,787, I find by a “statement and appeal” published by “the Bond of Governors” in 1851, that there had been expended the end of that year £33,806 5s. 3d. “on account site and building,” *as it then existed*: £1,776 6s. 9d., in addition, had been expended in furnishing; and £1,223 3s. 2d., for the maintenance of the fifty beds for six months. The estimated sum “to maintain the establishment of 150 beds, and to defray the expense of out-patients,” was calculated at £4,400 per annum; £300 additional being required to support the maternity department.

At the present time there are 150 beds for patients, the total number the present building is capable of containing; and attendance on the practice of this Hospital is now recognised by the medical examining boards—the medical staff having been complete from the first opening of the establishment. This staff consists of three Physicians, and three Assistant Physicians; three Surgeons, and three Assistant Surgeons; a Physician-Accoucheur; a Surgeon-Accoucheur; an Ophthalmic-Surgeon; and an Aural-Surgeon; all of whom perform their respective duties gratuitously. There are also two resident medical officers, and a Dispenser. There is a paid Secretary; an Assistant Secretary; a Collector; a Matron; and a Chaplain; and the establishment is managed by a certain number of Governors elected on building, special, house, finance, and medical committees; subject to a code of laws, and, in most instances, to the will of the whole body of Governors.

“Every subscriber of three guineas or upwards annually, is eligible to be elected an annual governor; and every individual, making a donation of thirty guineas or upwards in one sum, is eligible to be elected a life governor.”

“Every governor, in addition to the privilege of recommending in and out-patients as a subscriber, has the right to attend at all, or any weekly, quarterly or special boards, and to speak and vote on all questions, and to vote on all elections which shall come before such board; &c.,” but “no

governor is entitled to vote on an election, until he shall have been a governor for a period of three calendar months.”

“Annual subscribers of twenty-five guineas, or *donors* of 500 guineas in one sum, have an unlimited right of recommending in-patients.

“Annual subscribers of ten guineas, or *donors* of 100 guineas in one sum, may recommend an unlimited number of in-patients, one in-patient only at a time in the Hospital.

“Annual subscribers of three guineas, or *donors* of thirty guineas in one sum, may recommend three in-patients annually, and eighteen out-patients.

“Annual subscribers of two guineas, or *donors* of twenty guineas in one sum, may recommend two in-patients annually, and twelve out-patients.

“Annual subscribers of one guinea, or *donors* of ten guineas in one sum to the maternity fund, may recommend three patients annually *to that department*; and three additional patients for each guinea annually subscribed, or each donation of ten guineas in one sum.”

But, although great sums have been already subscribed, and although these inducements to subscribe have been held out to the charitable, the Hospital is already in debt; and the advertisements declare that “to maintain the present number of in-patients, and to supply medicine for a very large number of out-patients, the amount of annual subscriptions is quite inadequate.”

From what has been seen in the previous part of this Work, it may have been thought that the site of this Hospital, with the whole of its enclosed ground, was the gift of the Bishop of London and the trustees of the Paddington Estate; but from a printed statement, dated the tenth of July, 1846, I find that this is not the case. The ground which was to be given up, according to the provisions of the 7th and 8th Vic. chap. 30, as a site for this Hospital, is said to consist “of upwards of three quarters of an acre;” “its value was stated to have been estimated at £3,885;” but “the trustees of the Hospital were required to pay £1,000, as an indemnity to the Grand Junction Water Works Company, to whom the ground had been leased.” Further, the Committee “deemed it expedient to purchase, at an expense of

£2,000 two adjoining pieces of ground, in order that the future governors of the institution should not be restricted in their operations for want of space.”

These pieces together, made “an acre and a quarter of land, being nearly half an acre more than the present site of St. George’s Hospital.”

Within a few yards of this large building, there is another charitable medical Institution, called the “Paddington Free Dispensary, for the Diseases of women and children.” This Institution, also, is supported by voluntary contributions; and a consulting physician; a consulting surgeon; two physicians; a surgeon; a dentist; and a secretary; give their gratuitous services to this charity. The report of 1851, states that 5,280 patients had been “admitted during the last year;” the expenditure of the whole establishment being but £218 18s. 0*d*.

In the same street—Market-street,—there is a “Refuge for the Destitute” supported by voluntary contributions. Here the houseless poor, to the number of 100, may obtain a bed and breakfast during the winter months; and here, winter and summer, the manager and his wife have been maintained for some years in very easy circumstances. [\[174a\]](#)

For the regular poor of the parish, a very excellent house has been built, at a cost of £11,431 9s. 11*d*., on a portion of five and a quarter acres of “the Upper Readings,” purchased of the Bishop of London and the trustees of the Paddington Estate for £5,168 15s. 0*d*. [\[174b\]](#)—By an “extract from the statistical and financial statements of accounts of the Board of Guardians,” I find that for the half year ending Michaelmas, 1851, the total number of paupers relieved was 1,054, viz.—in-door, 88 males; 126 females; 117 children. Out-door, 122 males; 289 females; 312 children. The collective number of days being 37,171. I also find, from the same official document, that there was an increase of 36 in-door, and a decrease of 160 out-door paupers as compared with the corresponding half of the previous year; that the total expenditure for the relief of the poor, amounted to £2,995 16s. 0½*d*.; that the sum of £1,130 10s. 8*d*. was repaid for “workhouse loan and interest;” and that the whole cost of the establishment for this half-year was £4,237 16s. 8½*d*.—£4,500 having been called for to meet the expenditure. The financial account closed with a balance in hand of £1,154 10s. 1*d*.

From the same kind of printed document, for the half-year ending lady-day, 1852, I find the total number of paupers relieved, was 1,070; viz., in-door, 70 males; 139 females; 101 children; out-door, 135 males; 290 females; 335 children; being a decrease of 120 out, and 26 in-door paupers, as compared with the corresponding half of the previous year; the collective number of days, being 36,738. The in-maintenance and clothing for this half-year, amounted to £892 16s. 9d.; the “establishment and common charges,” to £830 6s. 2½d.; the out-relief to 1,056 7s. 10¾d.; the lunatic charges to £315 14s. 7d.; and the extra medical fees to £27 4s. 0d., making the total expenditure for the relief of the poor this half-year £3,122 9s. 5d. Payment of interest, registration fees, &c., increased this sum to £3,474 18s. 11d. The amount called for this half-year was £2,700 0s. 0d., and £410 2s. 1d., was the amount of balance in hand.

The Lock Hospital, which adjoins the Work-house, was removed from Grosvenor-place to its present site, in 1842. This institution was founded in 1737, and no less than 60,502 patients have been treated at this Hospital since that date. The number of in-patients for 1851, was 388; of these 193 were females, and 195 males; during the same period 785 persons were attended to, as out-patients. Attached to this charity, and indeed forming an important portion of it, is “the Asylum.”

“The Lock Asylum was founded in the year 1787, by the Rev. Thomas Scott, the venerable commentator. It then occupied a building in connection with the old Lock Hospital. In 1842, it was removed to its present site, and in 1848–9, enlarged to its present dimensions. When first founded, the Asylum received only sixteen inmates; in 1842, it was enlarged so as to receive twenty; it is now capable of containing 100.

Since the foundation of the Asylum, 1,175 female patients of the Hospital have been admitted, a majority of whom have been provided with situations, restored to their friends, or otherwise comfortably settled in life.

There are now forty-seven in the Asylum.

Needlework is taken in at the Asylum, and the payment for it constitutes a valuable addition to the receipts of the Institution. A laundry is open also for the washing of those families who may be willing, by sending the work, thus further to benefit the Asylum.”

Besides the chapel and the schools, which have sprung out of these charitable institutions, there are now connected with them and the chapel, the following societies, viz. The Westbourn Friendly Visiting Society, the Westbourn Provident Bank, the Lock Sunday schools, the Church Missionary Association, the Juvenile Missionary Association, the Sunday School Children's Missionary Association, the Church of England Young Men's Society; and the London City Mission.

The Public Establishments in Paddington, unconnected with particular forms of religion, are soon recounted:

Here there are no places for rational amusement—unless indeed, we consider such places as “the Flora tea-gardens,” and “Bott's Bowling-green,” to come under this designation. In that region of the parish still devoted to bull-dogs, and pet spaniels; the bodies of broken-down carriages, old wheels, rusty grates, and old copper boilers; little gardens, and low miserable sheds; there is an establishment, which boasts of having the truly attractive glass, in which “for the small charge of two-pence, any young lady may behold her future husband.” But although such attractions as these exist, the youths who live on the celebrated Paddington Estate, have not to thank the lords of the soil for setting apart any portion of it for their physical improvement; and yet for the efficient development both of mind and body, it is necessary that the physical condition of the young should be cared for. In Paddington, however, there is no public gymnasium; there is now no village-green, worthy of the name; ^[176] the young are not trained to use their motive powers to the best advantage; there are no public baths. And when, on the establishment of the baths and washhouses in Marylebone, the governing Body in Paddington was solicited to join in that useful work, that good office was rejected, and the people of Marylebone were permitted to carry out that necessary and useful undertaking by themselves. Perhaps the Paddington vestrymen thought there ought to be a bath, and a bath-room, in every house in Paddington; if so they certainly thought rightly. But how many of these necessary adjuncts to a healthful home are to be found even on the Paddington Estate, and what steps have our local governors taken to supply this want in the houses of the poor?

In particular religious communities, the education of those who can no longer be called children, is beginning to be attended to, in some degree; yet

there is no public lecture room; no museum; no public reading room; no place of general instruction in Paddington, where Jew and Gentile, saint and sinner, alike may meet to receive lessons from that fountain of truth which ought to be open to all mankind, irrespectively of their private religious opinions.

And yet in Paddington we see some of the most miraculous signs of the times. A city of palaces has sprung up on a bishop's estate within twenty years; a road of iron, with steeds of steam, brings into the centre of this city, and takes from it in one year, a greater number of living beings than could be found in all England a few years ago. The electric telegraph is at work by the side of this iron road. And by means of conveyances, open to all who have any small change, from sixpence to a penny, the whole of London can be traversed in half the time it took to reach Holborn-bar at the beginning of this century, when the road was in the hands of Mr. Miles, his pair-horse coach, and his redoubtable Boy. This coach and these celebrated characters were for a long time the only appointed agents of communication between Paddington and the City. The journey to the City was performed by them in something more than three hours; the charge for each outside passenger being two shillings, the "insides" being expected to pay three. The delivery of parcels on the line of road added very materially to Mr. Miles's occupation and profit; and I am informed that Miles's Boy not only told tales, to the great amusement of his master's customers, but gave them some equally amusing variations on an old fiddle, which was his constant travelling companion, and which he carefully removed from its green-baize covering, to beguile the time at every resting-place on the road.

When the Paddington omnibuses first started, the aristocracy of "The Green" were quite shocked at the disgrace thus brought on the parish; and loud and long were their complaints to the vestry, and most earnest were their petitions to that body, to rid them of "the nuisance." Since that time, however, greater folks than those of "The Green" have not objected to be seated in these public vehicles; and so useful and necessary to the public have they become, that one Company of Proprietors of Paddington Omnibuses has had in use 700 horses at one time. And, if the Paddington omnibuses were improved, as they easily might be, they would be much more useful than they are at present.

The glory of the first public Company which shed its influence over Paddington, has in a great measure departed; the shares of the Grand Junction Canal Company are below par, though the traffic on this silent highway to Paddington, is still considerable; and the cheap trips into the country offered by its means, during the summer months, are beginning to be highly appreciated by the people, who are pent in close lanes and alleys; and I have no doubt the shareholders' dividends would not be diminished by a more liberal attention to this want.

If every one had their right, I am told there would be a wharf, adjoining this canal, open free to the people of Paddington, for loading and unloading goods. It is certain that the old road to Harrow was never leased to the Grand Junction Canal Company; but a wharf, upwards of one hundred feet wide, now exists on a portion of that road; and, as I am informed, the rent of this wharf is not received by the parish. I was promised, twelve months since, that the claims of the parish to this wharf should be inquired into; but as yet no such inquiry has been made.

At the western extremity of the parish, there is an artesian well, to which the name of "the Western Water Works" has been given; the water from which supplies the houses, which have been built on that clayey district. The west Middlesex, and the Grand Junction Water Works Companies supply the other parts of the parish.

The Imperial Gas Company have supplied the parish with gas, since its first introduction into Paddington, in 1824.

A new station and hotel, now nearly finished, will make a fine terminus to the Great Western Railway; and add to the many showy buildings, which have been erected in Paddington, within the last few years.

CHAPTER V.

A REVIEW OF THE CONDITION OF THE PARISH AND THE PEOPLE, AT VARIOUS PERIODS OF THEIR HISTORY.

THOSE people who have been the most completely governed by ecclesiastics, are proverbial for having made the slowest progress in all the elements of knowledge which concern man; and the people of Paddington

formed no exception to that rule which has been found to hold good in other places. Here, as elsewhere, the spiritual governors of the people made but poor attempts to develop the mind; and those to whom they deputed this duty, took care to follow the example set them by their superiors.

To keep the breath of life, the living soul, under subjection by the agency of superstitious dogmas and by threats of everlasting punishment, was attempted for ages, and is even now attempted; but the world is freeing itself from the government of organised crafts; and it will soon be useless—in spite of all the vain efforts which are now being made—to attempt to teach the people that the greatest virtue is *to believe and obey*, without the exercise of reason; and that the greatest vice consists in doubting the power of symbols to save.

Although the people of Paddington lived at so short a distance from the two rich cathedral marts of London and Westminster, they made no greater advances in civilization for many centuries, than did those who lived in the most remote village in England. The few people who did live here, were wholly agricultural; and they owed every useful lesson of their lives, much more to their own intelligence and observation, than to any instruction given them by those who were well paid to be their teachers.

Paddington, however, is no longer what it was; the lay element, independent of all craft, has thoroughly diffused itself through the country; and its advent in this place, though attended with much cunning, was the real cause of the wonderful transformation which has taken place here within the last half-century.

The Reformation and the Revolution added to the numbers and importance of the people; and the execrable act of that vain braggart, who wildly called himself the State, not only increased the population of Paddington, but brought out to useful purpose the christian virtues of the residents of this village. Here, on the revocation of the edict of Nantes, many of the exiled protestants of France found a home, which had been denied them by their *great King*; and here, too, the memory of their sufferings and virtues will be kept green, so long as one of their graves shall be permitted to remain in the Old Church-yard.

It is impossible to tell what number of persons lived in this parish, at any one period previous to the present century. The oldest Parish Register, now to be found in Paddington, is dated 1701; and all the written proceedings of the rate-payers in vestry assembled, previous to the second of April, 1793, are said to have been burnt, lost, stolen or destroyed. The only sources from which I have been able to form any conjecture respecting the ancient population of Paddington, are, therefore, necessarily very imperfect, and open to many objections.

By the Subsidy Rolls, however, we discover the names of those who were rated in particular places, at different periods, when the respective subsidies were levied; and although their tombstones may have crumbled into dust, or may have been removed by Act of Parliament, and sold “for the best price that could be got,” yet in these tax-papers their names may receive a notice which will, for centuries, preserve their memories.

From the Subsidy Roll of the sixteenth year of Henry the eighth, I find that twenty persons, then living in Paddington, were taxed for the subsidy levied that year, although the amount of tax collected in this parish was but forty-eight shillings. All the heads of families might not have been included in this levy; but, if we suppose that all were included, and that each of these twenty persons represented a family, and if we calculate further five individuals for each family, we shall make the population of Paddington, in 1524, one hundred; which in all probability, was not very much under, or over, the number at that date.

The value of land, goods, and wages, on which this sum was assessed, amounted to £77 6s. 8d. But if these descriptions of property were all charged in this Subsidy, they were not taxed in the same proportion, on the capital sum assessed; for, although the wages of the labourer were taxed, they were taxed at only one-and-a-quarter per cent.; while goods were charged two-and-a-half per cent.; and land five per cent. So that, three hundred years ago, a more equitable property-tax existed, than that which is the result of present legislative wisdom.

In the thirty-fifth year of the same reign, the valuation for this parish was raised to £272 13s. 4d. Fifteen families only, however, were included in the subsidy for this year—land and goods alone being charged.

In a Subsidy Roll, of the thirty-ninth, of Elizabeth, Marylebone and Paddington are united, to produce a small sum.

In a Subsidy made in the eighteenth year of James the first, the name of Sir Rowland St. John occurs, as I have before observed; and, as this is the first time I find the name of a lessee of the manor on these Rolls, I am inclined to think Sir Rowland was the first lessee, who lived on the Paddington Estate.

It was not the son of Sir Rowland, but another Oliver St John, a relative of this Knight of the Bath, to whom the people owed so deep a debt of gratitude. That man of noble birth and noble mind, opposed the Tyranny of his time, not only in thought, but in word and deed; for he was one of the brave soldiers of that army, which fought and bled for the liberties we now enjoy; and the people of Paddington who preserved the sacred mound of liberty, which they erected within sight of his relatives' windows, must have felt themselves ennobled, when the Lion settle echoed his valorous deeds. The people of Paddington knew the value of liberty, if their lords did not; and the public houses which were the only celebrated institutions in this rural village, were their debating clubs. Two, at least, were in existence, before "the house for two tenants" was occupied by the lord or his lessees; for they claim to have been established before the Reformation. There are three lions still in Paddington, each contending for the most ancient origin. The "White lion," in the Edgware-road, was established, according to the date on its present facade, in 1524—the year in which hops were first permitted to be imported, to preserve our beer. The "Red Lion," in the Edgware-road, near the commencement of the Harrow-road, claims a more ancient date for its establishment. In one of its old wooden chambers, taken down, some few years ago to make room for the present house, tradition tells us Shakspeare played; [\[182a\]](#) and many a story has been told of the haunted chamber in this house, as well as of that in the Manor House. The other ancient "Lion," also "Red," is situated in the Harrow-road, having taken up its present position as near to its old quarters, as the alteration in that road would permit. This house was formerly situated near the bridge which carried the Harrow-road over the bourn; and was, as I conceive, the property described in an Inquisition, held the second year of Edward the sixth,—vide p. 51—as the "two tenements, called the Bridge-House."

There is a younger Lion, “Black,” but still of some pretensions to antiquity, standing in the Uxbridge-road; there is also an ancient “Pack Horse,” in the Harrow-road; and at the corner of Old Church-street, in the Edgeware-road, there is a “Wheat Sheaf,” which has the credit of having frequently entertained honest and learned Ben Johnson; so that, if learning and science were not allowed to flourish in the churches and other public buildings of Paddington, the ale houses, in some degree, attempted to supply the defect.

From the *Index Villaris* of 1690, I find there were “more than three gentlemen’s seats” in Paddington, at that date. Probably there were four—Westbourn Manor House; Paddington Manor House; Desborough House; and Little Shaftesbury House; the two latter names pointing out their original occupants.

Although I am not now able to offer any positive evidence in proof of Desborough House having belonged to the celebrated Colonel, who was related to Cromwell, and whose doings in the Commonwealth are so well known, yet I have met with many circumstances which incline me to this belief.

Lysons tells us that Little Shaftesbury House was built by “The Earl of Shaftesbury, author of the *Characteristics*, or his father the Chancellor.”

There can be no doubt but the population of Paddington was considerably increased, when the manor and rectory fell into lay hands; and by making the same computation as before—five members for each family, ^[182b] we shall find that by 1685, it had increased to upwards of three-hundred; for, in the twenty-fifth and twenty-sixth Charles the second, sixty-two persons are charged for 267 fire-hearths in Paddington: John Ashley, the gentleman who made the greatest smoke in the parish at that time, being charged for sixteen.

John Hubbard is not included in this impost; for he did not live to see all the good results produced by the Restoration, having died, according to his tombstone, in 1665, “aged 111 years.” ^[183a]

Lysons has omitted to notice this patriarch in his list of cases of longevity. “Whether he abstained from doing so, because John was *in some way* related to the venerable lady of that name, and because his tomb was too

well known to require mention, I cannot say. Seeing, however, this tomb exists when others of more recent date are not to be found, I am inclined to believe some such historical interest must have attached to it, or it would have shared the fate of others. At all events, from John's Diary, if he kept one, many a story as good as Old Mother Hubbard's could have been made.

In another part of the church-yard, on the end of a plain, flat stone, we may read these words:—

Sacred to the Memory of Sarah Siddons, who departed this life, June 8th, 1831, in her 76th year.

“Blessed are the dead which die in the Lord.”

Mrs. Siddons lived at one time in Paddington; but Mr. Cunningham tells us, in his Hand-book for London, that the pretty little house and grounds which she occupied, were destroyed, to make room for the Great Western Railway; Desborough Lodge, however, in which I am informed she lived, still stands in the Harrow-road, a little south and east of the second Canal bridge. [\[183b\]](#)

Poor Haydon, who devoted “forty-two years to the improvement of the taste of the English people in high art,” lived in Paddington; and his shattered corpse was placed near the spot, where Mrs. Siddons was buried. At no great distance, Collins, the painter of English coast and cottage scenery, lies. And Dr. Geddes, the “Translator of the Historical Books of the Old Testament,” was buried in Paddington Church-yard. His surviving friends could engrave on his tombstone the following sentence from his works:—

“Christian is my name, and Catholic my surname; I grant that you are a Christian as well as I, and embrace you as my fellow disciple of Jesus; and if you were not a disciple of Jesus, still I would embrace you as my fellow man.”

Yet, because he dared to express his honest conviction, as to the real origin of the Books he had taken so much trouble to translate, he was condemned and despised by many zealots, who thought their hatred a Christian act; and “public censure was passed upon him by the Vicar Apostolic, of the London district.” The Life of this great scholar, and good man, was published by Dr. Mason Good, in 1803.

Banks the sculptor; the elder George Barret; Merlin the mechanist; the careful sculptor Nollekins, and his father; the Marquis of Lansdowne, without a word to mark his tomb, and many other notables; lie buried in this church and churchyard. But, although thoughts are to be picked up, by day as well as by night, in a ramble among the tombs, it is not my intention to copy all the grave-stones, or to encroach on the province of the biographer, or village barber, if there be one such useful gossip still remaining among us.

For a sketch of a people, whether forming a parish or a nation, it is better to go to their laws, and observe the effects those laws have produced; than to rely on any description of individuals, dead or living. With the exception of the ancient customs of the place, the common law of the land was the light which guided the people of Paddington, down to the middle of the last century. Then, as we have already seen, began the enactment of special laws,—laws which altered the relations between those who had duties to perform, and those who had rights and privileges to protect.

Previous to 1753, the people of this parish managed their own affairs without external aid, the influential inhabitants exercising their influence here, as influential people in all quarters of the world have done, either for their own, or the public good, according as their selfish passions, or the Eternal Truth, prevailed within them. Riches had their weight, as well as reason, even before Sturges Bourne and his system of plural voting, came to regulate and measure the powers of mammon in local elections. But in every system of government, the selfish rely on ignorance, more than on any other agent, for the preservation of their powers. When the ignorant, however, as well as the wise, were free to speak on local affairs, many unwelcome truths, which did not fall from the lips of the ordained teachers, must have reached the ears of “the jobbers,” within the walls of St. Katherine’s, St. James’s, and St. Mary’s. The meetings of the people, in these sainted places, for the transaction of their parish business, were open to all the inhabitants of the parish; and no local burden could be imposed without the sanction of the majority. No wonder, then, that those who did not reside in the parish, but who had determined to impose burdens on all those who did, should call to their aid a power never before felt by the people of Paddington: one, against which it was useless to rebel; and from the *justice* of which there was no appeal.

Private Act followed private Act, for the regulation of property, over which the people saw and felt, *they* had no control. And, when at length their voices were raised in no measured cadence, some against this grievance, others against that, the church was said to be desecrated, and polite ears could no longer listen to such a babel of tongues. A gag was provided. “A select vestry” was the instrument used. And among the many unjust and unwise laws “passed, to keep down the people, from 1817 to 1820, the most disgraceful era in our legislation,” “An Act for the regulation of parish vestries,” better known as “Sturges Bourne’s Act,” is to be found. In this Act there are, without doubt, provisions which were much required for the “regulation of parish vestries;” but I have never yet heard any reason, worthy a moment’s consideration, for the introduction of the third clause into that Act. This clause gives “one vote and no more” to all persons rated for property “not amounting to fifty pounds,” and adds one vote “for twenty-five pounds of annual rent, &c.” But “so, nevertheless, that no inhabitant shall be entitled to give more than six votes.” The principle, “that property should be properly represented,” is thus absurdly carried out: all those rated at £50 per annum, have double the amount of influence of those rated at £49; while those rated at £500, have no more power in the local election, than those rated at £150. But to such miserable shifts as these must legislation condescend, as soon as it swerves from the eternal principles of justice. Is it not of as much concern to the poor rate-payer, as to the rich, that the parish funds shall be well expended? And who can shew that the wisdom of a man can be measured by the size of his house; or by the amount he contributes to the poor-rate?

On the fourth of April, 1820, the Rev. Dr. Crane, the Lord Bishop of Exeter, and other influential inhabitants managed to establish “a select vestry” in Paddington; in which they and their friends had all the talk as well as all the work to themselves. But if this select body prevented the people talking, they prevented their eating also. The glorious parish dinners, at which the parish officers and their friends had rejoiced at the people’s expense, were discontinued by the bishop and his friends, in 1821; much to their credit be it spoken, seeing that at the beginning of this year it was discovered that there were no less than 824 persons in the parish who claimed relief as paupers—more than one-eighth of the whole population—and that out of these, thanks to the cottages, there were 635 legally settled on the parish.

In May, 1821, a general meeting of the inhabitants was called to consider, amongst various other things, the propriety of petitioning the House of Commons for a general law, to regulate the formation and maintenance of the highways on the north-west side of the metropolis; and so much was such an Act required, that it was resolved unanimously to petition. But when the petition was read, and considered, it was found to be so objectionable that it was as unanimously rejected. And by the thirtieth of March, 1822, the inhabitants had seen quite enough of the select vestry system; for on that day, when called on to re-appoint it for another year, they would not do so. But on the first of April, 1823, power was given to a committee of rate-payers to procure a local Act. A draft-bill was prepared by an experienced Parliamentary counsel, which was left in the hands of the vestry-clerk, for the inspection of the inhabitants; and it is said to have received “their cordial approbation.” Whether that clause which has compelled the people of Paddington, to elect their local governors, under the system of plural votes, received their approbation, we are not told; neither is it brought down to us by any authentic record, how many read and digested an Act, which contains no less than one hundred and fifty-five clauses, and occupies eighty printed Act-of-Parliament-pages. Whether its provisions were understood or not, however, the fifth of George the IV., chapter 126, received the sanction of the legislature on the seventeenth of June, 1824, and since that date all the provisions which have met with the approval of those who have been elected under it, have been carried into effect.

The cost of procuring this Act, is said to have been £1,088 14s. 6d.

During these two years of select rule—from 1820 to 1822—the path had been paved for the introduction of this local Act. A committee had been appointed early in 1822, to inquire into its expediency; spacious vestry premises and other offices had been built on a portion of the garden belonging to the alms-houses; and other preparations had been made to effectually take the management of the local affairs out of the hands of *the people*.

To find laws so comprehensive and wise, as not to require the tinker at every little exigency, which may arise in every little portion of the community, must surely be a proof of the wisdom of a people. To find it

necessary, constantly to alter general laws; and constantly to be called on to “stop gaps” by rotten bits of special legislation, which scarcely wear a single session, must as surely betoken want of foresight in the law-makers; or the approaching end of that system, which rests on so sandy a foundation. Five and twenty Acts of Parliament, at the least, have been passed specially to affect the property and people of Paddington; and when we think of these, in connection with the laws which apply to the people in general, we may not be surprised to find, now and then, even a local governor, elected under the aristocratic provisions of Sturges Bourne’s Act, lost amidst this heap of legislative wisdom.

Local self-government, and local taxation, are questions of the day; and are slowly, but surely, forcing themselves on the consideration of those who have to direct the affairs of “an Empire on which the sun never sets.”

Centralization, too, is under consideration; and, although in the objectionable sense in which this idea is generally understood, it has received the condemnation of the most acute thinkers of the present and past time, still it is supported by learned and powerful advocates, who profess to understand what government really is or ought to be. In every sense these subjects demand the attention of *the people*—not only on account of the enormous revenue annually raised by local taxation; but because all forms of government are in the crucible, and it is desirable for the benefit of all, that the best elements should be eliminated.

For the inhabitants of a particular parish or district to be permitted to carry out a general law which has been enacted by a whole people, according to the peculiar circumstances of their local condition, is a very different thing from giving to that district special privileges and laws, which may, and most likely would, become inimical to the public good. The circumstances of almost every place in England have so changed—not to say since their ancient municipal laws were enacted, but within the last few years—that radical alterations are absolutely demanded; and tinkering must soon end. But the spirit of self-government, and the desire for it, can never die, so long as the people understand the true value of liberty. And no system of centralization for the management of local affairs, can ever be rendered so palatable to the people of England, as to induce them to endure it, till mismanagement has attained a still higher point than it has yet reached—a

consummation many causes are now at work to secure;—or till the people have greater power over the actions of those who regulate the expenditure of the country—a principle of justice which must ultimately prevail.

That the whole of the people of Paddington, Marylebone, and Pancras, (at the last census, upwards of 371,000 souls,) should have but two “places and voices,” in the Commons’ House of Parliament, while a few hundred in other districts, have the same direct power over the legislative and executive administration of this country, is so monstrous a wrong, that some may imagine the people, who quietly submit to such anomalies, have reached a point at which power may be safely centred in a few hands. These are they, however, who do not clearly discern the signs of the times. Any thing resembling the tyranny of an absolute monarchy, or the despotism of a well-paid and idle oligarchy, is as detestable now, as ever it was to that people, who from their childhood are taught to adore liberty for its own sake, as well as for the fruits it brings forth. The Saxon people are patient, and endure much; but to educate their children to look upon thralldom as liberty, will never be permitted in England; and cannot much longer be tolerated in other countries.

Till private legislation interested itself in the affairs of the people of Paddington, the local government must have been of the simplest kind. They had, indeed, little to trouble themselves about on this score. Their church was provided for, very badly, it is true, by those who took care of the revenues which were given for its support; so that the churchwardens were not troubled with the collection of church-rates; and they had no archdeacon’s visitations to attend; so that no troublesome questions could be put to them by this once useful and important officer of the church. The overseer was equally unemployed; for at no time previous to the latter part of the last century, could there have been many poor. The culture of the land, and its attendant duties, found occupation and a living for all. Alms-houses for the aged and infirm were built, as we have seen, in 1714; but no other sort of poor-house was required; for the only idle people in the parish were the few rich families, who were privileged to live on the industry of others.

By the middle of the last century, nearly the whole of this parish had become grazing-land. In 1795, according to Lysons, there were upwards of

eleven hundred acres of grassland in Paddington; eighty four and a half acres only being arable, or garden-ground. And for a long period, the people who occupied the bishop's estate in Paddington, were as celebrated for the quantity or quality of their milk, as they are now for the number and size of their houses. One persevering and handsome guardsman, who had contrived to gain the good graces of a grazier's daughter, congregated cows here to such an extent, that all London rang with the number. "Nine hundred and ninety-nine" could he keep, but the black boggies always killed or ran away with his thousandth. ^[189] Whether these sprites were in league with, or in any way connected with, "Black Meggie," who always lay in the cow-shed at the corner of Tybourn Field, when not on duty, I cannot pretend to say. I am informed by a gentleman who was born in this parish, and who is no longer young in years, that he has heard the Tripod, which is represented in Rocque's maps, as standing at the junction of the Edgware with the Uxbridge-road, was only placed there when the good old English oracle had to execute her judgments thereon. And that this "three-legged mare," Black Meggie by name, was only a poor temporary substitute for the more ancient and formal "Tybourn Tree" which had been cut down by some daring fellows the night before it was to have been put in requisition for the benefit of a string of their friends. "Tybourn tree" had been removed from its old quarters, as we have already seen, and had been firmly erected, before Black Meggie's time, as one of the institutions of the country, on that which is now the Marylebone side of the Edgware-road.

At the beginning of the last century, next to the beautiful fields and quiet village, the gallows and the gibbet were the principal attractions in Paddington. At the beginning of this, "Tomlin's New Town;" the collection of cottages, west of St. George's-row; a row of gardens, and a large bowling-green, by the side of the Edgware-road, between Tybourn turnpike, and Paddington, were called into existence. These changes, in conjunction with the grand canal of Paddington, ^[190] obliterated in a few years the work of centuries; and succeeded not only in altering the whole aspect of the place, but in infusing another element of social life into the people. Lysons, writing in 1794, says "this parish being chiefly church-land, there has been but little increase of buildings till about four years ago; since which time a number of small wooden cottages, to the amount of nearly one hundred, have been erected a little north of Tybourn turnpike.

These cottages are let at from £7 to £12 per annum, and inhabited principally by journeymen artificers who work in London, forming with their families a small colony of about 600 persons.”

In the second edition of Lysons’ Work, published in 1811, he tells us these cottages were begun to be built in 1790. And he was informed by Mr. Pickering, the curate at that time, that before the second census was taken, they had increased to 600.

In Horwood’s large and beautiful plan of London, dated 1799, we find that a part of this colony, that lot of cottages built nearly opposite George-street, was called Tomlin’s New Town. We see, too, that St. George’s row was built at this time; that to the west of it a large building, called Trafalgar, existed; and that another plot of land had been covered with cottages. So that some portion of this colony was added to the people of Paddington, and these tenements to the Tybourn Field, before the bishop’s first Building Act, was passed. Whether these wooden houses were built in anticipation of that Act, by some one who had heard the tale of the tinker, who lit his fire, and boiled his pot, and erected his shed, all in one night, at the corner of old Church-street; and who could not be dispossessed of that land which he had so magically acquired; (a tradition which appears to have some reference to the establishment of Paedings New Town,) or whether these miserable sheds were built by the direction of the ground landlords, to give them a telling argument in favour of their private Act,—I cannot say. Both landlord and tenant, however, found the power of a modern private Act of Parliament, and the “journeymen artificers” had to “move on,” in order that Connaught-terrace, and better houses for the rich, might be built. The greater part of the enormous increase in the population between 1801 and 1811, was caused by the erection of these cottages, so very ill-suited for preserving health and life. They were soon filled, however, by the poorer class from the crowded parts of London; for pure air is more relished by the poor, than that which is fetid and foul, whatever the rich may say to the contrary. Give them but an opportunity of getting it, and see how greedily it is embraced; unless, indeed, the demoralizing effect of generations of bad education is brought into operation, to counteract this natural instinct. As fast as these cottages in the open fields were built, they were occupied; although those who were to reap the greater benefit of this more profitable occupation of the land, had made no provision for effective drainage,

security from cold and wet, or for proper ventilation:—essentials, without which all sanitary laws are put absolutely at defiance, however well the situation of a town may be chosen, or however provident the bountiful Giver of all good may have been in sending storms and winds, to disperse the natural accumulation of unwholesome gases in certain localities.

Messrs. Pulford and Erlam, two surveyors, in their report to the vestry on the state of these cottages, in 1816, say, “we cannot refrain from thus recording our expression of regret, that the ground-landlords should be so inordinate in their demands. The effect of which is, the buildings are ill-calculated to afford shelter from the inclemency of the weather, and the want of drainage and consequent damp produce disease, filth, and wretchedness.” And so, these Paddington cottages, which were for so many years so prominent a feature in the parish, and which were so much sought after by the poor, as a sort of country-retreat, were in fact, the generators of “disease, filth, and wretchedness.”

During the long winter-evenings, the muddy roads which led to these cottages, were in total darkness, unless “the parish lantern” chanced to offer its acceptable light; and there is no doubt but that so long as these cottages remained they were the hot-beds of fevers and ague. A gentleman, who was for many years parish-surgeon, informs me that during the time these cottages existed, he was rarely without cases of these diseases; the latter disease was always endemic; and at times the former put on a fearfully epidemic character. Still these detached and semi-detached cottages on the Bishop’s Estate were better than the close streets of town, though these were more than sufficiently unhealthy; but what cared those who profited by this disease and misery, and their natural accompaniment, crime, so long as their rents were paid?

The poor and the ignorant did not know “the extent of their misfortune;” or if they did, the majority “did not seem to grumble at their lot, or to think it hard.” If a voice of complaint was occasionally heard, the generous landlord said, “it came from an ill-conditioned, discontented wretch, whom it was useless to attempt to satisfy; and the sooner he left the parish, the better.” Cries, indeed, from the feeble and the timid went up to heaven for redress, and heaven alone was left to answer them.

The ground-landlords, at length, seeing the cottages had served their turn, made an attempt to remove this evil, by clearing them away; and many a bitter curse was uttered by those who were evicted; for in the simplicity of their dealings they had made no legal provision for compensation for capital invested; and, although some compensation was granted by the Great Western Railway Company to the small tenants they displaced, yet the ground-landlords did not follow their example; and down to the present time, no dream of comfortable and healthful lodgings for the poor on their estate, has even entered their heads; no, not even the idea of a “Thanksgiving Building,” so far as we know by any sign that has been given.

Another source of disease and death was to be found on the banks of the Paddington canal, which was opened with so much *éclat*, on the 10th of July, 1801. No less than 20,000 people came to Paddington, to hurrah the mighty men who so altered the aspect of this quiet village; and who, in doing so, offered to the Londoner a new mode of transit for his goods. Unfortunately, for the people of Paddington, on the banks of this canal were stowed many other commodities than “dry goods.” Not only the dust and ashes, but the filth of half London were brought to “that stinking Paddington,” (as it was now called,) for convenience of removal. The time of removal was made to suit the convenience of those who traded in these contaminating materials; but the living sensitive nerves and active blood corpuscles of the people who dwelt near its banks, were not considered. And so, instead of having no doctor in the parish, as was the case within the memory of many now living in it, both doctor and sexton found full employ.

That this is no over-drawn picture of the condition of Paddington for the first quarter of the present century, there is plenty of evidence to prove.

The disbursements of churchwardens and overseers, in 1793, two years before the passing of the Bishop’s Building Act, amounted to £402 6s. 11d.; but the overseer’s account alone, in 1815, amounted to £3,375 12s. 4d. And although there were more to pay the rates, still, even at the later date, many of the cottages were not rated at all; and the greatest difficulty was experienced in squeezing out of the hard earnings of the poor men who

occupied them, the small pittance (to them a great sum,) which was at length obtained, towards defraying these serious local charges.

In 1803, eight years after the Bishop's first Building Act was obtained, the assessment of Paddington was £9,966 10s. and the first poor-rate, levied under this assessment, was one shilling and three-pence in the pound. This valuation, however, was only one-third of the rental of 272 tenements; the smaller tenements not having been rated at all. The overseers' account, this year, amounted to £701 16s. 7d.; and it increased annually till 1811, when it was reported to the ratepayers at large, at their annual meeting on Easter Tuesday, that the expenses of supporting the poor have increased fourfold, in the last sixteen years.

No wonder, then, that the sensible inhabitants of Paddington, who saw what the Bishop's Building Acts were doing for the bishop and his lessees, and who felt, in a very tender point, what they were doing for themselves as ratepayers, should be anxious that those, who derived so much benefit from the parish, should bear some share in the increased expenses. But although all the expenses of the church and the poor had been so considerably transferred from the owners of the Paddington Estate, to the pockets of the rate-payers; and although the additional claim of the poor was excessive, yet it was not till the twenty-seventh of October, 1807, that the rate-payers in vestry assembled, "resolved that the Lord Bishop, in respect of the great tithes is rateable, and that he be rated accordingly."

One would have thought that the bishop, and his lessees, knowing all this—knowing that the "expenses of supporting the poor, had increased fourfold in the last sixteen years (that is, since the Act of 1795, during which time their income from the land had increased, perhaps in a like proportion) and that the same has arisen, in a great measure, from the necessity of constant and casual relief to paupers residing in small tenements built upon the Bishop of London's Estate;" knowing that they had received £2,263 7s. 6d., for land to increase the burial ground,—a purchase made necessary principally on account of this great increase in the number of paupers, and the conditions under which they were placed: Knowing, I say, all these things; for to not one could they have pleaded ignorance, it is barely believable that these legal protectors of the church and of the poor should have refused this legal demand. Yet most certainly they did so; and further,

put the parishioners to the unpleasant necessity of applying to a barrister, learned in the law, for his opinion on this point. By the vestry minutes, dated November 3rd, 1810, we find that Mr. Const, "*apprehends* the Lord Bishop is liable to the poor-rate for the tithes both of the lands, belonging to the See, in occupation of other persons, and those for which a composition is received." And accordingly in January, 1811, the Bishop of London is rated in the new assessment made that year, upon £462, the estimated annual value of the great tithes.

As the land became more valuable, this burdensome charge could not be endured. The agents of the bishop advise "merging," and "commutation;" and, after the performance of these feats, on the twenty-third of July, 1844, the vestry receive a letter from Messrs. Budd and Hayes, informing them, "the Tithes of the Paddington Estate have been *merged*, and that the rent-charge for the tithes of the rest of the parish is £166 13s. 8d." And they considerably mention this, "in order that the future rates may be assessed with reference to that sum, *after making proper deductions*, and not on the amount they have been hitherto assessed upon."

Whereupon the *poor* bishop and his lessees are relieved from some of the *great* charges laid on them, for the support of the poor; the vestry resolving to assess "the tithes of the Paddington Estate in future, at £166, instead of £340, as heretofore!"

At the end of 1810, it was found that out of a rental of £5,200 paid by the cottagers, only £535 of this was rated to the poor; and that the average of all the assessments in the parish, was but two-thirds of the real value; some being rated at one-third, others at one-half, and others at five-twelfths of the full value. The value of the property, as assessed in 1811, was £28,597, the assessment having been taken on 865 separate tenements.

From the census of this year, 1811, I find that 4,609 persons then living in the parish, constituted 1,083 families, occupying 879 houses. In 1812, out of 935 dwelling-houses, only 393 were rated to the poor; "the rest being miserable huts, occupied by paupers and very poor people."

In 1821 there were 1,448 families in Paddington, four of whom are returned in the census of that year as being agricultural. In the same year there were

824 persons claiming relief as paupers; and the sum of £37 7s. 3d. was paid weekly for out-door and casual relief.

In 1825 the assessment of this parish was £46,245 13s. 4d.; and in 1831 it had increased to £71,528 18s. The rates levied in the former year, amounted to £6,025 10s. 8½d.; in the latter, to £14,691 16s. 5½d. The number of families, according to the census of 1831, was 3,493. In 1841 Paddington was in union with Kensington, Hammersmith, and Fulham, and I find the average of the establishment charges for three years for Paddington, set down at £2,712.

The transition-state from an agricultural village to the fashionable Tyburnia, was no very agreeable time for the majority of those who lived in Paddington. When the cottages were swept away, and the heavy poor-rates which they had entailed, were diminished, new burdens sprang up, scarcely less grievous. Rents became enormous; the Highway, Watching, and Lighting rates were excessive; and these were rendered more oppressive on account of those, who received the greatest benefit from the causes which necessitated the greater expenditure, not bearing their just share of this local taxation. And yet the local Act had made some sort of provision for an equitable adjustment of these expenses.

Unfortunately, however, for the majority of the rate-payers, the election of those, who had to carry into execution the provisions of that Act, viz., the election of vestrymen, was not in their hands. That clause of Sturges Bourne's Act, which gave four votes to those who were rated at £100; five votes to those who were rated at £125; and six votes to all those rated at £150; placed the election in the hands of the minority; and, as that minority was much more interested in the success of the building-speculations which were in progress, than in that just and wise economy, which was advantageous to the majority of the rate-payers, one of the most important clauses in the local Act, was for years, and still is, disregarded. This, the 132nd clause of that Act, is as follows:

“And whereas it has happened and may happen that Houses and other Buildings within the said Parish have been or may be begun to be built, but not finished nor let, and it is reasonable that such Houses and Buildings should be rated and assessed for the Purposes of paving,

watching, and lighting; be it therefore further enacted, That until such Houses or other Buildings which now are or hereafter may be built or in building shall be finished and tenanted, (if the Street, Square, Lane, or other Place wherein such House or other Building is or shall be situated shall be paved, repaired, cleansed, and lighted by virtue and in pursuance of this Act,) it shall and may be lawful ^[196] to and for the said Vestry to rate and assess all such Houses and other Buildings situate within the said Parish as are or shall be erected and covered in, but not finished nor let, either by One or more distinct Assessment or Assessments, or by including them in any other Assessment or Assessments, at a Rate not exceeding Sixpence for every Square Yard of Ground paved or to be paved belonging to or lying before the Fronts or Sides of such Houses or other Buildings, and in like Manner and for the like Purposes to rate and assess all such Houses or other Buildings as last mentioned which are or shall be erected but not covered in, at a Rate not exceeding Four-pence for every Square Yard of Ground paved or to be paved by virtue of this Act, and belonging to or lying before the Fronts or Sides of such Houses or other Buildings, until the same shall be covered in, as aforesaid, and then at a Rate not exceeding Four-pence for every Square Yard until the same shall be let or occupied; which last-mentioned Rates or Assessments shall be paid by and recoverable from the Proprietor or Proprietors, Lessee or Lessees, Owner or Owners of such House or Houses, Building or Buildings respectively, and shall be charged and chargeable on the said Premises; and if the said Owner or Owners, Proprietor or Proprietors, Lessee or Lessees, shall refuse or neglect to pay the same, upon Demand, then and in every such Case such Rate or Rates, Assessment or Assessments, and all Arrears due thereon, shall and may be levied on the Goods and Chattels of the Person or Persons so required to pay the same in manner herein directed; and in case the Owner or Owners, Proprietor or Proprietors, Lessee or Lessees of such House or Houses, Building or Buildings, shall not be known or cannot be found, then the said Rate or Rates, Assessment or Assessments made thereon, shall be and remain charged and chargeable on the said Premises until the Owner or Owners, Proprietor or Proprietors, Lessee or Lessees, can be found, and the same may at any Time be levied and recovered upon the

said Premises in like Manner as other Rates made by virtue of this Act are made recoverable.”

Four years ago, this *forgotten* clause of the local Act was introduced to the notice of the vestry. It was admitted that it had not been observed; and the Builders, who formed the most influential party in the vestry, thought it would be *unfair* to enforce it. A little ventilation of this subject, however, induced the majority of another vestry to believe, and to resolve, “that all the rateable property in the parish should be rated.” But so much power have the Builders and the Proprietors of the soil in the vestry, that this good resolution has been from time to time set aside; and down to the present moment, the rate-payers at large have received no benefit from it. So that, although the Vestry Minute-books are crammed with applications to the vestry, to take under their protection, streets, squares, &c., and although the taking thereto has increased the local taxation very considerably, and will do so, year by year; yet none but the old inhabitants and the in-coming tenants have been taxed for all the wear and tear of old roads, caused by drawing building materials over them, and for all the additional expenses in watching and lighting, which every new house entails on the parish.

If this tax had been levied from the passing of the Act, in 1824, down to the present time, it would have saved the rate-payers some thousands of pounds; and it would have fallen on those who have received the most substantial benefits from the parish, although they have paid the least towards the local taxation, viz., the Bishop of London, and the lessees of the Paddington Estate. Had this clause been in force, those who took the land for building on, would have pointed out this charge, and insisted on its due consideration. For this additional burden, then, as well as for the enormous poor-rate entailed by the miserable cottages, the dwellers on the Paddington Estate are, in truth, indebted to their old friends, “the lords of the soil,” as much as to their local governors, and the builders.

And this is not the only burden, connected with the roads, which the owners of the Paddington Estate have attempted to throw on the people of Paddington.

In 1828, and 1829, when the Grand Junction-road, which had been recently made, was in a miserable condition; when it was ascertained that it would

cost £400 a-year to keep it in repair; and when only £7 were the amount of rate received by the parish from the inhabitants of Oxford and Cambridge terraces; the owners of the soil tried, by force of law, to compel the vestry to appoint a surveyor to inspect this road, and take upon them the charge of its repair. The trial, however, went against them, and the learned Lord Tenderden delivered an elaborate judgment in favour of the parishioners. [\[198\]](#)

But what the law would not compel the vestry to do, the vestry could voluntarily do; and, as the election of vestrymen was virtually in the hands of a few builders and proprietors, these few took especial care to elect those, and those only, whose interests coincided with their own. Thus, those who were most deeply interested *in the Paddington Estate*, became the governors *of the parish*; and, as these personal interests were very frequently antagonistic to the interests of the ratepayers at large the public weal has had to suffer; and “parish squabbles” have not been unknown in Paddington, even since the introduction of Sturges Bourne’s Act. And discontent must continually arise, so long as the majority of the ratepayers know they are not fairly represented; that they have a minority of votes in the election of their local governors; and that the business of the parish is conducted with closed doors. Although this injustice was made legal, at the time when Grattan and old Sarum sent Members to Parliament; and when a single nobleman had more influence in law-making, than the whole of the inhabitants of the largest cities, yet “An Act for the better Regulation of Vestries, and for the appointment of Auditors of accounts, in certain parishes of England and Wales,”—the first and second William IVth, chapter 60,—better known as Hobhouse’s Act, was passed by the reformers, even before the Parliament itself was reformed.

This Act *for the better regulation of vestries* gives one vote, and one vote only, to each rate-payer; and it is scarcely believeable, that so just a principle could be refused to any parish, which had become too numerous to continue the “good old English constitutional custom” of personal attendance in Vestry; where and when each individual rate-payer might express his opinions on any subject within its jurisdiction, and record his vote thereon. Yet it has been most strenuously opposed, from its introduction into Parliament down to the present time, by the vestry of Paddington; and in consequence of its being necessary to obtain the sanction of two-thirds of the rate-payers who vote, and half those who are

qualified to vote, before this Act can be adopted, the attempt to introduce it into this parish has twice failed. In 1849, there was a considerable majority for its adoption, but not the requisite proportion; and in 1853, it is said, the half of the qualified rate-payers have not voted. So that at the present time, Paddington enjoys the unenviable distinction of being behind its neighbours in the adoption of a liberal policy in the election of those to whom are entrusted its local affairs; and those who conduct them, have the unenviable honour of being the representatives of a section only of their fellow-parishioners.

Even the ancient rule of electing churchwardens, by single votes, has been set aside in Paddington; the Judges of the Exchequer Court sanctioning this proceeding, when the vestry appealed to that Court, by writ of error, from the decision of the learned Lord Chief Justice Denman, who had confirmed to the inhabitants of this place, their ancient right in this particular: ^[199] a right, which every inhabitant, who was not a lawyer, must have believed, as that learned Judge did, the tenth clause of the local Act confirmed to him. This clause declares that the election of vestrymen shall not take place, until after the usual election of churchwardens; “which election of churchwardens shall take place on *Easter Tuesday*, and be conducted from year to year in such manner, as hath been usual in the same parish.”

The rule of plural voting for vestrymen having been established by the adoption of Sturges Bourne’s Act, vestrymen so elected could not sanction the election of church-wardens in the manner which had been usual in the parish; viz.—by show of hands. Those gentlemen, who still govern Paddington, determined to take advantage of a legal quibble, to abrogate the ancient form of election; but their proceedings produced an amount of ill-feeling, which lasted for years, between those who now really had the election of parish officers in their hands, and those who, in consequence of the introduction of this new principle, had nothing to do with parochial affairs, except the payment of whatever sums of money were demanded. This feeling is indeed not yet allayed; neither can it be till this act of injustice to the majority, is for ever and entirely revoked. And justice must not long be delayed, if harmony is to be restored. Upwards of 2,000 rate-payers have this year voted in favour of that Act, which gives a single vote, and but one vote in local elections; and it behoves all who pay towards the local expenses, all who are interested in the welfare of this parish, to think

of this, and to co-operate by every means in their power, for the establishment of good government on the solid basis of just principles. When this is done, all discord may cease; for it will then be the fault of the majority if Paddington is badly governed.

THE END.

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FOOTNOTES

[1a] Cunningham's Hand Book of London, 1850, p. 369. The Marylebone Borough Almanack, 1853.

[1b] Environs of London, vol. iii. p. 329. This error is repeated in Lewis's Topographical Dictionary and seems to have been copied by all subsequent authors. And although Lysons is generally accurate, we shall find this is not the only error he has made respecting this manor.

[1c] Archæologia, vol. 26, p. 231.

[2a] Dart's History of Westminster Abbey, vol. 1. p. 11.
—"Westmonasterium."

[2b] Peter-Pence, or Rome-fee.

[2c] Monasticon Anglicanum, vol. i. p. 266.

[3] "An History of Westminster Abbey," p. 6. London, 1751.

[4] This commission undoubtedly did a great deal for the public; but it must not be forgotten that it made use of a very considerable amount of public money, and left the work it had to do in a very imperfect state. At the present time vast stores of most valuable information are lying buried in language ineligible only to a few; and if any enquirer wishes to make out what particles of knowledge there may be in this store-house relative to the object of his search, he has not only the ancient English character, cramped, and contracted, law-latin to learn; but for the want of well-arranged indices—more especially good indices locorum—a life-time to spend in collecting his materials. All this was exceedingly well managed to keep out the inquisitive gaze of a curious public, who were to be kept in ignorance; but since knowledge is acknowledged to be power, and since the people have

been admitted to know, it would, surely be good policy to offer facilities for making that knowledge as perfect as possible.

[5a] Vide Appendix to second General Report from the Commissioners on Public Records, p. 386.

[5b] Bawdwen's translation of the Record called Domesday. Middlesex, &c. Doncast. 1812.

[5c] Some writers have been unable to account for this diminution in the value of land; but I think the writer of the article Domesday in the Penny Cyclopædia has satisfactorily accounted for this decrease in referring it to the revolution produced by the Conquest.

[5d] Edward de Sarisberie held Cherchede or Chelched for two hides.

[6a] This "Description of London" which Stowe printed as an appendix to his History, is translated and published with Annotations. Lond. 1772.

[6b] Maitland's History of London. See also Park's Topography of Hampstead.

[9] Elms-lane is the first opening on the right hand after getting into the Uxbridge road from the Grand Junction road, opposite the head of the Serpentine; the Serpentine itself being formed in the bed of the ancient stream which I take to have been first called Tybourn, then Westbourn, then Ranelagh Sewer. While the stream which crossed Oxford Street, west of Stratford-place, first bore the name of Eyebourn, then Tybourn, then King's Scholars Pond Sewer.

[10a] That part of Edgar's first charter, dated 951, relative to the boundaries of Westminster, as translated by Sir Henry Ellis, is printed in Mr. Saunders' Inquiry, as follows:—

"First up from Thames, along Merfleet to Pollen-stock, so to Bulingafen: afterwards from the fen, along the old ditch, to Cowford. From Cowford up along Tyburne to the broad military road: following the military road to the old stock of St. Andrew's church: then within London fen, proceeding south on Thames to midstream; and along the stream by land and strand to Merfleet."

In the decree of 1222, the western boundary is described to be “The water of Tyburne running to the Thames.”

[10b] The charter of this king, besides securing to the Abbey the manor of Chelsea, which Thurstan is said to have given the monks—“granted them moreover, exemption from toll, and every third tree, with a third of the fruit growing in his wood at Kyngesbrig”—vide Lysons. This wood I take to have been that portion of Middlesex forest which belonged to the crown, called in other documents Kingsholt. I think the situation of this wood is sufficiently indicated in this charter, viz. at Kingsbridge—the bridge which carried the king’s road over the Tybourn. That portion of Kensington gardens which was considered part of the manor of Knightsbridge, and which is still in Paddington parish, I take to have been a portion of the king’s wood, and a district west of the Tybourn, and south of the Uxbridge road—the king’s highway—I consider was also styled Kingsbridge: Knightsbridge being a much more modern appellation, and not used till after the Wycombe road was made and a bridge built by some worthy knight over the Tybourn at this part of its course.

But it has been imagined that a considerable portion of the parish of Paddington formed part of the ancient manor of Chelsea. And it is a fact that a piece of land, one hundred and thirty-seven and three quarter acres in extent, is now claimed by Chelsea as part and parcel of their parish, although it is two miles from any other portion of that parish; and, although, as I shall hereafter produce evidence to prove, it has been considered a part of Paddington.

Further, we find that “Robert de Heyle, in 1368, leased the whole of his manor of Chelchith, *except Westbourn and Kingsholt*, to the Abbot and Convent of Westminster for the term of his own life,” upon condition that he was allowed to live in a certain house in the Convent; that he was provided with a robe of esquires’ silk, and twenty pounds yearly; and daily with two white loaves, and two flagons of *Convent* ale.

In speaking of the ancient manor of Chelsea, I refer to the one spoken of in the Dom Boc; and not to that which “it is possible might have been included by the monks amongst their possessions in Westminster.”

Vide Lysons and Faulkner.

[10c] Codex Diplomaticus Aevi Saxonici, Tom. vi. p. 17. chart 1223. T. M. Kemble. This charter is dated April 1st. (eight years later than the above); a favourite date in documents concerning Paddington; and in this instance especially useful as it led to understanding the characters of all those who were silly enough to believe this written document was what it professed to be.

[11] 49 Geo. 3. chap. “An Act for discharging a certain piece of ground, called the Pesthouse-field from certain charitable trusts, and for settling another piece of ground, of equal extent, in a more convenient place, upon the same trusts.”

[13] Commentaries B. II. c. 18. p. 269. 10th edition.

[14a] The dean of Peterborough, in his supplement to Gunton, differs somewhat in the account he there gives of this festival. He has turned the wine into beer; but made the tankard hold twenty-five gallons. And the nuns to whom the allowance was made resided, according to this Doctor, in Holbourn, instead of Kilbourn; an error pointed out in Naysmith’s edition of Tannar’s Notitia. Vide p. 297, of Gunton’s History of Peterborough.

[14b] As bread was given ad libitum, and cheese was to be served on this day, I think we may find in this document the real origin of the term, “Bread and Cheese lands,” which is still applied to a small portion of that which was “the Paddington Charity Estate;” an estate not to be confounded at the present time with “the Paddington Estate.”

[15] The Dean states that the meaning of the original is not very clear. But I think there is not much difficulty in discovering the meaning of his very excellent translation. The writer was evidently enjoying the joke of those in command, not allowing wine to their followers who did not constantly wear arms; while the commanders themselves were admitted, and allowed to get drunk, with their swords on.

[16] An account of the Writers of the History of Westminster Abbey, p. 4.

[17] Vide *Park’s History of Hampstead*.

[18a] “But beyond the above written limits the Vills of Knightsbridge, Westbourn, Paddington with its Chapel, and their appurtenances, belong to

the parish of St. Margaret aforesaid.” To secure the privileges contained in this decree the Abbot had to give the Bishop of London the manor of Sunbury, and the Church to the Chapter of St. Paul’s, besides those places surrendered by the arrangement in the decree. The monks of Westminster did not at all relish this arrangement; and one more outspoken than the rest openly declared that “Peter had been robbed to pay Paul.”

[18b] This author gives, as his authority, a MS. in the King’s Remembrancer’s Office Exchequer, f. 26b. Lysons says the church and chapel were valued together at thirty marks; and gives the Harlean MS., No. 60, as his authority. In this calculation the “Vicaria” is not mentioned.

[19] “A manor, manerium, a manendo, because the usual residence of the owner.” This learned expounder of our laws further explains “that it seems to have been a district of ground held by lords or great personages.” Book ii, p. 90.

[20a] Mr. Park says that the Shuttup Hill Estate “affords one among many instances of the freedom with which religious corporations were in the habit of elevating their lands and farms into *manors*.”—*Topography of Hampstead*. p. 194.

[20b] Priests, who formerly were permitted to practice in the Law Courts, were, a little before this time, for very good reasons no doubt, prevented from doing so. But they did not quietly submit to this loss of their influence in the worldly concerns of the people; and they adopted all kinds of contrivances to keep up their former power. Amongst others, equally honorable, we find they adopted the wig to hide that which would have otherwise betrayed their holy calling.—Vide *Sir H. Spelman’s Conjectures on the Introduction of the Coif*; *Glossar*, p. 335, and *Blackstone*, vol. I. p. 24.

[21a] The statute passed in the eighteenth year of Edward’s reign, which put an end to the further increase of manors, must have been fresh in this Abbot’s memory; and it was this law, perhaps, which induced him to place Paddington and Westbourn under the maternal wing of Westminster.

[21b] Tenement is a word of still greater extent than land, for though in its vulgar acceptation it only applied to houses and other buildings, yet in its

original, proper, and legal sense it signifies every thing that may be *holden*, provided it be of a permanent nature; whether it be of a substantial and sensible, or of an unsubstantial ideal kind.”—*Blackstone*, vol. ii, p. 17.

[21c] Placita de Quo Warranto, Edward first Rot. 39, p. 479 of the work published by the Record Commission.

[21d] At the present time there is preserved a Fine Roll in the Record Office, Carlton Ride, containing an account of the Temporalities of the Convent of Westminster, from the eighth to the tenth years of Edward the second, taken after the death of Richard de Kedyngton (or de Sudbury), the Abbot who succeeded Walter of Wenlock, and although this document was examined with great care by two gentlemen accustomed to examine documents of this kind no notice or account of Paddington could be found in it amongst the numerous possessions therein described.

[22] Was the first of these inquisitions directed in consequence of the omission of any mention of Paddington in the return of the Abbey possessions just alluded to; or was it suggested by the legal advisers of the Convent to secure a title to their lands in these places?

[24] This Walter Franceys is in all probability the Water Fraunceis of the preceding inquisition, whose descendants we find to be possessed of land in Paddington, after the reformation, like the descendants of John Colyn, mentioned in the next inquisition.

[25] Before these names the sentence which precedes that of Richard de Sudburie is to be understood. It will be noticed that Richard de Sudburi was the name of an Abbot of Westminster, who died in the eighth year of this reign. But whether these lands were acquired by him and inserted here to render that grant a legal holding, or whether it was the grant of some Richard de Sudbueri then living I cannot say.

[27] *Maitland's London*, by *Entick*, vol. i. p. 190.

[28] Now called Kensington.

[29] *Lysons*, p. 514, vol. iv.—Second edition.

[30a] *Faulkner's Kensington*, p. 90.

[30b] From the *Domboc*, we learn that this land was held by Alberic, or Aubrey, de Vere of the Bishop Constance, the Chief Justiciary of England; and we are informed by *Lysons* and *Faulkner* that the second Aubrey was in so much favour with the first Henry, that he was not only appointed to this office, Lord Chief Justice of England, but created Lord Great Chamberlain, “which office” says *Faulkner*, “was made hereditary in his family, with the tenure of several manors;” and *Lysons* tells us this manor was so held. *Mr. Faulkner*’s more recent investigations have brought out several facts respecting this manor, and its subsequent division into separate manors, which did not appear very plain in the account given by *Lysons*, although his account is exceedingly interesting and contains a great number of facts and references.

[31] *Faulkner*’s *History and Antiquities of Kensington*, p. 73–4. Each 15 Edw. IV. m. 12. See also *Lysons*’ *Kensington*. Both *Lysons* and *Faulkner* state that Richard had a grant of these manors; but the statements in the Inquisition and the Act of Parliament, point out a mode of acquisition not quite so creditable to a King.

[32] *Valor Ecclesiasticus* (published by the Record Commission) vol. i. p. 411. This Ecclesiastical valuation, taken in 1535, superseded the one ordered to be taken by the Pope in 1291.

[33a] Sir Reginald has the credit of having designed Henry the seventh’s chapel, in Westminster Abbey.

[33b] Vide *Madox*’s *Formulare Anglicanum*, p. 287; and Pat 35, Henry VIII. p. 6. m. 18 (19). *Lysons*, and *Smith* (who appears to have copied what *Lysons* said), only “suppose” this sale to have taken place.

[34] I find by a note to the printed copy of the Countess’s will, that *John Roper* was her first Cambridge reader.

[35a] As I make no pretention to be a black-letter lawyer, and as I thought my readers would prefer to read such documents as these in their own language, I have in almost every instance where I have found it necessary to quote ancient Latin documents, given the translation: referring to the original to be consulted by those who should think it necessary to do so.

[35b] For this and most of the references relative to this manor, I am indebted to *Lysons's* article, *Kensington*, and *Mr. Faulkner's History and Antiquities of Kensington*.—Vide p. 74 and 591. It will be perceived that the account I have given of this manor differs in some respects from that given by these learned antiquarians; but the facts I have produced have been obtained from the same sources and therefore may be equally relied on.

[36a] “Rental of premises in Westminster, Paddington, and Kensington,” referred to at p. 194 in the “First Report on Public Records.” This MS. is kept at the Land Revenue Office, Spring-gardens, where I had the opportunity of inspecting it through the kindness of Mr. Fernside; it appears to be the “Receiver’s account of the late Monastery of St. Peter, Westminster,” for two years. Whether this is one of those “Books of Yearly Rents, reserved by Henry VIII, and Edward VI, which were concealed from Queen Elizabeth,” referred to at p. 197 of the first report, I do not know.

[36b] Vide *Subsidy Roll*, of this year.

[36c] Vide *Faulkner's* account of the descent of this manor, p. 592.

Sir H. Anderson, an Alderman of London, gave £3,400 for this manor the same year in which “the Queen’s pardon” was obtained. In a presentment made of the manor of Abbot’s Kensington, 1675, we find Sir R. Anderson’s land set down at 400 acres, Free, but then said to be included in that manor.—*Ibid* 598.

[38] This field in “A Perticular Booke of Chelsey Manor,” is called “Darkingby Johes.”—Vide *Faulkner's Chelsea*, vol. i. p. 318.

[39] Having by the production of these documents sadly damaged the numerous stories told about these fields, “Chelsea Reach,” as they are called, the least I can do will be to attempt to preserve two of those I have heard. Supposing the second to have any truth in it, the first will shew how the people may be kept in ignorance by the use of words which have a double meaning—how the ignorant may be kept in ignorance by telling them a story which they are to read one way, and that according to the common acceptation, while the knowing ones, the fraternity who have become philosophers, and have been admitted into the secret, may read, it in another.

“A Chelsea Pensioner having been to visit a poor lame grandchild who was being educated in good and sound learning at the Free School, established by John Lyon, at Harrow-on-the-hill, was so much delighted with his visit, that to celebrate the occasion in a proper manner he drank to the memory of the generous founder a little too often and a little too deep. The ale continued to affect his upper story till he passed the seventh mile stone, (and it must be known that the mile stones on this road were numbered from Harrow, and not as on every other road from London,) mistaking a white line of water, the Paddington Canal, for the road, at this point, he found, when it was too late, that a man was not destined by his Maker to walk on that element; his *corps* was not found for some days. When it was discovered no one would own it; and what was worse no one would bury it, till at length it became necessary for the civil magistrate to interfere; he sent for the Chelsea clergyman, directed him to read the proper service, and bury the *corps* where it was lying. Before the clergyman consented to do this, however, he insisted that it should be carried round a certain number of fields which he pointed out. That magic circle constitutes this dry “Chelsea Reach;” and within it, and in consequence of this incident, the Chelsea Rector always claims tithe over it. Beneath the piece of ground not claimed by either parish the *corps* lies buried.”

This, as any story-maker will readily perceive, is a sad hodge-podge. But this is the story for the ignorant, perhaps made by them. The knowing ones have their simple story:—

“A certain prebend, of a certain Cathedral, seeing this land without an owner kindly took it under his care. It became his *corps*. He grew birches on it for the boys in his school; and when his occupation was gone, his relatives claimed the land as his freehold.”

Whether there is any, and if any, what amount of truth in either of these stories, I must leave the reader to discover. A key, perhaps, may be found to the latter in another story which is told of the purchase of this land of the descendants of Dr. Busby, and by the fact of a Dr. Busby having held the prebendal *corps* of Boxgrave, which was situated in Westborne *in the County of Sussex*.

It would appear that these closes, “containing by estimation fifty acres,” were all that remained in Paddington of the Old Chelsea Manor: but as we have already seen 137¾ acres are now claimed by Chelsea as belonging to that parish.

[40] Vol. i. p. 310–11.

[43] A New Record Office in being built at the back of the Roll’s Chapel so that it is to be hoped the valuable documents now kept in this stable will soon find a better lodging.

[44] At the time of the Reformation, as I have before observed, ministers were appointed by the Crown, to take and keep the accounts of all monies derived from the lands which had belonged to religious houses. Many of these ministers accounts are still preserved and contain much valuable information. According to these accounts (vide *Monsticion Anglicanum*, vol. i. p. 326–27) it would appear that for the first year the Crown received only £31 6s. 8d. from the church lands in Paddington, and for the next year the same sum with the addition of 2s. rent charge, for the conduction of water; but in the 36th and 37th of Henry the VIII., I find the minister returns the Crown Rent of this manor and rectory, at £41 6s. 8d.

[45] Henry the VIII, finding that the clergy readily paid the first fruits of their livings to the Pope, and that £160,000 had been transmitted to Rome, on account of this claim, since the second year of Henry the seventh, thought, very naturally, as he had been proclaimed “The supreme head of the church and clergy of England, in so far as is permitted by the law of Christ,” that he ought to stand in the Popes’s shoes in this particular also; and that the annates, or first fruits, ought to be paid to the Crown of England, instead of going to enrich a Foreign Potentate. He first reduced the payment to five per cent. “the better to keep the Pope in awe,” but finding that remedy unsuccessful took the whole to himself.—Vide *Hume’s History of England*.

[46a] The seven Protestant Bishops who succeeded Ridley in this see held it but fifty years.

[46b] Whether Edmund Grindall, Ridley’s protestant successor in the see of London, renewed this lease and received a fine for the renewal I cannot say;

I speak in the text of the income reserved by the Crown.

[46c] *Ecclesiastical Memoirs*.—Vol. ii. part 1, p. 339.

[47a] An account of Collectors and other ministers of the possessions of the Bishop of London, 9th of Elizabeth, ending Michaelmas.

[47b] This notice is at the foot of the account, and evidently written in another hand: it is Richard Brown's account.

[47c] Rough Notes, 3rd of Elizabeth.

[49a] Vide *Collectanea Topographica*. vol. iii. p. 31. The original MS. from which this survey is printed is in the Rawlinson collection in the Bodleian Library, Oxford, No. 240.

[49b] Ibid, vol. i. p. 287; or additional M.SS. British Museum, 9049, p. 37.

[50a] 26 *Geo.* 2. c. 43.

[50b] Judith Jodrell, wife of Sir Paul Jodrell, was a daughter of Mr. Daniel Sheldon; and it appears her life was the last of that family in the estate. I find by a private Act of Parliament, that the family of the Sheldons were obliged to sell their estates at Ditchford, in Worcestershire, to pay their debts, and it is probable that their life interest in the manor and rectory of Paddington was disposed of for the same purpose.

This practice of granting church lands for three lives appears to be very ancient. It was the common practice of Oswald, Bishop of Worcester, at the end of the tenth century; and for doing which he was accused of wasting the revenues of the church.—*Mr. Kemble's Introduction*, p. 34.

[51] The Desborough estate was leased by Bishop Porteus and his lessees to the Grand Junction Canal Company; but how the Bishop and his lessees became possessed of this estate I do not know.

[52a] *Mr. Macaulay*, in his *History of England*, when speaking of London, as it existed in 1685, describes this Pest-house Field as being the place used as a burial place for many of those who died of the plague twenty years before; but from the account given by *Lysons*, and from the Acts of

Parliament relating to this charity estate, I am induced to believe it was purchased after that calamity and for future use.

[52b] A plan of Upton Farm, taken by William Gardner, in 1729, was presented to the parishioners of Paddington by Mr. Thomas, a surgeon, who lived in Brown-street, and it is still preserved in the Vestry-room.

[54a] Vide *Faulkner's History of Kensington*, p. 596.

[54b] The hog was one of the most important possessions of the cottager, and as this animal obtained the chief part of its food in the wood, this right of the wood was of more consequence than the right of pasture to the poorer villagers.

[54c] *Penny Cyclopædia*; article—"Commons."

[55a] It is said that even for the russet spot which is still, for auld lang syne, called Paddington-green, the parishioners are indebted to the generosity of a private gentleman.

[55b] *Macaulay's History of England*, vol. i. page 421.

[56a] *Ferrers*—a romance of the reign of George the second. 3 vols. 1842.

[56b] "The woman I adore;" in which Mr. B. appeared as "Paddington Green."

[56c] It may be asked, why these prints have not been copied for this work? My answer is, that if these had been inserted others could not have been left out; and as my object was to keep down the price of this edition, so as to bring it within reach of every rate-payer, I was very reluctantly compelled to leave out all pictorial illustration.

[57a] The Charity School and St. Margaret's-terrace now occupy the site of this pond.

[57b] This was not one of the forts belonging to the entrenchment which encircled London and Westminster, for as is shewn in *Maitland's History of London*, the continuous fortification was much nearer those cities; but it was a small detached outwork, a portion of which remained in Chatelain's time, and is represented in his engraving.

[57c] In the “Report of the Committee appointed by the Paddington Parochial Association, instituted for the Reform of the Parish abuses,” printed 1834; it is stated, “at the present time, only one of these maps is forthcoming, that which contained the plan of the whole parish, and this when enquired for, was brought in a tin case from the house of the Vestry Clerk, who said when it was handed over to the Committee, that he could not tell whether the maps were or were not in it. On opening this remaining map, it was found to be defaced, there having been evidently erasures made on the face of it; the absence of the map of the waste and charity was enough to excite the suspicion of the committee; that at some period, dishonesty on the part of *some one*, if not *more*, had occasioned this loss; but when they found that the alterations upon the remaining map were connected with the waste and charity lands, they could no longer doubt of wrong doing somewhere, especially as an entire leaf had been torn out of the Vestry Minute Book, which related to the same subject, viz. Charity and Waste Lands.”

[58] This Mr. Harper was a tenant of the bishop and his lessees; and the fields he rented chiefly for grazing, were called for many years, “Harper’s Fields.” On the expiration of his tenancy I do not find that his landlords made any compensation to the parish for this waste land, for which Mr. Harper had paid rent.

[62] This “dispute” speaks volumes. That the Bishop of London and the Dean and Chapter of Westminster should “dispute” the right of the poor parishioners of Paddington *to half an acre*, when the whole of the land around, for many acres, was, in all probability, assigned to the poor, could not be believed except on such authority as the above.

[68] The account states that the will directs £9 per annum to be given to poor families every Lady-day and Michaelmas day.

[70] By the cash accounts, published annually, by order of the Vestry, it will be seen that for many years past, only five shillings per annum have been paid from *one* of those houses which are spoken of under “Johnson’s Charity.” I have made search for the merchant-tailor’s will but it has been a fruitless one. Should any gentleman into whose hands these pages may fall, discover this, or any other document relative to Paddington, he would

confer on the author of this work a very great favour, if he would take the trouble to communicate with him.

[72] In a Report of the case of *Thistlethwayte v. Gamier*, heard before Sir J. Parker, in the Vice-Chancellor's Court, May 4th, 1852, reported in the *Times* on the following day, it is stated that the estimated value of seven-eighths of the lessee's interest, which is two-thirds of the whole, is £430,000.

[73] At the end of 1835, the present valuable agents of the Bishop discovered, that having followed in the steps of their predecessors, they had committed a grave error in receiving only the £10 which had been reserved by this Act, and subsequent Acts, for the Lessees; and on the 1st of December, they addressed a letter to the Vestry, calling on them to pay his Lordship, the present Bishop of London, the sum of £12; the rent which had not been before called for, but which was due to him for the past six years. I believe an "action at law" was not commenced for this sum, but a second lawyer's letter was sent and the demand was paid, and has been ever since.

[75a] The whole Act occupies forty-two pages.

[75b] It was Richard Terrick, the successor of Richard Osbaldeston in the See of London, who granted both these leases. This Bishop died 31st March, 1777.

[80] The separate Messuage or Tenement described in Rede's lease as "formerly in the tenure of Edward North, Esquire," is here so described, with the addition, "afterwards of Daniel Sheldon and after that of Gilbert Sheldon, his under-tenant or under-tenants, Assignee or Assigns."

[83] The whole of these lands, as well as others leased to this Company, in 1812, are laid out in a plan attached to the Act of that year.

[85a] I wonder whether amongst the "general improvements," the framers of this Act, or those who assisted in passing it, thought for one moment of the great improvement it would be to have a church to each parcel (say every hundred acres) of land which should be built on?

[85b] Vide Second Schedule to the sixth of Geo. IV. cap. 45.

[86a] This in a subsequent Act, is explained to mean not houses “in the shell or carcase,” but houses when fit for habitation, so that to get a good ground-rent it is necessary to have a high-rented house; and the high ground-rents, which I am informed are at least 25 per cent. higher than the average in the neighbouring parishes, may be looked on as one of the chief causes of the high rents of the houses on this estate.

[86b] In this clause the time for registration was limited to two months, but by a subsequent Act it was extended to six months.

The sixth section of the seventh of Ann, chap. 20, (the Act referred to), provides that the “Registrar or Master shall keep an Alphabetical Kalendar of all the Parishes, Extra-parochial Places and Townships within the said County, with reference to the number of every Memorial that concerns the Donor’s Manors, Lands, Tenements, or Hereditaments in every such Parish, &c.” But here, as at other Offices, where important historical documents are kept, no *Index Locorum* is known. To be able to turn to any particular parish, and at once find the deeds belonging to that parish, would be much too easy a process, whatever the framers of this Act may have thought of its convenience.

[87a] We are told by this Act, that previous to the second marriage of this lady to Joshua Smith Simmons Smith, two other sons had died; one Henry Frederick, leaving a widow and child; the other Frederick, unmarried; and to his sixth share of the half of the lessee’s interest the mother became entitled. Mrs. Smith left her husband all her interest in the Paddington Estate, and he assigned it to Elizabeth Hughes, widow. Besides the purchase of the sixth share above referred to, we find by a subsequent Act, fifth Geo. IV. cap. 35, that Lady Morshead and her son assigned “all their moiety and beneficial estate and interest in the said lease,” to Thomas Thistlethwayte; and we have already seen, in a previous note, that this gentleman died possessed of seven-eighths of the lessees’ interest in the Paddington Estate.

[87b] We learn by a subsequent Act, the sixth of Geo. IV. cap. 45, that the receipts by the sale of brick-earth, gravel, and sand, up to that time, 1825, amounted to £10,256 12s. 3d.

[87c] This was the last Act of Parliament relative to this estate with which Bishop Porteus had anything to do, as he died on the thirteenth of May, 1809, having occupied the See of London from November the fourth, 1787. Vide p. 94 and 255 of the Life of this Bishop—by *Mr. Hodgson*.

[90] I have been informed that this Water Company asked one thousand pounds per annum for the site of one of their reservoirs for a lease of ninety-nine years, to contain all the covenants of building leases, and this after the site for All Saints Church had been taken out of it.

[91] These articles of agreement contained a clause to exempt the buildings, houses, &c. on this land, from “the operations or regulations contained or to be contained in any Act or Acts of Parliament respecting buildings;” and they were not to be subject “to the control, management, or interference” of any surveyor, or any other person, claiming to exercise authority under such Acts. This was asking a little too much even of a Parliament in which Grattan and Old Sarum were represented; and the articles were saved from the disgrace of receiving Parliamentary sanction, so far as this clause was concerned. Yet such influence did this clause in the agreement, though unsanctioned by the Legislature, have on the District Surveyor, that in his return to the House of Commons, in 1843, he states that “eighty one acres in this district, the property of the Grand Junction Canal Company, and eighty-eight and a-half acres, the property of the Great Western Railway Company, are exempt from the operation of the Building Act, except as to all houses erected on the latter property.

By an entry on the Vestry Minute Book, I find the Grand Junction Canal Company, leased eight acres of their land to the Water Works Company at a pepper corn rent.

[96] The exact yearly rent paid by the Great Western Railway Company to the Bishop and his lessees, is £2366 2s. 1d. Vide Parliamentary Paper, No. 664. 1850.

[103a] I have stated 1829, for in 1729 the Turnpike-rate was standing at the junction of the old Roman roads; that is, at the end of Park-lane.

[103b] “Return of the number of District Surveyors appointed under the Metropolitan Building Act, and amount of their fees.” By this return I find

that the fees received by the District Surveyor of Paddington, for five years, 1838 to 1842 inclusive, amounted to £4,261! *Parliamentary Paper*, 1843.

[104a] Page cliii of this Report.

[104b] While the workmen were digging the gravel out of “Craven Gardens,” I saw an old well which lay beside their excavation, the bottom of which did not appear to have been ten feet from the surface. I also remember that there was a pond close to this spot, at the corner of the Pest-house Field, which was not so deep as this well, but which was not dry even in the hottest summer.

[105] Vide *Household Words*, No. 142, for a most powerful picture of the present condition of the common sewers.

[106] One of the great reformers of the sixteenth century—*Luther*—said “The Christian must be obedient to the commands of the Government, even though it wrongs him, skinning and fleecing him.” And again he says, “Christians, whilst preparing for the eternal life, will remain in political things always stupid sheep, (Schaafe und Schoepse), they will never get beyond nonsense in the affairs of state.” German reformers of the nineteenth century see the effect these opinions have had on the world, and they reject these dogmas of their venerable reformer with the contempt they so well merit. Vide “*The Reformation of the Nineteenth Century*,” by Johannes Ronge, Part I. page 19. Deutsch and Co., Fleet-street, and Oswald and Covers, Cross-street, Manchester.

[111] *The English Language*, 3rd edition, page 286.

[113] *Saxons in England*, vol. i. page 36.

[114a] “William (son of Ansculfe) holds Abincebourne—Abinger. The same William holds Padindene. Huscarle held it of King Edward. At that time it was rated for four hides; now for three. Hugh, William’s man, holds three hides.” In Abinger parish there were three manors—Abinger; Paddington-Pembroke; and Paddington, otherwise Paddindean, sometimes styled from a former owner, Paddington Bray. There was also another manor of “Padinden” in Lingfield parish in this county. Vide *Manning and Bray’s History of Surrey*, vol. ii. page 136 and 347.

[114b] Unfortunately this, the Ranelagh Sewer still remains open in some parts of its course. In a letter from Dr. Aldis to the editor of the *Times*, September 7th, 1852, we find that it is open in Chelsea; and that “its present open state answers two purposes, one for the exhalation of noxious effluvia, the other for the drowning of little children happening to fall into it, an instance of which recently occurred.” And though the greater part of this sewer has been covered in *and built upon*, on “the bishop’s estate,” yet there is a considerable portion which is not yet covered in in this parish. Building, however, is now progressing close to this open sewer so that I presume it will not be long before this portion of the ancient Tybourn is for ever hidden from mortal ken.

[115a] *Speculum Britanniae*.

[115b] *Lancet*, vol. 2, 1848. Reports of public meetings in the daily papers. And Dr Tilt’s various researches on this subject, published in a separate pamphlet and in the *Lancet*.

[115c] Mr. Kemble thinks every mark had its religious establishment, its “fanum” or “hearth;” “that the priest or priests attached to these heathen churches had lands, perhaps free-will offerings too, for their support;” and further, “that the Christian Missionaries, acted on a well grounded plan of turning the religio loci to account;” and that “whenever a substantial building was found in existence, it was taken possession of for the behoof of the new religion.”—*Saxons in England*, vol. ii. p. 424.

[118] *Commentaries*, Book i. chap. 11.

[119a] See *Report on Church Rates*, page 461. H. C. 1851. 541.

[119b] Minster and Monastery, were names anciently applied to all parish-churches. Sed et universim ecclesiæ omnes monasteræ dictæ. Du Cagne’s Glossary.

[120] *Anglo-Saxon History*, vol. ii. pages 422, 501, 546.

[121] *Dr. Cove’s Essay on the Revenues of the Church of England*, p. 72; and *Wilkins’s Anglo-Saxon Laws*, p. 71.

The extracts from Mr. Kemble's work shew how this encouragement to church buildings was abused; and how little the parvenu aristocracy, thus made, knew of moral obligation.

[122a] *Commentaries*, book 1. cap. 11, p. 387, tenth edition.

[122b] The statute against this "new heresy," which "had been surreptitiously obtained by the clergy;" the citation of Wickliffe before Courtney, bishop of London, and rousing the populace against the Duke of Lancaster and Lord Piercy who protected him, were all of no avail; the truth which Wickliffe advocated advanced, and when he was cited before the Lambeth Synod, even the people of London saw their previous error, and protected him.—Vide *Hume*. "*Miscellaneous Transactions during Richard the Second's reign*."

[123] Sir H. Spelman says impropriations are so called "as being improperly in the hands of laymen;" others say, impropriation is a corruption of in-appropriation.

[124a] *Strype's Life of Aylmer*, original edition, 1701, p. 212. Oxford edition of *Strype's Works*, p. 140.

[124b] The present Bishop of London has returned the gross income of his see for the seven years, ending 31st December, 1850, at the comfortable sum of £123,985 0s. 11d. the net income being £115,591 19s. 11d. Vide *Blue Book*, No. 400, 1851, p. 385; and Sir B. Hall's Speech in the House of Commons, July 1st, 1851.

[127a] *Macaulay's History of England*, vol. i, p. 397.

[127b] At the time I am writing, this number must very nearly represent the inhabitants of this parish; but the actual number, whatever it may be, is daily increasing.

[129] "Returns—Ecclesiastical Commission; and Archbishoprics and Bishoprics. Ordered by the House of Commons, to be printed 16th June, 1851." No. 400.

[132] The Tybourn church was built by and belonged to, the De Veres; the excuse given for taking it down was, that "it stood in a lonely place near the

highway, and that in consequence of its position it was subject to the depredations of robbers, who frequently stole the images, bells, and ornaments.” The *most* lonely place “near the highway” was beside *the ancient* Tybourn, where the gallows and gibbet were formed out of the adjacent elm, and near this spot, as I imagine, the ancient Tybourn church stood.

[133] Vestry Minutes, August, 1796.

[134] The great Sir James’s notions of marriage and his stupidity in not recognising in his son-in-law one of the greatest geniuses of his, or any other age—notwithstanding all Sir Joshua has said—perhaps gave the hint for the execution of those exquisite moral lessons which adorn our National Gallery.

[135] Vide Print of Paddington-Green, published by R. Sayer, and J. Bennett, in 1783.

[136] No less than 291 local and private Acts of Parliament, connected with building, enlarging or repairing churches; and procuring, enclosing, or enlarging parish, church-yards, were procured from 1750 to 1850. For their titles, see report of select committee on church rates.—*Blue Book*, 1850; No. 541. And one would think that by this time, enough *general* Church Building Acts existed, seeing that their manufacture commenced on the 30th of May, 1818, and that up to the 7th of August, 1851, not less than nineteen have been turned out of hand.—See 14th and 15th Vic. cap. 97.

[137] From this gentleman the churchwardens could get no account of the burial-fees received by him for several years; so that they complain in vestry of not being able to pay the salaries of other persons engaged about the church, or the bills sent into them. And in 1798, the vestry resolved that he should no longer hold the situation of sexton and vestry-clerk. In 1801, there is an entry in the minutes to the effect, that the office of clerk is still held by this tenacious gentleman, “*although he has left the parish.*” No wonder that with such rectors, or governors as we have described, and with such a deputy-governor as this, the vestry minutes were lost; the charity-lands were lost; and the parish funds were misapplied!

[139] Beside a very ancient yew tree, which was carefully protected by a raised mound of earth, there grew in the old church-yard, a double-leaved elder tree which enjoyed a far-famed reputation.

[140a] There is an edition of this map dated 1827, now hanging up in the Vestry-Clerk's room, from which this fact has been effaced; and not content with this erasure, half the parish has been rubbed out by the despoilers.

[140b] For an excellent description of the dilapidated condition of the old manor house see Mr. Ollier's Novel of Ferrers.

[142] Adjoining this field was the "Church Field," names well remembered by many now living.

[145] However odious it may appear I cannot help contrasting here the generosity of a private gentleman, unconnected with the parish by ties of property, with the "meanness" of the lord and his lessee. Mr. Tillard, of Canterbury, gave, through Dr. Crane, £500 towards the erection of this chapel, while £300 sufficed for the lordly donation, and £200 for the lessees—to which, in justice to a lady connected by birth with the latter, I must mention a donation of £100 by Miss Thistlethwayte. The Grand Junction Canal Company gave £200; and Dr. Crane, Mr. Orme, Earls Ferrars, and Shannon, and the Dean and Chapter of Westminster, £100 each. The architect, Mr. Fowler, gave £50, and the remainder was collected in sums under a hundred from the parishioners, and some of the neighbours. Mr. Tillard's gift of £20,000 and interest, (at first it was only a loan) towards the erection of the Marylebone churches, also deserves mention, in order that it may not be imagined he shewed his favours to Paddington only. His other generous deeds need no mention here.

[147] Finding the Commissioners did not come down so handsomely as on the previous occasion, only £1000 this time, it was necessary to appeal to the Metropolitan Committee. This Committee gave £3,000; and the bishop afterwards increased his donation to £500. Mr. Thistlethwayte gave £200. Upwards of a thousand pounds were subscribed by the builders. The Rev. Minister gave £200; (a whole year's stipend; if the bishop and his lessees had but done this!) and the greater portion of the remainder was raised by voluntary subscription from those who did not know the history of the Paddington Estate.

[151a] Vide cash accounts.

[151b] While we admire the wonders being worked out by the electric telegraph, the simple rod of steel must not be discarded, or despised; for the want of this simple lightning conductor, the clumsy steeple of St. James's Church was struck by what would a short time ago have been considered the vengeance of heaven.

[152a] For some most excellent remarks on the London Churches in general, see "London exhibited in 1851," by John Weale.

[152b] For a full description of the splitting of the walls of this church, and the cause which produced it, see *The Builder*, for 1846, pages 589–615.

There is an error in a previous notice of this church in the *Builder*, Vol. IV., page 395, which may have led to the belief, that it did not much concern the rate-payers of Paddington, how it was built; the printer of this notice having made the church commissioners give ten thousand pounds, instead of one thousand—the actual amount given.

[153] *Household Words*, November 6, 1852.

[155] Mr. Cundy's generous gift did not save the parish the payment of "£38 for a carved oak altar table and two chairs, supplied at Trinity;" the question of stone or wood having become of great importance; the wood having carried it in this instance.

[156] It must not be imagined that this vestry represented the majority of rate-payers; for it did no such thing. At the annual public meeting of rate-payers, which was held after these great outlays for the church had been incurred, the names of the parish officers who sanctioned these proceedings were received with the most unmistakeable marks of disapprobation; and at an election, which virtually tried the management of the whole body, a great majority of the rate-payers voted against the vestry. Moreover, I am of opinion, after the most careful and impartial investigation of this subject, that the *bona fide* government of this parish is, and has been for years, in the hands of the bishop and his lessees, (through their agents in the parish,) and a few builders.

[157] Vide Cash Account, 1847—p. 49.

[159] Vide *Morning Post*, October, 5th, 1850.

[160] Report of the Lock Hospital Asylum, and Chapel, 1852.

[161] Macaulay's History of England, Vol. I. page 88.

[169] For an excellent description of the method of teaching adopted at this school, see Household Words.—December 25, 1852.

[174a] In consequence of the management of this Establishment not having been satisfactory to the subscribers, another Institution of a similar character has been established in the same street; and it is to be hoped that this rivalry will ensure the future good management of both.

[174b] These figures have been kindly furnished to me by Mr. Brown, the Clerk of the Board of Guardians, with their permission.

[176] Kensington-gardens, and Hyde-park, are within an easy distance of Paddington, it is true; and the people see the necessity of maintaining those true lungs of London; so that these open spaces are not likely to be covered by the mason. But these Royal Parks are kept for the promenades of those who can afford to ride on horses or in carriages, or who, if walking, can afford to dress well; these therefore do not make up for the loss of the old village-green.

[182a] The account of this tradition is preserved in "Ferrers."

[182b] Mr. Macaulay tells us from the best authority, "that there were in the City at this time fifty-five persons to ten houses." But many causes would combine to make the families in a village less numerous than in a city; I have therefore taken five individuals, instead of five and a half, in the computations I have made for the population of Paddington.

[183a] This is not only the oldest person buried in the church-yard, so far as is known, but it is the oldest tomb now existing in it. Some time ago, an engraved copper-plate, in memory of Henry Kenwricke, citizen and mercer, was found several feet below the present surface: he died December 23rd, 1639, aged 63.

[183b] Madame Vestris and her husband, Mr. Charles Matthews, also occupied this house for some time.

[189] This story was told of several cowkeepers in the neighbourhood of London; and an old, and oft repeated tale, is told of one of this grazier's workmen. The young man who married the heiress, turned out a terrible old miser, and his penurious habits, as a matter of course, made him no great favourite with those whom he employed; therefore his final exit from this world was not much regretted by them. "Pretty Johnny," the Guardsman's son, was not of the same turn of mind as his father, and his failings and faults were looked on with a more lenient eye by the people. What the father had saved with so much care, the son delighted to spend; and after the old gentleman's death, the magic number of live stock soon vanished from the fields. A few cows were sold to supply any immediate want; and after a greater demand on one occasion, than ordinary, Pretty Johnny was not in the best of tempers. This lazy old fellow, who had by some chance found out for what purpose the cows were sold, happened to cross his path at this unlucky moment, and the grazier who saw the wicked twinkle in the fellow's eye, swore, if he did'nt get out of the way and go on with his work, he would send him to the devil.—The countryman nothing daunted, quietly rejoined, "You'd better not, master; for if you do, I'll tell daddy you've sold the cows."

[190] Byron has said "there would be nothing to make the canal of Venice, more poetical than that of Paddington, were it not for its artificial adjuncts." Vide Cunningham's Hand-book. The artificial adjuncts of the Paddington Canal, from its first formation to the present time, have been any thing but poetical. It is true an imaginative Cockney might, in snowy weather, have imbibed his notion of the Alps from what he then saw on the banks of this canal; for immense heaps of dust and ashes towered high above the house-tops; and these artificial mountains are said to have been worth ten thousand pounds a-piece.

[196] In going through the Vestry Minute-Books, for the purposes of this Work, I found an opinion of Sir Frederick Pollock's entered in November 1841 (at which time the builders and owners of houses were attempting to relieve themselves of the charge of *all Empty Rates*) to the effect that these words, "it shall and may be lawful," created a duty. But I was astonished to find the opinion mutilated by a bungling attempt which had been made to scratch out the words, "*and may*."

[198] How different this conduct of the Bishop of London and his lessees, from the liberality of John Lyon, who, after he had established his Free School at Harrow, purchased forty-one acres of land in Marylebone, for the purpose of keeping the road to London in repair for ever! Vide 10 Geo. IV. cap. 59.

[199] For an account of these trials, Maund v. Campbell, and Campbell, v. Maund, see Adolphus and Ellis's Reports, Vol. v. p. 865, et seqq.

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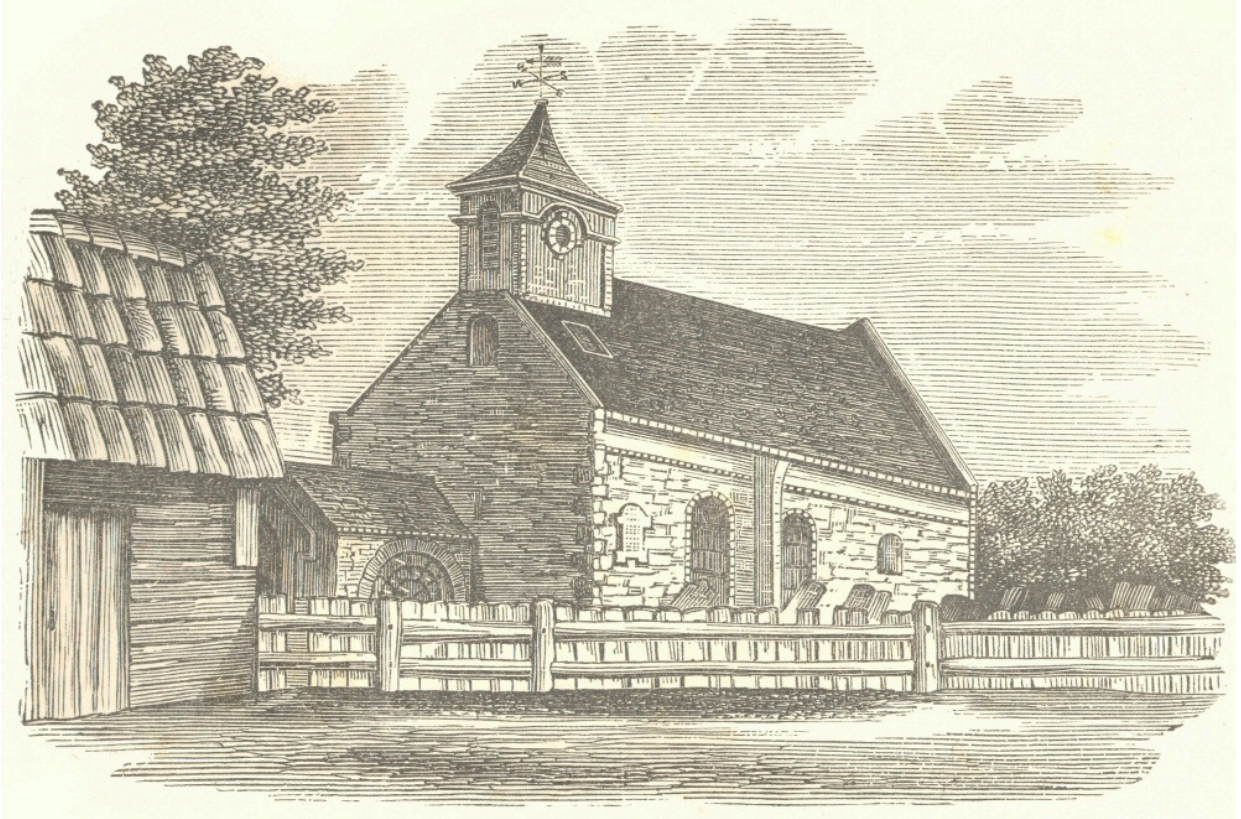
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